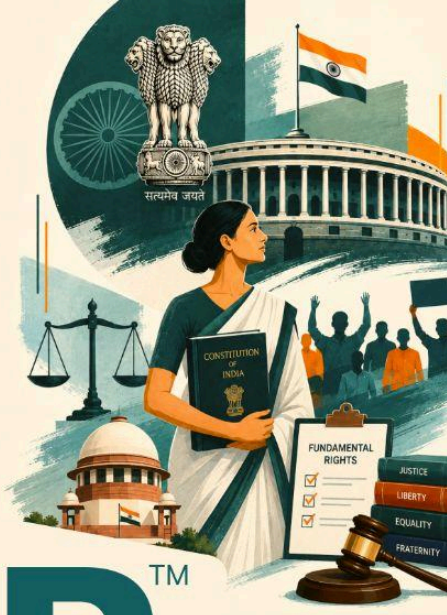
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Chapter 1

Nature Of Constitution

PYQs

[2025] "Constitutional morality is the fulcrum which acts as an essential check upon the high functionaries and citizens alike..." In view of the above observation of the Supreme Court, explain the concept of constitutional morality and its application to ensure balance between judicial independence and judicial accountability in India. (15)

[2023] Explain the constitutional perspectives of Gender Justice with the help of relevant Constitutional Provisions and case laws. (15)

[2022] "The most significant achievement of modern law in India is the constitutionalization of environmental problems by the Supreme Court." Discuss this statement with the help of relevant case laws. (10)

[2021] 'Constitutional Morality' is rooted in the Constitution itself and is founded on its essential facets. Explain the doctrine of 'Constitutional Morality' with the help of relevant judicial decisions. (10)

Quotes

On the significance of the Constitution: *"Constitution is not a mere lawyers' document, it is a vehicle of Life, and its spirit is always the spirit of Age."* — B.R. Ambedkar

On the nature of the Constitution: *"So long as you do not achieve social justice, whatever freedom is provided by the law to you will be of no avail"* — B.R. Ambedkar

On Constitutional Morality and constitutionalism: *"However good a Constitution may be, if those who are implementing it are not good, it will prove to be bad. However bad a Constitution may be, if those implementing it are good, it will prove to be good"* — B.R. Ambedkar

Constitution

The Constitution serves as the **foundational law** on which other laws are constructed and enforced.

A Constitution is a set of fundamental legal-political rules that:

1. **Bind all state actors and institutions**, including the legislature, executive, and judiciary, ensuring supremacy over ordinary laws.
2. **Define the framework of government** by laying down its structure, functions, operating procedures, political principles, and the rights and duties of citizens.
3. **Delineate** the **distribution of power** in society and delegates specific decision-making authority to various entities or authorities. Eg. **7th Schedule**
4. Set forth the fundamental principles and objectives that govern the establishment and governance of a state. Eg. **Preamble** and the **Directive Principles of State Policy**.
5. **Derive legitimacy from public acceptance**, reflecting broad consensus and societal trust.

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6. **Possess rigidity** by requiring special procedures for amendment (Eg. supermajority vote, referendum), making it harder to alter than ordinary legislation.
7. **Conform to democratic standards**, at minimum ensuring representation, accountability, and protection of fundamental human rights as recognized in international law.

Indian Constitution is often criticized as a **Bag of Borrowings**, having its features picked up from various other Constitutions.

Arguments in favor

1. **Fundamental Rights** borrowed from the United States Constitution.
2. **Directive Principles of State Policy is** inspired by the Irish Constitution
3. **The Parliamentary System** including the bicameral legislature and the role of the Prime Minister, mirrors the British model.
4. **Federal Structure** with a strong central government was influenced by the Canadian Constitution.
5. **Emergency Provisions** were derived from the Weimar Constitution of Germany.
6. **Fundamental Duties** was inspired by the Soviet Constitution.
7. **The concurrent List** was borrowed from the Australian Constitution.
8. **Judicial Review** was adopted from the American system

Arguments Against

'Nobody holds any patent rights in fundamental ideas of the Constitution' - **Ambedkar.**

1. The crafting and implementation of its provisions were guided and adapted by Indians to **accommodate the diverse local realities**. Eg. Federalism.
2. **Indian civilizational values**: Equality, fraternity, liberty, federalism, republic, democracy, etc. can be traced back to ancient Indian history and scriptures. For Eg.
    a. The **secularism** in the Indian Constitution is influenced by **'sarva dharma sambhav'**
    b. **Equality principles under Article 14 to 18** are inspired from Rig Veda that emphasizes the idea of the unity of all beings and the absence of discrimination based on caste or birth.
    c. The **Arthashastra** calls individual **liberties and property rights** as essential components of good governance
    d. The establishment of the **"Mahasangha"** or the Great Assembly in ancient India is considered an early form of a **republic.**
    e. The concept of **"Sabha" and "Samiti"** in ancient texts reflects **democratic practices.**
3. **Unique Synthesis, Not Blind Copying - Eg.** Fundamental Rights inspired by the US Bill of Rights, but subject to reasonable restrictions reflecting Indian socio-economic realities.
4. Certain basic features are common in all the democratic constitutions in the world. Eg. Protection of **individual rights, separation of powers, rule of law**.
5. Many provisions were of **Indian origin.** Eg. Finance Commission, Reservation, etc.

Constitution as a living document

According to **Woodrow Wilson**, living political Constitutions must be Darwinian in structure and in practice.

1. **Balance between rigidity and flexibility under** Article 368.
2. **Judicial Interpretation** - Eg. **Right to Privacy (2017)** recognized as part of Article 21; **Basic Structure Doctrine (1973)** ensures continuity with adaptability.
3. **Expansion of Fundamental Rights** - Eg. **Right to Education (2002)** made a Fundamental Right (Art. 21A); environmental protection interpreted within Right to Life.

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4. **Responsive to Democratic Aspirations** - Eg. **reservation for women in Parliament and State Assemblies (2023 Constitution (106th Amendment) Act)**.
5. **Balance of Continuity and Change** - While adapting to modern issues (privacy), it maintains core values of **sovereignty, democracy, secularism, and equality**.
6. **Inclusivity**: According to President **Droupadi Murmu,** the makers created a comprehensive Constitution due to their sensitivity towards each section of society and awareness of each level of democracy.

Limitations and Challenges

1. **Overuse of Amendments** - Excessive amendments (100+ so far) risk diluting constitutional sanctity. Eg. Frequent changes to **Reservation policy** (77th, 81st, 85th, 103rd Amendments)
2. **Judicial Overreach Concerns** (against separation of powers) - Eg. NJAC Judgment.
3. **Ambiguity in "Basic Structure Doctrine"** - the doctrine is vague and judges decide its scope case by case, leading to uncertainty.
4. **Tension Between Flexibility and Stability** - Eg. **Emergency provisions (1975-77 misuse)** showed how flexibility can weaken rights.
5. **Socio-economic Gaps in Realization** - Eg. **Directive Principles** like right to work or nutrition remain partially realized despite MGNREGA and NFSA.
6. **Political Motives** - Eg. **42nd Amendment (1976)** tried to concentrate power in the centre.
7. **Complexity for Common Citizens** - The Constitution's vast length and legal language make it less accessible to ordinary people, challenging its participatory legitimacy.

Constitutionalism

Constitutionalism is a political philosophy centered on **limiting government power** through a Constitution, ensuring government operates within the bounds of law and protecting fundamental rights.

In the **I. R. Coelho case**, the Supreme Court held that "Constitutionalism is a legal principle that requires control over the exercise of Governmental power to ensure that it does not destroy the democratic principles upon which it is based".

In the **Rameshwar Prasad case**, the Supreme Court held that "the constitutionalism or constitutional system of Government abhors absolutism - it is premised on the Rule of Law in which subjective satisfaction is substituted by objectivity provided by the provisions of the Constitution itself".

Louis Henkin defines Constitutionalism as constituting the following 9 elements:

1. **Government according to the Constitution** - it provides for codification of fundamental laws and principles into a single, formal document that serves as the supreme law of the land.
2. **Separation of power** - it prevents the concentration of power, ensures checks and balances, and safeguards against potential abuses. Eg. impeachment process
3. **Sovereignty of the People** - Representative institutions derive power from popular mandate, upholding the principle of **government by the people, for the people, of the people**.
4. **Constitutional Review** - Judiciary ensures supremacy of the Constitution;
   a. **Raja Ram Pal case (2007):** Judicial review extends to parliamentary proceedings if they violate constitutional principles.
   b. **I.R. Coelho case (2007):** Laws placed in Ninth Schedule after 1973 subject to **Basic Structure Doctrine**, reinforcing constitutional supremacy.
5. **Independent judiciary** - to ensure that laws are applied fairly, protecting individual rights and upholding the rule of law without external influence.

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6. **Fundamental rights** as a check on government's powers Eg. **Shreya Singhal case (2015)** - Struck down **Section 66A IT Act** for violating **freedom of speech under Article 19(1)(a)**.
7. **Rule of Law** - Ensures **uniform application of laws** and upholds **equality and legal certainty**. Eg. **Indira Gandhi v. Raj Narain (1975)** - Struck down law exempting PM's election from judicial review, affirming **no one is above the law**.
8. **Civilian control of the military**, ensuring it remains subordinate to democratic institutions and preventing political interference.
9. **No state power, or very limited and strictly circumscribed state power, to suspend the operation of some parts of, or the entire, constitution.** Eg. restrictions on use of Article 352

Constitutional Morality

"Constitutional morality is not a natural sentiment. It has to be cultivated". - **Ambedkar**

British Classicist George Grote described it as a **"paramount reverence for the forms of the Constitution"** of the land.

Constitutional morality refers to an **overarching set of principles** that guides the interpretation of the Constitution, particularly when addressing complex legal questions.

It is derived from the **spirit and fundamental values** enshrined in the Constitution, such as justice, liberty, human dignity, equality, fraternity. However, its **scope is not confined to these explicitly stated values** but extends beyond the literal text of the Constitution as well.

It differs from **popular morality**, which is determined by popular perceptions, sentiments, and common notions prevalent in society.

Constitutional Morality provides a **"unifying constitutional ethic"** that reflects the shared values and aspirations of a society. It actively **promotes a pluralistic and inclusive society**. It compels society to allow for conditions which **respect diversity, promote inclusion and pursuit tolerance**.

Recent News

- While introducing **Constitution (130th Amendment) Bill** which proposes automatic removal of Prime Minister, chief minister and ministers if they are arrested and detained for 30 consecutive days on charges punishable by five years or more imprisonment, Home Minister held that it was aimed at upholding "constitutional morality" and public trust
- However, Bill was criticised as **abusive constitutionalism (**use of formal constitutional change to make a system significantly less democratic, entrench power, disable checks, and reduce electoral competition**).** It erodes democracy by
- **Presumption of Innocence** - Removal on **mere detention, not conviction**, undermines rule of law and invites **politicised targeting**.
- **Unequal Standards** - Creates asymmetry: **MPs/MLAs removed only on conviction**, but **Ministers on detention**.
- **Parliamentary Confidence Eroded** - Displaces **legislative majority principle** under Articles **75 & 164** with **police/judicial discretion**.
- **Executive Authority Undermined** - Strips **PM/CM's prerogative** to select/dismiss Ministers, politicising accountability.
- **Governance Destabilised** - Cycles of **resignation and reinstatement** weaken stability and fracture coalitions.
- **Opportunism Encouraged** - Enables ruling parties to **weaponise detentions** to eliminate rivals.
- **Incoherence in Standards** - A **convicted legislator may remain**, while a **detained Minister must resign**, violating fairness.

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- **Authoritarian Tilt** - Empowers **law enforcement over Parliament**, reflecting **abusive constitutionalism**.

Pillars of Constitutional Morality

George Grote, in his **History of Greece,** described constitutional morality as a **"rare and difficult sentiment"**:

1. Paramount reverence for **forms and procedures** of the Constitution.
2. Adherence to law while enabling **open criticism** of authority.
3. Need for **public reason, self-restraint, and trust** in institutions.

Other Pillars

1. **Rule of Law**
2. **Institutional Integrity** - Independent functioning of constitutional bodies.
3. **Democratic Spirit** - Respect for dissent, and procedures. Eg. Dy Speaker from opposition
4. **Progressive Interpretation** to reflect its principles in changing contexts. Eg. Privacy
5. **Equality and Dignity** - Eg. Sabrimala Judgment
6. **Constitutional Values** - Upholding justice, liberty, equality, fraternity, secularism, and dignity.
7. **Democratic Principles** - Participation, representation, and accountability. Eg. Social Audits.
8. **Fundamental Rights** - Protecting freedoms and personal liberty from arbitrary state action.
9. **SoP** and **Checks and Balances** to prevent concentration of power. Eg. NJAC verdict

Ambedkar & Grote on Constitutional Morality - Key Elements

- **Freedom with Self-Restraint** - Constitutional morality requires citizens and leaders to exercise **self-restraint** so freedom does not descend into anarchy or revolution.
- **Commitment to Constitutional Methods** - Ambedkar: achieve goals through **constitutional processes**, rejecting both violent revolution and coercive methods like satyagraha.
- **Pluralism & Non-Violence** - only way to resolve differences non-violently is through agreed **constitutional adjudication** (parliament, courts).
- **Suspicion of Absolute Sovereignty** - No branch or leader can claim to uniquely embody the "will of the people"; all authority must be open to **criticism and checks**.
- **Non-Transactional Allegiance** - Loyalty to the Constitution must hold even if outcomes don't match personal beliefs or group interests.
- **Rejection of Hero-Worship** - Ambedkar opposed personality cults, seeing them as threats to constitutional democracy.
- **Criticism as a Democratic Virtue** - Constitutional morality thrives when government decisions remain subject to **open, pacific, and continuous criticism**.

Judicial Elaboration

1. **Kesavananda Bharati (1973):** Upheld Basic Structure as a reflection of constitutional morality above political majority.
2. **Naz Foundation (2009, Delhi HC):** Asserted **constitutional morality over public morality** in striking down Sec. 377 IPC (later affirmed in Navtej Johar).
3. **Navtej Singh Johar (2018):** SC decriminalized homosexuality, stating **constitutional morality must prevail over majority opinion**.

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4. **Sabarimala case (2018):** Affirmed women's entry in temples on grounds of **constitutional morality and gender equality**.
5. **Government of NCT of Delhi v. UoI (2018)** - SC held that **constitutional morality ensures cooperative federalism** and prevents concentration of power in the hands of one authority.

> The phrase had been used in less than 10 reported cases by the Supreme Court till 2010 from the time the Constitution was adopted. However, in the year 2018 alone, it has been used in more than 10 reported cases by the Supreme Court.

Criticism of Constitutional Morality

1. **Judicial Overreach** - Courts often expand the idea beyond text, raising concerns about unelected judges imposing their values.
2. **Vagueness and Subjectivity** - No fixed definition; interpretation depends on judicial philosophy, leading to inconsistency.
3. **Conflict with Social Morality** - Excessive reliance may alienate traditional or religious communities, creating friction (Eg. opposition to *Navtej Johar*, *Sabarimala*).
4. **Undermines Popular Will** - Risks privileging constitutional ideals over democratic majority opinion, fueling debates on counter-majoritarianism.
5. **Implementation Gap** - Despite being invoked, societal practices (caste, gender bias, corruption) often remain unchanged.
6. **Risk of Instrumentalisation** - Without safeguards, it can be **weaponised** to justify **authoritarian measures**. Eg. **weaponisation of Detention Laws** like **UAPA, PMLA**
7. **Dependence on Judiciary** - Over-reliance on courts for enforcing constitutional morality weakens the responsibility of legislature and executive.
8. Some critics argue that the concept of constitutional morality remains **understudied** and there is a **need for a consensus** to be reached for **defining and applying** this concept.

Way Forward: Inculcating Constitutional Morality

1. **Civic Education** - Introduce **constitutional values** (justice, liberty, equality, fraternity, secularism) in schools and universities through civic studies and debates.
2. **Political Accountability** - Ensure elected representatives uphold **constitutional ethics** via stricter codes of conduct and parliamentary oversight.
3. **Institutional Integrity** - Strengthen **ECI, CAG, Lokpal, Judiciary** to function impartially, ensuring fidelity to constitutional principles.
4. **Cultural Integration** - Align **social morality with constitutional morality** through campaigns against casteism, patriarchy, and communalism.
5. **Capacity Building** - Train civil servants, police, and judiciary in **constitutional ethics** to prevent misuse of authority.
6. **Periodic Review of Laws** - Update outdated laws (Eg. sedition, marital rape exception) to ensure consistency with **constitutional ideals**.

> **Jürgen Habermas** - Advocated **constitutional patriotism**: citizens must build loyalty to **constitutional values and processes**, not ethnic or religious identity.
>
> **Amartya Sen** - Emphasised the role of **public reasoning and deliberation** as essential for democratic culture; constitutional morality can be nurtured through **open dialogue and participatory governance**.

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Martha Nussbaum - Highlighted **cultivation of civic virtues** (empathy, dignity, respect for difference) through **education in liberal and constitutional values**.

As Rajeev Bhargava notes, it embodies a form of **constitutional patriotism** that enables **unity in diversity while upholding pluralism**, making it indispensable for India's democratic resilience.

SC Judgments on various aspects

SC Judgments on Environment

1. **MK Ranjitsinh v. Union of India (2024) -** Recognized a new fundamental right to be free from the adverse effects of climate change.
2. **In Re: T.N. Godavarman (ESZ Case) (2023) -** Clarified that mining is prohibited within Eco-Sensitive Zones and 1km around National Parks/Sanctuaries.
3. **Vanashakti v. Union of India (2026) -** Reversed the verdict on ban on "retrospective" environmental clearances for projects
4. **M.C. Mehta v. Union of India (1987) -** Established "Absolute Liability" for enterprises engaged in hazardous activities causing public harm or leaks.
5. **Subhash Kumar v. State of Bihar (1991) -** Confirmed that the right to pollution-free water and air is a fundamental human right under Article 21.
6. **Vellore Citizens v. Union of India (1996) -** Integrated "Polluter Pays" and "Precautionary Principle" into the core of Indian environmental law.
7. **M.C. Mehta v. Kamal Nath (1997) -** Applied the "Public Trust Doctrine," holding that natural resources belong to the public, not private parties.
8. Almitra Patel v. Union of India (2000) - Directed all Indian cities to implement scientific schemes for mandatory municipal solid waste management.

SC Judgments on Gender Justice

1. **Vishaka v. State of Rajasthan (1997)** - Laid down **Vishaka Guidelines** on **sexual harassment at workplace**, invoking **CEDAW**.
2. **Indian Young Lawyers Association** - Allowed **women's entry into Sabarimala temple**, affirming **religious freedom + gender equality**.
3. **Secretary, Ministry of Defence v. Babita Puniya (2020)** - Granted **permanent commission** to women officers in the Army, ensuring **equal career opportunities**.
4. **Shayara Bano v. Union of India (2017)** - Declared **instant triple talaq** unconstitutional, strengthening **Muslim women's rights**.
5. **State of Jharkhand v. Shailendra Kumar Rai (2022)** - declared the archaic practice of conducting the "two-finger test" on victims of rape as unconstitutional and illegal.
6. **Joseph Shine v. Union of India (2018)** - Decriminalized adultery, ruling that laws treating women as "chattel" or property of husbands are unconstitutional.
7. **Vineeta Sharma v. Rakesh Sharma (2020) -** Granted daughters equal coparcenary (inheritance) rights in ancestral property, regardless of when the father died.
8. **Dr. Jaya Thakur v. Union of India (2026) -** Recognized access to menstrual hygiene facilities and sanitary products as a fundamental right (Article 21) in schools.

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9. **Jane Kaushik v. Union of India (2025)** - Mandated "Equal Opportunity Policies" for transgender persons in both public and private sector workplaces.
10. **In Re: Sexual Offences Sensitivity Guidelines** - Formed expert committees to eliminate "gender-insensitive" reasoning and patriarchal stereotypes from judicial orders and rulings.

Negative Example

- **Shivangi Bansal v. Sahib Bansal (2022, SC)** - Directed implementation of **Allahabad HC guidelines** mandating a **two-month cooling-off period** in matrimonial cruelty cases, restraining police from arrest or action during this time.

SC Judgments on Children

1. **Bandhua Mukti Morcha v. Union of India (1984)** - Declared **bonded child labour** unconstitutional and expanded **Article 24 & 21** protections.
2. **M.C. Mehta v. State of Tamil Nadu (1996)** - Banned **child labour in hazardous industries**, mandated rehabilitation and education.
3. **Unnikrishnan J.P. v. State of Andhra Pradesh (1993)** - Recognised **Right to Education** as part of **Article 21**.
4. **Independent Thought v. Union of India (2017)** - Declared **sex with minor wife (<18 years)** as **rape**, overriding marital exception.
5. **Society for Unaided Private Schools v. Union of India (2012)** - Upheld the 25% reservation for disadvantaged children in private schools under the Right to Education Act.
6. **Sampurna Behura v. Union of India (2018)** - Mandated the setting up of Child Protection Units and Commissions in every state for better oversight.

SC judgments on Tribals

1. **Kailas v. State of Maharashtra (2011)** - Affirmed that Scheduled Tribes are the **original inhabitants** of India and must be protected from historical injustice.
2. **Samatha v. State of Andhra Pradesh (1997)** - Prohibited transfer of **tribal lands to non-tribals/private mining companies**, affirming **Fifth Schedule protections**.
3. **Niyamgiri case, 2013** - Upheld **Gram Sabha's authority** to decide on mining, protecting **tribal religious and cultural rights** under Article 25.
4. **Banwasi Seva Ashram v. State of U.P. (1986)** - Directed **rehabilitation of displaced tribals** due to development projects as part of **right to life (Art. 21)**.
5. **T.N. Godavarman Thirumulpad (1996-ongoing)** - Expanded definition of **"forest"**, impacting tribal access and customary use; stressed **sustainable forest management**.

SC judgments on Minorities

1. **T.M.A. Pai Foundation v. State of Karnataka (2002)** - An 11-judge bench ruled that "minority" status must be determined at the State level, not Nationally.
2. **P.A. Inamdar v. State of Maharashtra (2005)** - Clarified that the State cannot impose its reservation policy on unaided minority (and non-minority) private professional colleges.
3. **Aligarh Muslim University v. Naresh Mansukhani (2024)** - Overruled previous law to clarify that incorporation by statute does not automatically strip an institution of minority status.
4. **St. Stephen's College v. University of Delhi (1992)** - Allowed minority institutions to reserve up to 50% of seats for their own community members.
5. **Sisters of St. Joseph of Cluny v. State of W.B. (2018)** - Ruled that minority institutions are exempt from the "Right to Education" (RTE) Act's mandatory 25% free seat quota.

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Chapter 2

Salient Features Of Indian Constitution

Preamble Of The Indian Constitution

PYQs

[2019] Do you think that the Constitution of India does not accept the principle of strict separation of powers rather it is based on the principle of 'checks and balances'? Explain. (10)

The **Preamble** is the **introductory statement** that outlines the **philosophy, ideals, and objectives** of the Constitution.

It reflects the **vision of the Constituent Assembly** and acts as the **identity card of the Constitution**.

> **We, THE PEOPLE OF INDIA, having solemnly resolved to constitute India into a SOVEREIGN SOCIALIST SECULAR DEMOCRATIC REPUBLIC and to secure to all its citizens:**
>
> **JUSTICE, Social, Economic and Political.**
>
> **LIBERTY of thought, expression, belief, faith and worship.**
>
> **EQUALITY of status and of opportunity and to promote among them all.**
>
> **FRATERNITY assuring the dignity of the individual and the unity and integrity of the Nation.**
>
> **In Our Constituent Assembly, this 26th day of November 1949, do HEREBY ADOPT, ENACT, and GIVE TO OURSELVES THIS CONSTITUTION.**

Significance of the Preamble

1. **Philosophical Foundation** - Serves as the **soul of the Constitution**, reflecting ideals of **justice, liberty, equality, fraternity**.
2. **Source of Authority** - Declares that the **power rests with the people**, establishing **popular sovereignty**.
3. **Guiding Principles** - Acts as a **compass for governance** and guides **constitutional interpretation**.
4. **Identity of the State** - Defines India as **Sovereign, Socialist, Secular, Democratic, Republic**.
5. **Vision of Social Revolution** - Highlights the goal of transforming Indian society based on **social, economic, and political justice**.
6. **Inspirational Value** - Inspires citizens and institutions to uphold **constitutional morality** and **democratic values**.
7. **Judicial Reference** - Frequently used by the **Supreme Court** to uphold the **basic structure**. Eg. **Kesavananda Bharati, 1973**.
8. **National Unity** - Reinforces **unity in diversity** through the ideals of **fraternity and integrity**.

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Scholars

1. In **Sajjan Singh vs. State of Rajasthan**, Justice Madholkar said that the **Preamble had the stamp of "deep deliberation" and** "an epitome" of the broad features of the Constitution.
2. **Sir Ernest Barker's Tribute:** called the Preamble the "keynote" of the Constitution and quoted it in his book Principles of Social and Political Theory (1951).
3. **N.A. Palkhivala** - the **"horoscope of the Constitution"**.

Criticism of the Preamble

1. **Non-justiciable nature** - Ideals in the Preamble are **not legally enforceable**, reducing their practical impact.
2. **Redundancy argument** - Critics argue it merely restates principles already covered in **Fundamental Rights and DPSPs**.
3. **Ambiguity** - Terms such as **justice, equality, fraternity** are abstract and open to **subjective interpretation**.
4. **Borrowed Principles** - Critics note inspiration from the **US and French constitutions**, questioning originality
5. **Symbolic over substantive** - Seen as more of a **moral declaration** than a practical instrument of governance.
6. **Risk of Judicial Overreach** - Its use in **Kesavananda Bharati (1973)** and later cases gives courts wide discretion, raising fears of **judicial legislation**.

Debate surrounding whether preamble is part of constitution or not

Judicial Debate on the Preamble

1. **Berubari Case (1960) -** SC held that the Preamble is not part of the Constitution. It serves only as a guide to understand the farmers' intentions. Not enforceable in a court of law.
2. **Golak Nath v. State of Punjab (1967) -** described Preamble as the "very soul" of the Constitution, eternal and unalterable. Though not enforceable, it represents the core principles guiding government.
3. **Kesavananda Bharati Case (1973)**
   a. SC overruled Berubari; held the **Preamble is part of the Constitution**.
   b. Declared the Preamble as part of the **Basic Structure**.
   c. It **can be amended**, but only if the **Basic Structure is not altered**.
   d. Established its role as an **interpretative tool** for constitutional provisions.
4. **LIC of India v. Union of India (1995) -** Reaffirmed that the **Preamble is an integral part of the Constitution**.
5. **Present Position -**Preamble is part of the Constitution. It is non-justiciable, but has interpretative value. Embodies the Basic Structure, restricting Parliament's amending powers.

Salient Features and keywords in Preamble

Socialism

It is a governmental system that advocates **community ownership** and **control of all lands and businesses** rather than individual ownership. The word 'Socialist', added in the Preamble by 42nd Amendment Act, 1976 aims to eliminate inequality in income, status and standard of living.

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Indian Socialism

1. **42nd Amendment, 1976:** The term "Socialist" was added, but the Directive Principles of State Policy (DPSPs) already reflected socialist ideals.
2. **Nehruvian Socialism:** state-led industrialization, central planning, and public sector control of key industries.
3. **Five-Year Plans:** promoted industrialization through significant state intervention.
4. **Public Sector Dominance:** The government controlled key industries like steel and mining through public enterprises.
5. **Land Reforms:** Socialist principles drove land distribution efforts to address rural inequality.
6. **Gandhian Socialism** -
    a. For Gandhi, socialism meant equality, where all-prince, peasant, wealthy, poor, employer, and employee-are equal.
    b. **Article 40:** Promotes village panchayats to handle local administration, in line with Gandhian ideals.
    c. **Article 43:** Encourages the promotion of cottage industries in rural areas. Eg. Khadi and Village Industries Commission (KVIC).
    d. **Article 43(B):** Supports the voluntary formation and democratic control of cooperative societies (97th CAA, 2011).
    e. **Social Justice and Welfare:** Articles 15, 16, and 46 reflecting Gandhian Sarvodaya ideals by preventing discrimination and supporting marginalized sections.

Challenges to socialism in India

Political

1. **Populism over Principle:** Political class often pursues **short-term welfare schemes** for electoral gains, weakening socialist vision. Eg. loan waiver schemes
2. **Poor Land Reform Implementation:** By 2024, land reforms redistributed only 4% of India's total agricultural land.

Economic

1. **LPG Reforms (1991 onwards):** Shift from socialist planning to **market-oriented policies** (liberalisation, privatisation, globalisation).
2. **Global Integration:** Emphasis on **foreign investment, trade competitiveness, and market efficiency** over state-led redistribution.
3. **Wealth Inequality:** As per Oxfam report, the top 1% in India held over 40.5% of the country's total wealth, exacerbating inequality.
4. **Privatization Trends:** Eg. Strategic disinvestment in PSUs
5. **Globalization Pressures:** WTO obligations limited India's agricultural subsidies under the Agreement on Agriculture, restricting state control.

Socio-Cultural

1. **Middle-Class Aspirations:** Growing focus on **material prosperity and consumerism** clashes with collective welfare ideals.
2. **Individualism vs. Collectivism:** Aspirations for **personal success** increasingly overshadow socialist emphasis on equality and fraternity.

Environmental

1. **Unsustainable development** - Over-exploitation of resources disproportionately harms the poor, eroding Gandhian socialist justice.

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- **Rajni Kothari** - Warned that **coalition politics and rise of regional parties** dilute ideological commitments, reducing socialism to **populist slogans**.
- **Amartya Sen** - Highlighted that **social opportunity failures** (health, education, gender justice) persist despite growth, showing India's socialism failed to deliver **capabilities-based equality**.
- **Prabhat Patnaik** - Argued that **globalisation and neoliberal reforms** hollow out socialist policies by prioritising capital flows over welfare.
- **Granville Austin** - Pointed out that India's Constitution envisions a **"social revolution"**, but political practice has lagged in translating socialism into **social justice**.

SC judgments on Socialism

1. **D.S. Nakara v. Union of India (1983) - Defined Indian Socialism as providing "a decent standard of life" and "security from cradle to grave."**
2. **AK Gopalan v. State of Madras (1950) -** Initially restricted individual liberty in favor of state-led social goals before the "Due Process" era.
3. **Olga Tellis v. Bombay Municipal Corporation (1985):** Recognized livelihood as part of the right to life under Article 21.
4. **Bandhua Mukti Morcha v. Union of India (1984):** Upheld the right to dignity and fair wages as Fundamental Rights under Article 21.
5. **D.S. Nakara v. Union of India (1983)** - Expanded **right to pension** as a measure of **socio-economic justice**, calling India a **welfare state rooted in socialism**.
6. **Sanjeev Coke Mfg. Co. v. Bharat Coking Coal Ltd. (1983)** - Upheld **nationalisation of coal mines**, affirming socialism as part of constitutional philosophy.
7. **Minerva Mills v. Union of India (1980)** - Held that **harmony between Fundamental Rights and DPSPs** is essential. Socialism under Preamble guides this balance.
8. **Samatha v. State of Andhra Pradesh (1997)** - Barred transfer of tribal land to non-tribals, emphasising **socialist commitment to protect weaker sections**.

Way Forward for Socialism in India

1. **Reduce Inequality through Progressive Welfare -** Strengthen **progressive taxation** and expand **Direct Benefit Transfer (DBT)** schemes. Eg. PM-KISAN, MGNREGA.
2. **Universal Education and Healthcare -** increasing spending on Health and Education to 2.5% and 6% of GDP respectively.
3. **Revitalise Public Sector & Cooperative Models -** Eg. **Amul cooperative model**.
4. **Empower Marginalised Communities -** Strengthen **affirmative action, and tribal welfare programmes**.
5. **Sustainable & Equitable Development -** Adopt **green growth strategies** that balance industrialisation with environmental justice. Eg. Green India mission

Secularism

Secularism is a principle or ideology that advocates for the **separation of religious institutions and beliefs from the affairs of the state,** government, or public institutions.

SC in the **Subramanian Swamy case**, upheld the inclusion of 'socialist, secular' in the Preamble of the Constitution.

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SC in the **S.R. Bommai (1994)** declared secularism a basic structure.

According to **Akeel Bilgrami**, Secularism consists of three commitments

1. **Freedom of religious** belief and practice,
2. **Principles enshrined in the Constitution** such as equality, freedom of speech, gender equality
3. **Meta-commitment**, which says if there is a clash between the first and second commitments, the second commitment must get priority

Secularism under the Indian constitution

1. **Article 15:** Prohibits discrimination based on religion, race, caste, sex, or place of birth, ensuring equal treatment by the state.
2. **Article 16:** Guarantees equality of opportunity in public employment, prohibiting discrimination on various grounds.
3. **Articles 25-28:** Ensures freedom of religion, allowing individuals to practice and propagate their religion, subject to public order.
4. **Article 28:** Protects the rights of minorities to establish and manage educational institutions.
5. **Articles 29 & 30:** Provide cultural and educational rights to protect minority interests.
6. **Article 44:** Promotes the idea of a Uniform Civil Code to establish common laws for all citizens.
7. **Article 51A:** Fundamental duty to promote harmony, preserve cultural heritage, and foster brotherhood.

Significance of secularism

Political Significance

1. **Protection of Individual Rights** - Eg. **Article 25** guarantees freedom of religion.
2. **Prevention of Religious Discrimination** - Separation of state and religion discourages imposition of beliefs.
3. **Promotion of Rational Governance** - Policies based on rationality, not religion. Eg. **Uniform civil code**.
4. **Protects Minority Rights** - Eg. **Article 30** ensures minorities' right to establish institutions.
5. **Strengthens Democracy** - Prevents fusion of state and religion. equal citizenship for all. (Rajeev Bhargava - **principled distance**).
6. **Supports Constitutional Morality** - Upholds **justice, liberty, equality, fraternity**.
7. **Encourages Global Standing** - Projects India as a tolerant and inclusive democracy.

Social Significance

1. **Preserves Unity in Diversity** - Ensures coexistence of multiple religions, castes, and cultures.
2. **Promotes Social Justice** - Reforms regressive practices. Protects gender and caste equality. Eg. **Shayara Bano (2017)** struck down instant triple talaq.
3. **Prevents Communal Conflicts** - Safeguards against polarisation and religious violence.

Western vs. Indian secularism

Dimension	Western Secularism	Indian Secularism
State-Religion Relation	Strict separation of **State and Church.** Eg. the French **laïcité model** bans religious symbols in public institutions.	**Principled distance** - equal respect but engagement if needed. Eg. Triple Talaq, Sabarimala

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Dimension	Western Secularism	Indian Secularism
Origin	Evolved during the **European Renaissance** as a response to widespread corruption in the Church	It originated in the ancient Vedic era and is grounded on religious pluralism (**Sarva Dharma Samabhav** and **Dharma Nirapekshata.)**
Role of Religion	Religion confined to **private sphere**	Religion recognised in both **private and public life**
State Intervention	**No positive intervention**, state avoids reform	State can **intervene to reform evils** (Eg. abolition of Sati, untouchability)
Rights Focus	**Individual-centric** - freedom of religion	Protects **both individual (Article 25)** and **community rights (Article 29-30)**
Nature of Neutrality	**Exclusion** of religion from state	**Equal respect and balanced engagement**

Threats to Indian Secularism

Political Threats

1. **Communal Politics** - Religion used for mobilisation. Eg. **Babri Masjid demolition (1992)**.
2. **Majoritarianism** - Dominance of majority sentiments undermines minority rights. Eg. **Nagpur violence (2025)** over demand to remove Aurangzeb's tomb.
3. **Vote-bank Appeasement** - Political concessions weakening neutrality. Eg. **Shah Bano case (1985)** reversal.

Social Threats

1. **Communal Violence** - Riots weaken harmony. Eg. **Haldwani riots, Uttarakhand (2024)** after madrasa demolition.
2. **Caste-Religion Overlap** - Eg. **Dalit temple entry struggles** continue in Tamil Nadu villages.
3. **Patriarchal Religious Practices** - Resistance to gender justice. Eg. **Sabarimala verdict (2018)** on women's entry faced strong opposition.

Legal & Institutional Threats

1. **Misuse of Laws** - Anti-conversion laws used to target minorities.
2. **Weak Institutional Neutrality** - Eg. Reports of **police excess in Haldwani riots (2024)**.

Global & External Threats

1. **Religious Radicalisation** - Eg. **ISIS online recruitment cases in Kerala (2023-24)**.
2. **Diaspora Funding** - Eg. **FCRA cancellations (2024)** for NGOs accused of communal polarisation.

Media & Civil Society Threats

1. **Hate Speech & Social Media** triggering violence. Eg. **Dehgam, Gujarat riots (2025)** after offensive social media posts.
2. **Communal Campaigns** - Eg. **"I Love Mohammad" campaign unrest in UP (2025)**.
3. **Sensationalism in Media** - TV debates and biased coverage inflame tensions. Eg. **Tablighi Jamaat Covid case**

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Scholar views

1. **Ashis Nandy** - Criticised Indian secularism as an **elite project**; argued that real tolerance lies in India's **traditional religious pluralism**, not constitutional imposition.
2. **T.N. Madan** - Called secularism in India a **"problematic ideology"**, arguing it is difficult to implement in a deeply religious society where faith permeates social life.
3. **Granville Austin** - Indian Constitution envisions secularism as part of the **"composite culture"** project, ensuring unity in diversity through equal respect for all faiths.
4. **Upendra Baxi** - Warned of secularism's **erosion through communalisation of state institutions**.

Quotes

1. **Shashi Tharoor**: "Indian secularism has always been the idea of India."
2. **Maulana Abul Kalam Azad**: Secularism is not confined merely to political democracy but goes much beyond that. It is a political, social and cultural process."

SC judgments related to secularism

1. **S.R. Bommai v. Union of India (1994)** - Held that **secularism is a basic feature**; use of religion in politics can justify dismissal of state governments under Article 356.
2. **Aruna Roy v. Union of India (2002)** - Upheld inclusion of **value education** in schools; clarified that teaching about religions is not against secularism if done in a neutral way.
3. **Bijoe Emmanuel v. State of Kerala (1986)** - Upheld **Jehovah's Witness children's right** not to sing the national anthem on religious grounds, linking secularism to **freedom of conscience**.
4. **Shayara Bano v. Union of India (2017)** - Struck down **instant triple talaq**, showing **secular reformist intervention** to uphold gender justice.
5. **Indian Young Lawyers Association v. State of Kerala (Sabarimala, 2018)** - Allowed women's entry into temples; emphasised **constitutional morality over religious customs**.
6. **M.P. Gopalakrishnan Nair v. State of Kerala (2005):** The Court emphasized that no religious instruction shall be provided in government-aided schools.

Way forward

Political Reforms

1. Strengthen **Election Commission's autonomy** to check communal campaigning.
2. Promote **inner-party democracy** to reduce identity-based mobilisation.

Legal & Institutional Safeguards

1. **Gradually implement the UCC** to eliminate disparities in personal laws and promote a common legal framework.
2. Enact a **comprehensive law on hate speech** to curb communal incitement.
3. Strengthen neutrality of **police and bureaucracy** during communal tensions.

Social & Educational Measures

1. Introduce **constitutional literacy programmes** in schools and colleges.
2. Encourage **civil society initiatives** to protect cultural pluralism. Eg. **Ganga-Jamuni Tehzeeb** of Uttar Pradesh as a model of grassroots harmony.

Media & Technology Regulation

1. Strengthen monitoring of **fake news and hate propaganda** on social media.
2. Encourage **ethical journalism** to avoid sensationalism of communal issues.

Inclusive Development

1. Focus on **education, health, and skill development** for minorities. Eg. Himayat scheme

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Debate on Inclusion of Secularism and Socialism

Background

1. **42nd Amendment (1976)** added the words **"Socialist"** and **"Secular"** to the **Preamble** during the Emergency.
2. Intended to **explicitly reaffirm constitutional ideals** of equality, justice, and neutrality of the State.

Arguments in Favour

1. **Reflects existing spirit** - Even before the 42nd Amendment, the Constitution had **secular provisions (Arts. 25-30)** and **socialist orientation (DPSPs)**.
2. **Judicial recognition** - SC in **Kesavananda Bharati (1973)** and **S.R. Bommai (1994)** held secularism and socialism as part of the **Basic Structure**.
3. **Moral commitment** - Explicit mention strengthens **State's commitment to social and religious justice**.
4. **Guidance for policy** - Helps in framing welfare policies and **pro-poor programmes**.

Arguments Against

1. **Redundancy** - Values already implicit in the Constitution; insertion was **political symbolism**.
2. **Lack of debate** - Added during **Emergency**, without wide consultation or Constituent Assembly backing.
3. **Ambiguity** - Terms **"socialism" and "secularism"** open to varied interpretations, leading to **political misuse**.
4. **Dynamic needs** - Socialism seen as outdated in the era of **liberalisation and globalisation**.
5. **Imposition of Western Constructs** - Critics say **socialism and Western secularism** are alien to Indian ethos; Indian tradition allows **positive state-religion alignment**.
6. **Procedural Concerns** - **Preamble**, adopted in 1949 as the **soul of the Constitution**, should not have been retrospectively altered.

Key Debates in constitutional Assembly

- **Risk of Superficial Symbolism** - Nehru warned adding 'secular' would be **symbolic**, stressing that secularism must be **lived and practiced** rather than declared.
- **Need for Legislative Flexibility** - Explicit term could restrict State's scope in **social reforms** like **abolishing untouchability** or reforming **personal laws**.
- **Constitutional Role vs. Ideological Proclamation** - Ambedkar held that the Constitution should be a **framework of governance**, not fix rigid **ideological commitments**. Values must evolve through people's will.
- **Fear of Misinterpretation** - Members like **Loknath Misra, H.V. Kamath** feared it might be seen as **anti-religious**, alienating India's deeply spiritual society.

Justice

In the words of John Rawls, "Justice is the first virtue of social institutions, as truth is of systems of thought."

According to **Amartya Sen**, Justice is not merely a matter of giving people what they are entitled to, but also a matter of treating people with the equal concern and respect they deserve.

The key elements of Justice include **Fairness, equality, rights, impartiality** and **accountability**.

Types of Justice

1. **Distributive Justice:** Focuses on ensuring all members of society receive a fair share of resources and benefits. Eg. Articles 38 and 39 of DPSP

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2. **Procedural Justice:** Ensures that decisions are made and implemented through fair processes, safeguarding fair treatment. Eg. 'procedure established by law.' (Article 21)
3. **Retributive Justice:** Based on the principle of punishment proportionate to wrongdoing, aiming for justice through accountability. Eg. BnS.
4. **Restorative Justice:** Aims to heal victims, rehabilitate offenders, and repair harm caused to the community. Eg. Article 39A and Article 32.

Principles of Justice under the Indian constitution

Social Justice

1. **Article 15** - Prohibits discrimination based on religion, race, caste, sex, or place of birth
2. **Article 17**-Abolishes "Untouchability" in any form and practice a punishable offense
3. **Article 21** - Guarantees the right to live with human dignity, free from social exploitation.
4. **Article 24** - Prohibits the employment of children in hazardous industries.

Economic Justice

1. **Article 39(b)** - Directs the state to distribute material resources for the common public good.
2. **Article 39(d)** - Mandates equal pay for equal work for both men and women.
3. **Article 39(c)** - Requires the state to prevent the concentration of wealth in few hands.
4. **Article 41** - state to provide public assistance in cases of unemployment or old age.

Political Justice

1. **Article 16** - Provides equal opportunity for all citizens in matters of public employment.
2. **Article 325** - Ensures no person is excluded from electoral rolls due to caste or religion.
3. **Article 326** - Grants every adult citizen the right to vote through Universal Adult Suffrage.
4. **Article 330/332** - Reserves seats in legislatures for SC/ST communities.

Liberty

The name **"liberty"** comes from the Latin word **"Liber,"** which means **"free from all shackles."**

Liberty means **freedom of the individual to think, express, and act** without arbitrary restraint, subject to reasonable restrictions to protect social order.

The **Preamble** guarantees **"Liberty of thought, expression, belief, faith and worship"** as a fundamental value of the Republic.

Political Theory:

1. **J.S. Mill** - Liberty is the **absence of external restraints** and protection of individuality, so long as it does not harm others.
2. **Isaiah Berlin** - Differentiated between:
   a. **Negative liberty** - freedom from interference (non-restriction).
   b. **Positive liberty** - freedom to act and develop one's potential (self-determination).

Constitutional Law - Liberty is embodied in **Fundamental Rights (Arts. 19-22)**, especially **Article 21**, which the SC has interpreted broadly to include dignity, privacy, livelihood, health, and environment. Eg. **Maneka Gandhi v. Union of India (1978)** expanded liberty under Article 21 to include due process of law.

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Principles of Liberty under the Indian constitution

Negative Liberty (Freedom from interference)

1. **Article 19(1)(a)** - Freedom of speech and expression. Eg. **Shreya Singhal (2015)** struck down Sec. 66A IT Act restricting speech.
2. **Article 19(1)(b)** - Freedom of peaceful assembly.
3. **Article 19(1)(c)** - Freedom of association.
4. **Article 19(1)(d)(e)** - Freedom of movement and residence.
5. **Article 21** - Right to life and personal liberty (protection from arbitrary state action).
6. **Article 22** - Protection against arbitrary arrest and detention.

Positive Liberty (Freedom to realise potential)

1. **Article 21** - Expanded to include dignity, education, health, livelihood, privacy. Eg. **Olga Tellis (1985)** - Right to livelihood; **Puttaswamy (2017)** - Right to privacy.
2. **Article 21A** - Right to education for children 6-14 years.
3. **Directive Principles (Arts. 38, 39, 41, 43)** - Ensure conditions for meaningful liberty through socio-economic justice.
4. **Article 25-28** - Freedom of conscience, belief, faith, and worship.

SC on Liberty

1. **Maneka Gandhi v. Union of India (1978)** - Expanded **Art. 21**, holding that any "procedure" must be **just, fair and reasonable** (introduced due process).
2. **Hussainara Khatoon v. State of Bihar (1979)** - Recognised **speedy trial** as part of personal liberty under Art. 21.
3. **Olga Tellis v. Bombay Municipal Corporation (1985)** - Right to livelihood held as part of right to life and liberty.
4. **K.S. Puttaswamy v. Union of India (2017)** - Recognised **right to privacy** as intrinsic to personal liberty under Art. 21.
5. **Navtej Singh Johar v. Union of India (2018)** - Decriminalised homosexuality; expanded liberty to include sexual autonomy.
6. **Joseph Shine v. Union of India (2018)** - Struck down adultery law (Sec. 497 IPC) for violating dignity and personal liberty.
7. **Anuradha Bhasin v. Union of India (2020)** - Liberty includes **internet access**; indefinite suspension of internet is unconstitutional.
8. **Shafin Jahan v. Asokan K.M. (Hadiya case, 2018)** - Recognised **right to marry a person of choice** as part of personal liberty.
9. **Common Cause v. Union of India (2018)** - Recognised **right to die with dignity**; upheld passive euthanasia.

Quotes

1. Article 21 is 'designed to assure the **dignity of the individual** as a most cherished **human value** which ensures the means of full **development and evolution** of a human being' (Justice R.F. **Nariman in Puttaswamy**)
2. **Gettell**- "Liberty is the positive power of doing and enjoying those things which are worthy of enjoyment and work".

The need of the hour is proactive judicial interventions through **creative constitutionalism** (Upendra Baxi) to safeguard **personal liberty as justice**.

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Equality

Equality means **treating individuals without unjust discrimination** and ensuring they enjoy the **same legal status, rights, and opportunities**, irrespective of caste, class, gender, religion, or wealth.

The **Preamble** guarantees "**Equality of status and of opportunity**," elaborated in **Articles 14-18** (Equality Code).

Scholarly Perspectives:

1. **Aristotle** - Equality means treating **equals equally and unequals unequally** in proportion to their needs.
2. **J.S. Mill** - Equality ensures **equal liberty** for every individual.
3. **Amartya Sen** - Stresses **"capability equality"**, i.e., ensuring equal freedom to achieve valuable life outcomes.

Equality under the Indian Constitution is both **formal (equal laws)** and **substantive (affirmative action to remove structural disadvantages)**. As **Ambedkar** said, political democracy must be backed by **social and economic democracy** to make equality meaningful.

Principles of Equality under the Indian constitution

Civic Equality:

1. **Article 14:** Right to equality before law.
2. **Article 15:** Prohibition of discrimination on grounds of religion, race, caste, sex, or place of birth.
3. **Article 16:** Equality of opportunity in matters of public employment.

Political Equality:

1. **Article 326:** Universal adult suffrage.
2. **Article 325:** No person to be ineligible for inclusion in, or to claim to be included in, a special, electoral roll on grounds of religion, race, caste, or sex.

Socio-economic Equality:

1. **Article 330 and 332**: Reservation of seats for SC and ST in the House of the People.
2. **Article 38** includes provisions for minimizing inequalities in income, status, facilities, and opportunities.
3. **Article 39(d)** directs the State to ensure equal justice and free legal aid.
4. **Article 46**: Promotion of educational and economic interests of Scheduled Castes, Scheduled Tribes, and other weaker sections.

Gender Equality:

1. **Article 15(1):** Prohibition of discrimination on grounds of religion, race, caste, sex, or place of birth.
2. **Article 15(3):** Empowers the State to make special provisions for women and children.
3. **Article 16**: Equality of opportunity in matters of public employment.
4. **Article 39(a):** Equal pay for equal work for both men and women.

Challenges to liberty, equality and justice

Threats to liberty in India

Political & Legal Threats

1. **Excessive preventive detention** - Broad powers under **NSA, UAPA** undermine personal liberty. Eg. **Gautam Navlakha case (2023)**.
2. **Misuse of sedition & anti-terror laws** - Curtails freedom of speech and dissent. Eg. **Sedition charges against journalists (Sidheeq Kappan) & students (Kanhaiya Kumar Case)**.

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3. **Majoritarian pressures** - Liberty of minorities curtailed by political narratives. Eg. **Hijab ban controversy in Karnataka**.
4. **Underrepresentation in legislatures** - Women (~15% MPs in 2024) and minorities face barriers to **inclusive democracy**.

Social & Cultural Threats

1. **Caste-based hierarchy** - Enduring social stratification undermines **constitutional morality** (Art. 17). Eg. Hathras Dalit woman assault.
2. **Patriarchy** - Structural barriers in education, labour force, inheritance limit **gender equality**. Eg. Female labour force participation ~41% vs. 72% in China.

Economic Threats

1. **Poverty and inequality** - Limit effective liberty by restricting opportunities. Eg. **India's income inequality (Oxfam Report 2024)** - Top 10% hold ~77% of wealth.
2. **Unemployment & lack of skills** - Deny positive liberty to realise potential.

Technological & Media Threats

1. **Mass surveillance** - Pegasus spyware allegations (2021) raised privacy concerns.
2. **Censorship and content bans** - Eg. 25 books banned in Kashmir (2024) for "secessionist content."
3. **Digital divide** - Restricts access to liberty-enhancing tools like education and e-governance.

Institutional Threats

1. **Judicial delays & undertrial prisoners** - Eg. Over 4.5 lakh undertrial prisoners in India (NCRB 2025).
2. **Weak checks on executive power** - Erosion of balance between state authority and citizen freedoms. Eg. custodial torture in TN (Sattankulam case)
3. Weak enforcement of **protective discrimination laws** like SC/ST Act dilutes **affirmative action**.

Fraternity

Fraternity is derived from the **French term fraternité**, which means **brotherhood, friendship, community, and collaboration (Asthana 1992: 118**).

Dr. B.R. Ambedkar -"Without fraternity, equality and liberty will be no more than a coat of paint. **Without fraternity, liberty and equality could not become a natural flow of events.**"

Key provisions on fraternity in the Indian Constitution:

1. **Preamble:** Promotes fraternity to ensure the dignity of individuals and the unity and integrity of the nation.
2. **Fundamental Duties (Article 51A):** Citizens are expected to promote harmony, brotherhood, and preserve India's diverse heritage.
3. **DPSP (Article 38 & 39A):** Directs the state to ensure a just social order and equal access to justice, fostering fraternity.
4. **Fundamental Rights (Part III):** Promotes equality and prohibits discrimination, upholding dignity and social harmony.
5. **Universal adult franchise**

Meaning and purpose of fraternity:

1. Preamble declares that **fraternity assures two things- the dignity of individuals and promoting unity and integrity of the nation**.

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2. According to **K.M.Munshi**, the phrase "**dignity of the individual**" means that the Constitution **not only assures material advancement** and sustains a democratic system **but also acknowledges that each individual's personality is precious.**
3. "**National unity and integrity**" refers to the psychological and geographical components of national integration.

Indian Context

1. **Ambedkar** - Saw fraternity as inseparable from **liberty and equality**; essential for social democracy.
2. **Constitutional vision** - Privileged the **individual over community**, embedding liberty-equality-fraternity as citizenship preconditions.
3. **Affirmative action (reservations)** - Intended to create **level playing field** and build political fraternity among unequal social groups

Challenges to Fraternity in India's Context

1. **Vagueness: constitutional assembly member H.M. Seervai** finds the concept too vague, making it less useful for interpreting constitutional provisions or guiding legal decisions.
2. **Glossing over inequalities** → produces solidarity built on **exclusion of minorities** rather than inclusion.
3. **Rise of aggressive nationalism** - Substitutes fraternity with hostility towards minorities.
4. **Fundamentalism** - Incompatible with fraternity; undermines dialogue and pluralism.
5. **Caste dominance** - Fraternity limited within caste groups, preventing **political fraternity** across society.
6. **Regionalism:** Movements for regional autonomy, like the Assamese vs. Bengali identity conflict in Assam or Gorkhaland movement in West Bengal, challenge national unity.
7. **Language and Cultural Barriers:** Tensions, such as Tamil Nadu's resistance to Hindi imposition, challenge the ideal of fraternity in India.

Way Forward for Ensuring Liberty, Equality and Fraternity

1. **Protect civic space** - Ensure safeguards for **NGOs, dissenting voices, and academic freedom** by reducing arbitrary use of laws.
2. **Police reforms** - Introduce **independent oversight bodies** and modernise investigation systems to curb arbitrary arrests. (**Prakash Singh Guidelines**)
3. **Free press** - Protect journalists from misuse of laws and promote **editorial independence** for healthy democracy.
4. **Modernise reservations** - Move towards **multi-dimensional criteria** (caste + income + education) to ensure fairness in affirmative action.
5. **Inclusive growth** - Invest in **public health, quality education, and skilling programmes** for marginalised communities.
6. **Minority inclusion** - Expand targeted schemes for **tribals, minorities, and differently-abled** to bridge socio-economic gaps.
7. **Access to justice** - Strengthen **legal aid services and fast-track courts** to make justice delivery affordable and timely.
8. **Inter-community exchange** - Promote cultural bonds through **Ek Bharat Shreshtha Bharat** and student exchange programmes.
9. **Constitutional literacy** - Introduce **civic education in schools and colleges** to build respect for constitutional values.

- **Amartya Sen - Capability Approach**: Expand **health, education, digital access** to ensure liberty and equality translate into **real capabilities**.

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- **John Rawls - Theory of Justice**: Apply the **difference principle** so inequalities benefit the **most disadvantaged** through welfare and inclusion.

Separation of powers

1. Derived from **Montesquieu's Spirit of Laws (1748)** - dividing state power into **Legislature, Executive, Judiciary** to prevent concentration and arbitrariness.
2. In India - not in a strict **sense** but adopted in **functional form** with **checks and balances**.

Aristotle first classified government functions into **deliberative (law-making), magisterial (execution), and judicial (dispute resolution)**, laying the foundation for the doctrine of separation of powers.

Principles of Separation of Powers in India

1. **Exclusivity Principle** - Government is divided into **three structural organs** (Legislature, Executive, Judiciary). Eg. Legislature makes laws, Executive implements, Judiciary interprets.
2. **Functional Principle** - **Boundaries of each organ** are defined. Eg. Judiciary cannot legislate, Parliament cannot sit in appeal over judicial decisions.
3. **Check and Balance Principle** - Each organ checks the other to ensure actions remain **within constitutional bounds**. Eg. Judicial Review, Impeachment of judges, Executive assent to bills.
4. **Mutuality Principle** - Cooperation, not confrontation, **engagement not estrangement**. Eg. Executive is derived from Legislature.

Strict Separation of Powers in India

Legislature vs. Executive

1. **Exclusive Law-Making & Amendment Power** - Only legislature can enact/amend laws under **Art. 245-246 & 368**.
2. **Control Over Consolidated Fund** - Executive cannot spend money without legislative approval (**Art. 266-267**).
3. **No Usurpation of Legislative Privileges** - Executive cannot breach **parliamentary privileges** (Art. 105, 194).

Legislature vs. Judiciary

1. **Parliamentary Proceedings Immunity** - Courts cannot inquire into parliamentary/state legislature proceedings (**Art. 122, 212**).
2. **Judicial Conduct Immunity** - Parliament/Legislatures cannot discuss judicial conduct, except during **impeachment under Art. 124(4)**.
3. **No Legislative Overruling of Judgments** - Legislature cannot directly overrule judicial decisions.

Judiciary vs. Executive

1. **Cabinet Secrecy** - Courts cannot question cabinet deliberations (**Art. 74(2)**).
2. **Judicial Independence** - Security of tenure, salaries, and contempt powers shield judiciary from executive control (**Art. 124-147, 214-237**).
3. **Appointments** - Post **NJAC Case (2015)**, executive's role in judicial appointments is limited to formal approval of collegium recommendations.

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Checks and Balances in India

Legislature ↔ Executive

1. **Legislature Controls Executive** -
   a. The executive is **collectively responsible** to Parliament/State Legislature (Art. 75, 164).
   b. **Question Hour, No-confidence Motion, Censure, Budget control**. Eg. 1979 fall of Morarji Desai government via no-confidence motion.
2. **Executive Checks Legislature** -
   a. **Ordinance power** (Art. 123, 213) when Parliament is not in session.
   b. Power to **dissolve Lok Sabha** (Art. 85).

Legislature ↔ Judiciary

1. **Judiciary Checks Legislature** -
   a. **Judicial Review** (Art. 13) ensures laws do not violate Fundamental Rights. Eg. Shreya Singhal case (invalidation of section 66A of IT Act)
   b. **Basic Structure Doctrine** (Kesavananda Bharati, 1973) limits Parliament's amending power. Eg. NJAC verdict
2. **Legislature Checks Judiciary** -
   a. **Impeachment of Judges** (Art. 124(4), 217). Eg. recent impeachment motion against Justice Verma
   b. **Article 124(1) & 216 0** The Parliament has the power to determine the **number of judges** in the Supreme Court and High Courts.
   c. The Legislature can pass laws with **retrospective effect** to validate an act previously declared void by a court, provided it cures the legal defect.
   d. Under **Article 368**, the Parliament can amend the Constitution to **nullify a judicial ruling**. Eg. 24th Amendment in response to the *Golaknath* case.

Executive ↔ Judiciary

1. **Judiciary Checks Executive** -
   a. **Article 13** - Empowers the courts to declare any **Executive order**, notification, or bye-law void if it violates Fundamental Rights.
   b. **Article 32** - power to issue **Writs** (*Habeas Corpus, Mandamus, etc.*) directly against the Executive to enforce rights.
   c. **Article 142** - Enables the Supreme Court to pass any order to do **"complete justice." Eg.** Vishaka guidelines
   d. **Contempt powers** to ensure compliance.
2. **Executive Checks Judiciary** -
   a. **Appointments of judges** by President/Governor (Art. 124, 217).
   b. **Implementation of court orders** lies with the executive.

Federal Checks (Centre ↔ States)

1. **Parliament can legislate on State List** under emergency (Art. 250, 252).
2. **States challenge central laws** in the Supreme Court under Art. 131. Eg. Kerala challenging CAA (2019) in SC.

Significance of Separation of Powers with checks and balances

1. **Prevents Arbitrary Rule**-Division of authority ensures that no single organ exercises absolute, unchecked power. **Eg. NJAC verdict** prevents Executive interference in judicial appointments.
2. **Protects Individual Liberties** - judiciary acts as a "safety valve" against legislative or executive overreach on citizens. **Eg.** Quashing of **Section 66A IT Act** to restore digital free speech.

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3. **Ensures Legal Accountability** - Administrative actions are subject to judicial scrutiny to ensure they align with rule of law. **Eg.** HCs quash "mala fide" detention orders under A226
4. **Promotes Specialized Governance** - Each organ focuses on its specific mandate improving overall governance efficiency.
5. **Upholds Constitutional Supremacy** - Checks and balances ensure that even a majority-led Parliament cannot alter the Constitution's core identity.
6. **Facilitates Corrective Action - Eg.** Passing the **SC/ST Amendment Act (2018)** to reverse a judgment diluting arrest provisions (Subhash Mahajan Judgment).
7. **Controls Fiscal Expenditure** - Parliamentary control over the "power of the purse" prevents the Executive from spending without approval.
8. **Resolves Federal Disputes** - The Judiciary acts as an impartial arbiter between the Union and States, maintaining federal balance. **Eg.** The **S.R. Bommai Case (1994)**
9. **Strengthens constitutionalism** - Embeds respect for constitutional procedures and limits.
10. **Enhances Public Trust** - Institutional friction ensures transparency, as one organ exposes the lapses or corruption of the other. **Eg.** SC's intervention in the **Electoral Bonds Case (2024)**.

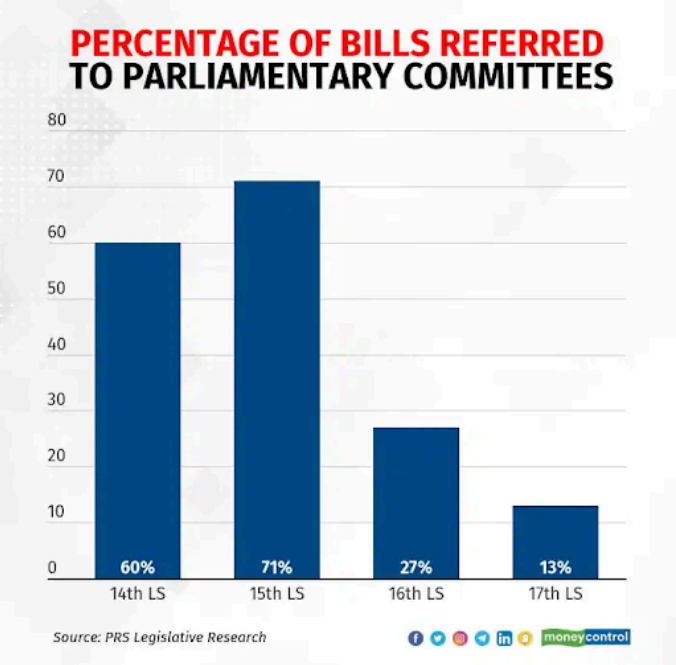
Challenges to Separation of Powers in India

Judiciary Issues

1. **Judicial overreach** - Courts issuing orders in executive/legislative areas dilute separation. Eg. **Liquor ban within 500 metres of highways (2016)**; **SIT on black money (2011)**.
2. **Appointment Deadlocks** due to friction between the Collegium and the Executive. Eg. **Eg.** nearly **300 High Court judge positions** remain vacant.
3. **Lack of Judicial Accountability - Eg.** The **Judicial Standards and Accountability Bill** has remained stalled for years
4. **Expansion of Jurisdiction** through the broad use of **Article 142** (Complete Justice). **Eg.** Judicial bans on liquor or firecrackers
5. **Tribalization of Judiciary** - The creation of Executive-led Tribunals reduces the High Courts' jurisdiction, blurring the lines of judicial independence.
6. **Judicial Backlog** - Pending cases (over 5 crore) reduce judiciary's ability to check arbitrary actions effectively.

Executive Issues

1. **Weaponization of Agencies** - Allegations of misuse of central investigative agencies to suppress opposition. **Eg. 400% surge** in PMLA cases against political rivals since 2014.
2. **Influence over Appointments** - By sitting on files recommended by the Collegium, the Executive exercises "veto power" over judicial selection.
3. **Expansion of "Police State" Powers** - New criminal laws (BNSS) grant broader discretionary powers to the Executive for search, seizure, and detention.
4. **Excessive Ordinance Promulgation** bypasses legislature. Criticised in **DC Wadhwa v. State of Bihar (1986)** as a "fraud on the Constitution."



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Legislature Issues

1. **Exclusion of Judicial Review** - Legislature continues to place laws in the **Ninth Schedule** to shield them from judicial review. Over **284 laws** are protected this way.
2. **Legislative Encroachment** - Parliament can overrule judicial decisions through retrospective laws.
3. **Decline in Parliamentary Scrutiny - Eg.** Only 16% were sent for committee scrutiny before passing in 17th LS.
4. **Executive Dominance** - Eg. **Criminal Law Reforms Bills** were passed in **just one day without adequate debate**
5. **Excessive Delegated Legislation -** Weak parliamentary scrutiny allows executive excesses. Eg. **EIA Draft Notification 2020** criticised for diluting environmental safeguards.
6. **Money Bill Classification** to bypass the Rajya Sabha scrutiny. **Eg. Tribunals Act and Aadhaar Act**.

Way Forward

1. **Strengthen Parliamentary Deliberation** - Mandatory scrutiny of Bills by **Parliamentary Committees (UK System)**
2. **Limit ordinances** to genuine emergencies, with mandatory **time-bound legislative ratification** to avoid executive overreach.
3. **Judicial Restraint and Accountability** - Adoption of **NJAC-like reforms with judicial primacy preserved**. (**UK System**)
4. **Reform Tribunals** - Reduce **executive dominance** in tribunals by ensuring security of tenure, clear appointment processes, and more judicial representation.
5. **Delegated Legislation Oversight** - Strengthen the **Committee on Subordinate Legislation**, mandate **impact assessments**, and ensure delegated rules do not dilute parent laws.

As Justice Chandrachud observed in Kesavananda Bharati (1973), **"The Constitution is founded on the bedrock of the balance between the three organs of the State."**

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Chapter 3

Citizenship

CITIZENSHIP

In the Indian constitutional framework, **Citizenship** is governed by Articles 5–11 (Part II) and the **Citizenship Act, 1955**. It represents a person's legal status as a member of the sovereign state, entitling them to all civil and political rights.

Acquisition and Renunciation

A. Acquisition (5 Ways)

1. **Birth:**
   a. Every person born in India **on or after 26th January, 1950 but before 1st July, 1987**.
   b. Every person born in India **between 1st July, 1987 and 2nd February, 2004** is a citizen of India given that either of their parents is a citizen of the country at the time of birth.
   c. Person born in India **on or after 3rd December, 2004** is a citizen if both parents are Indians or at least one parent is a citizen and the other is not an illegal migrant at the time of birth.
2. **Descent:** Born outside India to an Indian parent. Must be registered at an Indian consulate within one year of birth.
3. **Registration:**
   a. **Minor children of persons who are citizens of India**.
   b. A **person of Indian origin** who is a **resident of any country** outside undivided India.
   c. A **person of Indian origin** who has been a resident of India for 7 years before applying for registration.
   d. A person who is **married to an Indian citizen** and is ordinarily **resident for 7 years** before applying for registration.
4. **Naturalization:** For foreigners resident for 12 years (1+11) who meet Third Schedule qualifications (language, character).
5. **Incorporation of Territory:** If a new territory becomes part of India (Eg. Pondicherry, 1962), the Government notifies its citizens.

B. Renunciation and Loss (3 Ways)

1. **Renunciation:** A voluntary act where a citizen of full age makes a declaration. Minor children also lose citizenship but can resume it at 18.
2. **Termination:** Automatic loss if a citizen voluntarily acquires the citizenship of another country (Single Citizenship principle).
3. **Deprivation:** Compulsory termination by the Government if citizenship was obtained by fraud, disloyalty to the Constitution, or during war with an enemy.

CAA-NRC: Concepts and Evolution

1. **CAA (Citizenship Amendment Act, 2019):** Amends the 1955 Act to grant expedited citizenship to persecuted minorities (Hindus, Sikhs, Buddhists, Jains, Parsis, Christians) from Afghanistan, Bangladesh, and Pakistan who entered India before **31 Dec 2014**.
2. **NRC (National Register of Citizens):** A register of all legal Indian citizens. Mandated by the **2003 Amendment** to identify illegal immigrants.
3. **Historical Evolution:**

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a. **1951 NRC:** Prepared only in Assam to record residents following the census, aimed at identifying post-Partition migration.
b. **1985 Assam Accord:** Student protests led to the "cut-off" date of **March 24, 1971** for detecting and deporting illegal migrants.
c. **2003 Amendment:** Introduced the term "illegal migrant" and mandated the creation of a **National Register of Citizens (NRC)**.
d. **2013-2019 Assam NRC Update:** Supreme Court-monitored exercise excluded **19.06 lakh people** in its final 2019 list, sparking national debate.
e. **2019 CAA Enactment:** Parliament passed the Amendment to fast-track citizenship for persecuted non-Muslim minorities from three neighboring countries.
f. In March 2024, the MHA notified the **Citizenship Amendment Rules**.

Mechanism for Implementing CAA Rules (2024-26)

1. The implementation follows a **completely digital, decentralized** process bypassing state government discretion:
2. Applicants must apply via the **"Indian Citizenship Online"** portal or mobile app with self-declaration of origin.
3. **Relaxed Documentation:** Accepts any document showing entry before **Dec 31, 2014** (even expired passports/visas or "locally reputed" certificates).
4. **District-Level Committee (DLC):** Headed by the **Superintendent of Post**, this panel verifies documents and administers the Oath of Allegiance.
5. **Empowered Committee (EC):** Led by the **Director of Census Operations**, this central body reviews DLC recommendations and grants citizenship.
6. **Language Test:** Applicants must prove proficiency in any language listed in the **Eighth Schedule** of the Constitution.
7. **Direct Issuance:** Citizenship certificates are issued digitally by the EC, removing the previous role of **State District Collectors**.

Justification for CAA-NRC

1. **Historical Responsibility:** India's moral obligation to minorities left in theocratic neighbors after the **1947 Partition**.
2. **Religious Persecution:** Targets specific countries where the state religion (Islam) leads to systemic persecution of minorities.
3. **Reasonable Classification:** Article 14 allows "reasonable classification" for a specific group (persecuted minorities) to achieve a legislative goal.
4. **National Security:** NRC helps identify illegal infiltrators who may pose a threat to internal security
5. **Demographic Protection:** Protects the cultural and linguistic identity of indigenous populations, especially in **Assam and Tripura**.
6. **Resource Management:** Ensures that welfare benefits and state resources are reserved for genuine citizens, not illegal migrants.
7. **Humanitarian Relief:** Provides a "life of dignity" and legal identity to **31,313 documented refugees**
8. **Regularizing Migrants:** CAA grants retrospective citizenship, closing pending legal cases against those who fled persecution before 2014.
9. **Civilizational Ethos:** Aligns with India's history as a "natural home" for those fleeing religious oppression. Eg. Parsis, Jews.
10. **Legal Clarity:** Distinguishes between "refugees" (fleeing persecution) and "infiltrators" (economic migrants), streamlining the naturalization process.

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Criticism of CAA-NRC

1. **Religious Discrimination:** Critics argue CAA violates **Article 14** by using religion as a criterion for citizenship.
2. **Exclusion of Muslims:** Excludes persecuted Muslim sects like **Ahmadiyyas (Pakistan)** or **Hazaras (Afghanistan)** from the fast-track process.
3. **Regional Refugees:** Fails to address non-Muslim neighbors like **Sri Lanka (Tamils)** or **Myanmar (Rohingyas)**.
4. **Assam Accord Violation:** CAA's 2014 cut-off contradicts the **Assam Accord's 1971 cut-off**, causing fears of demographic shift.
5. **NRC Documentation Burden:** Millions of poor citizens lack birth certificates; **Assam NRC (2019)** excluded 19 lakh people due to paperwork.
6. **Statelessness Risk:** Fears that a pan-India NRC could render marginalized Muslims stateless if they cannot prove ancestry.
7. **Secularism at Stake:** Critics view religion-based citizenship as a threat to the **Basic Structure** of the Indian Constitution.
8. **Diplomatic Friction:** Has caused intermittent strain in ties with **Bangladesh and Afghanistan** over "persecution" narratives.
9. **Arbitrary Cut-off:** The **31 Dec 2014** date is criticized as lacking a logical or scientific basis for determining persecution.
10. **Financial Cost:** The Assam NRC cost **₹1,220 crore**; a pan-India exercise is estimated to cost billions without guaranteed accuracy.

Supreme Court Judgments

1. **Sarbananda Sonowal v. UOI (2005):** Struck down the IMDT Act, calling illegal migration from Bangladesh an **"external aggression"** against Assam.
2. **Assam Sanmilita Mahasangha (2024):** Upheld **Section 6A** of the Citizenship Act, validating the 1971 cut-off specifically for the state of Assam.

Way Forward

1. **Inclusive Amendment:** The government could consider adding "persecuted sects" within Islam to make the law **religion-neutral** and legally robust.
2. Using the **NPR (National Population Register)** data to simplify citizenship verification without requiring 50-year-old paper records.
3. India must sign a formal **repatriation treaty** with Bangladesh to handle those identified as foreigners by the NRC.
4. **Transparency in NRC:** Establish clear, lenient evidentiary standards for the poor and illiterate to prevent accidental **mass statelessness**.
5. Enacting a comprehensive **National Asylum Law** to provide a transparent framework for all refugees, regardless of country or religion.
6. Strengthening **Foreigners Tribunals** with judicial oversight to ensure fair appeals for those excluded from citizenship registers.

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Chapter 4

Amendments And Basic Structure

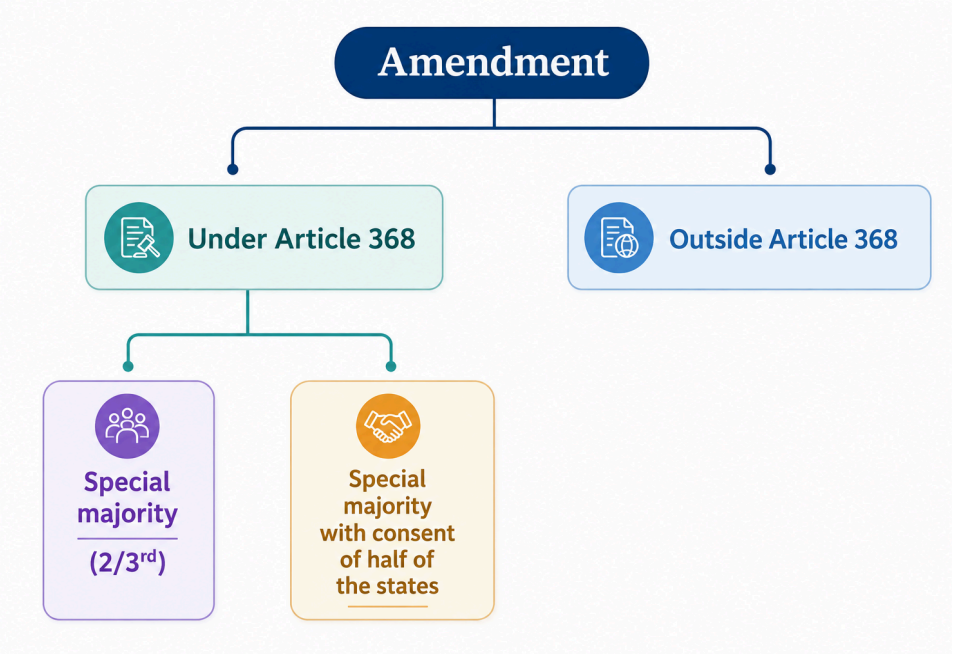
PYQs

[2025] Indian Constitution has conferred the amending power on the ordinary legislative institutions with a few procedural hurdles. In view of this statement, examine the procedural and substantive limitations on the amending power of the Parliament to change the Constitution. (15)

[2019] "Parliament's power to amend the Constitution is a limited power and it cannot be enlarged into absolute power." In the light of this statement explain whether Parliament under Article 368 of the Constitution can destroy the Basic Structure of the Constitution by expanding its amending power? (15)

Under **Article 368**, the Parliament is granted the power to amend the Constitution by way of addition, variation, or repeal of any provision.

Amendment Procedure in Detail



1. **Initiation:** A bill for amendment can be introduced **in either House of Parliament** (Lok Sabha or Rajya Sabha), never in state legislatures.
2. It can be introduced by a Minister or a Private Member and does not require prior presidential permission.
3. **Special Majority:** The bill must be passed in each House by a **Special Majority**:
   a. A majority (more than 50%) of the **total membership** of that House.
   b. A majority of not less than **two-thirds** of the members of that House **present and voting**.
4. Each House must pass the bill separately. There is **no provision for a joint sitting** in case of a deadlock over a constitutional amendment.
5. **State Ratification:** If the amendment seeks to change **federal provisions** (Eg. election of the President, powers of the SC/HCs, or Seventh Schedule), it must also be ratified by the legislatures of **at least half of the states** by a simple majority.
6. **Presidential Assent:** The President **must give assent**; they can neither withhold it nor return the bill for reconsideration (as per the 24th Amendment, 1971).

Significance of Amendment

1. Ensures the Constitution remains a **"living document"** that adapts to evolving socio-political and economic realities. **Eg. 101st Amendment** to modernize India's complex tax structure.

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2. **Social Engineering: Eg.** The **103rd Amendment** provided 10% reservation for the Economically Weaker Sections (EWS).
3. **Correction of Anomalies:** Allows the state to correct judicial interpretations that may hinder urgent national policy goals. **Eg. 1st Amendment** created the Ninth Schedule to protect land reform laws from judicial review.
4. **Federal Balancing:** Provides a mechanism to re-negotiate the power-sharing balance between the Centre and the States.
5. **Rights Evolution: Eg.** The **86th Amendment** made the "Right to Education" a Fundamental Right under Article 21A.
6. **Institutional Reform: Eg.** The **121st Amendment** (though struck down) attempted to create the National Judicial Appointments Commission (NJAC).

Limitations of Amendment powers of Parliament

Procedural Limitations

These are **explicit constitutional conditions** laid down in **Article 368**.

1. Special Majority Requirement - Majority of total membership of each House, and Two-thirds of members present and voting.
2. Separate Approval by Each House - No joint sitting is allowed under Article 108.
3. Ratification by Half States for Federal Provisions - Eg. 101st Amendment (GST) required ratification.
4. Presidential Assent under Article 368(2).
5. Bill must follow all legislative procedures - notice, debate, quorum, and voting. Procedural irregularities can invite judicial scrutiny (as per Raj Narain v. Indira Gandhi, 1975).

Substantive Limitations on the Amending Power

Judicially evolved constraints that restrict Parliament from altering **core identity** of Constitution

1. Doctrine of Basic Structure (Kesavananda Bharati v. State of Kerala (1973))
2. Limited Amending Power Itself is Basic Structure (Minerva Mills, 1980) - Clauses (4) and (5) of Article 368 (inserted by the 42nd Amendment) were struck down.
3. I.R. Coelho v. State of Tamil Nadu (2007) held that even laws placed in the Ninth Schedule after 1973 are open to Basic Structure review.
4. Parliament cannot amend to abrogate or emasculate Fundamental Rights forming part of the Basic Structure (Eg. equality, liberty).
5. Parliament cannot alter the essential federal balance between Centre and States. (Kuldip Nayar v. Union of India (2006))

Other criticisms

1. **Frequent Changes:** With over 106 amendments in 75 years, critics argue the Constitution is amended too easily compared to the US.
2. **Central Dominance:** State legislatures cannot initiate amendments, leaving them dependent on the Centre's political will.
3. **Ambiguity of "Basic Structure":** Since the SC hasn't exhaustively defined "Basic Structure," it leads to uncertainty and potential judicial overreach.
4. **No Joint Sitting:** A small minority in the Rajya Sabha can block a critical amendment favored by a massive Lok Sabha majority.

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Major SC Judgments related to Amendment

1. **Shankari Prasad Case (1951):** Ruled that Parliament can amend any part of the Constitution, including Fundamental Rights.
2. **Golaknath Case (1967):** Reversed the previous stance, ruling that Fundamental Rights are "transcendental" and cannot be amended.
3. **Kesavananda Bharati Case (1973):** Created the **Basic Structure Doctrine**, limiting the Parliament's power.
4. **Minerva Mills Case (1980):** Reaffirmed that the Parliament's power to amend is **limited** and cannot be used to grant itself **unlimited** power.

Major Amendments in Article 368

1. **24th Amendment (1971):** Clarified that Parliament can amend any part of the Constitution and made it **obligatory** for the President to give assent.
2. **42nd Amendment (1976):** Attempted to declare that there shall be **no limitation whatsoever** on the constituent power of Parliament; this was later invalidated by the SC in Minerva Mills.

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Chapter 5

Fundamental Rights

PYQs

[2026] Right to privacy relating to self-identity is very dear to every human being and well protected under Article 21 of the Constitution. In this context, examine the effect of the amendment in 2026, to the Transgender Persons (Protection of Rights) Act, 2019. (10M)

[2024] Right to privacy is intrinsic to life and personal liberty and is inherently protected under Article 21 of the Constitution. Explain. In this reference discuss the law relating to D.N.A. testing of a child in the womb to establish its paternity.

[2023] "The Constitution of India is a living instrument with capabilities of enormous dynamism. It is a constitution made for a progressive society". Illustrate with special reference to the expanding horizons of the right to life and personal liberty.

[2022] Right of movement and residence throughout the territory of India are freely available to the Indian citizens, but these rights are not absolute. Comment (10M)

Fundamental Rights

Fundamental rights are a **set of basic rights** and **freedoms** that are considered essential for the protection of human dignity, liberty, and equality and are guaranteed to individuals by a constitution.

FR are referred to as the "**Magna Carta**" of India and are delineated in **Part III** (**Article 12 to 35**). These rights are defended and guaranteed by the **Supreme Court** of India.

Quotes

1. "Fundamental rights are both the shield and sword against State tyranny." - **Prof. Upendra Baxi**
2. "Freedom of speech and expression is the bulwark of a democratic government. It is the very foundation of democracy." - **Dr. Rajendra Prasad**
3. "I measure the progress of a community by the degree of progress which women have achieved." -B R Ambedkar - **Affirmative Action**
4. "Without political freedom, economic freedom is a mere chimera." - **Nehru - Balancing FR and DPSP**
5. **For Conclusion** - "Those who would give up Essential Liberty to purchase Temporary Safety, deserve neither Liberty nor Safety." (**Benjamin Franklin**). Thus, protection and promotion of FR is vital for the well-being of a free and democratic society.

Features

1. **Guaranteed by the Constitution Part III (Articles 12-35)** - enforceable by **SC & HC** (Art. 32 & 226).
2. Primarily act as **limitations on State power**, preventing arbitrary actions. Eg. Shreya Singhal case
3. Against the **State** as well as against private persons. (**Art. 17, 23**)
4. **Not absolute** - Subject to **reasonable restrictions** for public order, morality, security, etc.
5. **Negative and Positive obligations** - Some rights prevent State interference (**freedom of speech**) while others impose duties to act (**abolition of untouchability**).

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6. **Universal in nature** - Apply to **all citizens**, though certain rights (Eg. **Art. 19**) are exclusive to citizens.
7. **Different classes of rights** - Cover **equality (Articles 14-18)**, **freedoms (Articles 19-22)**, **against exploitation (Articles 23-24)**, **religion (Articles 25-28)**, **cultural & educational (Articles 29-30)**, and **constitutional remedies (Art. 32)**.
8. **Amendable but Basic Structure bound** - **Kesavananda Bharati (1973)**.
9. **Suspension during Emergency** under **Art. 359**. (except **Articles 20 & 21**).
10. **Supplemented by DPSPs & FDs** to balance **individual liberty with collective good**.

Limitations and Criticism

1. Not Absolute - subject to reasonable restrictions for public order, morality, and security. Eg. Internet shutdowns in Kashmir.
2. **Limited Nature -** Do not include social and economic rights necessary for a free and quality life. Eg. Right to employment, right to social security.
3. **Suspension during Emergency** under **Art. 359**. (except **Articles 20 & 21**).
4. **Amendable Nature -** Eg. 44th Constitutional Amendment Act, 1978 removed Right to Property.
5. Accessing justice under Art. 32 or 226 is a challenge for poor or illiterate citizens.
6. The scope of FRs depends heavily on judicial interpretation. Eg. Expansion of Art. 21 (from "procedure established by law" in A.K. Gopalan, 1950 to "just, fair, reasonable" in Maneka Gandhi, 1978).
7. Conflict with Directive Principles - Eg. Champakam Dorairajan v. State of Madras (1951) struck down caste-based reservations as violating Art. 15, later addressed by the First Amendment (1951).
8. Misuse of Restrictions - Vague grounds like "public order" or "decency" allow overreach.

Role of Judiciary

Guardian of Fundamental Rights - Judiciary acts as the protector and guarantor of FRs under Art. 32 & 226. Eg. Ambedkar called Art. 32 the "heart and soul" of the Constitution.

Judicial Review - Ensures that laws and executive actions do not violate FRs. Eg. Kesavananda Bharati v. State of Kerala (1973) - Parliament cannot amend FRs to destroy the Basic Structure.

Expansive Interpretation

1. Eg. **Maneka Gandhi v. Union of India (1978)** - Due process made part of personal liberty.
2. Eg. **K.S. Puttaswamy v. Union of India (2017)** - Recognised **Right to Privacy**.

Creation of New Rights - Judicial activism has expanded the scope of FRs.

1. Eg. **Right to Education** (Unnikrishnan v. State of A.P., 1993 → later Art. 21A).
2. Eg. **Right to Clean Environment** (Subhash Kumar v. State of Bihar, 1991).
3. Eg. **Right to Internet Access** (Anuradha Bhasin v. Union of India, 2020).

Striking Down Unconstitutional Laws

1. **Shreya Singhal v. Union of India (2015)** - Struck down Sec. 66A IT Act for violating free speech.
2. **Navtej Singh Johar v. Union of India (2018)** - Decriminalised homosexuality (Sec. 377 IPC).

Public Interest Litigation - Expanded access to justice by allowing social activists and NGOs to file for protection of FRs. Eg. Hussainara Khatoon v. State of Bihar (1979) - Recognised right to speedy trial

Critical analysis of the role of judiciary

1. **Judicial Overreach** - Courts intrude into **policy-making**, raising separation of powers concerns. Eg. SC ban on firecrackers (2017), SC's regulation of BS-VI fuel deadlines (2018).
2. **Inherent Judicial Subjectivity - Eg. Doctrine of Basic Structure** - Varied interpretations affecting predictability.
3. **Accessibility Barriers** - Eg. NALSA reports (2023) show over **70% rural poor lack effective legal aid**.

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4. **Delay and Pendency** - Eg. over 5 Cr cases pending in Judiciary
5. **Weak Enforcement of Judgments** - Eg. Vishaka Guidelines (1997) on sexual harassment enforced only with POSH Act in 2013, prison reform directions (Inhuman Conditions in Prisons, 2016) still pending.
6. **Overdependence on Judiciary** - Excessive reliance on courts highlights weak legislative oversight. Eg. SC directed framing of **COVID-19 migrant worker relief measures (2020)** due to government inaction.

Right to Equality

Uniform Civil Code

It is a single set of laws governing personal matters like marriage, divorce, inheritance, adoption, and maintenance. **Article 44** of DPSP of the Constitution states that the 'State shall endeavor to secure a Uniform Civil Code for the citizens throughout the territory of India.'

In his Independence Day speech, the Prime Minister called for a **Uniform Civil Code**, advocating a **secular civil framework** to replace the existing **religion-based personal laws**.

Present Status of Civil Laws in India

1. **Hindu Personal Laws** - Codified under four Acts: Hindu Marriage Act (1955), Hindu Succession Act (1956), Hindu Minority & Guardianship Act (1956), and Hindu Adoptions & Maintenance Act (1956). Applies also to **Sikhs, Jains, Buddhists**.
2. **Muslim Personal Laws** - Uncodified, based on religious texts; partly recognised under the **Shariat Act (1937)** and **Dissolution of Muslim Marriages Act (1939)**.
3. **Christian Personal Laws** - Governed by the **Indian Christian Marriage Act (1872)**.
4. **Secular Laws** - **Special Marriage Act (1954)** allows inter-religious marriages; **Guardians and Wards Act (1890)** provides a secular guardianship framework.
5. **Regional Exceptions** - **Art. 371** grants exemptions to states like **Nagaland, Mizoram, Assam** for customary laws.
6. **Uniform Codes** - **Goa and Uttarakhand** have adopted a UCC; states like **Assam and Gujarat** are exploring feasibility.

Need for UCC

1. **Constitutional Duty** - **Art. 44** directs the state to secure UCC.
2. **Addressing Social Divisions** - Eg. **Polygamy under Shariat Act (1937)** still legal for Muslims, but discriminatory against women.
3. **Equality under Law** - Ensures **equal rights for all citizens** irrespective of religion, in line with **Art. 14**. Eg. **Uttarakhand UCC (2024)** bans polygamy and standardises marriage age at 21.
4. **Empowering Women** - Removes **patriarchal and discriminatory practices** like triple talaq, unequal inheritance, child marriage.
5. **Simplifying Legal System** - Replaces **multiple personal laws** with one uniform law, reducing **judicial backlog** and making rights clearer.
6. **National Integration** - Strengthens **common citizenship over religious identity**; promotes **constitutional patriotism** (Habermas).
7. **Modernisation & Social Reform** - Updates **outdated practices** and aligns laws with contemporary values. Eg. **Navtej Johar (2018)** decriminalised same-sex relations.
8. **International Alignment** - Brings India closer to **global human rights standards**.

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Challenges

1. **Lack of Consensus** - Absence of broad-based community agreement may lead to **social unrest**.
2. **Religious Freedom** - May infringe on **Art. 25**, as personal laws are integral to religious practices.
3. **Minority Rights** - Could marginalise minorities, with fear of **majority practices dominating**.
4. **Cultural Diversity** - Risks eroding India's **plural traditions** and imposing uniformity. Eg. Khasi matrilineal system in Meghalaya could be threatened.
5. **Practical Challenges** - Drafting a uniform law for all communities is complex due to **regional variations**.
6. **Law Commission Report 2018**: UCC "neither necessary nor desirable"
7. **Federalism Concerns** - May undermine **state autonomy**, as personal laws fall under **Concurrent List**.
8. **Presence of Secular Laws** that already address many issues for all citizens. Eg. Section 125 of the Criminal Procedure Code (maintenance) and Domestic Violence Act.

SC Judgments

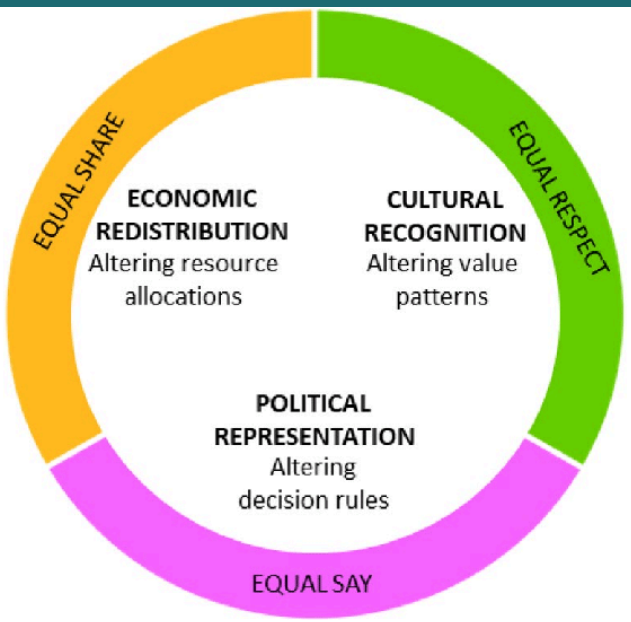
1. **Shah Bano Case (1985)** - SC upheld Muslim women's right to maintenance under CrPC 125.
2. **Sarla Mudgal Case (1995)** - SC declared second marriage after conversion void and stressed need for UCC for gender justice.
3. **Shayara Bano Case (2017)** - SC struck down instant triple talaq, reinforcing uniform standards for gender justice.
4. **Jose Paulo Coutinho Case (2019)** - SC praised Goa's UCC as a model for national implementation.
5. The Delhi High Court recently advocated for a **Uniform Civil Code (UCC)**, noting conflicts between **Islamic personal law and Indian criminal law** on **child marriages**.

Way forward

1. **Building Consensus and Public Awareness:** By Establishing a **National Commission on UCC** with representatives from religious groups, legal experts, and social activists.
2. **Addressing Minority Concerns** by establishing a **Multi-religious Advisory Council** - incorporating diverse customs within the UCC framework while maintaining uniformity in core principles.
3. **The "Law Commission of India's Report on Reform of the Law of Marriage" (2018),** recommended phase-wise implementation by building consensus among communities.
4. **Political Will:** constructive dialogue about UCC, focusing on national unity and social justice

Reservation Policy

1. The reservation policy in India, also known as **affirmative action** or **positive discrimination**, aims to address historical and social injustices by providing opportunities and representation to marginalized and disadvantaged groups.
2. **Constitutional Basis** - Articles 15(4), 16(4), and 46 reflects India's commitment to promoting social justice, equality, and inclusive development as fundamental principles of governance.



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Grounds for reservation

Group	Reason for Support
SCs and STs	Historical injustice and social exclusion.
Other Backward Classes (OBCs)	Social and educational backwardness.
Economically Weaker Sections (EWS)	Economic deprivation and lack of access to resources.
Women	Gender discrimination and underrepresentation
Persons with Disabilities (PwD)	Ensure inclusion, accessibility, and participation

Reasons behind rising demand for reservation

Aspect	Description	Examples
Perceived Discrimination	**Andre Béteille** argues that reservations for lower castes create a sense of reverse discrimination among upper castes.	Patidar agitation in Gujarat (2015) for OBC status.
Competition for Opportunities	**M.N. Srinivas**: pressure on dominant castes to secure economic opportunities as traditional agrarian roles diminish.	Maratha reservation protests in Maharashtra (2018).
Economic Disparities	Sections within these communities experience poverty or lack access to resources.	
Job Security	**Yogendra Singh**: shift from agrarian economy to job-based economy increased demand for job security.	Demand for local reservation in Haryana
Identity Politics and Mobilization	**Christophe Jaffrelot**: political mobilization around caste identities can consolidate electoral support.	
Backlash Against Affirmative Action	Reservation policies perceived as unfair or discriminatory by dominant castes.	Anti-reservation protests

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Challenges

1. **Politicization of caste and castecization of politics** undermines the original intent of reservation policies. Eg. reservation demands by dominant communities like Patels, Marathas, etc.
2. **Strengthening Caste Identity**: The redistributive justice based on caste reinforces caste identities and poses challenges to establishing a casteless egalitarian society.
3. **Stigmatization and Stereotyping**: Individuals from reserved categories face discrimination or be perceived as beneficiaries of preferential treatment.
4. **Creamy Layer:** The absence of a creamy layer for SC and ST and the higher creamy layer limit for OBCs can lead to a 'class within caste'. Eg. As per **Justice G. Rohini Commission's** report, 97% of central OBC quota benefits go to just under 25% of its castes.
5. **Reservation in Promotions**: lead to inefficiency and compromise the merit-based selection process, affecting overall productivity and performance in government institutions.
6. **Dependency on Reservations**: Over-reliance on reservation policies discourage investment in holistic measures for socio-economic development such as health and education.

SC Judgments

Case	Description
Indra Sawhney v. UoI (1992)	Upheld reservations for OBCs but capped them at 50%.
M. Nagaraj & Others v. Union of India (2006)	Upheld reservations in promotions for SC/STs under specific conditions: backwardness, inadequate representation, and administrative efficiency.
Jarnail Singh v. Lachhmi Narain Gupta (2018)	States are not required to provide quantifiable data to justify reservations in promotions, reversing M. Nagaraj.
Jaishri Laxmanrao Patil v. Chief Minister (2021)	Struck down Maratha Reservation law for exceeding the 50% cap; upheld Indra Sawhney and the 102nd Constitutional Amendment.

Reservation in promotions

1. As per **16 (4A),** the state can make provision for **reservation in matters of promotion, with consequential seniority**, in favor of Scheduled Castes and the Scheduled Tribes which in the opinion of the State are not adequately represented in the services under the State.
2. Among the 275 joint secretaries, 13 (4.73 per cent) are SCs, nine (3.27 per cent) are STs and 19 belong to the OBC category. **Of 89 secretaries, there are just 3 STs, 1 Dalit and no OBCs.**

Benefits

1. **Addressing Structural Discrimination** and **systemic barriers** that hinder the upward mobility of marginalized groups in the workforce. Eg. In Group-A, the highest tier among these, the representation of SCs is just 12.86%, of STs 5.64% and of OBCs 16.88%. Reservation for these communities is 15%, 7.5% and 27% respectively.
2. **Role Model Effect** within marginalized communities.
3. **Encouraging Equal Opportunity and Building a Representative Workforce**

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Challenges

Challenge	Description
Meritocracy Concerns	By prioritizing social identity over individual qualifications and performance
Quantifiable Data	Difficulty in collecting accurate data to justify reservations in promotions.
Administrative Efficiency	Concerns that reservations in promotions can undermine **Article 335**.
Backlog	As reserved category candidates may not always be available for promotion.
Judicial Interpretations	In the Jarnail Singh case, SC reversed the requirement for quantifiable data set by M. Nagaraj.

Way forward for reservation

Expert	Recommendation
Dr. Amartya Sen	Capability approach focusing on 3Es: education, employability, and employment.
Dr. Yogendra Yadav	Introduction of sunset clauses in reservation policies.
Institutional Recommendations	Create institutions similar to the Equal Opportunities Commission (US/UK) to create deprivation indexes and audit reservation policies.
Comprehensive Data and Guidelines	Need for comprehensive data and clear guidelines for identifying beneficiaries.
Accompanying Structural Reforms	Implement structural reforms like land reforms and skilling programs alongside reservations.
Periodic Reviews	Every five years to addresses distortions and ensures equitable opportunities

Sub-categorization of OBCs

1. It refers to creating sub-categories within the larger group of OBCs to ensure "**equitable distribution**" of representation among all OBC communities.
2. The Landmark SC judgment allowing sub-classification of **SCs/STs** has provided the legal logic for expanding similar "graded backwardness" models for OBCs at the Central level.

> SC in **Davinder Singh case** overturned the **2004 ruling in E.V. Chinnaiah** and allowed **states to sub-classify SCs** and **STs**

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1. **Justice Rohini commission** on OBC sub-categorization was set up by the President of India, mandated under **Article 340** to investigate the conditions of socially and educationally backward classes and propose steps for their improvement. It submitted its report in October 2023.
   a. 97% of the reserved jobs and seats have gone to 25% of OBC sub-castes, and only 10 OBC communities have taken the 25% of reserved central jobs and institutional seats.
   b. As many as 983, or 37%t, of the 2,600 communities under the OBC had zero representation in jobs and institutes, and only 2.68% reservations have been used by 994 castes.

Sub-categorisation of OBCs in states:

- **1972: Karnataka** CM Devraj Urs appointed **Havanur Commission**, its report formed the basis for the sub-categorisation of OBCs.
- **1977: Bihar** CM Karpoori Thakur implemented the **Mungeri Lal Commission** report to divide OBCs into two categories: extremely backward classes (EBCs), and backward classes.
- **2002: UP** CM Rajnath Singh appointed **Hukum Singh committee** to earmark 5% OBC quota for Yadavs and 14% for Most Backward Classes

Need for Sub-Categorization of OBCs

1. **Unequal Distribution of Quota Benefits** - 97% of the reserved jobs and seats have gone to 25% of OBC sub-castes
2. **Horizontal Equity** - Sub-categorization ensures **fair share for most backward classes (MBCs)** within OBCs, aligning with **Articles 14, 15, and 16** guaranteeing equality.
3. **Better Targeting of Affirmative Action** - Helps identify **truly deprived groups** for focused support in education, jobs, and welfare.
4. **Political Representation** - Sub-categorization could improve **political inclusion** for marginalised OBC groups who are otherwise overshadowed by dominant castes.
5. Ensuring **Fair Distribution Structure - Justice Rohini Commission's** recommendation to sub-categorize OBCs into three benefit bands: communities receiving no benefits, those with partial benefits, and those receiving maximum benefits.
6. **Scientific Resource Allocation** - Sub-categorization allows the state to direct specialized welfare schemes to specific clusters of castes.
7. Fulfills the mandate of **Article 340**, requiring the State to investigate and improve backward class conditions.
8. **Harmonizing State-Central Lists - Eg. Bihar and Tamil Nadu** have successfully used sub-categorization for decades to balance social groups.
9. Moves from "formal equality" (treating unequals as equals) to "substantive equality" (graded assistance).

Challenges

1. **Absence of Current Population Data** Without a completed 2027 Census, determining the exact population weight for sub-quotas remains speculative.
2. Fear of **political backlash from dominant OBCs** leading to delay in implementing Justice Rohini report
3. Identical castes use different surnames or spellings across states, leading to classification errors.
4. **Triggering "Competitive Backwardness"** Further division might encourage even more groups to demand specialized "micro-quotas" within categories.
5. **Erosion of Collective Bargaining - Eg.** Sociologists argue that sub-categorization is a **"divide and rule"** strategy to weaken the Mandal movement.

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Scheduled Caste Reservation

Recently, SC in **Chinthada Anand v. State of Andhra Pradesh (2026)** ruled that a person professing any religion other than Hinduism, Buddhism, or Sikhism cannot be recognised as a member of a SC community and conversion to **any other religion** (Islam or Christianity) results in the **loss of SC status. (there is no religion-based restriction on ST status)**

SC held that as other religions do not theologically recognize the caste system, a person cannot publicly practice them while simultaneously claiming SC status

SC Reservation criteria

1. Under **Article 341 of the Constitution**, the President can specify the castes that are officially deemed Scheduled Castes.
2. Once the initial Presidential list was published, only the Parliament of India has the authority to **make additions or removal.**
3. SC eligibility is strictly governed by **Clause 3 of the Constitution (Scheduled Castes) Order, 1950.**
4. SC status is **State/Union Territory-specific.** A community recognized as a SC in one state may be categorized as general category or an OBC or in another state

Caste census

1. Caste-based census refers to the **collection of demographic data** that includes information about the **caste or social group of individuals** within a population.
2. M. N. Srinivas (Indian sociologist) defines caste as a **hereditary, endogamous, and usually localized group**, linked to a specific occupation, and occupying a certain position in the social hierarchy.
3. The Bihar government released the caste census and a few other state governments like Karnataka announced the same.
4. After a gap of 16 years, the Government of India officially launched **Phase 1 (House Listing and Housing Census)** of the "Census 2027" on April 1, 2026.
5. The Union Government confirmed that **caste and sub-caste data** will be collected nationwide for the first time since 1931.
6. Every Census in independent India from 1951 to 2011 has published data on Scheduled Castes and Scheduled Tribes, but not on other castes. Before that, every Census until 1931 had data on caste.
7. The **Socio-Economic Caste Census (SECC)** conducted in **2011** aimed to gather comprehensive data on socio-economic indicators, including caste information. However, issues regarding data quality and classification challenges have hindered the effective release and utilization of the raw caste data collected in the SECC.

Need of caste census

1. **Evidence-Based Policymaking:** A caste census can help design **targeted welfare programs** for the most marginalized within OBCs, SCs, and other underserved communities.
2. **Update Outdated Baselines** - Current OBC quotas rely on 1931 colonial data extrapolated by the 1980 Mandal Commission, now nearly a century old
3. **Enable Sub-categorization** - Granular data allows the state to divide broad categories like OBCs to ensure benefits reach "Extremely Backward Classes" (EBCs)
4. **Rationalize Reservation Quotas** - Updated population figures may justify increasing the 50% reservation cap if demographics show significantly higher marginalized populations.

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5. **Map Social Mobility** - The census acts as a "progress report" to see which communities have actually advanced since independence and which remain stagnant.
6. **Targeted Welfare and Resource Allocation: The 2023 Bihar caste survey** revealed that **22.6 million people** eligible for subsidized food under NFSA were left out due to outdated population estimates.
7. **Addressing Structural Inequality:** A caste census is a **scientific and objective tool** to measure and address **wealth, education, and opportunity gaps** rooted in social stratification.
8. The **Sachar Committee (2006)** emphasized that **religion-based data enabled more focused minority welfare**- a similar framework can be adopted for caste.
9. **Recognizing Intersectionality:** A caste census can illuminate how caste **intersects with gender, religion, and region**, leading to **compounded disadvantages**. Eg. **Dalit women in rural Bihar face triple marginalization** - on the basis of caste, class, and gender.
10. **Judicial Relevance** - The **Supreme Court** in **Indra Sawhney v. Union of India (1992)** emphasized the need for **contemporary and quantifiable data** on backwardness for reservations.

Challenges:

Political

1. Caste Census data may be **weaponized for vote-bank politics,** and could fuel **sectarian populism.**
2. **"Competitive Backwardness" -** Fresh demographic weight encourages dominant communities to seek "backward" status, risking a "race to the bottom."

Social

1. **Deepening of Caste Identities and Consciousness: "Enumeration is not a neutral act; it carries with it the risk of reifying the very categories it seeks to understand." -** Dipankar Gupta
2. **Reification of Social Hierarchies -** Scholars like **M.N. Srinivas** warned that overemphasis on caste in public discourse may **harden caste boundaries** and hinder social mobility.

Legal

1. New data showing higher backward populations will likely trigger legal challenges to the Supreme Court's 50% reservation cap. **Eg.** The **2023 Bihar Survey** showed 63% OBC/EBCs

Administrative

1. **Privacy and Data Misuse -** Linking caste to digital IDs raises fears of surveillance and the potential misuse of data for targeted political exclusion.
2. **Administrative challenges**: Caste is **not uniform**; identical groups use different names across states, making standardized "coding" nearly impossible.
3. Misclassification or over-enumeration could create **data reliability issues**, as seen during the **Socio-Economic and Caste Census (SECC) 2011**, whose caste data was withheld due to inconsistencies.

Way forward for advancing Equity Without Deepening Divisions:

1. Merging caste enumeration with data on **education, income, health, sanitation, and land ownership**, adopting a **holistic lens** rather than relying on caste alone.
2. Establishing a **multi-tier verification mechanism** and a **grievance redressal system** for corrections.
3. Ensure caste data is anonymized and used **strictly for policymaking**, not for political mobilisation.
4. As per **Suhas Palshikar**, prepare a **backwardness index** based on the caste census and incentivize the inclusion of persons with a high backwardness index in private employment.
5. **Sub-categorization for Equity:**
   a. Implement Justice **Rohini Commission's recommendations for sub-categorizing OBCs.**
   b. Aligning with the Supreme Court judgment in **State of Punjab v. Davinder Singh (2024)**, sub-classify **SCs and STs within the reservation quota.**

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Sedition Law

1. In India, **Section 124(A) of IPC** defines sedition as an offense committed when any person by words or otherwise brings or attempts to bring into hatred or contempt, or excites or attempts to excite disaffection towards the government established by law in India by words, either spoken or written, signs, visible representation, or otherwise.
2. The new **Bharatiya Nyaya Sanhita has removed section 124A of IPSC** but has **introduced similar provisions under Section 152**.
3. It penalizes anyone who, purposely or knowingly, by words, signs, electronic communication, or financial means, excites or attempts to excite **secession, armed rebellion, or subversive activities**.

Statistics about Sedition Cases

1. The 2023 NCRB report (released in 2025) noted a **26% drop** in "Offences against the State," down from 7,128 in 2019 to 5,272 in 2023.
2. Between 2015 and 2020, out of **548 persons arrested** under Section 124A, only **12 faced conviction** (approx. 2%).
3. Pendency rate exceeding **90%** for sedition-related trials, leading to "punishment by process.

Need for Sedition Law

1. **Combating Anti-National Elements - Eg.** Use against groups advocating for **Khalistan** or separatist movements in **Jammu & Kashmir**.
2. **Maintaining Public Order** Prevents the incitement of violence that could lead to large-scale civil unrest or communal riots.
3. Ensures that a **government** established by law is not subverted by unconstitutional, violent, or illegal means.
4. **Reasonable Restriction on** Freedom of speech (**Article 19**). Upheld by SC in **Kedar Nath (1962) case**
5. **Curbing Fake News & Digital Warfare** - The new BNS includes "electronic means" to tackle foreign-funded digital campaigns aimed at destabilizing India.
6. Arguments by **Law Commission**,
   a. The existence of laws such as the **UAPA** and the **NSA** does not cover all elements of the offense envisaged under Section 124A of the IPC.
   b. The mere colonial origin of a legal provision does not automatically justify its repeal.
   c. The mere occurrence of misuse doesn't necessitate the scrapping of a law; instead, establishing procedural safeguards can effectively curb any alleged misuse.

Arguments Against

1. **Vagueness of "Subversive Activities" -** The term is not defined in the BNS, allowing police to interpret legitimate protest as subversion.
2. **Chilling Effect on Dissent -** The fear of life imprisonment silences journalists, activists, and citizens from criticizing government failures.
3. **Low Conviction Rate -** only ~3% of sedition cases result in actual convictions. (**NCRB Data)**
4. **Colonial Baggage -** Critics argue Section 152 is just "Old Wine in a New Bottle," retaining colonial-era suppression tactics.
5. **Weaponization for Political Vendetta - Eg.** State governments using sedition against protesters in **environmental or land-rights movements**.
6. Contradicts the **International Covenant on Civil and Political Rights (ICCPR)**, which India has ratified.
7. **Subjective "Tendency Test" a**llows arrests for **poems or slogans** even if no riot actually occurred.

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8. **Burden of Proof on Accused** - Being a non-bailable offense, the accused spends years in jail before the trial even begins. **Eg. Stan Swamy**

Way forward

1. The law commission has recommended aligning the law with **Kedar Nath judgment** which stipulated that there must be a 'pernicious tendency to incite violence' to invoke the sedition law.
2. **Sensitization of law enforcement agencies to prevent the problem of misuse.**
3. Alternatives like strengthening existing mechanisms related to hate speech, and violence so that there would be no need to use it or use it sparingly.

SC Judgments

1. **Kedar Nath Singh v. State of Bihar (1962):** Upheld the law but limited its use **only** to acts involving incitement to violence or public disorder.
2. **P. Alavi vs. State of Kerala, 1982:** SC held that sloganeering, criticizing Parliament, or Judicial setup did not amount to sedition.
3. **Vinod Dua (2021):** The court quashed a sedition case against journalist Vinod Dua. It reiterated that criticism of the government isn't sedition and called for the "disinvocation" of the law in most cases.
4. **Javed Ahmad Hazam v. State of Maharashtra (2024):** Ruled that dissent must be judged by the "reasonable person" standard, not by overly sensitive state actors.

Global Best Practices

1. **United Kingdom:** Formally abolished sedition in **2009**
2. **United States:** The "Clear and Present Danger" test

Right to Privacy

Right to Privacy is recognised as part of Article 21 (Right to Life and Personal Liberty) and extended to Articles 14 and 19 (triple test of liberty).

"Privacy is the constitutional core of human dignity." - **Justice D.Y. Chandrachud**

"In an age of information, privacy is not merely a civil right but the very foundation of freedom." - **UN Special Rapporteur on Privacy (2016)**

Evolution -

Constituent Assembly on Right to Privacy

- **Proposals by Sub-Committee on Fundamental Rights** - Suggested:
  - **Inviolability of home** against unreasonable searches & seizures.
  - **Secrecy of correspondence**.
- **Kazi Syed Karimuddin** proposed explicit protection against **state interference, searches, and seizures**, modeled on **American and Irish Constitutions**.
- Members like **B.N. Rau, K.M. Pannikar,** dissented, arguing it would hinder **law enforcement**
- **Ambedkar's Response** - Noted that **Criminal Procedure Code** already provided safeguards; hence no need for constitutional mention.

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1. **M.P. Sharma v. Satish Chandra (1954)** - SC initially held privacy is **not a fundamental right**.
2. **Kharak Singh v. State of U.P. (1962)** - SC struck down domiciliary visits by police, linking privacy to **personal liberty**.
3. **Govind v. State of M.P. (1975)** - SC hinted privacy is protected under **Article 21**, but not absolute.
4. **Justice K.S. Puttaswamy case**: Privacy is a **fundamental right** intrinsic to dignity, liberty, autonomy.

Scope of Right to Privacy (post-Puttaswamy)

1. **Informational Privacy** - Protection of personal data, Aadhaar details, medical records, online footprints.
2. **Decisional Autonomy** - Freedom to make intimate personal choices such as marriage, procreation, reproductive rights, and sexual orientation. Eg. **Navtej Singh Johar (2018)**
3. **Bodily Integrity** - Protection from intrusive medical procedures, biometric misuse, surveillance, and forced sterilisation.
4. **Family, Marriage & Relationships** - Choice of partner and right to marry a person of choice. Eg. **Shafin Jahan v. Asokan (2018, Hadiya case)** upheld interfaith marriage choice.
5. **Reproductive Rights** - Autonomy over pregnancy decisions. Eg. **X v. Principal Secretary, Health (2022)** allowed abortion for unmarried women under MTP Act.
6. **Digital Privacy** - Protection against surveillance, right to internet access, and data protection in cyberspace.

Significance of Right to Privacy in India

Political Significance

1. **Protection from Arbitrary State Action** - Limits police/state surveillance, checked through **proportionality test**.
2. **Strengthening Democracy** - Enables dissent, protest, and freedom of expression without fear.

Economic Significance

1. **Consumer & Corporate Regulation** - Protects citizens from misuse of data in e-commerce, fintech, and big tech.
2. **Informational Privacy in the Digital Era** - Prevents misuse of Aadhaar, biometrics, financial and medical data.

Social Significance

1. **Dignity & Bodily Integrity** - Safeguards reproductive rights and autonomy from forced medical procedures.
2. **Gender Justice & Equality** - Ensures women's rights in marriage, contraception, and abortion.
3. **Protection of Minority Rights** - Ensures religious practices are not arbitrarily interfered with.

Technological Significance

1. **Safe Digital Space & Cyber Rights** - Expands to right to internet, digital freedoms.
2. **Regulation of AI & Big Data** - Prevents excessive state or corporate surveillance in technology-driven governance.

Legal Significance

1. **Strengthening Rule of Law** - Ensures restrictions are **legal, necessary, proportionate** (Puttaswamy proportionality test).
2. **Judicial Enforcement** - Privacy protected via writs under **Articles 32 & 226**, making it enforceable against state abuse.

Global / External Significance

1. **Global Human Rights Alignment** - Consistent with **Article 12 UDHR** and **Article 17 ICCPR**.
2. Enhances **India's reputation** as a constitutional democracy respecting civil liberties.

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Challenges to Right to Privacy in India

Political

1. **Mass Surveillance by State** - Eg. controversy over **Pegasus spyware (2021)**.
2. Lack of independent oversight on agencies like **IB, RAW, NIA**.
3. **Balancing Privacy with National Security** - Frequent internet shutdowns in **Jammu & Kashmir**.

Institutional

1. Though the Digital **Personal Data Protection Act, 2023** was enacted, critics argue it gives **excessive exemptions to the government**.
2. Agencies continue to misuse outdated colonial laws. Eg. **Telegraph Act** for phone tapping
3. Privacy often clashes with **Right to Information, transparency in governance, and freedom of press**, leading to judicial dilemmas.

Technological

1. **Corporate Surveillance (Surveillance Capitalism)** - Big tech firms harvest personal data for targeted ads without informed consent, threatening **informational privacy**.
2. **Health Data & Bio-Surveillance** - **COVID-19 contact tracing apps** (like Aarogya Setu) sparked concerns over storage, retention, and misuse of sensitive health data.

Social

1. **Lack of Awareness & Digital Literacy** - Citizens often unaware of their **privacy rights** in digital and financial transactions, making them vulnerable to exploitation.

Reasonable Restrictions

1. **Test of Proportionality - Puttaswamy (2017) - To justify restrictions on the Right to Privacy, three conditions must be satisfied:**
    a. **Legality** - Any interference with privacy must be **sanctioned by law**, with a **just, fair, and reasonable procedure**, free from arbitrariness.
    b. **Legitimate Aim** - The law must serve a **legitimate state interest** (Eg. national security, public health), preventing unnecessary state intrusion.
    c. **Proportionality** - The **nature, method, and extent** of interference must be proportionate to the **purpose sought**, ensuring minimal restriction of rights.
    d. **National Security - Eg. PUCL v. Union of India (1997) upheld phone tapping under strict safeguards.**
    e. **Public Order & Crime Prevention - Eg. UAPA surveillance cases justified under "public order".**
    f. **Protection of Rights of Others - Privacy cannot be invoked to harm others' rights (Eg. child safety, protection from domestic violence, misuse of digital content).**
    g. **Public Health & Safety - Eg. COVID-19 contact tracing and Aarogya Setu App justified under health emergency.**

Way Forward for Protection of Right to Privacy

1. Judicial Oversight on Surveillance - Set up mechanisms like warrant-based approvals, review committees, and parliamentary scrutiny to prevent arbitrary phone tapping and spyware use.
2. Strengthen application of legality, legitimacy, and proportionality test (Puttaswamy 2017) in all privacy-related state actions.
3. Establish an independent Privacy Commission to monitor data use by government and corporates.
4. Build secure data storage infrastructure in India and improve cybersecurity protocols to prevent leaks and hacks.
5. Digital Literacy Campaigns to educate citizens on data protection, online safety, and privacy rights.

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6. Balancing Privacy & Security - Adopt global best practices like UK's Investigatory Powers Act and GDPR, ensuring security needs without compromising individual liberty.

Global Best Practices

- **European Union - GDPR (2018)**
- Principles: **explicit consent, right to be forgotten, data minimisation, portability, accountability**.
- Heavy penalties on violations (up to 4% of global turnover).

Digital Rights

1. As per **WEF**, Digital rights are closely linked to freedom of expression and privacy and allow people to access, use, create, and publish digital media, as well as access and use computers, other electronic devices, and communications networks.
2. The **European Commission** has proposed a set of digital rights and principles. It is an extension of the **Berlin Declaration** on Digital Society and Value-Based Digital Government

Right to access to Internet

1. SC in **Amar Jain V Union of India** judgment held that inclusive and meaningful digital access to e-governance and welfare delivery systems is a part of the fundamental right to life and liberty.
   a. Directed the state to **revise KYC norms** to help acid attack victims and PwDs.
   b. States's responsibility to ensure digital infrastructure to all vulnerable sections under Article 14,21,38.
2. **Faheema Shirin v. State of Kerala (2019)** - Kerala HC held that the **right to internet** is part of the **right to education and privacy under Article 21**.
3. **Anuradha Bhasin v. Union of India (2020)** - SC ruled against **indefinite internet shutdowns**, recognising internet access as essential to **fundamental rights**.

Digital Rights Principles

1. PEOPLE AT THE CENTRE - Digital technologies should protect people's rights, support democracy, and ensure that all digital players act responsibly and safely.
2. SOLIDARITY AND INCLUSION - Everyone should have access to the internet, digital skills, digital public services, and fair working conditions.
3. FREEDOM OF CHOICE - People should benefit from a fair online environment. Users should be safe from illegal and harmful content.
4. PARTICIPATION - Individuals should have control over their own data.
5. SAFETY AND SECURITY - The digital environment should be safe and secure.
6. SUSTAINABILITY
   a. Digital devices should support **sustainability** and the **green transition**.
   b. People need to know about the **environmental impact** and **energy consumption** of their devices.

Key Data on Digital India (2025-2026)

- **Internet Users:** India surpassed **1 billion** broadband subscriptions in late 2025 (Source: PIB).
- **Digital Identity:** Over **143 crore (1.43 billion)** Aadhaar IDs have been issued as of February 2026.
- **Financial Inclusion:** UPI processed **21.7 billion transactions** worth ₹28.33 lakh crore in January 2026.
- **Connectivity:** Over **2.15 lakh Gram Panchayats** are now connected via optical fiber under BharatNet.

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Significance of Digital Rights in India

1. **Constitutional Empowerment** - Strengthens **Article 19(1)(a) freedom of speech** and **Article 19(1)(g) freedom to trade**
2. **Privacy Protection:** Ensures personal data isn't exploited by corporations or the state without explicit, informed consent.
3. **Digital Inclusion:** Guarantees equal access to the internet, preventing marginalized communities from being left behind economically. **Eg.** Kerala became the first state to declare the "Right to Internet" a basic right.
4. **Democratic Participation: Eg.** Use of the MyGov platform for public consultation on Draft Bills.
5. **Information Access:** Empowers citizens to find educational, medical, and legal resources instantly regardless of their location. **Eg.** DIKSHA platform hosting 19,000+ courses.
6. **Accountability and Transparency:** Digital rights allow for the online tracking of welfare delivery and government spending.
7. **Protection from Harassment:** Provides legal recourse against cyber-bullying, stalking, and the non-consensual sharing of private images.
8. **Global Alignment** - Recognised by **UNHRC (2016)** as a human right; countries like **Finland (2010)** made internet access a legal right.

Challenges in Ensuring Right to Internet in India

1. **Surveillance Risks:**
   a. Broad government **exemptions in the DPDP Act.**
   b. Mandate pre-installation of the **Sanchar Saathi app** on mobile phones
2. **Internet Shutdowns:** India frequently leads the world in local internet blackouts to maintain public order during protests. **Eg.** Ongoing shutdowns in Manipur.
3. **The Digital Divide: Eg.** 25% gender gap in mobile internet usage in rural India.
4. **Misinformation and Deepfakes:** The rapid spread of AI-generated fake news threatens social harmony and electoral integrity.
5. **Cybersecurity Vulnerabilities:** Frequent data breaches in government and healthcare databases expose sensitive biometric and medical info. **Eg.** AIIMS data breach
6. **Consent Fatigue:** Complex privacy policies and "dark patterns" lead users to agree to data harvesting without understanding.
7. **Lack of Independent Oversight:** The Data Protection Board (DPB) is government-appointed, raising concerns about its impartiality and transparency
8. **Operational Barriers** - **Network issues, adverse climatic conditions, and poor e-readiness** hamper effective connectivity in remote areas.
9. **Affordability Concerns** - Despite **low data tariffs**, costs of **smartphones, devices, and monthly packs** remain prohibitive for **BPL households**, widening the digital divide.

Way Forward for Ensuring Right to Internet in India

1. **Technological Innovations** - Promote **satellite internet (Eg. Starlink, OneWeb)** and other alternatives to complement traditional infrastructure in remote areas.
2. **Rights Linkage** - Recognise that denial of internet affects **multiple rights** (education under Article 21A, expression, livelihood), making it a **democratic and developmental necessity**.
3. Launch **"Digital Rights Awareness"** drives in regional languages to help rural users manage consent.
4. Implementing the **Anuradha Bhasin guidelines** strictly to ensure shutdowns are temporary and localized.

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5. **Incentivizing Privacy-by-Design:** Provide tax breaks or "Trust Marks" to Indian startups that incorporate privacy features at the architecture level.
6. Develop a comprehensive **"AI Bill of Rights"** to regulate algorithmic accountability and prevent discriminatory data processing.
7. Align Indian data laws with international frameworks like the **EU's GDPR** to facilitate safe cross-border data flows.

Personality rights

Personality rights refer to the right of an individual to control the commercial use of their identity, including their name, image, likeness, or any other identifying characteristic.

The **Delhi High Court** issued an interim injunction in favor of **Sadhguru Jaggi Vasudev** and restrained defendants from using his name, voice, or image for commercial purposes.

Constitutional Basis:

1. **Not explicitly** mentioned in the Constitution
2. **Article 21:** Derived from the **Right to Life and Personal Liberty**, specifically the right to dignity and privacy (Puttaswamy judgment).
3. **Common Law:** Recognized under the **Law of Torts** (Passing off) and **IPR Laws** (Copyright/Trademarks).

Components of Personality Rights in India

1. **Right to Publicity:** The exclusive right to control and profit from the commercial value of one's identity. **Eg.** Amitabh Bachchan secured an "omnibus" order preventing any unauthorized commercial use of his voice.
2. **Right to Privacy:** Protection against the unauthorized public disclosure of private facts or images that cause distress.
3. **Right against Passing Off:** Prevents third parties from misrepresenting a celebrity's endorsement to sell unrelated goods or services. **Eg.** Delhi HC restrained a firm from using Anil Kapoor's "Jhakaas" catchphrase for commercial gain.
4. **Digital Persona Protection:** Legal shield against "Deepfakes" or AI-cloned voices that mimic an individual's unique digital signature.
5. **Posthumous personality rights** - Eg. Emblems Act prohibits commercial use of photos of PM and Gandhi

Major Challenges

1. **Generative AI & Deepfakes:** Easy access to AI tools allows anyone to create hyper-realistic, unauthorized clones of famous identities.
2. India **lacks a dedicated "Personality Rights Act,"** forcing courts to rely on fragmented IPR and Tort laws.
3. **Conflict with Free Speech:** Over-broad protection can stifle legitimate satire, parody, or news reporting protected under Article 19. **Eg.** debate over whether political mimicry.
4. **Post-Mortem Duration:** Legal ambiguity exists regarding how long personality rights survive after an individual's death.
5. **Burden of Proof:** Celebrities must prove "commercial injury" or "deception," which is difficult in non-profit fan-made content.
6. **Monopolization of Identity: Eg.** Concerns that trademarking common gestures (like a signature pose) hinders public domain creative expression.

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Major SC Judgments on Personality Rights

1. **Amitabh Bachchan v. Rajat Nagi & Ors:** it set the national standard for **"John Doe" (Dynamic)** injunctions to protect a persona.
2. **ICC Development (International) Ltd. v. Arvee Enterprises (2003):** One of the earliest cases stating that personality rights vest in the **individual** and not in a corporate entity.
3. **Deepa Jayakumar v. A.L. Vijay (2021):** The Madras HC held that personality rights are generally **not heritable** unless specific reputation damage is shown.

Global Examples

1. **European Union (GDPR):** Provides a "Right to Erasure" and protects "Biometric Data," which effectively safeguards an individual's likeness as sensitive personal data.
2. **South Korea:** Recently introduced the **"Celebrity Protection Act"** (2024) specifically to combat AI-generated digital human clones used in K-Pop.

Defamation

Origin - The formal codification of defamation began during the British Raj. The primary objective was to **maintain social order and protect the reputation of officials and the elite. IPC Sec 499& 500**.

Defamation is any intentional "imputation" (written, spoken, or visual) concerning a person that is intended to harm, or known to be likely to harm, the reputation of that person.

Constitutional and legal provisions

1. **Constitutional: Article 19(2)** explicitly lists "Defamation" as one of the eight **Reasonable Restrictions** upon the Freedom of Speech and Expression.
2. **Criminal Law (Section 356 of BNS, 2023):** Replaces IPC Sections 499/500. It defines the offense and prescribes punishment (up to 2 years, fine, or both).
3. **New Addition (2024–26): Community Service** has been added as a punishment option for defamation under the BNS framework.
4. **Civil Law:** Based on **Tort Law**, allowing the aggrieved to sue for monetary compensation.

Statutory Exceptions under Section 356 of BNS

- **Truth for Public Good:** Stating the truth is a defense only if it serves the public interest.
- **Public Conduct:** Good faith opinions on the official duties of public servants.
- **Merits of Public Performance:** Criticism of books, films, or public speeches.
- **Censure by Authority:** A parent, teacher, or boss passing a "good faith" warning or censure.

Major SC Judgments

1. Subramanian Swamy v. UoI (2016) - The SC upheld the law that the & Right to Reputation is part of the Right to Life and constitutes a "reasonable restriction" on free speech.
2. Rahul Gandhi v. Purnesh Modi (The "Modi Surname" Case, 2023)
3. R. Rajagopal (Auto Shankar Case)- Court that public officials cannot sue for defamation for their official duties unless statements are made with reckless disregard for the truth.
4. Arun Jaitley v. Arvind Kejriwal - The case ended in a settlement. In 2018, Arvind Kejriwal tendered an unconditional apology to Jaitley
    a. **MJ Akbar v. Priya Ramani** - court acquitted Ramani, right to dignity over reputation in #MeToo context

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Justification of criminal Defamation

1. **Dignity as Fundamental Right:** Reputation is an inseparable facet of the **Right to Life** (Article 21), necessitating protection from malicious attacks.
2. **Prevention of Character Assassination:** Legal checks prevent individuals from using free speech as a license to destroy another's professional or social standing.
3. **Maintaining Public Order:** Malicious defamatory statements, especially against religious or community leaders, can incite widespread communal unrest and violence.
4. **Deterrence in the Digital Age: Eg.** to check "Cyber Defamation" using deepfakes.
5. **Protection of Vulnerable Groups:** Protecting minorities and women from "gendered" or "casteist" slurs.
6. **Inadequacy of Civil Remedies** due to delays. **Eg.** average civil suit in India lasts **12-15 years**.
7. **Adequate safeguards** - Statutory Exceptions under **Section 356 BNS** protects truthful statements made for the "public good."

Criticism

1. Vagueness of "Imputation": The definition is broad enough to include satire, irony, and alternative expressions, stifling creative freedom.
2. Colonial Hangover: The law was designed by the British (Macaulay) to suppress Indian dissent and "protect the prestige" of the crown.
3. Chilling Effect on Press: The fear of criminal summons leads to self-censorship by journalists, especially when reporting on corporate or political scams.
4. Weaponization of Process: The "process itself becomes the punishment" as accused must appear in person in remote courts for years.
5. SLAPP Suits: Strategic Lawsuits Against Public Participation are used by the powerful to intimidate and "bankrupt" whistleblowers.
6. Subjectivity of "Public Good": The burden of proving "public good" lies on the accused, which is a reverse-onus that violates natural justice.
7. Overburdening Judiciary: Eg. 25,000+ defamation cases pending in lower courts
8. Disproportionate Penalty: "Speech should only be countered with speech," not handcuffs.
9. Most Western democracies (UK, USA) have decriminalized defamation

Way Forward

1. criminal prosecution only when speech causes **actual and substantial harm (Law Commission)**
2. **Decriminalization:** Shift defamation entirely to **Civil Law**, retaining criminal penalties only for cases involving "National Security" or "Incitement to Violence."
3. **Enacting Anti-SLAPP Legislation:** Create a mechanism for courts to strike out frivolous, "intimidatory" suits at the first hearing.
4. **Mandatory Mediation:** Require parties to undergo court-mandated mediation before a defamation trial begins to encourage apologies and settlements.
5. **Media Self-Regulation:** Empower the **Press Council of India** to handle defamation complaints against journalists through a "Correction and Apology" mechanism.

Phone Tapping

Phone tapping, also known as **wiretapping**, is the monitoring of telephone conversations and internet-based communication by a third party, often in secret.

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Recently, the case of phone tapping of political leaders in Telangana, NSE Phone Tapping Case has brought this issue into highlight.

In India, phone tapping is governed by The Indian Telegraph Act, 1885.

1. **Section 5(2)**: At the center, 10 agencies (IB, CBI, etc.) and at states, police have powers to tap the phones.
2. **Authority:** Under **Rule 419A** of the **Indian Telegraph (Amendment) Rules, 2007,** at the central level, the secretary in MoHA and at the state level, the secretary in the Home Department has the authority to issue orders for phone tapping. They must record reasons for tapping in writing.
3. **Grounds for phone tapping:** If the center or states satisfy that it is necessary in case of public emergency in the interest of "public safety", "sovereignty and integrity of India, the security of the State, friendly relations with foreign States or public order or for preventing incitement to the commission of an offense".

Safeguards available against phone tapping

1. **Last option:** It must be ordered only if there is no other way of getting the information.
2. **Time period:** If not revoked earlier, the order remains in force for 60 days. It can be renewed but not for more than 180 days in total.
3. **Review committee:** At the center, it is headed by the Cabinet secretary, and at the state level, it is headed by the Chief Secretary. It reviews orders by competent authorities, copies of which are sent to it within 7 working days.

Issues related to phone tapping:

Issue	Details
Violation of Right to Privacy	Infringes upon the right to privacy (Article 21) as sensitive information about personal life and business is tapped without permission.
Chilling Effect on Freedom of Speech	Fear of being monitored can lead to self-censorship and discourage open communication about sensitive topics. (PUCL vs. Union of India).
Abuse of Power	Governments might use phone tapping for political purposes, targeting dissidents or critics to suppress dissent. Example: Pegasus issue.
Divergence with International Obligation	Article 17 of the International Covenant on Civil and Political Rights states that no one should face arbitrary interference with their privacy. India is a signatory.

SC Judgments

Case	Details
People's Union for Civil Liberties vs. Union of India (1996)	The court laid down guidelines for the interception of telephone conversations

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Way forward

Recommendation	Details
Enact Comprehensive Law	Outline clear procedures, grounds for authorization, and independent oversight mechanisms for phone tapping.
Judicial Review of Authorizations	Establish a process for judicial review to ensure phone-tapping authorizations meet legal requirements and are not arbitrary.
Independent Oversight Body	Create an independent body to oversee phone-tapping practices, investigate complaints of misuse, and report to the public.

Freedom of Press

1. It is a cornerstone principle that ensures the right to **freely communicate and express information** through various media channels like print(newspaper), electronic(TV), social media(Twitter), etc.
2. As per the **World Press Freedom Index 2025**, India ranks **151 out of 180** countries.
3. **Press and Registration of Periodicals Act** became fully operational, replacing the 1867 colonial law
4. There are over **1.54 lakh** registered publications in India

Key features and changes under the new Act include:

- **Defines "periodical"** to include registered newspapers, magazines, and journals, but excludes books and journals published by educational institutions.
- **Office of PRGI**: Replaces the Registrar of Newspapers for India (RNI), serving as the **sole authority for title allotment and registration** of periodicals, including newspapers and magazines.
- **Registration is now a fully online process via the Press Sewa Portal**, eliminating the need to make a declaration before a District Magistrate for starting a publication.
- **Decriminalization:** The act removes strict penalties (like imprisonment) that were present in the 1867 Act, focusing on penalties.
- **Restrictions:** Individuals convicted of terrorist acts, unlawful activities, or actions against national security are prohibited from publishing periodicals.
- **Printing Presses:** Printers only need to file an online intimation with the PRGI rather than a formal declaration.

Constitutional Basis

1. Not explicitly mentioned, but derived from **Article 19(1)(a) - Freedom of Speech & Expression**.
2. Subject to **reasonable restrictions under Article 19(2)**: sovereignty, security, public order, decency, morality, contempt of court, defamation, incitement to offence.

Judicial Recognition

1. **Indian Express Newspapers v. Union of India (1985)** - SC held press freedom is part of the basic **structure of the Constitution**.
2. **Sakal Papers v. Union of India (1962)** - Government cannot restrict circulation of newspapers to control ideas.

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3. **Bennett Coleman v. Union of India (1973)** - Newsprint policy struck down; **press freedom > indirect state control**.

Statutory Regulations

1. **Press Council of India Act, 1978** - Establishes the **PCI**, a quasi-judicial body to uphold **press ethics** and prevent misuse of freedom.
2. **Registration of Newspapers (RNI) Act, 1956** - Regulates **title verification, ownership, and circulation data**.
3. **Cable Television Networks (Regulation) Act, 1995** - Controls **content codes** for electronic media.
4. **Information Technology Act, 2000 (Section 69A)** - Empowers government to block online content.

Institutional Mechanisms

1. **Press Council of India (PCI)** - Advisory; can censure newspapers but lacks punitive power.
2. **News Broadcasters & Digital Association (NBDA)** - Industry-led regulation for TV and digital news.
3. **Broadcasting Content Complaints Council (BCCC)** - Regulates non-news entertainment content.
4. **Ministry of Information & Broadcasting (MIB)** - Supervises press, broadcasting, and online content.

Significance of Freedom of Press

1. **Democratic Oversight:** Acts as a watchdog, exposing corruption and ensuring the government remains accountable to its citizens. **Eg.** Investigative reports on electoral bond data in 2024-25
2. **Check on Abuse of Power** - Acts as a safeguard against **authoritarian tendencies and arbitrary state actions**. Eg. Investigative reports on **Pegasus surveillance case (2021)**.
3. **Acts as a Bridge between State & Society** - Serves as a medium for **policy feedback and grievance redressal**. Eg. Coverage of **COVID-19 migrant workers' crisis (2020)** prompted state action.
4. **Voice of Marginalized: Eg.** women led digital news outlets like **Khabar Lahariya** highlight rural gender issues ignored by mainstream media.
5. **Checks Misinformation:** Professional journalism counters the spread of "fake news" and viral AI deepfakes on social media. Eg. Alt fact check
6. **Judicial Support:** Media coverage often prompts the judiciary to take suo motu cognizance of gross human rights violations.
7. **Economic Accountability:** Financial journalism monitors corporate governance and protects retail investors from market fraud or manipulation. **Eg.** Harshad Metha scam expose
8. **Promotes Pluralism & Diversity** - Enables debates on **religion, caste, gender, and regional issues**, reinforcing **unity in diversity**. Eg. Reporting on **LGBTQ+ rights post-Navtej Johar (2018)** case.
9. **Strengthens Rule of Law** - Exposes violations of **fundamental rights** and mobilises opinion for **legal reforms**. Eg. Media role in **Nirbhaya case (2012)** leading to stricter rape laws.

> "Freedom of the press is the mother of all liberties in a democracy." - **Justice V.R. Krishna Iyer**
>
> "Were it left to me to decide whether we should have a government without newspapers, or newspapers without a government, I should not hesitate a moment to prefer the latter." - **Thomas Jefferson**
>
> "A free press can be good or bad, but, most certainly, without freedom it will never be anything but bad." - **Albert Camus**

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Challenges to Freedom of Press - PIES Framework

Political

1. **Political Pressures & Intimidation** - Harassment, arrests, and threats against critical journalists. Eg. **Siddique Kappan (2020)**.
2. **Digital Surveillance:** New data laws may allow the state to access journalists' sources under the guise of "national security." **(IFJ 2025 report)**

Institutional

1. **Legal Overreach** - Misuse of **sedition, UAPA, IT Act** to curb dissent. Eg. **Media One ban case**.
2. **Weak Regulatory Mechanisms** - **Press Council of India** lacks binding powers; IT Rules 2025 expand state control.
3. **Digital Media Regulation** - Sweeping powers under IT Rules threaten editorial autonomy.

Economic

1. **Corporate & Ownership Control** - Concentration of media ownership limits independence. Eg. **Adani takeover of NDTV (2022)**.
2. **Financial Pressures** - Dependence on **government advertising and corporate funding** undermines independence.
3. **Paid News & Propaganda** - Commercial interests fuel misinformation and political bias.

Social

1. **Violence & Safety Threats** - Journalists face physical attacks and online trolling. Eg. **Shashikant Warishe murder (2023)**.
2. **Fake News & Disinformation** - Rise of **propaganda and misinformation** undermines press credibility.
3. **Global Image Decline** - India ranks **159/180 in RSF Press Freedom Index (2024)**, reflecting systemic erosion of press freedom.

Major SC Judgments on Press Freedom

1. **Romesh Thappar v. State of Madras (1950):** Established that freedom of the press is an essential part of the right to free speech.
2. **Bennett Coleman & Co. v. Union of India (1973):** Struck down newsprint quotas, ruling that the state cannot use economic measures to stifle the press.
3. **MediaOne (Madhyamam Broadcasting) Case (2023):** Ruled that the state cannot ban channels based on "sealed cover" submissions without proving a direct national security threat.

Way Forward

1. **The Second Press Commission had** suggested strengthening the Press Council of India and enhancing its role in ensuring journalistic standards.
2. **Decriminalize Defamation:** Amend Section 499 of the IPC to make defamation a purely civil wrong, preventing arrests.
3. Enact a dedicated **Journalists Protection Act** to provide state-level security for investigative reporters.
4. Transforming **Press Council of India (PCI)** into a statutory body with the power to penalize both media and aggressors.
5. Newsrooms must adopt voluntary **"Code of Ethics"** and robust internal fact-checking mechanisms to rebuild public trust

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Censorship in India

Censorship refers to the suppression, prohibition, or restriction of information, ideas, speech, or other forms of expression by governmental authorities, institutions, or other controlling bodies.

"Censorship is the tool of those who need to hide actualities from themselves and others." - Isaac Asimov

"The first condition of progress is the removal of censorship." - George Bernard Shaw

Constitutional Basis

1. **Article 19(2)** - Allows **reasonable restrictions** on grounds: **sovereignty, security, public order, decency, morality, contempt of court, defamation, incitement to offence**.

Forms of Censorship

1. **Press & Print Media** - Indirect through sedition, defamation, **Press Council of India guidelines**.
2. **Cinema** - Regulated under **Cinematograph Act, 1952**; certification by **Central Board of Film Certification (CBFC)**. Eg. Cuts in **Padmavat (2018)** citing public order.
3. **Television & Radio** - Governed by **Cable TV Networks (Regulation) Act, 1995** and programme codes.
4. **Digital Media & OTT** - Regulated by **IT Rules, 2021**, giving government oversight over online content.
5. **Books & Literature** - Bans under **Customs Act** and IPC for sedition/hate speech. Eg. Ban on Salman Rushdie's Satanic Verses (1988).
6. **Internet & Social Media** - **Section 69A of IT Act** allows blocking of online content. Eg. Twitter handles blocked during farmers' protests (2021).
7. **Sahyog Platform under Section 79 of the IT Act** - allows even district-level officers to demand social media firms pull down posts.

Key Provisions of IT Rules, 2021

- **For Social Media Intermediaries (SMI)**
- **Due Diligence:** Platforms must inform users not to host/upload illegal content (defamatory, obscene, harmful to minors, etc.).
- **Significant Social Media Intermediaries (SSMI):** Platforms with over **5 million users** face extra obligations:
  - **Resident Officers:** Must appoint a Chief Compliance Officer, a Nodal Contact Person, and a Resident Grievance Officer (all must live in India).
  - **Traceability:** Messaging apps (like WhatsApp) must be able to identify the **"first originator"** of a message if ordered by a court/government for serious crimes.
  - **Monthly Compliance Reports:** Platforms must publish the number of complaints received and actions taken.
- **Safe Harbour Protection:** If a platform follows these rules, it is not legally liable for content posted by its users (**Section 79** of the IT Act).
- **For Digital Media & OTT Platforms (Ethics Code)**
- **Self-Classification:** OTT platforms (Netflix, Hotstar, etc.) must classify content into age categories: **U, U/A 7+, U/A 13+, U/A 16+, and A**.
- **Parental Locks:** Platforms must provide parental locks for content rated U/A 13+ or higher.
- **Three-Tier Grievance Redressal:**
  - **Level I:** Self-regulation by the publisher.
  - **Level II:** Self-regulation by an independent body of publishers.

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- **Level III:** Oversight by an Inter-Departmental Committee (headed by the Ministry of Information & Broadcasting).

April 2023 Amendment

- **Fact Check Unit (FCU):** Permitted the government to designate an agency to identify "fake or misleading" information regarding government business. Note: This was struck down by the Bombay High Court in 2024; the Supreme Court is currently examining the Centre's plea as of March 2026.
- **Online Gaming:** require them to be registered with a self-regulatory body and prohibit games involving wagering/betting.

October 2025 Amendment

- **Rule 3(1)(d) of the IT Rules, 2021** requires **internet intermediaries to remove or disable access to unlawful content** upon receiving a government order or notification.
- An officer of at least Joint Secretary rank or Inspector General of Police (DIG) rank can issue order

Information Technology (Intermediary Guidelines and Digital Media Ethics Code) Amendment Rules, 2026

- For the first time, Indian law provides a statutory definition for **SGI**. It includes any audio, visual, or audio-visual information created or modified using algorithms that appear "real, authentic, or true."
- **Mandatory Labeling and Provenance -** Intermediaries must ensure that all SGI is prominently and clearly labeled so that users can easily identify it as AI-generated.
- The **window for removing unlawful content** has been slashed from 36 hours to just **3 hours** upon receiving a court order or government notification.
- For cases involving **non-consensual nudity, deepfake pornography, or impersonation**, the removal window is just **2 hours** after a complaint is received.
- If a platform (like X, YouTube, or Meta) fails to label AI content or misses the 3-hour takedown deadline, it loses its **Safe Harbour** protection under **Section 79** of the IT Act.
- Platforms must now acknowledge a user grievance within **24 hours** and provide a final resolution within **7 days** (down from the previous 15-day limit).

MeiTY has also proposed to include **"users who are not publishers"** who share content related to "news and current affairs" within a "code of ethics" it currently applies to registered news publishers.

Need for Censorship in India

1. **Communal Harmony:** Prevents the spread of hate speech that could incite religious or ethnic violence in a diverse society.
2. **National Security:** Eg. blocking of 59 Chinese applications including TikTok in 2020.
3. **Public Order:** Restricts the viral spread of rumors that could lead to mob lynchings or mass panic. Eg. Internet shutdowns
4. **Sovereignty and Integrity:** Eg. Authorities regularly seize publications or block websites displaying "incorrect" Indian borders.
5. **Protecting Minors:** Regulates access to obscene material and pornographic content to safeguard child psychology. Eg. blocking of over 800 pornographic websites.
6. **Defamation and Contempt:** Restricts expression that undermines judicial authority or causes unlawful harm to an individual's reputation. Eg. removal of NCERT content criticising judiciary
7. **Countering Deepfakes:** Eg. The 2026 IT Rules requiring mandatory labeling of synthetically generated audio-visual content.
8. **Moral Standards:** Ensures that broadcast content adheres to "community standards" of decency and morality. Eg. CBFC (Censor Board) cuts in films containing extreme violence or excessive profanity.

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9. **Protection of intellectual property** from theft using AI

Criticism of Censorship in India

1. **Chilling Effect:** Over-regulation leads to self-censorship among creators who fear legal harassment or arrest.
2. **Vague Terminology:** Use of broad terms like "anti-national" allows for arbitrary interpretation by state agencies.
3. **Lack of Transparency:** Many content blocking orders are not made public, preventing judicial or public review.
4. **Executive Overreach:** The 2026 IT Rules shift the Inter-Departmental Committee's role from grievance-handling to an instrument of censorship.
5. **Targeting Dissent:** Censorship is often perceived as a tool to silence political opponents and activists.
6. **Selective Enforcement:** Critics argue that hate speech from pro-establishment groups is often overlooked while critical voices are suppressed. Eg. action against Kunal Kamara
7. **Undermining Art:** Artistic freedom is often sacrificed to placate extremist groups or religious sentiments. Eg. Padmavat movie controversy or Samay Raina controversy

Major SC Judgments on Censorship

1. **Shreya Singhal v. Union of India (2015):** Struck down Section 66A of the IT Act, ruling that speech cannot be restricted merely for being "offensive."
2. The Supreme Court in **Ranjit D. Udeshi v. State of Maharashtra (1965)** defined **obscenity as a reasonable restriction** to free speech (Article 19).

Way Forward

1. **Judicial Oversight:** Mandate that all blocking orders undergo a summary judicial review within 24 hours of implementation.
2. **Independent Regulator:** Replace ministerial committees with a multi-stakeholder body (judiciary, civil society, and industry) for digital regulation.
3. **Narrow Definitions:** Clearly define "national security" and "public order" to prevent administrative misuse.
4. **Transparency Reports:** Require the government to publish bi-annual reports on all content takedown requests and their legal basis.
5. **Safeguarding Freelancers:** Provide legal aid and exemptions for independent creators from burdensome broadcast-level compliance.
6. **Ethical Self-Regulation:** Encourage media houses to adopt robust, voluntary fact-checking standards to reduce the "need" for state intervention.

Global Best Practices

1. **The Santa Clara Principles:** Global standards for transparency and accountability in content moderation by digital platforms.
2. **Manila Principles on Intermediary Liability:** Framework to protect intermediaries from being forced to censor content without a court order.
3. **EU Digital Services Act (DSA):** Focuses on systemic risk and transparency while providing users with clear avenues to challenge content removal.

Way forward

1. Revise censorship laws to provide **clearer definitions** of terms like "public order" and "morality" to minimize subjective interpretations and misuse.

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2. **Encourage Self-Regulation**: It is imperative for media institutions to prioritize self-regulation as a proactive measure against excessive government intervention. This strategy presents a more equitable solution compared to direct government oversight of content.
3. Implement **age-gating systems** for online content deemed mature, restricting access for underage users without resorting to complete bans.
4. Integrate **media literacy programs** into school curriculums to equip students with the skills to evaluate information sources, identify bias, and spot misinformation.
5. Mandate social media platforms to publish **regular transparency reports** disclosing the volume and nature of content removed and the reasons behind them.

OTT Regulation in India

OTT stands for "Over-the-Top." An OTT platform is an audio and video hosting and streaming service that delivers streaming media content directly to viewers over the internet, bypassing traditional cable, satellite, and broadcast television. Eg. Netflix, Amazon, etc.

As per Ormax Media report, India has over 500 million OTT users and 150 million paid subscriptions. It also shows a growth rate of 20% showing an increasing market for OTT platforms.

Regulatory Mechanism in India

1. **IT Act, 2000**
   a. **Section 67 & 67A** - deals with publication and transmission of obscene content
   b. **Section 69A** - empowers central government to block public access
2. **IT rules, 2021**
   a. **Self-Classification:** OTT platforms (Netflix, Hotstar, etc.) must classify content into age categories: **U, U/A 7+, U/A 13+, U/A 16+, and A**.
   b. **Parental Locks:** Platforms must provide parental locks for content rated U/A 13+ or higher.
3. **Section 294 of BNS** - defines and criminalises obscene content
4. **POSCO Act** - criminalises child pornography

Need for OTT regulation

1. **Protection from Obscenity & Harmful Content** - The SC in **Ranjit Udeshi case (1965),** upheld obscenity as a reasonable restriction under Article 19. Eg. India's Got Latent controversy.
2. **Level Playing Field** - Traditional media (TV, cinema) faces strict censorship (CBFC, Cable TV Act), but OTT enjoys **regulatory vacuum**, leading to **unfair competition**.
3. **Consumer Rights** - Need for clear mechanisms to address **complaints on content classification, parental control, and offensive material**.
4. **Protecting dignity of women - Eg.** Bulli Bai app incident (auctioning of images of women)
5. **Child Safety & Age-Appropriate Content** - Lack of effective **age-rating, parental filters, and access controls** exposes minors to inappropriate content.
6. **Data Privacy & Algorithmic Concerns** - OTT platforms collect vast **user data**, raising issues of **profiling, consent, and surveillance capitalism**.
7. **Cultural Sensitivity** - Content may **offend religious, caste, or regional sentiments**, sparking protests. Eg. Controversies over **Tandav (2021)** series.
8. **Preventing Monopolistic Practices** - Need to regulate **pricing models, market dominance, and exclusivity contracts** by global giants like Netflix, Amazon Prime.

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9. **Global Best Practices Alignment** - Countries like **UK (Ofcom), EU (AVMS Directive)** already regulate OTT for **content standards, transparency, and consumer protection**.
10. **Judicial Guidance** - Courts (SC & HCs) have repeatedly urged the Centre to evolve a **comprehensive framework** for OTT regulation.

Challenges in OTT regulation

1. **Jurisdictional Overlap** - Turf war between **MeiTY, MIB, and TRAI** creates confusion over who should regulate OTTs.
2. **Balancing Free Speech & Regulation** - OTT is a **pull medium**, unlike broadcast, making excessive censorship a **chilling effect on Article 19(1)(a)**.
3. **Vague Standards** - Terms like "obscene," "immoral," "offensive" are context-dependent, risking **arbitrary interpretation**.
4. **Content Diversity** - OTT platforms host **regional, global, experimental content**, making **uniform classification and regulation difficult**.
5. **Enforcement Weakness** - **IT Rules, 2021** rely on self-regulation but lack **teeth for enforcement** and **appeal mechanisms** for publishers.
6. **Tech vs. Traditional Models** - Borrowing censorship models from **TV/films** ignores the **on-demand and internet-based nature of OTT**.
7. **Global Platforms vs. Indian Laws** - Multinational OTTs (Netflix, Amazon Prime) operate across borders, complicating **compliance with Indian regulatory frameworks**.
8. **Data & Privacy Concerns** - OTT platforms collect massive **user data**; regulation must balance **data protection with innovation**.
9. **Political & Social Pressures** - Content controversies (Eg. **Tandav series, 2021**) show how **religious/cultural sensitivities** often lead to calls for bans.
10. **Technological Limitations** - Automated filters and content scanners may lead to **over-blocking or under-filtering**, harming both **creativity and user safety**.

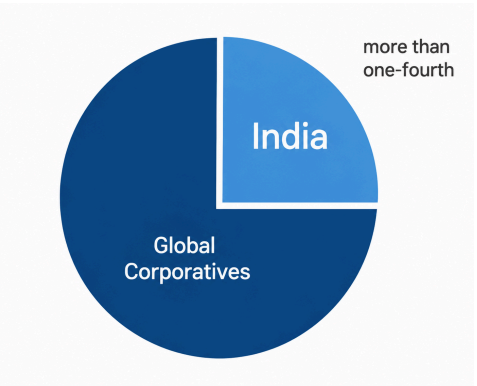
Way Forward

1. **Tripartite Expertise** - Create a **specialised body** drawing from **IT, broadcasting, and telecom sectors** to draft **bespoke OTT regulations**, reflecting both infrastructure and content aspects.
2. **Co-Regulation Model** - Retain **self-regulation by platforms** while adding **independent oversight** to ensure flexibility, accountability, and stakeholder participation.
3. **Clear Definitions** - Avoid vague terms like **"grossly offensive"** (as in struck-down **Section 66A IT Act**). Clearly define **harmful, obscene, and offensive content** to prevent arbitrary censorship.
4. **Judicial Oversight** - Ensure that **blocking or takedown orders** require **judicial review**, preventing misuse of executive powers for censorship.
5. **Evolving Standards** - Recognise that **morality and obscenity are context-driven**; include **review clauses** for periodic reassessment of content norms.
6. **Inclusivity in Regulation** - Incorporate **voices of marginalised and vulnerable groups** to prevent silencing of critical depictions of **caste, gender, or social evils**.
7. **Stakeholder Consultations** - Involve **platforms, creators, civil society, academia, and government** in shaping balanced rules that respect **free speech and societal sensitivities**.
8. **Soft-Touch Framework** - Focus on **age-based classification, content labelling, parental controls**, rather than heavy-handed censorship models like CBFC.
9. **Appeal Mechanism** - Amend gaps in **IT Rules, 2021** by providing publishers a **right to appeal** decisions of self-regulating bodies, ensuring fairness.

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10. **Tech-Aided Self-Regulation** - Encourage platforms to use **automated profanity filters, AI-driven content scanners, and user-report systems** to flag objectionable material.

Cooperatives



The **International Cooperative Alliance (ICA)** defines a cooperative as an autonomous association of persons united voluntarily to meet their common economic, social, and cultural needs and aspirations through a jointly owned and democratically controlled enterprise.

India hosts **8.55** lakh out of 30 lakh cooperative societies in the world with **30 crore** members and 91% of villages in India have some form of cooperatives working in them.

Recent News - **Multi-State and State/UT cooperatives** now eligible to be recognised as startups under revised framework.

Constitutional and Legal Framework

Provision	Details
97th Amendment Act (2011)	Introduced Part IXB "The Co-operative Societies" into the Indian Constitution, establishing a constitutional framework for cooperative societies.
Article 19(1)(c)	Right to form cooperatives within the fundamental rights guaranteed to citizens, ensuring the freedom to establish cooperative societies.
Article 43B	Directs the state to promote the voluntary formation and democratic functioning of cooperatives, encouraging cooperative movement as a state policy.
Multi-State Cooperative Societies Act (2002)	Governs the formation, registration, operation, and winding up of multi-state cooperative societies operating in more than one state.
Entry 32 of State List	Regulates the cooperative societies with objects confined to one state, allowing state governments to legislate on local cooperative societies.
Ministry of Cooperatives (2021)	Established to promote and support cooperative societies across the country, aimed at strengthening the cooperative movement and ensuring better governance.
Supreme Court Judgment (2021)	Struck down some provisions of the 97th Amendment Act, 2011, holding that Part IXB would not apply to local cooperative societies as the amendment was not ratified by half of the states. It remains applicable to multi-state cooperative societies and those within Union territories.

Significance of cooperatives:

1. **Massive Reach and Participation**
   a. India hosts **over 8.5 lakh cooperatives**, accounting for **27% of the world's cooperatives**.
   b. **20% of India's population** is involved in cooperatives, compared to the global average of 12%.
   c. Maharashtra alone accounts for **25% of India's cooperatives**.

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2. **Economies of Scale** - Cooperatives aggregate small producers, enabling bulk procurement, processing, and marketing. Eg. **AMUL's federation model**
3. **Enhanced Bargaining Power of Small Producers** - Eg. **Farmer Producer Organizations (FPOs)** and PACS enable group-based procurement of seeds and fertilizers, reducing input costs by up to 15-20%.
4. **Grassroots Credit Access: Eg.** PACS (Primary Agricultural Credit Societies) disburse nearly ₹1.5 lakh crore in short-term credit annually.
5. **Financial Inclusion:** Integrates rural populations into the formal banking system through localized, member-owned cooperative banks.
6. **Supply Chain Stability:** Ensures affordable and timely access to critical inputs like fertilizers, seeds, and quality cattle feed. **Eg.** IFFCO and KRIBHCO.
7. **Food Security:** Operates the world's largest decentralized grain storage program to reduce post-harvest losses and stabilize prices.
8. **Improved Market Access by** eliminating exploitative intermediaries. Eg. **Nafed** and **TRIFED** help tribal and small farmers sell at Minimum Support Prices (MSP).
9. **Risk Sharing and Economic Security** -. Eg. **Crop-based cooperatives** offer mutual insurance in drought-prone regions like Vidarbha and Marathwada.
10. **Diversification into Non-Farm Sectors** - Eg. **Weavers' cooperatives in Tamil Nadu**
11. **Promotion of Inclusive Growth** - Eg. **SEWA (Self-Employed Women's Association)** empowers over 2 million women with microcredit and healthcare services.
12. **Stabilizing Rural Economy and Preventing Distress Migration** by ensuring regular income, cooperatives help reduce seasonal migration to cities.
13. **Resource Mobilization:** Converts small individual savings of members into large-scale capital for community-focused infrastructure projects.



Issues faced by Cooperatives

1. **Political Capture**: Eg. In Maharashtra, **over 40% of sugar cooperative board members** are affiliated with political parties (EPW, 2020).
2. **Low Professional Capacity and Outdated Practices** - Eg. As per RBI Report, less than 30**% of urban cooperative banks** have adopted full core banking solutions (CBS).
3. **Fragmented Regulation and Dual Control** - Multi-State Cooperatives face **dual control** by Central and State authorities, causing delays and administrative confusion.
4. **Weak Financial Discipline and Mismanagement** - Poor accounting, delayed audits, and misappropriation of funds remain common. Eg. The **PMC Bank scandal (2019)**
5. **Inadequate Member Participation and Awareness** - Eg. IRMA Study found **less than 25% of cooperative members attend AGMs regularly**.
6. **Narrow Sectoral Spread**: Success is limited to agriculture, dairy, and credit; weak presence in new sectors like tech or services.
7. **Regional Imbalance**: 5 states (Eg. Maharashtra, Gujarat) hold **57% of all cooperatives**, leaving others underrepresented.
8. **Financial Fragility**: Low capital and high dependency on state support restrict scalability and innovation.

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Key Government Initiatives for Cooperatives

- **NCDC (1963)**: Statutory body under Ministry of Cooperation to finance and promote cooperatives.
- **Ministry of Cooperation (2021)**: Formed to boost rural prosperity and cooperative growth.
- **National Cooperative Policy (Drafting)**: Committee set up under Sahkar-se-Samriddhi vision.
- **MSCS Amendment Act, 2023**: Enhances governance, transparency, and electoral reforms.
- **Margdarshika Plan**: Targets formation of 2 lakh PACS, dairy, and fishery cooperatives.

National cooperative policy 2025

- **Mission** - To create an **enabling legal**, **economic**, and **institutional framework** t0 cooperative movement at the **grassroots level** and **facilitate the transformation** of cooperative enterprises into professionally managed, transparent, technology-enabled, vibrant, and responsive economic entities

Key Highlights

- **Legislative and Institutional Reforms** - Encourage States to **amend cooperative laws** to enhance transparency, autonomy and the ease of doing business.
- **Financial Empowerment** - Promote the three-tier **Primary Agriculture Credit Societies - District Central Cooperative Bank - State Cooperative Bank** credit structure.
- **Business Ecosystem Development**
- Encouraging States/UTs to develop at least one **model cooperative village** with multipurpose PACS as growth engines.
- Develop **rural economic clusters** (Eg. honey, spices, tea) and support branding under the **'Bharat'** brand.
- **Future-Readiness & Technology**
- Develop a national **'Cooperative Stack'** integrating with **Agri-stack** and **databases**.
- Promote **Open Network for Digital Commerce** and **GeM** platform integration.
- Encourage R&D through **cooperative incubators** and **Centres of Excellence**.
- **Inclusivity Measures**
- **Model bye-laws** for gender representation and transparent governance.
- Cooperative **awareness campaigns** in schools and colleges.
- **Sectoral Diversification** - Promote cooperatives in **new and emerging sectors** such as Renewable energy, Waste management, Health and education, Biogas and ethanol production, etc.
- **Youth-Oriented Capacity Building**
- Develop **cooperative-focused courses** in higher education institutions (HEIs).
- Build a national **digital cooperative employment exchange**.

Implementation and Monitoring

- **Implementation Cell** within the Ministry of Cooperation with technical Project Management Unit support for effective and timely implementation of the policy.
- **National Steering Committee on Cooperation Policy** chaired by the Union Cooperation Minister for guidance, coordination, periodic policy review, etc.
- **Policy Implementation and Monitoring Committee** for coordination with States, troubleshooting implementation bottlenecks, periodic monitoring and evaluation, etc.

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Way Forward

1. **Professionalisation of Management** - Implement **Vaidyanathan Committee** recommendation for trained, full-time CEOs in cooperatives.
2. **Autonomy and Accountability** - Ensure **political neutrality and audit transparency** by enforcing **Model Bye-Laws** and **MSCS Amendment Act, 2023**.
3. **Diversification Beyond Agriculture**
   a. Promote cooperatives in **logistics, green energy, healthcare**, and urban services, as suggested by **NITI Aayog** (2021).
   b. Encourage **multi-sector PACS** through Margdarshika Plan.
4. **Integrated Policy Framework**
   a. Finalise the **National Cooperative Policy** with stakeholder input.
   b. Harmonise laws to resolve **dual control** of multi-state cooperatives (as noted by the **HLC on Cooperatives, 2013**).
5. **Access to Capital and Credit**
   a. Encourage cooperative banks to meet **Basel norms** and expand **refinancing** from NCDC, NABARD, and SIDBI.
   b. Operationalise **umbrella body NUCFDC** for urban cooperative banks.
6. **Grassroots Awareness and Inclusion**
   a. Expand cooperative education through **Sahkar Bharti-type campaigns**.
   b. Ensure inclusion of **women, SC/STs, and youth** in leadership roles.

To truly realise the vision of "Sahkar se Samriddhi", India must transform cooperatives into **modern, autonomous, tech-driven institutions** rooted in **democratic governance**.

X-Factor Pointers on Cooperatives

- The UN has declared 2025 as the UN International Year of Cooperatives 2025 **(IYC 2025)** with the theme "Cooperatives Build a Better World."
- **India hosts 27% of the world's cooperatives**, with **20% of its population engaged**, compared to the global average of 12%.
- **Five states-led by Maharashtra (25%)-account for 57%** of India's total cooperatives, highlighting regional concentration

Anti-Conversion Laws

Anti-conversion laws are the legislations that **restrict or prohibit individuals from converting from one religion to another.** In India, more than 10 states have anti-conversion laws.

Article 25 guarantees freedom of conscience and right to profess, practice, and propagate religion. But this right is **not absolute**, subject to public order, morality, health, and other fundamental rights.

Evolution of Anti-Conversion Laws

1. **Pre-Independence**: Several princely states (Eg. Raigarh, Kota, Patna, Bikaner) enacted anti-conversion laws in the 1930s-40s.
2. **Post-Independence State Laws**: Since Parliament never passed a national law, states legislated under **Entry 1 (public order)** and **Entry 2 (criminal law)** of State List.

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Key Provisions in State Laws

1. Mandatory **prior permission or intimation** to district magistrate for religious conversion.
2. Ban on conversion through **force, fraud, inducement, or allurement**.
3. Prescribed **penalties (1-10 years imprisonment, fines up to ₹50,000 or more)**.
4. Special protection for **women, minors, and SC/ST individuals**.
5. Burden of proof is often placed on the **person converting** or the **religious leader**.

Judicial Pronouncements

1. **Rev. Stainislaus v. State of Madhya Pradesh (1977)** - SC upheld state laws, ruling that the right to "propagate" religion does not include the right to "convert" another.
2. **Hadiya Case (Shafin Jahan v. Asokan K.M., 2018)** - SC upheld adult woman's right to choose religion and marriage partner.

Significance

1. Reflects the **balance between individual liberty and state interest in public order**.
2. **Prevents forced, fraudulent, or induced conversions,** ensuring genuine choice. **Eg.** The 1977 **Stainislaus judgment** noted that "propagate" does not include the right to convert others forcibly.
3. **Safeguards Vulnerable Groups** - Protects women, minors, and SC/STs from exploitation.
4. **Regulates Conversion by Marriage** - Prevents concealment or coercion in interfaith marriages.
5. **Protecting Public Order:** Coercive conversions can trigger social unrest, communal tensions, and localized violence between different religious groups.
6. **Cultural Preservation:** Protects the indigenous cultural and religious identity of Adivasi/tribal populations from being erased by external missionary activities.
7. **Curbing "Love Jihad":** Prevents marriages conducted solely for the purpose of religious conversion through deception or misrepresentation.
8. **National Security:** Concerns that mass conversions funded by foreign NGOs could be used to destabilize border regions or influence politics.
9. **Countering Allurement:** Prevents "material inducements" like free education or healthcare from being used as bait for switching religions.

Criticism of Anti-Conversion Laws

1. **Infringement of Privacy:** Eg. Mandatory notification to a District Magistrate violates the "Right to Privacy" established in the Puttaswamy judgment.
2. **Vague Terms** - Words like "allurement" and "inducement" are loosely defined, enabling misuse.
3. **Violation of Fundamental Rights** - Curtails **Article 25 (religious freedom)** and **Article 21 (personal liberty & privacy)**.
4. **Targeted Enforcement** - Disproportionately affects minorities and interfaith couples.
5. **Politicisation** - Often linked to identity politics and communal polarisation.
6. **Incentivizing Vigilantism:** Laws embolden fringe groups to disrupt interfaith weddings or prayer meetings under the guise of "stopping crime."
7. **Burden of Proof:** Reversing the burden onto the accused (the convert/priest) is inconsistent with the fundamental legal principle of "innocence until proven guilty."

Way Forward

1. **Uniform Principles** - Clear national guidelines to prevent misuse while safeguarding genuine freedom of choice.
2. **Judicial Safeguards** - Ensure laws do not curtail rights under Articles 21 and 25.

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3. **Focus on Consent** - Regulation should address coercion, not voluntary conversion.
4. **Awareness Programs** - Promote interfaith dialogue and reduce suspicion around conversions.

Essential Religious Practices

1. Recently, SC constituted a 9-judge bench to review the 2018 **Sabarimala verdict** focusing on the scope of religious freedom (Article 25) versus denominational rights (Article 26).
2. **Thiruparankundram Deepathoon Dispute:** Madras HC warned officials of contempt for obstructing the **Karthigai Deepam** ritual atop the hill. It ruled that the state cannot use "law and order" concerns as a pretext to block long-standing religious rituals.
3. **Thenkalai Sect Rights:** Reaffirming a century-old legal position, the Court ruled that only the **Thenkalai sect** has the exclusive right to recite specific hymns (Mantrams/Prabandhams) at the Kancheepuram Varadaraja Perumal Temple. It held that an individual's right to worship (Article 25) does not override the established denominational and ritual office rights of a sect protected under **Article 26**.

Major Judgments of Judiciary Involvement

1. **Shirur Mutt Case(1954):** Established the **Essential Religious Practices (ERP)** test, protecting essential or core rituals while allowing State regulation of secular temple administration.
2. **Durgah Committee Case (1961):** Ruled that "superstitious beliefs" or "unessential accretions" are not protected under Article 26.
3. **Sastri Yagnapurushadji (1966):** Defined the scope of "Hinduism" to include diverse sects, preventing them from using "denominational" status to exclude others from temples.
4. **Seshammal Case (1972):** Held that while the performance of rituals is religious, the **appointment of priests** is a secular function that the State can regulate.
5. **Ananda Marga Case (2004):** Clarified that a practice is "essential" only if its absence fundamentally alters the religion itself.
6. **Acharya Jagadishwarananda Avadhuta case(2004):** Introduced the **"essentiality test"**. A practice is essential only if its **absence fundamentally alters the religion.**
7. **Haji Ali Dargah Case(2016):** Struck down the ban on **women entering the sanctum**
8. **Shayara Bano Case(2017)**
9. **Sabarimala Case(2018)**

Major Doctrines

1. **Doctrine of Essentiality:** Only those practices that are **"integral" or "fundamenta**l" to a religion receive protection under Article 25.
2. **Constitutional Morality:** The idea that the **Constitution's core values** (justice, liberty, equality) must prevail over traditional or religious norms if they conflict.
3. **Doctrine of Principled Distance:** The state does **not strictly separate from religion but intervenes only when religious practices** infringe upon fundamental rights or social welfare.
4. **Doctrine of Pith and Substance:** Used to determine if a law truly regulates a "secular" aspect of religion or is an unconstitutional strike at the "religious" core.
5. **Definitional Filter:** The court first assesses if a claim is "religious" in nature (theistic vs. non-theistic) before applying other tests.

Justification of Judicial Oversight

1. **Protection of Fundamental Rights:** Courts intervene when religious customs violate **Article 14 (Equality)**, ensuring traditions do not override rights.

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2. **Public Health and Peace:** Eg. In **Church of God (2000)**, the court justified restricting **loudspeakers**, ruling that no religion grants the right to disturb the peace of others.
3. **Purging Social Evils:** Oversight helps eliminate harmful traditions from religious spaces. Eg. **Sabarimala**
4. **Upholding Constitutional Morality: Pratap Bhanu Mehta** argues that the Court acts as a "theologian" to modernize religious identity.
5. **Defining Secular vs. Religious:** It distinguishes between spiritual rites and administrative functions like managing temple funds.
6. **Standardizing Legal Definitions:** Eg. The **Bombay High Court** defined religion as anything that "binds a man to his own conscience".
7. **Gender Justice in Personal Law:** Judicial intervention has been the primary driver for reform in discriminatory divorce or inheritance laws. Eg. **Shayara Bano case**.
8. **Curbing Superstitious Crimes** like ritual sacrifice by labeling them "unessential accretions" rather than protected faith. Eg. **Durgah Committee Case**
9. **Refinement of Faith:** Judicial "entry into the sanctum" helps refine religions by tethering them to modern democratic values.

Criticism of Judicial Oversight

1. **Judicial Overreach:** Secular judges often lack the **theological expertise** to interpret sacred scriptures and define "essential" rituals correctly.
2. **Arbitrary Standards:** The **ERP test** is criticized for being inconsistent, relying on a judge's personal philosophy rather than objective theology.
3. **Threat to Autonomy:** Constant oversight undermines the **right of religious denominations** (Art. 26) to manage their internal affairs without interference.
4. **Political Sensitivity:** Judicial intervention in sensitive religious disputes can inadvertently trigger **communal disharmony** or perceptions of state bias.
5. **Subjective Morality:** Using **Constitutional Morality** is seen as a vague tool used to bypass established religious customs and local practices.
6. **Risk of Politicization:** Religious rulings are frequently weaponized by political actors to deepen social and communal divisions.
7. **Burden of Proof:** The ERP doctrine forces believers to "prove" their faith in court rather than the state justifying its restrictions.

Way Forward

1. **Adopting Constitutional Morality:** Moving from the "Essentiality" test to a focus on individual dignity and equality.
2. **Principled Non-Intervention:** Establishing a high threshold for state interference in non-discriminatory, private religious matters.
3. **Engaging Religious Experts:** Using Amicus Curiae from diverse religious backgrounds to provide nuanced theological context.
4. Encouraging **Alternative Dispute Resolution** for sectarian conflicts instead of endless court litigation.
5. **Empowering Community Reform:** Encouraging religions to reform from within rather than through "top-down" judicial mandates.
6. **Transparency in State Management:** Ensuring state-run temple boards are inclusive and represent the actual worshipping community.

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Rights of Minorities

The Indian constitution doesn't define the term Minority. However, **Article 29**(the word "minorities", generally means a minority or a group within a majority community), **Article 30** (speaks of religious and linguistic minorities), and **Articles- 350A and 350B** relate to minorities.

Special Provisions for Linguistic Minorities: Article 350B provides for a **Special Officer for Linguistic Minorities** to investigate complaints of neglect and safeguard their linguistic rights.

At present, Muslims, Christians, Sikhs, Buddhists, Parsis, and Jains are notified as minority communities at the national level.

On a global level, **Parts 3 & 4** of the **first article** of the **UN Charter** and **Articles 55 & Article 65** recognizes FRs and freedoms for minority groups without any discrimination based on race, religion, language, etc.

Significance of Minority Rights

1. **Protects Diversity** - Safeguards India's **multi-religious, multi-lingual, and multi-cultural** fabric by ensuring inclusion of all communities.
2. **Prevents Majoritarianism** - Acts as a **constitutional shield** against domination by majority groups, preserving democratic balance.
3. **Educational Empowerment** - Minority-run institutions under **Article 30** promote literacy, higher education, and cultural continuity. Eg. St. Stephen's College, Jamia Millia Islamia.
4. **Cultural Preservation** - Secures the **language, script, and culture** of minority groups under **Article 29**, fostering cultural pluralism.
5. **Promotes Social Justice** - Enables disadvantaged minorities to access **affirmative action and welfare schemes**, reducing inequalities.
6. **Strengthens Democracy** - Encourages **political participation** of minorities, ensuring their voices in representative institutions.
7. **Supports National Integration** - Builds **trust and belongingness**, reducing alienation and fostering unity in diversity.
8. **Upholds Constitutional Morality** - Reinforces **justice, equality, fraternity**, and the **basic structure** doctrine as emphasized in S.R. Bommai (1994).

Issues with Minority Rights

Issue	Details
Absence of a universally agreed-upon definition of 'minority'	Presently, linguistic minorities are identified at the state level, decided by respective state governments, while religious minorities are determined by the Central Government.
Discrimination and Social Exclusion	In a survey by Lokniti-CSDS, 60% of Muslims reported facing discrimination in housing.
Political Underrepresentation	In the 2024 Lok Sabha elections, only 24 out of 543 members (4.5%) were Muslim, compared to their 14% share of the population.
Educational Inequality	According to the Ministry of Minority Affairs, only 4.8% of government funds for education are allocated to minority institutions.

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Issue	Details
Economic Disparities	Minorities often experience higher rates of poverty, unemployment, and economic instability. (**The Sachar Committee Report**) As per the 2011 Census, the poverty rate among Muslims was 31%, compared to the national average of 22%.
Language Barriers	Linguistic minorities face challenges in accessing education and government services in their language.

SC Judgments

1. **Aligarh Muslim University (AMU) Case** (2024)**: the SC overruled the 1967 S. Azeez Basha judgment (which claimed a university established by statute cannot be a minority institution).**
   a. **Criteria for Minority Status**:
   b. **Genesis and Purpose**: The origin and objective of establishing the institution.
   c. **Founders and Contributors**: Identification of individuals or entities who established and funded the institution.
   d. **Administrative Control**: The extent of control exercised by the minority community over the institution's administration.
   e. **Pre-Constitution Institutions**: The Court held that institutions established before the Constitution's commencement are also entitled to Article 30 protections.
2. **Kerala Education Bill (1958):** right to "administer" does not include the right to "mismanage." It allowed the State to impose reasonable regulations (Eg. teacher qualifications, hygiene) to maintain standards without destroying the "minority character" of the institution.
3. **T.M.A. Pai Foundation v. State of Karnataka (2002):** An 11-judge bench held that the unit for determining religious or linguistic minority status is the **State**, not the whole of India.
4. **St. Stephen's College** -allowed minority institutions to reserve up to **50% of seats** for own community.
5. **P.A. Inamdar v. State of Maharashtra (2005):** The SC ruled that the State **cannot impose its reservation policy** (for SC/ST/OBC) on unaided private minority or non-minority colleges.

Way forward

	Recommendation
Ranganath Mishra Commission	Increased budgetary allocations for minority welfare programs
	Improved access to education and employment opportunities
	Better representation of minorities in government administration and law enforcement
	Proactive enforcement of existing constitutional safeguards for minorities
Stringent enforcement of anti-discrimination laws	Strictly apply laws against discrimination in education, employment, housing, and public services.

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	Recommendation
Targeted affirmative action	Develop policies and schemes to reduce socio-economic disparities faced by minorities. Eg. Prime Minister's 15-Point Program for Minorities

Right to Property

The Right to Property under the Indian Constitution was derived from **Section 299 of GoI Act, 1935, and Article 17 of UDHR,1948.**

Key Constitutional Amendments

1. 1st Amendment (1951): Inserted Articles 31A and 31B and the Ninth Schedule to protect land reform laws from judicial review on the grounds of violating fundamental rights.
2. 4th Amendment (1955): Stated that the adequacy of compensation provided by the State for acquiring property could not be challenged in court.
3. 25th Amendment (1971): Replaced the word "compensation" with "amount," further limiting the judiciary's power to scrutinize the value paid for seized property.
4. 44th Amendment (1978): It repealed Article 19(1)(f) and Article 31, removing the Right to Property as a Fundamental Right and re-inserting it as Article 300A (a mere legal right).
    a. **Amended Article 30** with new clause (1-A) with the effect that if the state acquires the property of any minority-administered educational institution, the compensation shall not encroach on the rights of the minorities.

Major Supreme Court Judgments

1. **Property Owners Association v. State of Maharashtra (2024)** Ruled that not all private property is a "material resource of the community" for state acquisition. It overruled the decades-old "Justice Krishna Iyer" doctrine (which favored total state control), stating that the State cannot indiscriminately seize private property unless it meets specific criteria like scarcity or public utility.
2. **Samiullah v. State of Bihar (2026)** Quashed rules requiring proof of mutation for registration, emphasizing that the state cannot block property transfers.
3. **Vidya Devi v. State of Himachal - Right to Property is a "Human Right"** in a welfare state. State cannot be a "trespasser" on its citizens' land and must follow the due process of law for any acquisition.
4. **R.C. Cooper v. Union of India (1970)** Struck down bank nationalization for providing "illusory" compensation, forcing the state to follow fair valuation principles.
5. **Bela Banerjee v. State of West Bengal (1954)** - The Court held that compensation meant a **"just equivalent"** or the full market value of the property.
6. **K.T. Plantation Pvt. Ltd. v. State of Karnataka (2011)** Held that deprivation of property under Article 300A must follow valid law and be for public purpose.

Major Challenges in Right to Property in India

1. **Presumptive Titling System:** Registration proves a transaction occurred, but the government does not guarantee actual ownership of the land. **NITI Aayog** has suggested shift to **"conclusive land titling"**
2. **Pending Litigation Backlog: Eg.** In 2026, roughly **7.3 million property cases** remain pending, representing 66% of all civil litigation.
3. **Inaccurate and outdated land records** - lead to fraudulent sales and overlapping claims.

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4. **Eminent Domain Misuse:** The State sometimes acquires land for "public purpose" that eventually benefits private developers or corporations.
5. **Complex Tenant Laws:** Archaic Rent Control Acts make it difficult for landlords to evict non-paying or violating tenants.
6. **Bargaining Power Asymmetry:** Small farmers lack the legal resources to fight state or corporate entities for fair compensation.
7. **Gender Bias in Inheritance: Eg.** only 13% of rural land titles are held solely by women.

Right to Property in Other Countries

1. **USA:** Protected by the **5th Amendment**, which states that private property shall not be taken for public use without **"just compensation."**
2. **Australia:** The government uses **"Conclusive Titling"** (Torrens Title), meaning the State guarantees ownership, effectively eliminating title-related litigation.

Article 32, 226

"It is the very soul of the Constitution and the very heart of it." **Dr Ambedkar**

1. **Article 32 and 226:** Guarantees the right to move the **SC and HC** respectively for the enforcement of FR. Empowers the SC to issue directions, orders & **writs**
2. **32(3):** Allows Parliament to empower any other court to exercise these powers within their local limits.
3. **32(4):** States that the right to move the SC shall not be suspended except during a National Emergency.

WRITS

1. **Habeas Corpus (To have the body):** Used to release a person who has been detained or imprisoned unlawfully. **Eg. ADM Jabalpur Case**
2. **Mandamus (We command):** Issued to a public official, corporation, or lower court to perform a mandatory duty they have failed or refused to do. **Eg.** In **Gujarat State Financial Corp v. Lotus Hotels (1983),** SC issued a writ of Mandamus to provide loan to a hotel,
3. **Prohibition (To forbid):** Issued by a higher court to a lower court or quasi-judicial body to stop them from continuing a case that exceeds their jurisdiction.
4. **Certiorari (To be certified):** Issued to quash or overturn an order already passed by a lower court or authority because it lacked jurisdiction or contained a legal error. Eg. in **A.K. Kraipak case,** SC quashed a selection list for the Forest Service as one of the members of the selection board was also a candidate.
5. **Quo Warranto (By what authority):** Issued to prevent a person from illegally holding a public office and to inquire into the legality of their claim to that office.

Comparison between SC & HC Powers

Feature	Supreme Court (Article 32)	High Court (Article 226)
Nature of Right	The SC cannot refuse to exercise this power.	**Discretionary Power.** The HC may refuse to grant relief if an alternative remedy exists.
Scope of Power	**Narrower**: Can **only** be invoked for the enforcement of Fundamental Rights (Part III).	**Wider:** Can be invoked for Fundamental Rights plus ordinary legal rights.

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Feature	Supreme Court (Article 32)	High Court (Article 226)
Territorial Jurisdiction	**Bigger**: Can issue writs against any person or government throughout the entire territory of India.	**Smaller**: Limited to its own state or where the "cause of action" arises within its territory.

Significance

1. **Article 32 is a Fundamental Right**. Ambedkar called it the "Heart and Soul" because rights are meaningless without a direct enforcement mechanism.
2. **Public Interest Litigation** allows any citizen to approach courts for the protection of marginalized groups' rights. Eg. M C Mehta cases on environment
3. **Democratic Stability:** By providing a legal vent for grievances, they prevent citizens from resorting to extra-constitutional means for justice.
4. They provide a **direct shield** against the abuse of power, ensuring that fundamental rights are not just promises on paper but **actionable guarantees**.
5. They act as a **constitutional check and balance**, forcing the executive and legislature to operate strictly within the boundaries of the law.
6. They foster a **culture of accountability and justice** by allowing the marginalized to challenge systemic inequalities through Public Interest Litigation (PIL).

Major Challenges

1. **Exponential Misuse: Eg.** Justice Nagarathna flagged the "gross misuse" of Article 32 for seeking simple court adjournments.
2. **Massive Case Pendency: Eg.** over **6 million cases** pending in HCs, with writs forming a significant chunk.
3. **Executive Non-compliance: Eg.** A **2026 report** noted a 15% rise in contempt cases against state officials for ignoring Mandamus orders.
4. **Geographical Barriers:** While Article 32 is Pan-India, traveling to Delhi is prohibitively expensive for citizens from remote southern or eastern regions.
5. **Cost of Litigation:** High legal fees for senior advocates in writ matters make these remedies inaccessible to the poor.
6. **Vigilante Intimidation: Eg.** attacks on RTI/PIL activists who filed writs against illegal mining.
7. **Over-reach Concerns: Eg.** The Law Minister in **2025** suggested that writ jurisdiction should not interfere in "complex economic policy decisions."

Major SC judgments

1. L. Chandra Kumar v. Union of India (1997) - power of judicial review under Articles 32 and 226 is part of the "Basic Structure" of the Constitution.
2. Kishore Samrite v. State of Uttar Pradesh (2013) - The SC established strict guidelines to prevent the abuse of the process of court through frivolous Article 32 petitions.
3. S.S. Ahluwalia v. Union of India - SC can award compensation under Article 32 for the violation of fundamental rights by the State.

Validity of Narco Tests

The SC recently clarified the legal boundaries of narco-tests in **Amlesh Kumar v. State of Bihar (2025)**.

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- The Supreme Court set aside a **Patna High Court** order that had permitted an involuntary narco test. It ruled that forcing an accused to undergo narco-analysis is a direct violation of their FR U/A 20, 21.
- **Key Observations:**
  - **Right to Mental Privacy:** SC expanded Article 21 to include **cognitive freedom** and **mental privacy**. It held that drugs like Sodium Pentothal interfere with a person's mental autonomy.
  - Any statement made in a drug-induced state is considered "compelled testimony," which violates **Article 20(3)** (the right against self-incrimination).
  - Consent must not only be voluntary but also **informed** and recorded before a Judicial Magistrate.
  - As per SC, while an accused can request a narco test as part of their **defence evidence** (under Section 253 of the BNS, 2023), they do not have an absolute right to demand it.

Other Judgments

- Selvi v. State of Karnataka (2010) - involuntary administration of Narco-analysis, Polygraph (Lie-detector), and Brain Electrical Activation Profile (BEAP) is unconstitutional.
- **Manoj Kumar Saini v. State of MP (2023):** Reaffirmed that narco test results are only investigative tools and cannot confirm guilt without independent corroboration.

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Chapter 6

Directive Principles Of State Policy

DIRECTIVE PRINCIPLES OF STATE POLICY

1. Discuss the possible factors that inhibit India from enacting for its citizens a uniform civil code as provided for in the Directive Principles of State Policy. (2015)

Directive Principles of State Policy are enumerated in **Part IV** of the Constitution from Articles **36** to **51.** Dr B.R. Ambedkar described these principles as 'novel features' of the Indian Constitution.

Granville Austin has described the Directive Principles and the Fundamental Rights as the **'Conscience of the Constitution'**.

It promotes the principles of **social and economic democracy** and envisages establishing a welfare state.

Directive Principles together with the Fundamental Rights contain the "philosophy of the Constitution" and are known as the "soul of the Constitution".

Reason why DPSP are non-justiciable

1. **Fiscal Constraints - Eg.** Providing a universal "Right to Work" (Article 41) would have bankrupted the state treasury in 1950.
2. **Administrative Limitations** - The state machinery was initially insufficient to manage complex social reforms like universal education or health infrastructure.
3. **Vast geographical and social diversity made uniform application of certain principles difficult and potentially socially disruptive. Eg.** "Uniform Civil Code" (Article 44)
4. **Political Sanction vs. Judicial Sanction** - Dr. Ambedkar argued that the real sanction behind DPSPs is "public opinion" and the "ballot box," not the courtroom.
5. **Flexibility for Governance** - Non-justiciability allows the government to prioritize goals based on the prevailing socio-economic climate and urgent national needs.
6. **Potential for Institutional Conflict** - Making DPSPs justiciable would have led to constant friction between the Judiciary and the Executive over policy-making priorities.
7. **Evolutionary Nature of Rights** - Many DPSP goals were intended to "mature" into Fundamental Rights as the nation progressed and resources grew. **Eg.** "Right to Education"
8. DPSPs serve as a **"Moral Code" for the state,** guiding the conscience of legislators rather than imposing rigid legal chains
9. **Preventive Legal Overload on judiciary**

Amendments in DPSP

42nd Amendment Act, 1976

1. **Article 39(f):** opportunity for children to develop in a healthy manner and protection against exploitation.
2. **Article 39A: Free Legal Aid** to the poor
3. **Article 43A:** steps to secure **Worker Participation in Management** of industries.
4. **Article 48A: protect and improve the environment** and safeguard forests & wildlife

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44th Amendment Act, 1978

1. **Article 38(2): minimize inequalities in income**, status, facilities, and opportunities

86th Amendment Act, 2002

1. **Article 45** was re-written to focus on **Early Childhood Care and Education** for all children until they complete the age of **six years.**

97th Amendment Act, 2011

1. **Article 43B:** promote the voluntary formation, autonomous functioning, democratic control, and professional management of **Cooperative Societies**.

Directives outside Part IV

1. Claims of SCs and STs to Services (**Article 335; Part XVI**)
2. Instruction in mother tongue (**Article 350-A; Part XVII**)
3. Development of Hindi Language (**Article 351; Part XVII**)

Significance of Directive Principles

1. **Welfare State:** Transitions India from a colonial "police state" to a modern, welfare-oriented democracy for all citizens. **Eg.** Schemes like **Ayushman Bharat** uphold **Article 47**.
2. **Socio-Economic Democracy:** ensures that political freedom is backed by social and financial security. **Eg. MGNREGA** fulfills the "Right to Work"(**Article 41**) and "Living Wage"(**Article 43**)
3. **Judicial Interpretative Tool: Eg.** The **Right to Digital Access** was recognized as essential for fulfilling **Article 38**'s equality mandate in **Amar Jain case**
4. **Policy Continuity:** Ensures a common minimum political manifesto that remains consistent even when governments change after elections.
5. **Legislative Roadmap:** Acts as a constitutional "to-do list" for Parliament to draft transformative laws for the marginalized. **Eg. Maternity Benefit Act** to fulfill **Article 42**.
6. **Economic Justice and Equity:** Mandates the state to prevent the concentration of wealth and ensure fair distribution of resources.
7. **International Relations Guide: Eg.** India's active role in **UN Peacekeeping** and climate pacts aligns with the mandate of **Article 51**.
8. **Environmental Stewardship: Eg.** The **Project Lion and Project Tiger** initiatives are practical implementations of the directives in **Article 48A**.
9. **Democratic Accountability:** Allows the electorate and the Opposition to evaluate a government's performance based on constitutional benchmarks.

Criticism of Directive Principles

1. **Lack of Legal Force:** Being non-justiciable, they are often dismissed as "mere pious wishes" or moral precepts without teeth. Eg. gender pay gap
2. **Illogical Arrangement:** Critics like **Ivor Jennings** noted that DPSPs are not logically classified or based on a consistent philosophy.
3. **Ambiguity and Vagueness: Eg.** "Adequate means of livelihood" (Article 39a) lacks a quantitative definition.
4. **Incompatibility with Federalism:** The Centre can issue directions to states to implement DPSPs; failure may lead to "President's Rule."
5. **Drain on Exchequer: Eg.** "Prohibition" (Article 47) as a loss of essential excise revenue.

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6. **Vulnerability to Political Populism:** Governments may use DPSPs as a shield to pass populist laws that infringe on individual liberties. Eg. UCC
7. **Judicial Overreach:** Scope for "inventing" new rights by reading DPSPs into FRs.
8. **Tyranny of the Majority:** Critics of Article 44 (Uniform Civil Code) fear it may be used to impose majority culture on minorities.

Conflict Between Fundamental Rights and Directive Principles of State Policy

1. **Champakam Dorairajan Case (1951):** The SC ruled that Fundamental Rights (FR) are superior to DPSP. If they conflict, **FR would prevail**, and DPSP must run as a "subsidiary" to them.
2. **Golaknath Case (1967):** Held that FRs are "sacrosanct" and cannot be amended by Parliament even to implement the Directive Principles.
3. **Kesavananda Bharati Case (1973):** Overruled Golaknath. It held that Parliament can amend any part of the Constitution (including FRs) to implement DPSP, provided the **Basic Structure** is not destroyed.
4. **Minerva Mills Case (1980):** A landmark ruling that established the **"Doctrine of Harmony."** The Court held that the Indian Constitution is founded on the bedrock of the balance between FRs and DPSPs. Neither has absolute supremacy over the other.
5. **Unni Krishnan Case (1993):** The SC famously bridged the gap by reading Article 45 (Education) into Article 21, demonstrating that **DPSP can be used to expand FRs**.
6. **Present Position** - Fundamental Rights enjoy supremacy over DPSP except for Articles 39 (b) and (c) which enjoy supremacy over Articles 14 and 19.

India's achievements

Economic Justice & Livelihood (Articles 38, 39, 41)

1. **MGNREGA:** Provides a legal "Right to Work" (Article 41), supporting nearly **15 crore households** annually.
2. **Financial Inclusion (PM Jan Dhan Yojana):** Brought over **55 crore citizens** into the formal banking system, preventing the "concentration of wealth" (Article 39c).
3. **PM-KISAN:** provides direct income support to **11 crore farmers** (Article 38).

Social Justice & Legal Aid (Article 39A, 46)

1. **NALSA & Lok Adalats:** fulfill **Article 39A** by providing free legal aid. In **2025**, Lok Adalats settled over **1.2 crore cases** in a single day.
2. **Scholarships for SC/ST:** In the **2025-26**, over **₹7,200 crore** was released to **61 lakh SC beneficiaries** under post-matric scholarship schemes (Article 46).
3. **EWS Reservation:** The 103rd Amendment (2019) ensures educational and economic interests of the "weaker sections" of the unreserved category.

Grassroots Democracy (Article 40)

1. **Panchayati Raj:** The **73rd and 74th Amendments**.
2. Almost all 2.5 lakh Gram Panchayats are connected via **BharatNet**, enabling local self-government through e-governance.

Public Health & Nutrition (Article 47)

1. **Ayushman Bharat (PM-JAY):** The world's largest health insurance scheme. Covers all **senior citizens aged 70+** (as of late 2025).
2. **National Food Security Act:** Provides subsidized food grains to **80 crore people**

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Education & Child Care (Article 45)

1. **Right to Education (RTE):** Article 45 was upgraded to a Fundamental Right (**Article 21A**) in 2002.
2. **Early Childhood Care:** The **PM POSHAN** (formerly Mid-Day Meal) and **Anganwadi services** now cater to over **10 crore children** and pregnant women.

Environment & Wildlife (Article 48A)

1. **Forest Cover:** India is one of the few countries where forest cover has stabilized/increased in the 21st century (approx. **24.6%** of geographical area).
2. **Project Tiger & Lion:** Success in wildlife conservation has seen tiger populations cross **3,900** by 2025-26.

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Chapter 7

Fundamental Duties

FUNDAMENTAL DUTIES

The 42nd Amendment added Fundamental Duties to the Indian Constitution (**Swaran Singh Committee recommendation**) in 1976 through Part IV-A and Article 51-A, initially listing ten duties.

Fundamental Duties emphasize the moral obligations and commitments of citizens towards society and the nation, highlighting the inseparable nature of rights and duties.

Fundamental Duties (Article 51A)

1. To abide by the **Constitution** and respect its ideals, institutions, the National Flag, and National Anthem.
2. To cherish and follow the **noble ideals** of the national struggle for freedom.
3. To uphold and protect the **sovereignty, unity, and integrity** of India.
4. To **defend the country** and render national service when called upon.
5. Promote **harmony and brotherhood** and renounce practices derogatory to dignity of women
6. To value and preserve the **composite culture** of our heritage.
7. To protect and improve the **natural environment** (forests, lakes, rivers, wildlife).
8. To develop **scientific temper**, humanism, and the spirit of inquiry.
9. To safeguard **public property** and abjure violence.
10. To strive towards **excellence** in all spheres of individual and collective activity.
11. To provide **educational opportunities** to children/wards aged 6–14 years (*Added by 86th Amendment, 2002*).

Laws Implementing Fundamental Duties

1. **Prevention of Insults to National Honour Act (1971):** Prevents disrespect to the Flag, Constitution, and Anthem.
2. **Protection of Civil Rights Act (1955):** Implements the duty to promote brotherhood and equality.
3. **Wildlife Protection Act (1972) & Forest Conservation Act (1980):** Enforce the duty to protect the natural environment.
4. **Unlawful Activities (Prevention) Act (1967):** Related to the duty to uphold sovereignty and integrity.
5. **Right to Education Act (2009):** Gives statutory effect to the 11th duty regarding child education.

Significance of Fundamental Duties

1. **Constitutional Reminder:** Acts as a constant reminder that citizens must perform duties while enjoying their rights.
2. **Warning Against Anti-Socials:** Serves as a warning against activities like burning the Flag or destroying public property.
3. **Judicial Interpretation Tool:** Courts use duties to determine the "reasonableness" of restrictions on fundamental rights.
4. **Promoting Patriotism:** Inculcates a sense of discipline and commitment toward the nation's progress and unity.

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5. **Environmental Stewardship:** Empowers citizens and the state to take legal action against polluters and ecological damage.
6. **Fostering Scientific Temper:** Encourages a rational and logical mindset to combat superstition and social dogmas.
7. **Global Alignment:** Aligns the Indian Constitution with **Article 29(1)** of the Universal Declaration of Human Rights.

Criticism of Fundamental Duties

1. **Non-Justiciable:** without direct judicial enforcement, they remain mere codes of conduct
2. **Vague Terminology:** Terms like "composite culture" and "scientific temper" are subjective and difficult for commoners to understand.
3. **Incomplete List:** Major duties like "paying taxes" or "voting" were excluded despite Swaran Singh Committee recommendations.
4. **Placement in Constitution:** Placed in Part IV-A (after DPSP) instead of Part III, reducing their perceived importance.
5. **Potential for State Misuse:** Governments may use "Duty toward the State" to suppress legitimate dissent or free speech.
6. **Historical Baggage:** Their introduction during the **Internal Emergency (1976)** leads to associations with authoritarian state control.
7. **Lack of Awareness:** Despite 50 years, a majority of the population is unaware of the specific 11 duties.

Important Judgments

Case Name	Summary of Judgment
Chandra Bhavan Boarding v State of Mysore 1969	Upheld minimum wage legislation, emphasizing the balance of rights and duties.
Balaji Raghavan v Union of India 1995	Upheld the constitutionality of National Awards, linking them to the duty of striving toward excellence. (**Article 51A(j)**)
Javed v State of Haryana 2003	Supported a law limiting the number of children one can have for eligibility in local elections.

Enforceability of Fundamental Duties

Arguments in Favor (Pro-Enforceability)

1. **Deterrence Against Vandalism:** Making safeguarding public property enforceable would provide a direct legal basis to recover damages from rioters and vandals.
2. **Balancing Rights and Responsibility:** It prevents the "Rights-Only" culture. If citizens benefit from state-provided rights, they must be legally accountable for their civic contributions.
3. **National Integration:** Legally mandating respect for national symbols and the promotion of brotherhood could act as a check on rising communal and divisive tendencies.
4. **Effective Policy Implementation:** It would provide the State with a stronger constitutional shield when passing laws that restrict certain freedoms for the sake of "public duty."

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Arguments Against (Anti-Enforceability)

1. **State Tyranny and Surveillance:** Enforceability could be misused by the government to suppress dissent or label any criticism of the state as a violation of "Duty toward the nation."
2. **Vagueness of Language:** Terms like "scientific temper" or "noble ideals" are too subjective. Legal enforceability can lead to "Judicial Overreach"..
3. **Burden on the Judiciary:** As of **2026**, Indian courts already face a backlog of 50 million cases. Enforceable duties would trigger a massive wave of "frivolous" litigation between citizens.
4. **Violation of Liberty:** Forced "excellence" or "patriotism" contradicts the essence of a liberal democracy.
5. **Redundancy:** Most critical duties (protecting sovereignty, environment, public property) are **already covered** by specific laws like the IPC/BNS, Forest Act, and UAPA.

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Chapter 8

Federalism

PYQs

[2026] Discuss the position of the Governor in the federal polity of India. What is the nature of his power while giving assent to a bill passed by the State Legislature? Is he bound by the aid and advice of his Council of Ministers in all his functions? (15)

[2026] How far has the Indian federal framework been successful in accommodating regional and cultural diversities? Highlight the role of asymmetric federalism and suggest measures to make dispute resolution mechanisms more effective. (15)

[2025] Discuss the nature of Jammu and Kashmir Legislative Assembly after the Jammu and Kashmir Reorganization Act, 2019. Briefly describe the powers and functions of the Assembly of the Union Territory of Jammu and Kashmir. (10)

[2025] Examine the evolving pattern of Centre-State financial relations in the context of planned development in India. How far have the recent reforms impacted the fiscal federalism in India? (15)

[2024] What changes has the Union Government recently introduced in the domain of Centre-Stare relations? Suggest measures to be adopted to build the trust between the Centre and the States and for strengthening federalism. (15)

[2023] Explain the significance of the 101st Constitutional Amendment Act. To what extent does it reflect the accommodative spirit of federalism? 15

[2021] The jurisdiction of the Central Bureau of Investigation(CBI) regarding lodging an FIR and conducting probe within a particular state is being questioned by various States. However, the power of States to withhold consent to the CBI is not absolute. Explain with special reference to the federal character of India. (15)

[2021] How have the recommendations of the 14th Finance Commission of India enabled the states to improve their fiscal position? (10)

[2020] How far do you think cooperation, competition and confrontation have shaped the nature of federation in India? Cite some recent examples to validate your answer (10)

[2020] Indian constitution exhibits centralising tendencies to maintain unity and integrity of the nation. Elucidate in the perspective of the Epidemic Diseases Act, 1897; The Disaster Management Act, 2005 and recently passed Farm Acts. (15)

[2019] From the resolution of contentious issues regarding distribution of legislative powers by the courts, 'Principle of Federal Supremacy' and 'Harmonious Construction' have emerged. Explain. (10)

[2018] Whether the Supreme Court Judgment (July 2018) can settle the political tussle between the Lt. Governor and elected government of Delhi? Examine. (15)

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Federalism

"Indian Union is a unitary state with subsidiary federal features rather than a federal state with subsidiary unitary features." - **K.C. Wheare.**

"India is a Union of States, not a federation of states... the Union is indestructible, though the states are not." - **B.R. Ambedkar**

"Centre and States are co-equal in their respective fields, bound together by a spirit of cooperation." - SC in **Rameshwar Prasad v. Union of India (2006)**

"Indian federalism is highly centralized, designed more to maintain unity than to promote autonomy." - **Paul Brass**

Federalism is a system of governance where power is distributed between a central authority and regional entities like states or provinces.

Scholarly Views on Indian Federalism

- **K.C. Wheare** - Described Indian federalism as **"quasi-federal"**, meaning a federation with a strong centralizing tendency.
- **Granville Austin** - a **"cooperative federalism" model**, where Centre and States are bound in a "seamless web" to achieve socio-economic revolution.
- **Ivor Jennings** - Stated that India is **"a federation with a strong centralising tendency"**, highlighting the dominant role of the Union.
- **D.D. Basu** - Termed Indian federalism as a **"sui generis model"** (unique in itself), combining both federal and unitary features.
- **Rajeev Bhargava** - Saw Indian federalism as **"multi-layered federalism"**, evolving towards cooperative and competitive models under economic liberalisation.
- **Arend Lijphart** - Argued that Indian federalism is an example of **"consociational democracy"**, managing pluralism through power-sharing.
- **R. Kothari** - Viewed Indian federalism as **"centripetal federalism"**, ensuring stability through a strong Centre while granting States participatory space.

Key Features of Federalism

1. **Division of Powers** - Powers divided through the **Union List, State List, and Concurrent List** (Seventh Schedule).
2. **Dual Polity** - Division of governance between the **Union and States**, each with its own government.
3. **Written Constitution** - Provides clarity and certainty in the **division of powers**.
4. **Supremacy of the Constitution** - Both Centre and States are bound by the **Constitution as the supreme law**.
5. **Rigid Constitution** - Certain provisions can only be amended by **special procedure**, requiring consent of States.
6. **Independent Judiciary** - The **Supreme Court** acts as guardian and interpreter of the Constitution to resolve Centre-State disputes.
7. **Bicameralism at Centre** - **Rajya Sabha** represents States in the Union legislature.
8. **Financial Autonomy** - Distribution of financial resources and functions through **Finance Commission** and constitutional provisions.

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9. **Authority of States in Normal Times** - States have autonomy in matters under the **State List**, subject to constitutional limits.
10. **Unity with Diversity** - Indian federalism accommodates **linguistic, cultural, and regional diversities** while maintaining national unity. Eg. Article 371

Unitary Features of the Indian Constitution

1. **States are Not Indestructible** (Article 3) - The **Parliament has the authority** to **create, merge, or alter** state boundaries and names without requiring state consent.
2. **Emergency Provisions** -
   a. **National Emergency** (Article 352) - The **President** can assume **extraordinary powers** in case of war, external aggression, or armed rebellion.
   b. **President's Rule** (Article 356) - If a state government fails to function per constitutional provisions, the **President can assume direct control**, making the federal structure temporarily unitary.
3. **Strong Union Legislature** -
   a. **Residuary Powers** (**Article 248**) - Parliament holds **exclusive authority** over subjects not listed in the **Union, State, or Concurrent lists**.
   b. **State List Override** (**Article 249**) - The **Rajya Sabha can authorize Parliament** to legislate on a **State List** subject in the national interest.
4. **Law Supremacy** (**Article 254**) - In case of a conflict between **state and central laws** on a Concurrent List subject, the **central law prevails**.
5. **Strong Union Executive** (**Article 256**) - State governments **must comply** with laws made by Parliament, and the **Union can direct state executives** to enforce them.
6. **Single Citizenship** - Unlike other federations, India provides for **only one citizenship**, ensuring **uniform rights and duties** for all citizens across states.
7. **All-India Services** - The **IAS, IPS, and IFS** are centrally controlled services that operate in states, strengthening the **Union's role in state administration**.
8. **Integrated Judiciary** - India follows a **single judicial system** with the **Supreme Court at the apex**, ensuring **uniform interpretation of laws** across the country.

Significance of Federalism - PIES Framework

Political Significance

1. **Unity in Diversity** - Eg. Reorganisation of states on linguistic lines (1956).
2. **Checks and Balances** - Prevents **excessive centralisation**. Eg. 7th schedule
3. **Adaptability to Regional Aspirations**: Eg. The formation of **Telangana** in 2014 to accommodate regional demands for administrative efficiency and cultural identity.

Institutional Significance

1. **Conflict Resolution** - Constitutional mechanisms like **Inter-State Council** and **Supreme Court adjudication**.
2. **Rajya Sabha Role** - Provides States a **voice in national policymaking**.
3. **Cooperative Federalism** - Institutions like the **GST Council** ensure joint decision-making.

Economic Significance

1. **Balanced Development** - Allows States to pursue **region-specific growth strategies**. Eg. Gujarat investor's summit
2. **Fiscal Federalism** - Finance Commission ensures **equitable resource devolution** (Eg. 16th FC kept states' share to 41%).
3. **Policy Innovation** - States act as **laboratories of democracy**; Eg. Midday Meal Scheme in Tamil Nadu later scaled nationally.

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Social Significance

1. **Inclusive Governance** - Enhances **representation of diverse communities** at local, state, and national levels.
2. **Social Justice** - Enables States to frame **affirmative action policies** based on local needs. Eg. Tamil Nadu's 69% reservation model.
3. **Cultural and Linguistic Preservation**: Eg. **Tamil Nadu** enforcing 2 language formula
4. **National Integration** - Balances **regional identity with national citizenship**, strengthening unity.

Asymmetric Federalism

Asymmetric federalism refers to an **unequal distribution of powers and relationships** in the **political, administrative, and fiscal** spheres among federal units within a federation.

According to **Riker (1975)**, federalism is an outcome of rational bargain among various constituents.

Key Aspects:

1. **Dual Asymmetry** - It exists in both **vertical (Centre vs. States)** and **horizontal (among States/UTs)** dimensions.
2. **Self-Rule & Shared Rule** - India follows a **"salad bowl" approach**, recognizing **distinct cultural identities** and permitting **self-governance within a unified structure**.
3. **Founding Vision** allows for **regional autonomy** while ensuring a **strong central authority** when needed.

Vertical Asymmetry (Between Centre and States)

1. **Article 3** -Parliament can **alter state boundaries and names**, without state consent
2. **Single Citizenship** - Unlike US, India has **only one citizenship** for uniform national identity
3. **Articles 352 & 356** empower the **Centre to take direct control** of states during Emergency.
4. **Article 248** - **Residuary legislative powers** rest solely with the **Parliament**.
5. **Governor Appointment** - appointed by the President & serves as the **Centre's representative**
6. **7th Schedule** - On subjects in the Concurrent List, Parliament laws override state laws.
7. **All India Services**: ultimate control lies with the centre.

Horizontal Asymmetry (Among States/UTs)

1. **Articles 371A-371J** - Provide **special provisions** and **autonomy** to certain states.
2. **Schedule 5 & 6** - **self-governance** in tribal regions.
3. **Article 370 (Revoked in 2019)** - **special status to J&K** with substantial **autonomy**
4. **Unequal representation in the Rajya Sabha:** The allocation of seats based on population.

Fiscal Asymmetry

1. **Centre controls buoyant tax sources** (income tax, corporate tax, GST share). **States bear higher expenditure responsibilities** (health, education, welfare, agriculture).
2. **Horizontal Devolution** - criteria of **income disparity, demographic trends, and ecological performance**.
3. **Article 293**: States' borrowing is subject to **Centre's consent**.
4. **CSS** - Central share of **90% for Special Category States** (**60% for others**)
5. **Special Category Status** - Granted by the **National Development Council (NDC)** to states with **hilly terrain, low population density, or economic backwardness**.

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Need and Significance

1. Political Significance
   a. **Rekha Saxena** describes Indian Asymmetric Federalism as '**Self-rule within shared rule**'
   b. **National Integration** - **tailored autonomy** for preventing **alienation** and **separatism**. **Eg. Article 371F** for **Sikkim's accession (1975)**.
   c. **Conflict Resolution** - **Eg. Mizoram Accord (1986)** under **Sixth Schedule**.
2. Institutional Significance
   a. **Decentralised Governance** Eg. **Autonomous District Councils** under **Sixth Schedule**
   b. **Democratic Representation** - Eg. **Bodoland Territorial Council (BTC, 2020)** for STs.
3. Economic Significance
   a. **Bridging Regional Imbalances** - **Eg. N-E states** get **90:10 funding ratio** under CSS.
   b. **Equity in resource distribution** - **Hill states like Himachal, UK** get higher devolution.
4. Social Significance
   a. **Cultural Autonomy** - **Eg. Nagaland's customary laws** protected under **Article 371A**
   b. **Inclusivity & Harmony** - Prevents **majority domination** and fosters **trust**.
   c. **Unity in Diversity** - Builds **confidence in communities** within a national framework. **Eg. Goa retained Portuguese Civil Code** post-integration.

Issues

1. Political
   a. Asymmetric provisions have weakened due to **legislative manoeuvres** and **judicial reinterpretations**, causing a **centralising drift**. **Eg. Abrogation of Article 370**
   b. **Politicisation of Asymmetry** -**Eg.** Demand for special category status by **Bihar**
   c. **Threat to National Unity** - Excessive asymmetry encourages **identity politics** and **secessionist tendencies**. **Eg. Demands for greater autonomy in Manipur hills**
   d. **Representation Imbalances** - **Delimitation** reducing **clout of southern states**
2. Institutional
   a. **Complexity in Governance** - **Eg. Erstwhile J&K had separate civil and criminal procedure, no reservations for SC/STs**
   b. **Administrative Complexity** causes **bureaucratic delays** and weak coordination. **Eg. Delays in fund utilisation in tribal councils**
   c. **Ambiguities in Provisions** - Lack of **clarity in constitutional provisions** leads to **legal disputes**. **Eg. Article 370 case in Supreme Court**
3. Economic
   a. **Uneven Development** - Fiscal and institutional **asymmetries** deepen **regional inequalities**. **Eg. NE states dependent on central grants**
4. Social
   a. **Ethnic Tensions** - Autonomous regions face **internal conflicts** between different **ethnic groups**.
   b. **Social Integration Challenges** - Special statuses may **foster regionalism** instead of integration. **Eg. Gorkhaland demand in West Bengal**

Way Forward

1. As recommended by the **Sarkaria Commission (1983)** and **NCRWC (2000)**, the ISC should be made an independent body under **Article 263** to resolve Centre-state disputes.
2. Establishing **clear guidelines for Special Category Status (SCS)**.

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3. Revise the **Finance Commission's** allocation formula by rewarding states on performance indicators (literacy, HDI) rather than just population. (**Punchhi Commission**)
4. **Clearly define the Governor's role** in states with special provisions to **reduce conflicts between state and central authorities.**
5. As proposed in **NITI Aayog**, states should have **negotiated flexibility** in implementing national laws (Eg. **agriculture reforms**)

Global Best Practices

- **Canada** - Provinces like Quebec enjoy **linguistic autonomy** within a strong federal structure.
- **Spain** - Recognises "**autonomous communities**" with asymmetry but ensures uniform fiscal oversight.

Cooperative Federalism

Cooperative federalism refers to a governance model where **national, state, and local governments** work collectively to address **common challenges** through collaboration and shared responsibilities.

The **SC**, in **State of Rajasthan v. Union of India (1977)**, affirmed that India's federalism is **predominantly cooperative**, requiring **mutual interaction between Centre and States**.

Mechanisms for cooperative federalism

Category	Feature
Legislative	**Concurrent List** allows both central and state govts to legislate on shared subjects. **Article 54**:In the **election of the President**, members of State Legislative Assemblies are part of the **Electoral College**. **Article 80**:Provides for the composition of the **Council of States (Rajya Sabha)**, which represents the states in the **Union's legislative process**.
Executive	Mutual delegation of functions, immunity of instrumentalities, All India Services. **Centrally Sponsored Schemes** - Shared funding and execution. Eg. PMAY **Environmental Governance** - Eg. SAPCCs under NAPCC. **Disaster Management:** NDMA collaborates with SDMAs to prepare, respond, and recover from such events.
Fiscal	**Finance Commission** recommends financial resource distribution; **GST Council** ensures uniform tax structure and dispute resolution.

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Category	Feature
Institutional	Inter-State Council, Zonal Councils, NITI Aayog, and MoUs between centre and states on project basis foster collaboration and coordination between central and state governments.

Issues

1. Political
   a. **Politicization of office of Governor** - Eg. Delays in assent to bills in Tamil Nadu, Kerala
   b. **Bargaining federalism (Morris Jones)** - Different ruling parties at Centre & States fuel confrontation. Eg. West Bengal boycotting NITI Aayog meetings.
   c. **Policy Imposition** - Eg. Three language formula under NEP,2020.
   d. **Centralized Decision-Making** - **Eg.** COVID-19 guidelines under Disaster Management Act, 2005.
2. Legal-Institutional
   a. **Overlapping Jurisdictions** - Conflict over Concurrent List subjects. Eg. Farm Laws (2020) challenged by states.
   b. **NITI Aayog's Limited Power** - Advisory nature weakens cooperative policy-making.
   c. **Emergency Provisions Misuse** - Article 356 is sometimes used for political gains, **undermining state autonomy**.
   d. **Officer Transfers & Postings** - Disputes over cadre officer deputations. **Eg. West Bengal IPS officer recall issue.**
   e. **Misuse of Central Agencies** - **Eg. CBI consent revoked by opposition-led states**.
   f. **Lack of Institutions for Federal Communication** - **Inter-State Council** remains ineffective as it has **no binding authority**.
3. Financial
   a. **GST Council Disputes** - States allege loss of fiscal autonomy & delayed compensation.
   b. **Centralisation via Finance** - Cuts in central funding for schemes burden states. Eg. Recent MGNREGA changes
   c. **Delayed Fiscal Transfers** - Eg. GST compensation cess delays (2019-22).

State	Issues
Tamil Nadu	• Withholding of central funds under the Samagra Shiksha scheme due to the state's rejection of the PM SHRI scheme and the National Education Policy (NEP) 2020.
West Bengal	• BSF increased jurisdiction
Punjab	• Conflict over farm laws implementation. • BSF jurisdiction increased from 15 to 50 Km
Kerala	• Kerala government's attempt to remove the Governor as Chancellor of state universities. • Kerala approached the **Supreme Court** over restrictions on borrowing limits imposed by the Centre

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State	Issues
Karnataka	• Hindi Imposition Concerns • GST compensation dues issue
Southern States in General	• Concern over Delimitation • Finance Commission devolution alleged to be discriminatory • Proposed One Nation One Election

Competitive Federalism

Competitive federalism refers to the **healthy competition** among different levels of government within a **federal system** to enhance **efficiency, governance, and resource attraction**.

Steps Taken Towards Competitive Federalism

1. Monthly rankings of **112 Aspirational Districts** create **"fame and shame"** pressure on district collectors to improve social indicators.
2. Ease of Doing Business (EoDB) Rankings - DPIIT ranks states based on their implementation of the Business Reform Action Plan (BRAP).
3. **Fiscal incentives** - **16th FC** has linked a portion of central grants to state performance in areas like fiscal discipline, forest conservation, and implementation of power sector reforms.
4. **Sectoral Performance Indices**
   a. **Sustainable Development Goals (SDG) India Index:** Ranks states on 16 goals, pushing them to achieve universal targets like poverty reduction and clean energy.
   b. **India Innovation Index:** Measures the innovation ecosystem across states, encouraging a "knowledge economy."
   c. **Export Preparedness Index (EPI):** Identifies the export potential and performance of states, pushing landlocked and coastal states to build better logistics.
   d. **State Health Index:** Compares health outcomes, driving states like Uttar Pradesh and Bihar to bridge gaps with leaders like Kerala.
   e. **Composite Water Management Index** - Measuring progress on **water resource management**.
5. **Reforms in Labor Laws and Land Acquisition** - States have reformed **labor laws** and **land acquisition processes** to attract **investment**
6. **PM Gati Shakti:** States compete to align their industrial corridors and logistic parks with the national master plan to receive central funding and attract multinational manufacturing hubs
7. **Competitive Social Welfare Models - Eg. "Delhi Education Model"** & **"Odisha 5T Transformation"** has forced other states to rethink school infrastructure and digital governance to stay politically and economically competitive.

Significance of Competitive Federalism

1. **Investment Attraction: Eg.** labor reforms and land subsidies to attract subsidies
2. **Efficiency in Service Delivery:** Public rankings create reputational pressure on governments to improve basic services. **Eg. Jal Jeevan Mission** dashboard.
3. **Innovation in Public Policy:** States act as "policy laboratories," testing unique welfare models that are later scaled nationally. **Eg.** Odisha's **5T school transformation model** (2025)

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4. **Aspirational Motivation:** Creates a "race to the top" among backward districts, moving them toward national development averages
5. **Global Competitiveness:** Helps India climb global indices like the **Global Innovation Index** by improving sub-national performance.
6. **Fiscal Discipline:** Performance-linked grants from the **16th Finance Commission** incentivize states to maintain low fiscal deficits.
7. **Accountability to Citizens:** Regular ranking releases allow voters to compare their state's progress with neighbors, increasing political accountability.

Challenges in Competitive Federalism

1. **Regional Inequality:** Resource-rich southern and western states attract more FDI than "BIMARU" states. **Eg.** five states account for nearly **70% of India's total FDI equity inflows**.
2. **North-South Divide** over the distribution of central taxes and political representation. **Eg.** southern state's protest against population-based criteria under 16th FC.
3. **Race to the Bottom:** States may aggressively cut corporate taxes or dilute labor protections to underbid their neighbors.
4. **Inter-State Trust Deficit:** High-intensity competition for projects (like semiconductor fabs) can sour cooperative relations between neighboring states.
5. **One-Size-Fits-All Indices:** Rankings often use uniform parameters that ignore the unique geographical or historical constraints of hill/tribal states.
6. **Data Manipulation Risks:** High pressure to rank well can lead states to report "window-dressed" data to central agencies.
7. **Limited Revenue Autonomy:** Post-GST, states have limited tax-raising powers, making it hard to fund the infrastructure needed to compete.
8. **Political Bias Allegations:** Opposition-ruled states often allege that central rankings and fund allocations are politically motivated or biased.

Competitive Sub Federalism

Aspect	Description
Definition	A system where **cities compete with each other** and with states to improve governance, attract investments, and enhance service delivery,
Approach	**Bottom-up approach**, where development initiatives originate from cities, ensuring **localized and inclusive growth**.
Key Objective	Promote **healthy competition among cities and states**, ensuring overall national development while reducing **regional disparities**.
Significance	• Moves away from **one-size-fits-all** policies, enabling **tailored strategies** for each state and city. • **Ensures inclusive growth** by reducing inter-state and intra-state inequalities. • Strengthens **local governance** by empowering cities with responsibilities and resources. • Encourages **best practices exchange** across states and cities. • Provides **greater autonomy to local bodies** in governance, allowing cities to design policies **based on their unique needs**

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Aspect	Description
	• Competition fosters **economic efficiency**, attracting **more investment** and streamlining administrative processes
Examples	**Smart Cities Mission**: Encourages cities to compete on urban development. **Swachh Bharat Rankings**: Cities compete in sanitation performance. **Ease of Living Index**: Ranks cities based on quality of life indicators.

Fiscal Federalism

It entails the **division of responsibilities and resources** between the central and state governments, with the **Finance Commission** playing a key role in recommending tax proceeds distribution.

Constitutional Provisions

Seventh Schedule (Article 246)

1. **Union List:** Income Tax, Customs, and Excise on tobacco/petroleum
2. **State List:** Land Revenue, Agricultural Income Tax, Excise on alcoholic liquors, and Professional Tax.
3. **Concurrent List:** After the **101st Amendment (2016)**, both Centre and States have concurrent powers to levy **Goods and Services Tax (GST)** under **Article 246A**.

Revenue Sharing Mechanisms

1. **Article 268:** Duties levied by the Union but **collected and appropriated by the States** (Eg. Stamp duties).
2. **Article 269:** Taxes levied and collected by the Union but **assigned to the States** (Eg. tax on inter-state trade).
3. **Article 269A:** Specifically governs the **levy and collection of IGST** (Integrated GST) on inter-state trade, which is shared between the Union and States.
4. **Article 270:** The "Divisible Pool." Most taxes levied by the Union are distributed between the Union and States based on Finance Commission recommendations.
5. **Article 271:** Power of the Union to levy **surcharges and cesses** for its own purposes. Notably, these are **not shared** with the States.

Institutional Framework

1. **Article 280 (FC):** A quasi-judicial body constituted by the President every five years to recommend the vertical and horizontal distribution of net tax proceeds.
2. **Article 279A (GST Council)** highest decision-making body for GST rates, exemptions, and thresholds.

Grants-in-Aid

1. **Article 275 (Statutory Grants):** Mandatory grants paid out of the Consolidated Fund of India to States in need
2. **Article 282 (Discretionary Grants):** Allows Union and States to make grants for any **"public purpose,"** even if the subject is not within their respective legislative lists

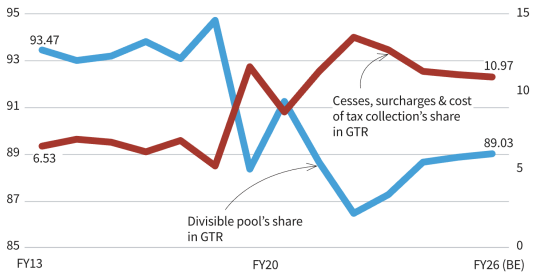
Borrowing Powers

1. **Article 292:** Governs the borrowing powers of the Central Government.
2. **Article 293:** Governs the borrowing powers of the State Governments. State **must obtain the Centre's consent** to raise a new loan if it has any outstanding liabilities to the Union.

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Changes in the last few years

1. **Introduction of Goods and Services Tax (GST)** - Replaced multiple **indirect taxes** with a **unified tax system**, creating a **single national tax structure**.
2. **14th Finance Commission** - Increased the **state's share in central taxes** from **32% to 42%**, enhancing fiscal autonomy.
3. **16th Finance Commission** - Recommended **41% devolution of central taxes** to states.



4. **Special Category Status** - Provided **special financial assistance** to select states based on criteria such as **hilly terrain, low population density, and economic backwardness**.
5. **Restructuring of Centrally Sponsored Schemes (CSS)** - Reduced the **number of schemes** and **increased flexibility**
6. **End of GST Compensation:** The five-year guaranteed revenue growth of 14% ended, forcing states to rely on their own tax efficiency.
7. **Capital Expenditure Loans:** The Centre significantly increased 50-year interest-free loans to states to boost infrastructure spending. Eg. **2026-27 Union Budget** allocated **₹1.85 lakh crore**
8. **Investment Friendliness Index:** A new ranking system was launched in **2025** to benchmark states on their business-friendly fiscal policies.
9. **Discontinuation of Revenue Deficit Grants:** Fiscally stressed states must now achieve **FRBM targets** without the "post-devolution revenue deficit" cushion.
10. **Direct-to-Local Transfers:** Increasing central funds are now bypassing state treasuries to reach Panchayats and Municipalities directly.
11. **GST Rate Rationalization: Eg.** Most items in the 12% and 18% brackets were merged into a new **15% standard rate**.
12. **Digital Fiscal Transparency:** States are now mandated to use the **PFMS (Public Financial Management System)** for all central schemes.

16th Finance Commission

Vertical Devolution (Union to States)

- **Status Quo at 41%** while state demanded 50%
- **Divisible Pool Transparency:** It mandated that the Union disclose CAG-certified data on "net tax proceeds" (Article 279) to ensure transparency regarding cesses and surcharges.
- The Commission proposed merging cesses into the divisible pool in exchange for a slightly lower percentage share, the Union has yet to fully implement this.

Horizontal Devolution

- **Shift from "Equity" to "Efficiency":** Introduced a **10% weight for GDP contribution** and reduced the weight of "Income Distance." It favors industrialized and high-growth states.

Other

- The Commission enforced a hard cap on **State Fiscal Deficits at 3% of GSDP**.
- It also mandated the end of **off-budget borrowings**, forcing states to bring all "hidden" liabilities onto their main budgets
- The discontinuation of **Revenue Deficit Grants** can hit Northeastern and Hill states the hardest.

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Issues

1. **North-South Equity Gap:** Southern states feel "penalized" for successful population control under the 2011 Census-based devolution formulas.
2. Uttar Pradesh receives more than the combined share of the five southern states - Karnataka, Tamil Nadu, Telangana, Andhra Pradesh, and Kerala.
3. **Rise of Non-Devolvable Cesses** - Centre's non-shareable revenue grew from **12.8% (2015-20)** to **18.5% (2020-24)**.
4. **Vertical Imbalance - States' effective share shrank** from **35% (2015-20)** to **~31% (2020-24)** of Centre's gross tax revenue.
5. **Increase in Conditional Transfers** - Grants are linked to **Union-defined conditions**, limiting state **policy flexibility**. Eg. Jal Jeevan mission grants based on target coverage
6. **Borrowing Restrictions** - Centre enforces a **3% SDP borrowing cap**, limiting states' fiscal flexibility
7. **Centrally Sponsored Scheme (CSS) Burden:** States must provide **40% matching funds** for schemes designed entirely by the Central Government.
8. **Erosion of Tax Autonomy:** Post-GST, states have lost the power to vary tax rates on most goods to address local emergencies.
9. **Discretionary Grant Delays:** Central grants under **Article 282** are often seen as politically motivated or delayed for opposition-ruled states.
10. **Inter-State Council Inactivity:** The lack of regular meetings of the **Inter-State Council (Article 263)** prevents resolution of fiscal disputes through dialogue.

Scholar Views

- **Upendra Baxi** - Warned against **"executive federalism"**, where Centre dictates state policy through fiscal and administrative tools rather than genuine consultation.
- **Nidhi Sharma** (**"Quasi-federal constitution?)** - posits that India's avoidance of explicit "federal" vocabulary (preferring "Union of States") has allowed the Union and judiciary to **reinforce centralization** over time.
- **Louis Tillin** in **"An Incomplete Bargain" (Asian Survey, 2025)** - argues that state reorganizations have paradoxically reinforced central dominance while masking persistent federal tensions.

Major SC Judgments on Federalism

- **State of WB v. UoI (1963):** first case to define India's federal character, ruling that the Constitution is not "truly federal" but has a strong central bias for national integrity.
- **S.R. Bommai v. Union of India (1994):** it declared federalism a **"Basic Structure"** of the Constitution and made the dismissal of state governments (Article 356) justiciable.
- **Kuldip Nayar (2006):** Upheld the removal of the "domicile requirement" for RS members, confirming that India maintains a "unitary spirit" in legislative representation
- **Madras Bar Association:** Union cannot bypass the "federal balance" by creating parallel judicial bodies that strip High Courts of their powers.
- **NCT of Delhi:** In a federal democracy, the elected government (Delhi) must have control over "services," emphasizing that "real" power must lie with the people's representatives.
- **State of Punjab v. Governor:** Critiqued Governors sitting on state bills indefinitely, ruling that the Governor cannot "thwart the normal course of lawmaking" in a federal setup.

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Way Forward for federalism

1. **Sarkaria & Punchhi Commissions:**
   a. **Governors** should be eminent persons from outside the state, not active politicians from the ruling central party.
   b. Implement a **fixed 5-year tenure for Governors**, with removal only through a process similar to **impeachment** rather than "at the pleasure of the President."
2. **Inter-State Council (Article 263) Reforms:**
   a. **Mandatory Meetings** at least three times a year (as recommended by **NCRWC**).
   b. **Pre-Legislative Consultation** with states through the Council before introducing any bill in Parliament concerning "Concurrent List" subjects.
3. **Strengthen the role of Rajya Sabha** similar to **German Bundesrat**, where state governments have a direct and weighted vote on federal laws affecting regional administration.
4. **Move residuary powers** of legislation from the Union List to the **Concurrent List** to give states more flexibility in emerging areas like AI and Digital Governance.
5. **Asymmetric Delimitation:** use a "weighted formula" that rewards states for social milestones like health and education, instead of relying solely on population
6. **Fiscal Federalism Roadmap**
   a. **Cess and Surcharge Reform:** cap at **10% of Gross Tax Revenue** to ensure the "divisible pool" for states is not artificially shrunk.
   b. **Flexible CSS:** Allow states to customize **25–30%** of the parameters of Centrally Sponsored Schemes (CSS) to suit local geographical and ecological needs

Office of Governor

"The Governor is a constitutional head and the custodian of the Constitution within the state." - **Ambedkar**

"He serves as a bridge, ensuring that the dual system of governance works in harmony within the constitutional framework." - **S. Radhakrishnan**

Powers and Functions of the Governor

The Governor's role is similar to the **President of India**, but without **diplomatic, military, or emergency powers**.

Executive Powers

1. Appoints the **Chief Minister(Article 164), Ministers, Advocate General(Article 165), State Election Commissioner(Article 243K), and Public Service Commission members(Article 316)**.
2. Oversees **state executive actions** and serves as **Chancellor of state universities**.
3. Can **recommend President's Rule(Article 356)** and act as the **Centre's representative during emergencies**.

Legislative Powers

1. **Summons, prorogues, and addresses the legislature(Article 174)**.
2. **Appoints presiding officers and nominated members(Article 171)**.
3. Can **exercise veto** over bills by **assenting, withholding, returning, or reserving them for the President(Article 200)**.

Financial Powers

1. Supervises the **state budget and approves money bills(Article 199)**.
2. Can **make advances from the Contingency Fund(Article 267)**.

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3. Establishes a **State Finance Commission every five years(Article 243I)** to assess **panchayats and municipalities' financial health**.

Judicial Powers

1. Grants **pardons, reprieves, and commutations (Article 161)** for state offenses.
2. Consulted on **state high court judge appointments(Article 217)**.
3. Oversees **appointments, postings, and promotions of district and judicial officers(Article 233 and 234)** in consultation with the **High Court and State Public Service Commission**.

Case Studies

- **Tamil Nadu**: SC expressed **serious concern** over Governor's decision to withhold assent to **10 Bills** passed by the state legislature, some pending since 2020. **Three days later**, all 10 Bills were returned for reconsideration, but no reasons were provided for the decision.
- **Kerala**: Governor refused to sign an **ordinance to transfer the powers of Chancellor of state universities from the Governor to the Chief Minister**.

Issues pertaining to the office of governor

1. **Appointment retired politicians,former Bureaucrats and party loyalists**, using the post as a **political reward**.
2. **Acting as Centre's Agent** - Governors **promote ruling party interests**. Often seen as a **retirement package for politicians**.
3. **Indefinite Delay of Bills:** Governors frequently use "pocket vetoes" to stall state legislation. Eg. Tamil Nadu NEET Bill controversy
4. **Misuse of Discretionary Powers:** Discretion in government formation during hung assemblies often favors the party ruling at the Centre. Eg. 2019 Maharashtra case
5. Governors are **removed when central governments change**, as there is **no impeachment provision**. **Eg. in 1989, the V.P Singh government asked all Governors to resign**.
6. **Article 356 Misuse** - Governors **recommend President's Rule prematurely**, often targeting opposition states.
7. **Politicization of Public Addresses: Eg. 2025 Kerala Assembly session** saw a constitutional standoff when the Governor skipped key policy paragraphs.

SC on the position of Governor

1. **Shamsher Singh vs. State of Punjab (1974)** - Governor must act **on the advice of the Council of Ministers**, except where the Constitution states otherwise.
2. **S.R. Bommai vs. Union of India (1994)** - President's Rule is **subject to judicial review**, and **CM must be allowed a floor test**.
3. **Rameshwar Prasad vs. UoI (2006) - Governor's actions are open to judicial review**. **Article 361(1) does not grant immunity in cases of mala fide or unconstitutional acts**.
4. **B.P. Singhal vs. Union of India (2010) - President cannot remove Governors arbitrarily**; change in central government is **not a valid reason for dismissal**.
5. **Nabam Rebia (2016) - Governor must follow the Council of Ministers' advice**; cannot **disqualify the Speaker or summon Assembly unilaterally**.
6. State of TN v. Governor of TN - Introduced the **"Deemed Assent"** doctrine (invoking Article 142). It established that once a bill is "re-passed" by the Assembly, the Governor **must** sign it.
7. **State of Kerala v. Governor** - The Court clarified that while it cannot fix a rigid "calendar deadline" for every bill, prolonged and unexplained inaction is **justiciable**.

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Recommendations of Various Commissions

1. **Sarkaria Commission (1988)**:
2. Governors should be appointed after **consulting the CM** of State, should be eminent and from outside the State, and not have recent intense political links.
3. Governors should be removed only for issues of morality, dignity, or constitutional propriety, with the State Government consulted.
4. **Article 200:** When Bill is reserved by the Governor, the Centre should decide within 6 months.
5. **Article 356**: Use sparingly and as a last resort
6. **NCRWC (2002)**: Governors should be **appointed by a committee** including the Prime Minister, Home Minister, Lok Sabha Speaker, and the Chief Minister of State.
7. **Punchhi Commission (2010)**:
8. **Term and Removal**: Governors should have a **fixed 5-year term** and can be **removed by impeachment** by the State Legislature
9. **Chancellorship**: Governors should not be university chancellors.

Inter-State Council

The Inter-State Council (ISC) is a Constitutionally mandated body established under **Article 263** of the Constitution of India that facilitates coordination and cooperation between the central government and the state governments. It was set up on the recommendation of the Sarkaria Commission.

Mandate:

1. To enquire and advise upon inter-state disputes.
2. Investigating & discussing subjects in which states or the Centre and the states have a common interest.
3. Recommending on any matter for better coordination of policy & action.
4. Its decisions are advisory and not binding.

Issues

1. **Infrequent Meetings** - **ISC has only met 11 times since 1990 (last meeting in 2016)**
2. **Limited Agenda Scope** - lacks focus on **emerging inter-state disputes** and broader governance issues.
3. **Non-Binding Recommendations**
4. **Lack of Functional Autonomy** - The **absence of an independent professional secretariat** limits ISC's operational efficiency

Way Forward

1. **Constitutional Status** - Amend **Article 263** to make **ISC a permanent constitutional body**, ensuring **regular meetings and enforceable decisions**.
2. **Enhance Technical Expertise** - Include **non-partisan experts and specialists** to strengthen policy research and dispute resolution (**as suggested by Sarkaria & Punchhi Commissions**).
3. **Establish a Dedicated Secretariat** with officials from **both the Centre and states** for efficient coordination. **Eg. Canada's Intergovernmental Conference Secretariat**.
4. **Expand ISC's Scope** - Empower ISC to **review and approve Finance Commission terms of reference**, ensuring **greater state involvement in fiscal matters** (**NCRWC**).
5. **Strengthen Dispute Resolution Role** - Equip ISC with **legal and mediation powers** to **resolve Centre-State and inter-state conflicts**, particularly in **water sharing, taxation, and administrative jurisdiction**.

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Other Inter-State Institutions

1. **Zonal Councils** - **Statutory bodies** under the **States Reorganisation Act, 1956**, promoting **interstate cooperation and coordination**.
   a. Five **Zonal Councils**: **Northern, Central, Eastern, Western, and Southern**.
   b. **Chaired by the Union Home Minister**, with **state Chief Ministers as rotating Vice-Chairpersons**.
   c. **North Eastern Council (NEC)** - **Established in 1972** under the **North Eastern Council Act, 1972**, focusing on **regional development and coordination among North Eastern states**.
2. **Inter-State River Water Dispute Tribunals** - Constituted under the **Inter-State River Water Disputes Act, 1956**, to **resolve water-sharing disputes between states**.
3. **Goods and Services Tax (GST) Council** - A **constitutional body** under **Article 279A**, responsible for **GST-related policy decisions**.
   a. Includes **Union Finance Minister, Union Revenue Minister, and State Finance Ministers**.
   b. **Consensus-based decision-making** ensures **cooperative federalism and streamlined tax administration**.

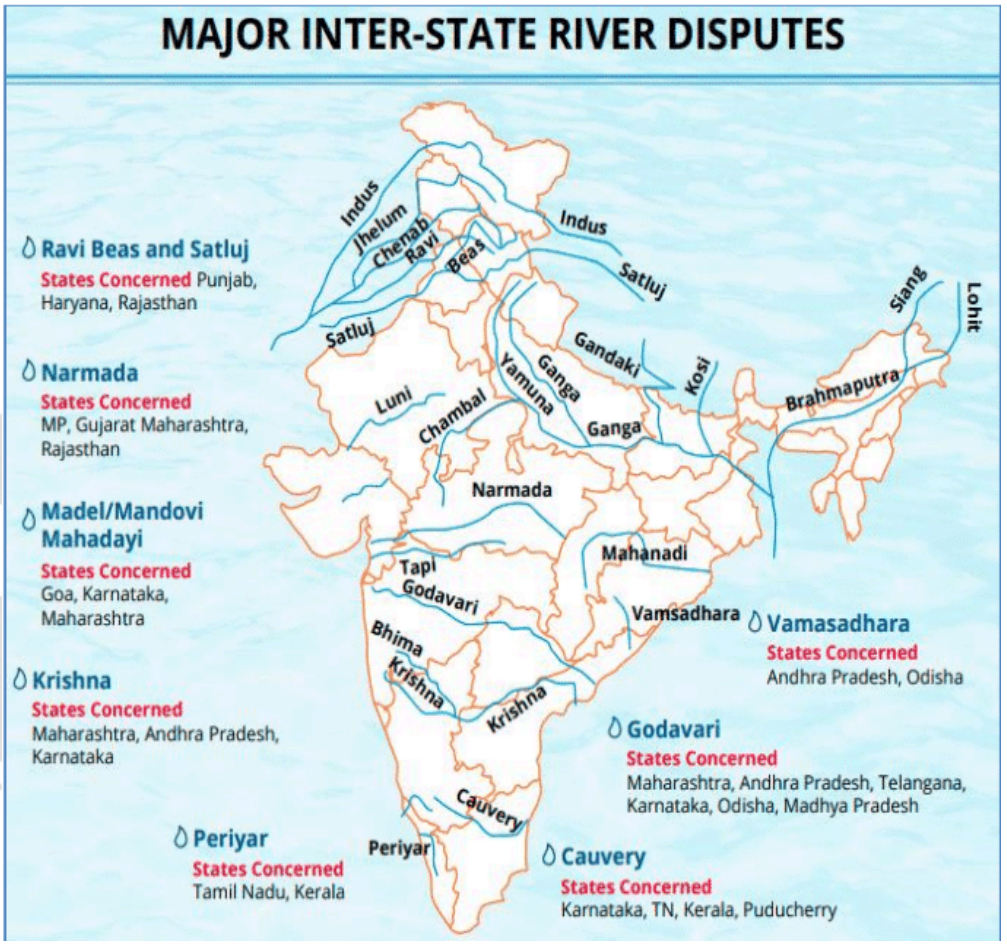
Inter-State Water Disputes

India has 14 major rivers, all of which are inter-state rivers. Despite constitutional and legal provisions, inter-state river disputes remain a persistent challenge to India's federal system.

Recently, Ravi and Beas water tribunal (formed in 1986), got an extension of another year.

Constitutional and Legislative Provisions:

1. **Article 262** allows Parliament to:
   a. Create laws for resolving disputes over inter-state river waters.
   b. Exclude the jurisdiction of the Supreme Court and other courts from such disputes.
2. **Seventh Schedule (Distribution of Power):**
   a. **Entry 17 (State List):** Gives states power over water supply, irrigation, canals, drainage, embankments, and water power.
   b. **Entry 56 (Union List):** Gives the Central Government power over the regulation and development of inter-state rivers and river valleys.



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3. **Inter-State River Water Disputes (ISRWD) Act, 1956:** it allows a state to request the Centre to refer a dispute to a **Tribunal**. The decision of the Tribunal is final and binding. Once published in the Official Gazette, it has the same force as an order of the Supreme Court.
4. **River Boards Act, 1956:** Provides for the establishment of boards for the regulation and development of inter-state rivers. However, this Act has remained largely a **"dead letter"** as no such board has been successfully empowered.
5. **The ISRWD (Amendment) Bill:** Aimed at streamlining the process by replacing ad-hoc tribunals with a **single, permanent "Inter-State River Water Disputes Tribunal"** and introducing a **Dispute Resolution Committee (DRC)** for preliminary mediation.

Reasons

1. **Pre-independence agreements** were made **without considering future state boundaries**. **Eg.** Mysore Kingdom-Madras Presidency agreements led to the Cauvery dispute.
2. **Non-Basin State Boundaries:** State reorganization was based on language, not geography.
3. **Vague "Equitable Apportionment":** There is no fixed mathematical formula for "fair share," leaving water allocation to subjective and lengthy tribunal interpretations.
4. **Unilateral Dam Construction: Eg.** Karnataka's **Mekedatu project** proposal opposed by Tamil Nadu over fears of reduced downstream flow.
5. **Supreme Court Intervention (Article 136):** Despite the bar under Article 262, states frequently use "Special Leave Petitions" to appeal tribunal awards
6. **Seventh Schedule conflict**: **Centre regulates inter-state river disputes**, but **states control water supply & irrigation**, leading to **overlapping authority**.
7. **Article 262** empowers Parliament to form **Water Disputes Tribunals**, but **no time limit** leads to prolonged conflicts. **Eg. Cauvery Water Disputes Tribunal took 17 years to decide**.
8. **Overuse, pollution, and climate change** have intensified disputes as states compete for diminishing resources.
9. **Agricultural & industrial demand**: Rising irrigation & industry needs **exceed available resources**, leading to conflicts. **Eg. Narmada dispute among Gujarat, MP, Maharashtra.**
10. **Inconsistent data on river flow, usage, and availability** prevents fair water-sharing decisions, leading to **implementation challenges**.
11. **Regional parties use disputes as electoral issues**, reducing efforts for a permanent resolution.
12. **Lack of political will** to implement tribunal and Supreme Court rulings, as governments fear voter backlash.

Way Forward

1. **Leverage inter-state council** to develop consensus among states
2. **Set time limits** for tribunals to deliver awards to prevent prolonged disputes.
3. **Restrict appeals** by amending laws to limit the scope of **Article 136 (Special Leave Petition)**.
4. **Include multidisciplinary experts** in hydrology, environmental science, and engineering for informed decision-making.
5. **Develop a centralized hydrological database** for transparent and reliable water availability data.
6. **Utilize remote sensing and GIS technology** for accurate monitoring of river flows.
7. **Establish regular review mechanisms** to assess the implementation of tribunal awards.

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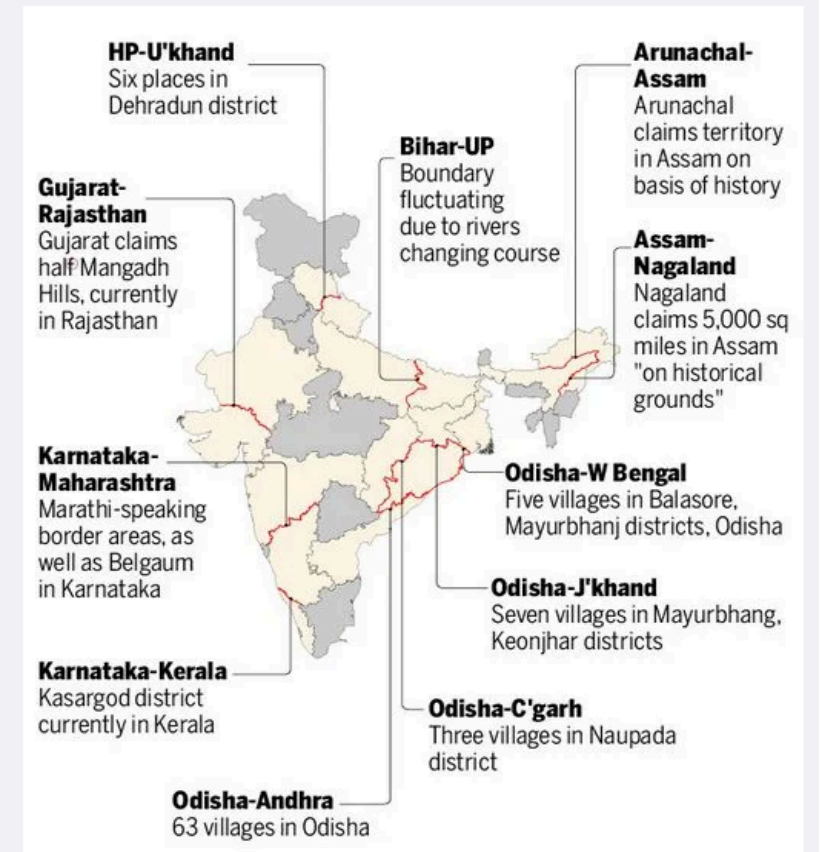
Interstate River Water Dispute Bill 2019

- **Dispute Resolution Committee (DRC)**: aims to resolve disputes amicably through negotiations within one year (extendable by six months).
- **Tribunal**: If the DRC fails, the dispute will be referred to the new Inter-State River Water Disputes Tribunal, which can have multiple benches.
- **Tribunal Composition**: The Tribunal will have a Chairperson, Vice-Chairperson, three judicial members, and three expert members, all appointed by the central government.
- **Time Frames**: The Tribunal must resolve disputes within two years, extendable by one year.
- **Binding Decision**: The Tribunal's decision is final and binding, with no requirement for publication in the official gazette.
- **Data Bank**: The central government will appoint an agency to maintain a national data bank for each river basin.

Inter-State Border Disputes

Causes of Inter-State Border Disputes

1. **Colonial Administrative Legacy: Eg.** The **Assam-Mizoram** dispute stems from differing 1875 and 1933 notifications regarding the Lushai Hills.
2. **Flaws in State Reorganisation** - **Reorganisation based on language** in the 1950s, using colonial maps, led to disputes. **Eg. Karnataka-Kerala over Kasargod, Maharashtra-Karnataka over Belgaum**.
3. **Resource Competition** - States dispute **border areas with economic potential. Eg. Himachal Pradesh & Ladakh over Sarchu for tourism**.
4. **Political Opportunism** - **Political parties exploit border issues** for electoral gains, delaying resolutions.
5. **Underutilized Resolution Mechanisms** - **Inter-State Council (Article 263) and Zonal Councils** remain ineffective in resolving disputes.
6. **Judicial delays** - Eg. Dispute between Odisha and Andhra Pradesh over Kotia cluster has been before the Supreme Court since 1968.



Success case studies

1. Assam-Arunachal **"Namsai Declaration"** - The declaration reduced the number of disputed villages from 123 to 86. The first border pillar was erected at Seijosa in February 2026

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2. **Assam-Meghalaya "Give-and-Take" Accord:** They used a **"Near Equal Share"** principle, where each state received roughly half of the 36 sq km disputed land.

Way Forward

1. **Strengthening Inter-State Coordination Mechanisms** - **Revitalize Inter-State Councils (Article 263) & Zonal Councils** to effectively mediate and implement solutions.
2. **Replicate the "Assam-Meghalaya" model** of regional committees for direct, time-bound negotiation instead of long court battles.
3. Use high-resolution **Lidar and Drone surveys** to create a definitive, shared digital map of all state borders.
4. **People-Centric Approach:** Use "local will" and "administrative convenience" as the primary metrics for transfer, rather than just historical maps.
5. Create a dedicated "Federal Bench" in the SC to dispose of territorial suits (Article 131) within 24 months.

7th Schedule

Article 246 of the Constitution defines three lists in the Seventh Schedule: Union, State, and Concurrent.

Need For Revision

Arguments against

1. **Defined Roles Maintain Stability** - The **existing division of powers** between the **Union, State, and Concurrent Lists** ensures clear governance roles
2. **Disrupts Federal Balance** - Altering the **7th Schedule may weaken state autonomy**, increasing **central control**.
3. A strong **central role has historically helped in national integration**, particularly in security matters.
4. **Judicial and Bureaucratic Overload** - A major revision would result in **increased legal disputes** and **interpretational challenges** for judiciary.
5. **Redundancy of Amendment:** Article 248 (Residuary Powers) already allows the Centre to handle new issues without a full schedule overhaul.
6. Achieving the **"Two-Thirds Majority" and state ratification (Article 368)** for such a revision is difficult

Arguments For

1. The **7th Schedule is based on the Government of India Act, 1935**, and does not reflect **modern governance challenges**. Eg. **"Cybersecurity" remains a residuary subject**
2. **Empowering Local Governments** - Introducing a **Local Government List** can strengthen **grassroots governance and decentralization**.
3. **Reducing "Unitary Tilt": Eg.** Over the years, the Union List has grown from **97 to 100** entries, while the State List has shrunk from 66 to 61
4. **Administrative Efficiency:** Shifting local subjects to states can reduce the Union's "administrative overstretch" and improve public service delivery.
5. **Judicial Workload Reduction:** Vague entries lead to frequent "Special Leave Petitions" in the SC regarding the doctrine of Pith and Substance.

Way Forward

1. Transfer **residuary subjects to the Concurrent List**, ensuring **states have a say in emerging governance areas**, as suggested by the **Sarkaria Commission**.
2. Institutionalize **mandatory consultation with states** before the Centre legislates on **Concurrent List subjects**

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3. **Introduce a Local Government List** - Establish a **new list for local bodies**, ensuring **effective decentralization**.

"Federalism is not a monolith; it is a dialogue between self-rule and shared rule." Both **Union & States are creatures of the Constitution** → must act in synergy.

President's Rule

President's Rule ensures **federal stability during crises** and is governed by **Articles 355 to 357 (Part XVIII) and Article 365 (Part XIX)** of the Indian Constitution.

1. **Article 355** - Mandates the **Union to protect states** from **external aggression and internal disturbances**.
2. **Article 356** - Allows the **President to assume state government functions** if the **constitutional machinery fails**.
3. **Article 357** - Grants the **President power to legislate for a state** via **ordinance** when President's Rule is in effect.
4. **Article 365** - Specifies the **consequences for a state failing to comply** with **Union directives**, potentially leading to **President's Rule**.

Impact of President's Rule

1. **State Executive:**
2. **Assumption of State Government Functions**
3. **Dismissal of Council of Ministers**
4. **The President can sanction expenditure from the state consolidated fund** when the Lok Sabha is not in session, pending Parliament's approval.
5. **Ordinance Promulgation** by the President.
6. **State Legislature:**
7. The President can declare that the **powers of the state legislature** are to be exercised by the Parliament.
8. **Suspension or Dissolution of State Legislative Assembly**
9. **Parliament's Authority Over State Matters**: passing state bills and budgets.
10. **Laws** enacted by Parliament **continue to remain effective** even after the imposition of President's Rule.
11. **Judiciary:** The Constitutional position, status, powers, and functions of the State High Court remain unchanged
12. **Fundamental Rights of Citizens:** The fundamental Rights of citizens are not impacted upon use of Article 356.

Issues pertaining to Article 356

Dr. B.R. Ambedkar hoped that the drastic power under Article 356 would remain a **Dead Letter** and only be a last resort.

1. **Arbitrary Dismissal of Governments: Eg.** invoked over 100 times since independence
2. **Political Misuse** - Often invoked to **remove opposition-led governments**. **Eg. President rule in Kerala** in 1959.
3. **Prolonged Use of President's Rule**: Eg. over 4 years in **Jammu and Kashmir**
4. The term **"failure of constitutional machinery"** lacks a precise legal definition, allowing for subjective central interpretation.
5. **Partisan Role of Governors: Eg. Sarkaria Commission** noted that 90% of Article 356 cases were based on purely political gubernatorial recommendations.

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6. **Bypassing the Floor Test: Eg.** In the **S.R. Bommai (1994)** case, the CM was dismissed despite offering to prove his majority.
7. **Negative agenda:** Invoked during hung assemblies to prevent certain coalitions from forming, rather than exploring alternative governments.
8. **Delayed Judicial Restitutions: Eg.** It took **five years** for the SC to deliver the *Bommai* judgment, long after the term ended.

Key Recommendations:

1. **Supreme Court Guidelines:** In the **S.R. Bommai case (1994)**
   a. **Judicial Review**: Proclamations of President's Rule are subject to judicial review.
   b. Power under Article 356 is **exceptional** and should be used only in special situations.
   c. The President's satisfaction must be based on **relevant material.** The court can assess the relevance but not the correctness or adequacy of the material.
   d. **Floor Test**: The loss of confidence in the Legislative Assembly should be decided on the floor of the House.
   e. **Assembly Suspension**: The State Legislative Assembly can only be dissolved after parliamentary approval of the proclamation. Until then, it can be suspended.
   f. **Restoration Power**: If a proclamation is found unconstitutional, the court can restore the dismissed State Government and revive the State Legislative Assembly.
2. **Sarkaria Commission Recommendations (1983)**
3. **Reasons for Proclamation**: The President's proclamation of President's Rule should state reasons for the decision.
4. **Punchhi Commission Recommendations**
5. **Amendments for Bommai Guidelines**: Amend the article to incorporate guidelines from the SC in the Bommai case.
6. **Localized Emergency**: Introduce a 'Localized Emergency' to address issues at town/district levels without dissolving the state legislature, fulfilling the Union's duty to protect states as per Article 355.

Financial Emergency (Article 360)

It is a constitutional provision in India that allows the Union government to take control of the financial affairs of the State and the country if the economic stability or credit of India is threatened.

Proclamation

1. The **President** can declare a Financial Emergency if he is satisfied that a situation has arisen whereby the financial stability or credit of India (or any part of its territory) is threatened.
2. The proclamation must be approved by **both Houses of Parliament** within **two months** by a **simple majority**. Once approved, it continues indefinitely until revoked by the President. There is no maximum period prescribed, and it does not require periodic approval like a National Emergency.

Key Effects:

1. **Executive Control:** The Union can give directions to any State to observe specific canons of "financial propriety."
2. The President can issue orders to **reduce the salaries and allowances** of any class of persons serving the State or the Union, **Judges of the Supreme Court and High Courts.**
3. The President can require that all **Money Bills** or other financial bills passed by a State Legislature be reserved for his consideration.

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4. The Union may **modify the allocation of taxes and revenue** between the Center and States.

National Emergency (Article 352)

Under **Article 352, The President** can declare a national emergency when the security of India or a part of it is threatened by war or external aggression or armed rebellion (inserted by **44th amendment**). The President can declare a national emergency **even before the actual occurrence** of war or armed rebellion or external aggression.

Procedure

1. The President can only proclaim an emergency after receiving a written recommendation from the Union Cabinet (added by 44th amendment).
2. Both Houses must approve the proclamation within one month by a Special Majority (majority of the total membership & 2/3rd of the members present & voting).
3. Once approved, the emergency lasts for six months. It can be extended indefinitely, but it must be re-approved by Parliament every six months.
4. The President can revoke the proclamation at any time via a subsequent proclamation. This does not require parliamentary approval.
5. The President must revoke the emergency if the Lok Sabha passes a resolution disapproving its continuation by a simple majority.

Key Safeguards under the 44th Amendment (1978)

1. Replaced the vague term "internal disturbance" with **"Armed Rebellion"** to prevent political misuse of the emergency.
2. **Written Cabinet Advice:** The President can only proclaim an emergency on the **written recommendation** of the entire Cabinet, not just the PM.
3. **Stricter Approval:** Reduced the approval window from two months to **one month** and mandated a **Special Majority**.
4. **Enhanced Revocation:** Empowered the Lok Sabha to force a revocation via a **Simple Majority** resolution.
5. **Inviolable Rights:** Prohibited the suspension of **Articles 20** (Protection in respect of conviction for offences) and **21** (Protection of life and personal liberty).

Effects of National Emergency

1. **Executive:** The Union government can give directions to any State on any matter. State governments are **not dismissed,** but they come under the **total control of the Center.**
2. **Legislative:** Parliament gains the power to make laws on subjects listed in the **State List**. The president can issue ordinances on State subjects also, if the parliament is not in session.
3. **Financial:** The President can modify the constitutional distribution of revenues between the Center and the States.
4. **Fundamental Rights:**
   a. **Article 358:** Automatically suspends the freedoms guaranteed by **Article 19**
   b. **Article 359:** The President can suspend the right to move courts for the enforcement of other rights, **EXCEPT Articles 20 & 21**

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History of National Emergency in India

Year	Reason	Context
1962–1968	External Aggression	During the **Indo-China War**; it continued through the 1965 war with Pakistan.
1971–1977	External Aggression	During the **Indo-Pakistan War** that led to the creation of Bangladesh.
1975–1977	Internal Disturbance	Declared by the Indira Gandhi government; remains the most controversial period in Indian democracy.

Justification of National Emergency Provisions

1. **Ensuring National Integrity &** preventing the disintegration of the country during war.
2. Parliament can make laws on any subject in the **State List** for **coordinated national response.**
3. **Financial Resource Mobilization:** Allows the President to modify the distribution of revenues to prioritize national security over local spending.
4. Transitions the "slow" federal system into a **"fast" unitary one** to handle crises effectively.
5. Allows the **Lok Sabha's term to be extended** when holding elections is impossible.
6. Acts as a **"safety valve"** that allows the state to suspend normal law to save the law itself.
7. Follows the "Necessity Doctrine" recognized in most democracies, from the **US (War Powers)** to the **UK (Emergency Acts)**.

Criticism of National Emergency Provisions

1. **Erosion of Federalism:** State governments become subordinates to the Centre.
2. **Suspension of Civil Liberties: Article 19** is automatically suspended. **Eg.** Mass censorship of the press in 1975.
3. **Potential for "Constitutional Dictatorship":** An ambitious PM could theoretically maintain an emergency indefinitely through a compliant Parliamentary majority.
4. **Impact on Judicial Review:** While the **Minerva Mills (1980)** case allows limited review, challenging "Presidential Satisfaction" remains extremely difficult.
5. **Economic Centralization** can cripple state-level social welfare schemes and local governance.
6. **Vagueness of "Armed Rebellion":** While better than "internal disturbance," it still lacks a precise legal threshold for "scale."

Way Forward

1. **Time-Limited Article 19 Suspension:** Ensure Article 19 is only suspended in **conflict zones**, not the entire country, during partial emergencies.
2. **Strengthening Federal Veto:** Require a **resolution from 1/3rd of State Assemblies** to approve an "Internal Emergency" (Armed Rebellion).
3. Mandate a bi-monthly report by the **NHRC** on the status of detainees during the emergency
4. Use the **Inter-State Council** as a consultation platform before invoking Article 352 for internal matters.

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Chapter 9

Executive

PYQs

[2025] "The Attorney General of India plays a crucial role in guiding the legal framework of the Union Government and ensuring sound governance through legal counsel." Discuss his responsibilities, rights and limitations in this regard. (10)

[2024] "The growth of cabinet system has practically resulted in the marginalisation of the parliamentary supremacy:" Elucidate. (10)

[2022] Discuss the essential conditions for exercise of the legislative powers by the Governor. Discuss the legality of re-promulgation of ordinances by the Governor without placing them before the Legislature. (15)

[2019] "The Attorney-General is the chief legal adviser and lawyer of the Government of India." Discuss. (15)

Prime Minister

Lord Morley described the Prime Minister as "primus inter pares" (first among equals) and "key stone of the cabinet arch".

Ramsay Muir described the Prime Minister as "the steering wheel of the ship of the state."

Powers and Functions:

With Respect to the President

1. **Link between the President and the Council of Ministers** (Article 78).
2. **Advice on Appointment**:
   a. Advises the President on the appointment of other ministers.
   b. Recommends the allocation and reshuffling of portfolios among ministers.
3. **Advisory Role**:
   a. Advises the President on summoning and proroguing of Parliament and dissolution of the Lok Sabha.
   b. Advises in appointments of constitutional authorities (Eg. Attorney General, CAG, Election Commissioners, etc.).

With Respect to the Council of Ministers

1. **Head of the Council**: The Prime Minister is the head of the Council of Ministers and decides its agenda.
2. **Leader and Coordinator**:
   a. Guides, directs, and coordinates the activities of all ministers.
   b. Can ask any minister to resign or recommend dismissal to the President.
3. **Chairman of Meetings**: Presides over meetings of the Cabinet and influences decisions.

With Respect to the Parliament -

Leader of the House

Other Powers and Functions

1. **Crisis Leadership**: Plays a central role in times of emergency or national crisis.

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2. Plays a key role in **foreign policy decisions** and international representation.

Issues:

1. Concentration of Power in PMO - PMO has expanded into a "parallel government" (Subhash Kashyap). Eg. COVID-19 lockdown decisions centralised.
2. Erosion of Cabinet Collective Responsibility - Eg. 1975 emergency declaration bypassed full Cabinet.
3. Presidentialisation of PM - Shift towards "prime ministerial government". Eg. in foreign policy decisions.
4. Marginalisation of Parliament - Eg. Farm Laws (2020) passed with limited debate.
5. Coalition vs. Majority Dilemma - PM's role weakened in coalitions but over-centralised in majority regimes.
6. Opacity in Decision-Making - Eg. PM CARES Fund not under parliamentary oversight.
7. Institutional Weakening - PMO dominance sidelines institutions. Eg. NITI Aayog reduced to advisory role.

Way Forward

1. Introduce a PM's Question Hour (UK Model) to improve direct accountability.
2. Restoring Collective Cabinet Responsibility - Define clear guidelines to prevent the PMO from bypassing ministers and functioning as a super-executive.
3. Internal Party Democracy: PMs must emerge from transparent intra-party elections.
4. Bring PM CARES under RTI: Ensure financial transparency.
5. Appointment of key constitutional officers (CAG, CEC, etc.) should follow the collegium model involving CJI, Leader of Opposition, and PM.
6. **Codification of Conventions - Draw from UK's Cabinet Manual**, particularly concerning PM's powers, Cabinet procedures, and PMO functioning.

PMO

Origin

1. **1947–1977:** Established as the **Prime Minister's Secretariat (PMS)** to provide secretarial assistance to Jawaharlal Nehru.
2. **1977:** Renamed the **Prime Minister's Office (PMO)** during the tenure of Morarji Desai to project a less "secretive" and more "office-like" image.
3. **Evolution:** Under Lal Bahadur Shastri, the role of the **Principal Secretary** was created, shifting the PMO from a mere clerical body to a high-level policy advisory unit.

Key Functions

1. **Secretarial Assistance:** Provides the PM with technical and administrative support for managing the Union Cabinet and Parliament.
2. **Inter-Ministerial Coordination:** resolving inter-departmental disputes and ensuring policy synergy.
3. **Policy Monitoring:** Tracks the progress of "big-ticket" infrastructure projects (via the **Project Monitoring Group**) and flagship schemes like **Gati Shakti.**
4. **National Security & Foreign Policy:** Houses the **National Security Advisor (NSA)** and coordinates with intelligence agencies and the Ministry of External Affairs.
5. **Public Grievances:** Manages the **CPGRAMS** portal and the Prime Minister's National Relief Fund (PMNRF).

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Major Criticisms

1. **Over-Centralization of Power:** Critics argue that the PMO has become a "Super-Cabinet"
2. The PMO has **largely eclipsed the Cabinet Secretariat,** which is the traditional coordinating body under the Rules of Business.
3. **Parallel Bureaucracy:** The office is seen as creating a "shadow government" where unelected advisors override the expertise of senior civil servants.
4. **Unitary Tilt in Federalism: Eg.** Frequent direct meetings between the PMO and District Collectors have bypassed state Chief Secretaries.
5. **Opaqueness in Decision-Making:** the internal deliberation process within the PMO remains shielded from RTI and public scrutiny.
6. **Politicization of Bureaucracy:** High-profile retired bureaucrats are frequently inducted into the PMO, leading to allegations of a "committed bureaucracy."

Way Forward

1. **Restoring Cabinet Supremacy:** Re-empower the Cabinet Secretariat to handle routine coordination, allowing the PMO to focus strictly on the PM's personal secretarial needs.
2. **Formalizing Consultation:** Institutionalize a "Consultation Charter" where the PMO must seek mandatory input from State Governments before intervening in state-list subjects.
3. **Parliamentary Oversight:** Create a dedicated **Standing Committee** or a sub-committee under the Public Accounts Committee to specifically audit the functioning of the PMO.

Should India Adopt a Presidential Form of Government?

Arguments in Favour of Presidential System

1. **Separation of Powers** - presidentialism ensures an **independent legislature**, preventing executive dominance
2. **Directly Elected Executive** - ensuring **legitimacy from people's mandate**.
3. **Stability of Tenure** - Fixed tenure not vulnerable to **coalition collapses or legislative whims**.
4. **Cabinet of Talents** - Freedom to appoint ministers from outside legislatures, bringing in **experts and technocrats**.
5. **Clear Accountability** - Voters can judge an individual leader on **performance in governance** rather than **political manoeuvring**.
6. **Decisive Leadership** - Direct election gives a strong mandate for effective governance.

Shashi Tharoor's Criticism of the Parliamentary System in India

- **Unqualified Legislators** - The system has created a breed of legislators "largely unqualified to legislate," who contest elections only to gain **executive power**.
- **Government Instability** - Governments are dependent on **fickle legislative majorities**, forcing them to prioritise politics over **policy or performance**.
- **Weak Political Parties** - Parties have become "**shifting alliances of selfish interests**," lacking coherent ideologies.
- **Coalition Compulsions** - Coalition governments are obliged to cater to the **lowest common denominator**, diluting governance effectiveness.
- **Focus on Staying in Power** - Instead of governance, governments spend energy on **managing alliances and survival**.

Arguments Against Presidential System

1. **Ambedkar in Constituent Assembly** - Warned presidential system may "degenerate into dictatorship."

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2. **Granville Austin** - Parliamentary system balances **authority with responsibility** through legislative accountability.
3. **Strain on Federalism** - Centralising tendencies erode State autonomy.
4. **Loss of Inclusivity** - Parliamentary coalitions allow broader representation of groups and regions.
5. **Legislative - Executive Friction** - Eg. US government Shutdown
6. **Spoils System** - Risk of appointments being made on **political loyalty** rather than merit, as seen in the US model.
7. **Unsuitable Political Culture** - India's diversity may fuel divisive, winner-takes-all presidential elections.
8. **Emergency Precedent** - 1975 showed dangers of excessive centralisation under one leader.

Sarkaria Commission - India's diversity and federalism require a **parliamentary system** for inclusive representation.

Presidential Reference

Recently, The President invoked Article 143(1) of the Constitution to seek the Supreme Court's opinion on the scope of powers of Governors and the President under **Articles 200 and 201.**

The reference follows a recent Supreme Court ruling that set clear timelines for Governors and the President to act on bills passed by state legislatures. The verdict also introduced the idea of **'deemed consent'** to address delays caused by gubernatorial inaction.

It is a power that the President has invoked on **at least 15 occasions since 1950.**

> In 1951, India's first President Rajendra Prasad made the first reference to the Supreme Court in relation to provisions of Delhi Laws Act, 1912, the Ajmer-Merwara (Extension of Laws) Act, 1947 and Part C of the States (Laws) Act of 1950.

Article 143 (Advisory jurisdiction of SC)

Article 143(1) - Discretionary Reference

1. The **President may refer** to the Supreme Court a **question of law or fact** that is of **public importance**.
2. The Supreme Court **may choose to answer** the reference or not.
3. The Court's opinion is **advisory**, not binding, but carries significant constitutional weight.

Article 143(2) - Mandatory Reference

1. If any question arises **relating to pre-constitutional treaties or agreements**, the President **must** refer it to the Court.
2. The Court is **obligated to give its opinion** in this case.

Article 145(3)

requires any such reference to be heard by five judges, after which the SC returns the reference to the President with the majority opinion.

> Important Judgments
>
> - In re Kerala Education Bill (1958) - First use of Article 143(1). Set precedent for judicial restraint and clarified that advisory opinion is not binding.
> - In re Berubari Union (1960)

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- In re Special Courts Bill (1979) -SC upheld the validity of a bill seeking to establish special courts for speedy trials of emergency-period offences.
- In re Ram Janmabhoomi Case (1993) -SC declined to answer, citing that the reference was hypothetical and not legal in nature.
- In re Cauvery Water Disputes Tribunal -SC accepted the reference and gave its opinion, stating that tribunal decisions under Article 262 are binding and must be implemented.

Significance of Article 143

1. Under the Constitution, the President acts on the aid and advice of the Cabinet. The advisory jurisdiction allows her the means to seek **independent advice** on constitutional matters.
2. **Bridge Between Executive and Judiciary - consultation with the Supreme Court** strengthens **coordination and clarity** between constitutional organs.
3. **Clarifies Constitutional Ambiguities** - Helps in **interpreting grey areas** of the Constitution, laws, or treaties.
4. **Prevents Legal Disputes - Advisory opinions can pre-empt future litigation** by clarifying constitutional questions before conflicts arise.
5. **Democratic and Transparent Governance** - Encourages **legal scrutiny** of proposed policies or actions without adversarial litigation.
6. **Non-Binding Yet Influential** - Though not binding, SC's opinion carries **great moral and constitutional authority**, guiding executive and legislative decisions.
7. **Used in Landmark Cases** - Played a key role in **Berubari case (1960)**, **Special Courts Bill (1979)**, and **Cauvery dispute (1992)** - shaping constitutional jurisprudence.

Major Issues

1. **Non-Binding Nature of Opinion**
2. Discretion to Decline Reference - Eg. In the Ram Janmabhoomi reference (1993), the Court declined to answer, citing lack of a legal issue.
3. Possibility of Political Misuse - Executive may use Article 143 to politically deflect controversial issues or influence ongoing public debates.
4. Risks converting the Court into a consultative body for the executive.
5. Lack of Procedural Guidelines - The Constitution does not specify detailed procedures or timelines for the Court to respond to a reference.
6. Overlaps with Judicial Review - Advisory opinions under Article 143 may influence or pre-judge issues that could later come before the Court in a judicial capacity.

Way Forward

1. Make Advisory Opinion Binding in Limited Cases, such as, Constitutional interpretation, Federal disputes, Emergency powers.
2. Introduce Time-Bound Procedure for the Supreme Court
3. Establish clear guidelines (either through statute or SC rules) on: What constitutes a valid "question of public importance" and When the Court may decline a reference.
4. Publish Detailed Reasons for Refusal
5. Require the government to table an action taken report in Parliament on Court's opinion.

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SC judgment on Article 200 and 201

A Division Bench of Justices J.B. Pardiwala and R. Mahadevan ruled that Tamil Nadu Governor R.N. Ravi's **withholding of 10 state bills** was **"illegal"** and **"erroneous."**

The Court clarified that the Governor's powers under **Article 200** are limited and must be exercised within constitutional bounds.

Invoking **Article 142,** the Bench held that the pending and reserved bills are to be treated as having received **"deemed assent."**

Article 200 (Governor's Powers)

1. **Three Exclusive Options**: A Governor may (i) grant assent, (ii) withhold assent and return for reconsideration, or (iii) reserve the Bill for the President. No "pocket" or absolute veto exists.
2. **Time-limits Imposed**:
   a. **Withholding or Reserving** (on Council advice): **within 1 month**.
   b. **Withholding against advice**: return within **3 months**, with reasons.
   c. **Re-passed Bills**: assent **immediately**, within **1 month**.
3. **Judicial Review**: Governor's inaction or misuse (pocket veto) is justiciable; courts can examine arbitrariness or malafide.

Article 201 (President's Powers)

1. **Three-Month Deadline** to decide on Bills reserved by Governors. Delays beyond must be accompanied by **written reasons**.
2. **No Pocket Veto**: President cannot indefinitely withhold assent; "deemed assent" if unreasonably delayed.
3. **Proviso to Article 201** (return-and-repass) must **not be used piecemeal** to delay legislation. Once re-passed, the President must grant or withhold assent with clear reasons.
4. **Judicial Review**: limited scrutiny where Union interest predominates; deeper review where State primacy and Cabinet advice conflict.

Significance of the Judgment

1. Curtails Arbitrary Use of Article 200
2. Prevents politicization of office of Governor and President
3. Protects separation of powers - Reclaims the primacy of the legislature in lawmaking by limiting executive interference.
4. Establishes Time Limits for Decision on Bills - ends the practice of "pocket veto"
5. Strengthens Legislative Supremacy in States
6. Concept of 'Deemed Assent' Introduced - Sets a powerful precedent for ensuring legislative continuity and constitutional efficiency.
7. Promotes Constitutional Morality - Reinforces the expectation that constitutional authorities must act in good faith, and not stall democratic processes.

Major Issues in the Judgment

1. Judicial Overreach -Eg. legal doctrine of deemed assent not explicitly found in Constitution
2. Ambiguity - Unclear how "deemed assent" will be operationalized or enforced
3. The judgment reaffirms limited discretion for Governors, but doesn't fully define the scope of "constitutional discretion" under Article 200.
4. One-Size-Fits-All Federal Application - does not account for varying political, administrative, or legal complexities across different regions.

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5. Lack of Direct Accountability Mechanism for Governors - Without structural reform, Governors may continue to act at the behest of the Centre without consequences.

Way Forward: Ensuring Constitutional Discipline and Cooperative Federalism

1. **Codify Timelines into Law or Constitutional Amendment**
2. **Define and Limit Governor's Discretion Constitutionally**
3. Create a parliamentary or judicial oversight mechanism to track delays in grant of assent.
4. Introduce a Code of Conduct for Governors, linked with a review mechanism by the Inter-State Council or Rajya Sabha.
5. Frame guidelines for future use of Article 142 to prevent charges of judicial overreach.
6. Institutionalize regular Centre-State consultations (through NITI Aayog or Inter-State Council) on issues affecting federal relations.

Council of Ministers

Introduction and quotes:

"The Cabinet is the steering wheel of the ship of the state."- **Ramsay Muir**

"The Cabinet is the keystone of the political arch" - **Lowell**

"The Cabinet is the pivot around which the whole political machinery revolves"- **Sir John Marriott**

Constitutional Provisions:

1. **Article 74:** Council of Ministers to aid and advise the President. This advice is binding on the President after the 44th Amendment to the Constitution.
2. **Article 75:** Composition of the Council of Ministers; their appointment, tenure, responsibility, etc.
3. **Article 77:** Conduct of business of the Government of India.
4. **Article 88:** Ministers can speak and participate in either House of Parliament, joint sittings, and committees, but cannot vote.
5. **91st Amendment Act, 2003:** Limited the size of the Council of Ministers to 15% of Lok Sabha or state assembly members, to prevent excessive appointments.

Powers and Functions:

1. **Collective Responsibility:** Under **Article 75(3)**, the Council is collectively accountable to the Lok Sabha for all executive decisions.
2. **Formulation of National Policy:** The Council deliberates on and decides all major domestic and foreign policies for the nation.
3. **Aiding and Advising the President:** Under **Article 74**, the Council provides binding advice to the President on all executive functions.
4. **Legislative Leadership:** Ministers draft and introduce almost all major government bills and steer them through both Houses.
5. **Financial Management and Budgeting:** The Council is responsible for preparing the Union Budget and ensuring fiscal discipline across ministries.
6. **Supreme Executive Control:** Each minister oversees the administration of their assigned department, ensuring the implementation of government programs.
7. **Coordination of Administration:** The Council ensures synergy between different departments to avoid policy conflicts and overlapping jurisdictions.

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8. **Proclamation of Emergency:** The President can only declare a National Emergency (**Article 352**) upon written advice from the Cabinet.

Difference Between Council of Ministers and Cabinet

Aspect	Council of Ministers	Cabinet
Constitutional Mention	Mentioned in Article 74 & 75 of the Constitution	**Not explicitly mentioned**, but exists as the **core decision-making body**
Size	Larger body - includes all categories of ministers (Cabinet Ministers, Ministers of State, and Deputy Ministers)	Smaller body - includes only **senior Cabinet Ministers**
Composition	- Cabinet Ministers - Ministers of State (Independent charge & attached) - Deputy Ministers	Only **Cabinet Ministers**
Meetings	Rarely meets as a full body; decisions are taken by Cabinet or individual ministers	Meets **regularly** to discuss and decide on government policy and administration
Decision-making power	**Collectively responsible** to Lok Sabha, but real decisions are usually taken by the Cabinet	**Real executive authority**; its decisions bind the entire Council of Ministers

Cabinet

The Cabinet is the core of the Council of Ministers and the highest decision-making authority in the Indian politico- administrative system. It was not included in the original text of the Constitution and the 44th Constitutional Amendment Act,1978 inserted 'Cabinet 'into Article 352 of the Constitution.

Significance of the Cabinet System in India

1. Real Centre of Executive Power - It drives national policy, handles administrative affairs, and directs all ministries and departments.
2. Principle of Division of Labour and effective delegation - Enhances specialization, expertise, and sectoral focus within governance.
3. Supreme Policy Formulation: It serves as the highest authority for determining national priorities and long-term strategic goals.
4. Inter-Ministerial Coordination: It resolves jurisdictional overlaps between different ministries to ensure a unified "Whole of Government" approach. Eg. PM Gati Shakti
5. All major government bills and constitutional amendments must receive Cabinet approval before being introduced in Parliament.
6. Financial Oversight: The Cabinet approves the Union Budget and all major public expenditure proposals exceeding specific fiscal thresholds.
7. Binding Advice to President: Under Article 74, its advice is binding, making it the de facto wielder of the President's powers.
8. It determines India's stance on international treaties, global alliances, and strategic defense agreements.

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9. The Cabinet's written recommendation is mandatory for the proclamation of a National Emergency under Article 352.
10. It oversees the selection of heads of the Armed Forces, intelligence agencies, and major constitutional bodies.

Issues with Cabinet System:

1. **Top-Down approach in decision making:** overshadows other ministers, limiting diverse inputs in policy-making.
2. **Lack of Transparency:** Cabinet meetings are confidential, reducing transparency about decision-making processes.
3. **Concentration of Power in the Prime Minister** - Reduces the Cabinet to a **rubber stamp** in strong majority governments.
4. **Erosion of Collective Responsibility** - Cabinet decisions are often shaped by **a small inner circle or PMO**, not through broad ministerial deliberation.
5. The **Prime Minister's Office (PMO)** functions as a **parallel power center**, weakening Cabinet committees and inter-ministerial consultation.
6. **Coalition Compulsions and Policy Paralysis** due to political bargaining, compromises, and external pressures.
7. **Limited Parliamentary Oversight** - Eg. **Money Bills and Ordinances** are often passed without serious discussion, sidestepping parliamentary scrutiny.
8. **Administrative Overload: Eg.** In **2026**, over 40% of Cabinet agenda items were reported to be "procedural" rather than policy-oriented.
9. **The "Kitchen Cabinet" Phenomenon:** Crucial decisions are often made by a small "inner circle" of 2-3 ministers, sidelining the larger Cabinet.

Way Forward to Strengthen the System

1. **Formalizing Consultation:** Adopting the **Punchhi Commission**'s recommendation for mandatory state-level feedback via the Inter-State Council.
2. **Empowering Ministry-level Research:** Each Cabinet Minister should have a "Policy Unit" of domain experts to reduce dependence on the PMO.
3. **Strict Parliamentary Sittings:** Increase the number of mandatory Parliament days to 100+ annually to ensure Cabinet accountability.
4. **Shadow Cabinet Tradition:** Encourage the opposition to form a "Shadow Cabinet" to provide constructive alternatives and rigorous scrutiny. **Eg.** in **UK/Australia**
5. **Reforming the Rules of Business:** Update the 1961 Rules to clearly define the boundaries between PMO coordination and Cabinet authority.

Constitution (One Hundred and Thirtieth Amendment) Bill, 2025

The primary aim of the Bill is to uphold "constitutional morality" by preventing the **PM, CM, and Ministers** from continuing in office while in judicial or police custody for an extended period.

Key Provisions

1. If a Minister is arrested and remains in custody for **30 consecutive days** on serious criminal charges (offenses punishable by 5 years or more), they will **automatically lose their office.**
2. **Reinstatement Clause:** If the leader is later granted bail or cleared through the legal process, they may resume their position.

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3. **Universal Application:** Unlike previous historical attempts (like the 39th Amendment) which sought to shield high offices, this Bill specifically includes the **PM** within its purview.
4. Two related bills, the **Union Territories (Amendment) Bill, 2025**, and the **Jammu and Kashmir Reorganisation (Amendment) Bill, 2025**, were introduced simultaneously to apply these rules to UTs like Delhi, Puducherry, and J&K.

Arguments In Favour

1. **Constitutional Morality** - Prevents leaders from continuing in power while facing serious criminal charges
2. **Good Governance** - Removes "**governance from jail**" anomaly & ensures executive accountability.
3. **Public Trust** - Strong stance against criminalisation of politics enhances institutional trust.
4. **Bridges Legal Gap - RPA, 1951** disqualifies only post-conviction; this Bill addresses **interim pre-conviction situations**.
5. **Aligns with International Best Practices - UK Ministerial Code, South African Constitution (Section 96)** - public officials facing serious charges step aside.
6. **Addresses Lily Thomas (2013), Manoj Narula (2014) Spirit** - SC has long called for stricter standards for Ministers.
7. **Anti-Corruption Push** - Highlights zero tolerance against corruption in high offices.
8. As per **HM Amit Shah**, it is an **"insult to democracy"** for secretaries and officials to take orders from a jailed leader.

Arguments Against

1. **Arrest vs. Conviction:** violates the principle of **"innocent until proven guilty"** by imposing a severe penalty based on mere arrest/detention rather than a court conviction.
2. Legal experts suggest the Bill might be challenged for violating the **"Rule of Law"** and the **"Equality Code"** (Article 14).
3. **Weakens PM's Constitutional Prerogative: In Manoj Narula v. UoI (2014)**, SC held selection of Ministers is "**constitutional prerogative**" of PM/CM. The Bill limits this discretion.
4. **Unequal Standards** - Creates asymmetry: **MPs/MLAs removed only on conviction**, but **Ministers on detention**.
5. **Parliamentary Confidence Eroded**: Displaces **legislative majority principle** under Articles **75 & 164** with **police/judicial discretion**.
6. **Governance Destabilised**: Cycles of **resignation and reinstatement** weaken stability and fracture coalitions.
7. **Opportunism Encouraged**: Enables ruling parties to **weaponise detentions** to eliminate rivals.
8. **Authoritarian Tilt**: Empowers **law enforcement over Parliament**, reflecting **abusive constitutionalism**.
9. **"Revolving Door" Problem:** The provision allowing reappointment after release from custody could lead to cycles of resignation and reinstatement

Way Forward

1. **Address Presumption of Innocence** - Consider triggering removal at **charge-framing stage** (Law Commission 244th Report) instead of mere arrest.
2. Strengthen independence of **ED, CBI** through institutional reforms to remove fear of political weaponisation.
3. **Time-Bound Trials - Fast-track courts** for politicians to conclude trials within 1 year to avoid prolonged uncertainty.
4. **Mandatory judicial review** of detention before automatic removal.

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Chapter 10

Parliament

Parliament and State Legislature

PYQs

[2026] Examine whether the constitutional office of the Lok Sabha Speaker has become vulnerable to partisan politics under the current anti-defection regime. What institutional changes are required to ensure the neutrality of the Lok Sabha Speaker in managing a polarised House? (10)

[2025] Indian Constitution has conferred the amending power on the ordinary legislative institutions with a few procedural hurdles. In view of this statement, examine the procedural and substantive limitations on the amending power of the Parliament to change the Constitution. (15)

[2023] Explain the structure of the Parliamentary Committee system. How far have the financial committees helped in the institutionalization of Indian Parliament? (15)

[2023] Discuss the role of Presiding Officers of state legislatures in maintaining order and impartiality in conducting legislative work and in facilitating best democratic practices. (10)

[2022] Discuss the role of the Vice -Presidents of India as the chairman of the Rajyasabha (10)

[2021] To what extent, in your view, the Parliament is able to ensure accountability of the executive in India? (10)

[2021] Do Department-related Parliamentary Standing Committees keep the administration on its toes and inspire reverence for parliamentary control? Evaluate the working of such committees with suitable examples. (15)

[2021] Explain the constitutional provisions under which Legislative Councils are established. Review the working and current status of Legislative Councils with suitable illustrations. (15)

[2020] "Once a speaker, Always a speaker'! Do you think the practice should be adopted to impart objectivity to the office of the Speaker of Lok Sabha? What could be its implications for the robust functioning of parliamentary business in India. (10)

[2020] Rajya Sabha has been transformed from a 'useless stepney tyre' to the most useful supporting organ in the past few decades. Highlight the factors as well as the areas in which this transformation could be visible. (15)

[2019] "Parliament's power to amend the Constitution is a limited power and it cannot be enlarged into absolute power." In the light of this statement explain whether Parliament under Article 368 of the Constitution can destroy the Basic Structure of the Constitution by expanding its amending power? (15)

[2019] Individual Parliamentarian's role as the national lawmaker is on a decline, which in turn, has adversely impacted the quality of debates and their outcome. Discuss. (15)

[2018] Why do you think the committees are considered to be useful for parliamentary work? Discuss, in this context, the role of the Estimates Committee. (10)

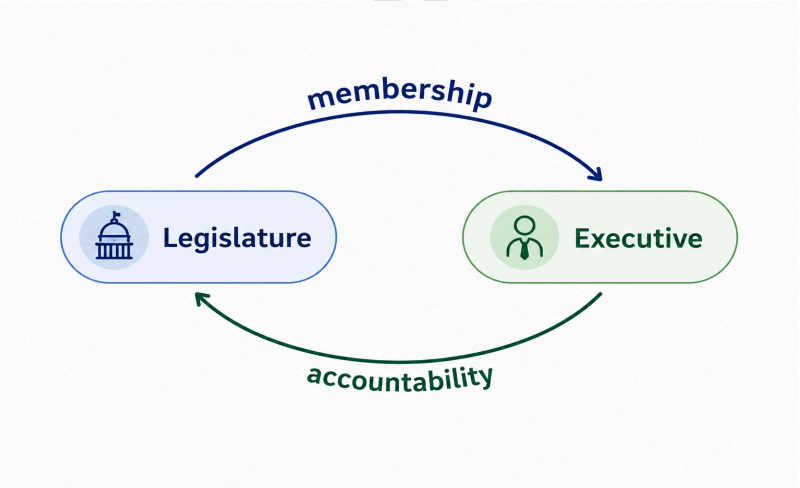
"The Parliament of India is the temple of democracy and the people of India are its high priests." - Lal Bahadur Shastri

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Reasons for Adoption

1. **Familiarity with the System**: India's established parliamentary traditions over the past decades, particularly after the Government of India Act, 1935.
2. **Preference for Responsibility**
3. **Harmony Between Legislature and Executive**: to avoid conflicts between the legislature and the executive, common in the U.S. presidential system.
4. **Nature of Indian Society:** India's diverse and complex society
5. **Flexibility:** allows for power-sharing arrangements and coalition governments, crucial for a diverse country like India.

Features of the Parliamentary system



1. **Nominal and Real Executive**
2. **Collective Responsibility to the Lok Sabha** (Article 75(3)).
3. **Political Homogeneity** - Ministers usually belong to the **same political party or coalition**.
4. **Membership of Legislature**
5. **Leadership of the Prime Minister** as **the head of government** and leader of the majority party.
6. **Dissolution of Lower House**
7. **Opposition and Accountability** - Existence of a **responsible opposition** ensures **continuous legislative scrutiny**.

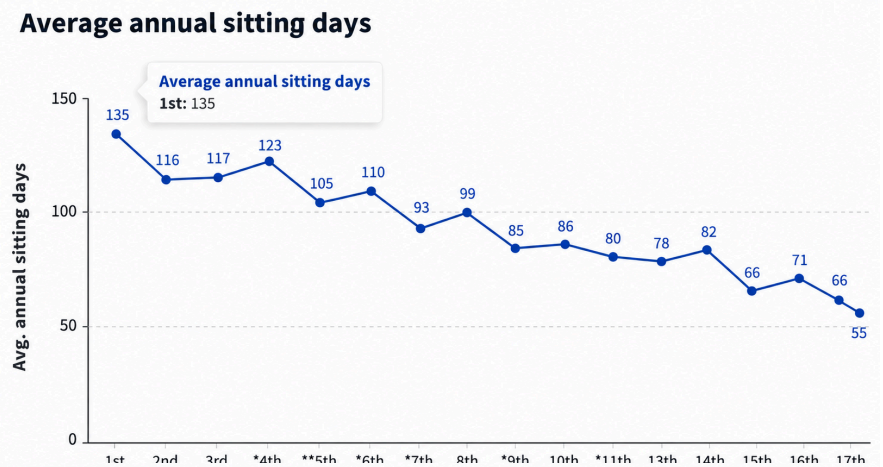
Functions of Parliament:

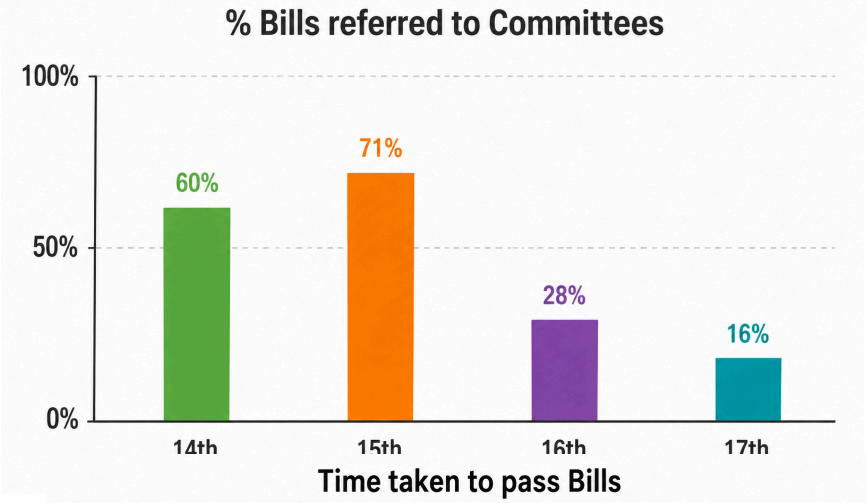
1. Legislative Function
   a. Makes laws on subjects in the Union and Concurrent Lists (Article 245-246).
   b. Can create new states, alter boundaries, and legislate on State List (Article 249).
2. Judicial Function- Impeaches the President (Article 61), removal of judges of the Supreme Court/High Courts, and punishes for contempt or breach of privilege.
3. Deliberative Function - Serves as a forum for national debate on policies, bills, and public issues, ensuring democratic deliberation.
4. Constitutional Function - Amends the Constitution under Article 368 through special majority procedures.
   a. Financial Function
   b. Exercises control over national finances - passes the Budget, Demands for Grants, and Appropriation Bills.
   c. Enforces financial accountability through the Public Accounts Committee and Estimates Committee.
5. Executive Control and Oversight
   a. Holds the Council of Ministers accountable through questions, debates, adjournment motions, and no-confidence motions (Article 75(3)).
   b. Approves President's ordinances and emergency proclamations.
6. Electoral Function
   a. Participates in the election of the President and Vice-President.
   b. Elects the Deputy Speaker, Deputy Chairman, and committee members.

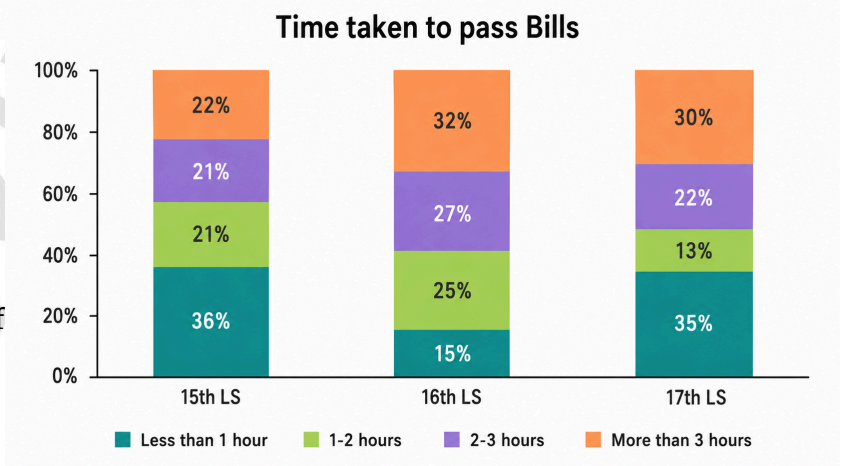
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Issues with parliamentary form of government

1. **Executive Dominance:** Government bypassing scrutiny by passing crucial bills as Money Bills undermines parliamentary oversight. Eg. Aadhaar Act (2016)
2. **Criminalization:** In the **18th Lok Sabha, 46% (251 out of 543) of MPs** faced criminal charges, with 31% (170 MPs) accused of serious crimes such as rape, murder, and kidnapping.
3. Reduced Scrutiny by Parliamentary Committees: only 17% of the Bills in 17th LS were referred to DRSCs concerned. (60% in 14th, 71% in 15th, 30% in 16th)
4. Decline in the number of sittings: The 17th Lok Sabha sat for only 55 days
5. **Underrepresentation of Women:** Women constitute approximately 14% of the 18th Lok Sabha (global average of 26.5%.)
6. **Low Productivity** - 35% of Bills were passed with less than an hour of discussion in Lok Sabha. The corresponding figure for Rajya Sabha was 34%.
7. **Inadequate Time Allocation:** Eg. the Tribunals Reforms Bill, 2021 was passed in Lok Sabha in about 17 minutes.
8. **Inadequate Discussion:** 58% of the Bills were passed within two weeks of their introduction in 17th LS. Eg. J&K Reorganisation Bill, 2019, and the Women's Reservation Bill, 2023







9. About 31% of the total functioning time in Lok Sabha, and 32% in Rajya Sabha was spent on **discussions other than legislation and budgets.** (President's Address to Parliament, matters of public importance, and trust votes.)
10. **Private Members Bills** - In the **17th Lok Sabha, 729 Private Members' Bills** were introduced - the second-highest ever - but **only two were discussed**.
11. Between **2019 and 2023**, about **80% of the Budget was passed without discussion**, and in **2023**, the **entire Budget was approved without debate**.
12. **Delimitation and Representation Concerns:** Southern states fear reduced representation due to lower population growth despite effective control measures

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PRS Legislative Research report findings on 17th Lok Sabha (LS)

- It held 274 sittings and passed 179 Bills (excluding Finance and Appropriation Bills).
- Question Hour functioned for 60% of scheduled time in LS and 52% in Rajya Sabha.
- 206 instances of suspension of Members of Parliament.
- For the first time, LS did not elect a Deputy Speaker for the entire duration. Article 93 requires that LS elect a Speaker and a Deputy Speaker 'as soon as may be'.
- 80% of the budget voted without discussion.

Way Forward:

1. **Increase Working Days: NCRWC (2002)** recommended mandatory 110 days a year
2. **Enhancing Parliamentary Decorum:** Encourage a culture of respect, professionalism, and active participation in debates among parliamentarians.
3. **Enhance Research Support for MPs:** Dedicated legislative research units should be established. Eg. **UK Parliament's Research Service**
4. **Encouraging Public Feedback** on key Bills and Public Issues
5. Venkatachaliah Committee (2002): restrict the use of whips to no-confidence motions only.
6. **Curbing Criminalization of Politics:** Reforms such as fast-track courts for swift justice, state funding of elections and transparency in candidate selection.

Comparison with the Presidential System

Aspect	Parliamentary System	Presidential System
Head of State	Ceremonial (Eg. President in India)	Executive (Eg. President in the U.S.)
Head of Government	Prime Minister	President
Separation of Powers	Fused; Executive drawn from the legislature	Separated; Executive independent of the legislature
Election of Leader	Prime Minister elected by parliament or party members	President elected directly by people
Term Length	No fixed term	Fixed term (Eg. 4 years in U.S.)
Accountability	To the legislature	To the people (Eg. through elections)
Stability	Government may be unstable if no clear majority	Fixed term provides stability until the next election
Representation	more reflective of diverse opinions due to coalition gov't	May not represent minority views as effectively
Examples	India, UK, Canada	United States, Brazil, France

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Parliamentary Sovereignty:

The Doctrine of Parliamentary Sovereignty means that Parliament holds the supreme power within the State, with no legal limitations on its authority or jurisdiction. In India, however, there is constitutional sovereignty, not parliamentary sovereignty.

Limitations on Parliamentary Sovereignty in India

1. **The written Constitution** defines and limits the powers of Parliament.
2. **Supremacy of the Constitution - Any law violating the Constitution can be declared void** by courts under Article 13.
3. **Judicial Review** guaranteed under Articles **13, 32, and 226**.
4. **Separation of powers:** Eg. **Articles 121 and 211** prohibit legislative discussions on the conduct of Supreme Court and High Court judges.
5. **Basic Structure Doctrine** - Parliament **cannot destroy or damage** the basic features like democracy, secularism, federalism, rule of law, and judicial independence.
6. **Federal Structure of Governance - States have exclusive jurisdiction** over matters in the State List (Seventh Schedule), unless under extraordinary provisions.
7. **Limited Amendment Procedure** - Some constitutional amendments require **ratification by at least half of the states** (Article 368(2)). Eg. Amendments affecting High Court jurisdictions.
8. **International Law and Treaties** - Eg. **Vishaka v. State of Rajasthan (1997)** - SC used CEDAW (Convention on Elimination of Discrimination Against Women) to frame guidelines.
9. **Presidential Veto Limitations:** Eg. pocket veto

Mechanisms available with the Indian Parliament to ensure executive accountability:

1. Question Hour - MPs question ministers on policy and governance issues.
2. Zero Hour - Members raise urgent issues without notice. Eg. Manipur violence (2023) and train accidents.
3. Motion of No-Confidence (Article 75(3)) - If passed, the government must resign. Eg. No-confidence motion (2023) on Manipur issue
4. Censure and Adjournment Motions - Used to express disapproval of executive policies. Eg. Censure motion (2012) against FDI in retail policy.
5. Cut Motions on Demands for Grants - Allow Parliament to reduce or reject specific budget allocations.
6. Parliamentary Committees - PAC, Estimates, and Standing Committees ensure financial and policy oversight. Eg. PAC (2011) report on 2G spectrum case.
7. Calling Attention and Half-Hour Discussions - Seek ministerial statements on urgent matters.
8. Discussion on Presidential Address - Enables MPs to review government priorities
9. Privilege Motions - Raised when ministers mislead Parliament.
10. Approval of Ordinances and Emergencies - Eg. Farm laws (2020)

Role of Rajya Sabha

Rajya Sabha is the second chamber of the parliament and consists of the representatives of the States and the Union Territories and persons nominated by the President of India.

Jawaharlal Nehru: "The Rajya Sabha represents the **voice of reason and sobriety** in our democracy."

G.V. Mavalankar: "A second chamber is not a luxury in a federal system; it is a **necessity for balanced legislation**."

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Powers of Rajya Sabha

Equal Powers with Lok Sabha

1. **Ordinary Bills**: can approve, reject, or suggest amendments to ordinary bills.
2. **Constitutional Amendments**: require a two-thirds majority in each house.
3. **Impeachment of the President**: Can initiate and participate
4. **Proclamation of Emergency:** Must approve the proclamation of National Emergency, President's Rule, and Financial Emergency within a specified period.

Special Powers of Rajya Sabha:

1. **Article 249:** authorize Parliament to pass laws on **state list subject**, in the national interest.
2. **Article 312:** RS can authorise the Parliament to create new **All-India Services**.
3. **Removal of Vice President:** RS alone can initiate a move for the removal of the VP.

Limited Powers w.r.t Lok Sabha:

1. **No-Confidence Motion:** It cannot be introduced in the Rajya Sabha.
2. **Money bills:** return bill to LS within **14 days**, LS can either **accept or reject**
3. **Joint Sitting: Speaker of LS presides** and **Rules of Procedure of Lok Sabha** govern.

Relevance of the Rajya Sabha in Indian Democracy

1. Permanent and Continuous Chamber (Article 83) - ensures continuity in polity.
2. Revisory and Deliberative Role
   a. Acts as a **"House of revision"**, ensuring **in-depth scrutiny of Bills** passed by the LS.
   b. Checks **hasty or populist legislation**, enhancing legislative quality.
   c. Provides a **platform for smaller and regional parties** to articulate their views.
3. Voice of the States (Articles 80 & 81) - Functions as a federal bridge, giving states a voice in national law-making and promoting cooperative federalism.
4. Constitutional and Electoral Role - Plays a key role in constitutional amendments (Article 368) and election of the President and Vice-President.
1. President nominates 12 eminent members, enhancing diversity and expertise, bringing non-political and intellectual voices into national discourse.

Concerns Related to Rajya Sabha:

Legislative Role

1. **Bypassing through Money Bill Route** - Eg. **Aadhaar Act, 2016**.
2. **Accusations of Obstructionism - Eg. delaying "progressive" legislation**, such as the **Privy Purses Bill (1970)**, **Panchayati Raj Bills (1989)**.
3. **Declining Productivity - Productivity fell from 95% (1990s) to 74% (2014-21)**, with a low of **40% in 2018**, due to frequent disruptions and walkouts.

Executive Accountability Role

1. **Rajya Sabha cannot move a no-confidence motion**, limiting direct **executive accountability**.
2. **Limited Role in Financial Oversight - no representation in the Estimates Committee** and a **restricted role in PAC**.
3. **Political Partisanship - Increasing party polarization** has led to **deadlocks** and reduced its **deliberative character**.

Representative Role

1. **Dilution of Federal Character - 2003 Amendment to RPA and Kuldip Nayar judgment removed the domicile requirement**, weakening **state representation**.

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2. **Unequal Representation of States in Rajya Sabha** - Eg. **Uttar Pradesh (31 seats)** has more representation than **all N-E states combined**.
3. **A 'Parking Lot' for Wealthy Candidates - 36% of current RS members have criminal antecedents** and **87% have assets over INR 1 crore**, with **12% billionaires** (**ADR**).
4. **Misuse of Presidential Nominations:** used as a tool for "political rehabilitation" of party loyalists.

Way Forward:

1. **Equal representation** for each state, so that large states do not dominate the proceedings. **(US system)**
2. **NCRWC, 2002** - Called for a **clear procedure for nominating eminent members**
3. **Punchhi Commission (2010)**- **expanding the electoral college** for Rajya Sabha to include **panchayats and municipalities**.
4. **Procedural and Institutional Reforms** - Allow **Rajya Sabha sessions independent of Lok Sabha** to underline its **permanent and continuous nature**.
5. Enhance **legislative research and committee resources** to support members.

With the **Planning Commission abolished** and the **Inter-State Council inactive**, Rajya Sabha should serve as a **permanent institutional bridge** for **federal consultation**.

X-Factor Pointers

- At present, **79** Parliaments of the world (**41%** of the total number) are bicameral.
- In **The Federalist**, the famous essays written in 1787-88 by **James Madison, Alexander Hamilton and John Jay**, it was stated that the second chamber enables a **second and reflective expression** of representative opinion besides **checking the propensity** to yield to the **impulse of sudden and violent passions.**

Role of Presiding officer

The **Speaker of the Lok Sabha (Article 93)** and the **Chairman of the Rajya Sabha (Article 64)** are the **Presiding Officers** of the two Houses of Parliament.

They are entrusted with **maintaining order, ensuring legislative discipline, and upholding the dignity and autonomy** of Parliament.

Functions:

Legislative Functions

1. **Presides over sittings** and ensures orderly conduct of business and debates.
2. **Decides on admissibility** of questions, motions, and resolutions.
3. **Certifies Bills** as **Money Bills (Article 110)** - a decision that is **final and binding**.

Disciplinary Role -

Maintains decorum and order in the House; can suspend or name members for disorderly conduct.

Quasi-Judicial Functions -

Decides questions of disqualification under the Tenth Schedule (Anti-Defection Law).

Administrative and Procedural Role

1. **Interprets rules** of procedure and parliamentary practices.
2. Allocates **time for debates and discussions**, and decides the **agenda** of the House.

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Guardian of Parliamentary Privileges

1. Safeguards the **rights, privileges, and independence** of the House and its members.
2. Represents the House in all **communications with the President and external authorities**.

Role in Parliamentary Committees

1. Refers Bills to **Parliamentary Committees** for detailed examination.
2. **Speaker nominates members** to Committees and serves as **ex-officio Chairperson** of key bodies like the **Rules Committee** and **Business Advisory Committee**.

Issues:

1. The Speaker combines both **legislative leadership** (presiding over sessions) and **quasi-judicial functions** (anti-defection adjudication, privileges inquiries) creating **conflict of interest**.
2. **Partisan Role and Political Bias -** Eg. In **Manipur and Maharashtra defection cases (2020-23)**, delay in decisions benefited ruling coalitions.
3. **Discretion in Disqualification under Tenth Schedule - Speaker is both judge and party member** under the **Anti-Defection Law**, creating a **conflict of interest**.
4. **Suspension and Control of the House** - Powers under **Rule 374A** give the Speaker **unilateral authority** to suspend MPs for "grave disorder." Eg. **2023 mass suspension of 146 MPs**
5. Speaker's certification under **Article 110** is **final and non-justiciable**, enabling **executive misuse**. Eg. **Aadhaar Act (2016)** passed as a **Money Bill**
6. **Lack of Neutrality Safeguards -** Unlike the **UK**, the Indian Speaker **remains a party member** and **contests elections on party tickets**, compromising neutrality.
7. **Article 122 - Judicial review of parliamentary proceedings is limited**, allowing **unchecked Speaker discretion**.
8. **Decline in Parliamentary Deliberation - "railroading" Bills** without adequate discussion (Eg. Farm Bills 2020 via voice vote).
9. **Absence of Accountability Mechanisms** - The **Speaker is accountable only to the House majority**, which often coincides with the ruling party.
10. Increasing **executive influence** and **declining impartiality** have damaged the institutional credibility of the Speaker's office, a trend described as **"executarian speakership"**.

Way Forward:

1. **Codify Speaker's neutrality** - mandatory resignation from a political party upon election.
2. **Amend Rule 374A** - require **House concurrence** for suspensions beyond one day.
3. **Limit Speaker's Role in Anti-Defection Law:** In the **Keisham Meghachandra Singh case**, the Supreme Court suggested that the current system could be replaced by a **permanent tribunal.**
4. **Introduce legislative due process** to guarantee minimum debate standards. Inspired by **Israel's Quantinsky v. Knesset**, which annulled a rushed tax law for violating principle **of participation**
5. **Adopt Britain's Model:** Following the British convention, political parties should avoid opposing the Speaker during elections to ensure impartiality.

Anti-Defection Law:

The **52nd Amendment Act of 1985** introduced in the **Tenth Schedule** of the Constitution, outlining the procedure for disqualifying legislators due to defection. Anti-defection laws aim to prevent or discourage defection by imposing penalties on politicians who switch parties or otherwise violate party discipline.

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Grounds for Disqualification under Anti-Defection Law:

1. If a member voluntarily resigns or gives up their political party membership.
2. If a member Votes, or does not vote in the house, contrary to the direction of his political party. However, if the member has taken prior permission, or is condoned by the party within 15 days from such voting or abstention, the member shall not be disqualified.
3. **Independent Members:** Joining a Party after Election as an Independent Candidate:
4. **Nominated Members:** Nominated Member Joining a Party Six Months after Appointment

Exceptions to Anti-Defection Law:

1. **Merger Exception:** A political party merger occurs when two-thirds of its members agree. Members leaving due to a merger are exempt from disqualification under the law.
2. **Presiding Officer Exception:** Elected presiding officers can temporarily relinquish party membership to ensure impartiality.]

Constitutional and Legal provisions:

1. **Tenth Schedule**: Introduced by the 52nd Amendment Act in 1985. It outlines procedures and criteria for disqualifying members due to defection.
2. **91st Amendment Act of 2003:**
   a. The amendment eliminated the provision that allowed **splits** in parties. Earlier, if one-third of the members of a legislative party defected, it was considered legal.
   b. A member of a house belonging to a political party who is disqualified under the Tenth Schedule for defection shall also be disqualified to be appointed as a minister.

Significance:

1. **Combating Corruption and Horse Trading:** address the historical issue of "Aaya Ram Gaya Ram" in Indian politics.
2. **Ensures Government Stability** by preventing members from switching party allegiance.
3. **Protects Legitimate Mergers:** Recognizes that parties may evolve, allowing a 2/3rd majority to merge without losing membership.
4. **Upholds Electoral Mandate:** Respects the voters' choice by ensuring a representative stays with the party they were elected under.
5. **Strengthens Party Discipline:** Provides a legal framework for party leadership to maintain unity during critical legislative votes.
6. **Reduces Corruption (Horse-Trading):** Discourages the "purchase" of legislators through ministerial berths or monetary incentives during narrow-majority situations.
7. **Quasi-Judicial Clarity:** Grants the Presiding Officer clear authority to adjudicate cases, providing a faster alternative to civil courts.

Criticism of the Anti-Defection Law in India

1. **"Wholesale" over "Retail" Defection:** While individual defection is banned, the 2/3rd merger rule effectively legalizes mass shifts by larger groups.
2. **Lack of Time Limit for Disqualification - 56%** of defection cases between 2014-2019 were decided with significant delays, mostly favoring the ruling party. (**PRS Legislative Research**)
3. **Partisan Role of Speakers**
4. **Stifles Internal Dissent:** Legislators cannot vote based on their conscience or constituency interests if it contradicts the party whip.
5. **Vagueness of "Voluntarily Giving Up":** Conduct like criticizing the party is often interpreted as "giving up membership." **Eg. Ravi Naik (1994) case**

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6. **Dictatorship of the High Command:** Power is concentrated in a few leaders who control the "whip," reducing MPs to "voting machines."
7. **Legislators resign** to bypass the 10th Schedule, only to be re-elected on the opposing party's ticket. Eg. in MP in 2018

Supreme Court Judgments:

1. Kihoto Hollohan v. Zachillhu (1992): The SC upheld the law but declared that the Speaker's decision is subject to Judicial Review for mala fides or procedural errors.
2. Keisham Meghachandra Singh v. Speaker (2020): Ruled that Speakers should ideally decide disqualification cases within 3 months.
3. Subhash Desai v. Governor of Maharashtra (2023): Clarified that the "Whip" and "Leader" must be appointed by the Political Party, not just the Legislative wing.
4. Telangana Speaker Case (Feb 2026): Reaffirmed that "indecision" by the Speaker cannot defeat the purpose of the 10th Schedule, threatening contempt for delays.

Way Forward:

1. **Dinesh Goswami Committee and ECI**: Recommended disqualification by President/Governor based on the Election Commission's advice.
2. **External Tribunal:** Transfer adjudication power to an independent permanent tribunal headed by retired judges (**SC Recommendation, 2020**).
3. **Limiting the Whip:** The "Whip" should only be binding for **Critical Motions** (No-Confidence, Budget) to allow free speech on other bills.
4. **Statutory Timelines:** Amend the rules to mandate a final decision within **60–90 days** of filing a petition.
5. **Pre-Election Coalitions:** Grant the same legal status to pre-poll alliances as single parties to prevent post-poll "horse-trading."
6. **Barring Ministerial Berths:** Extend the ban on holding ministerial posts for defectors even if they win a by-election immediately.
7. **Intra-Party Democracy:** Legally mandate internal elections within parties to ensure the "whip" represents the members' will, not just the leader's.

Parliamentary privileges:

Parliamentary privileges refer to the special rights, immunities, and exemptions granted to Members of Parliament (MPs) and parliamentary committees to perform their duties effectively.

Article 105 of the Indian Constitution defines these privileges for MPs, while **Article 194** extends similar privileges to state legislators.

Sources of Parliamentary privileges:

1. Constitutional provisions
2. Parliamentary laws
3. Rules of procedure for both Houses
4. Established conventions
5. Judicial interpretations

Classification of Parliamentary privileges:

Individual Privileges:

1. **Protection from Arrest**: 40 days before and after the session. This applies only to civil cases

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2. **Freedom of Speech**
3. **Exemption from Jury Service**

Collective Privileges

1. **Publication Rights**: press can publish true reports of parliamentary proceedings without prior permission, except in the case of secret sessions.
2. **Exclusion of Strangers**
3. **Regulatory Authority**: Each house can make rules to regulate its procedures, conduct its business, and adjudicate related matters.
4. **Punitive Powers**: Each house can punish members or outsiders for breaching its privileges or contempt, through reprimand, admonition, imprisonment, suspension, or expulsion.
5. **Notification Rights**: Parliament has the right to receive immediate information regarding the arrest, detention, conviction, imprisonment, and release of its members.
6. **Inquiry Powers**: Each house can conduct inquiries, summon witnesses, and request relevant papers and records.
7. **Judicial Immunity**: Courts are prohibited from inquiring into parliamentary proceedings or the actions of its committees.

Significance of Parliamentary Privileges:

1. **Legislative Independence:** Ensures autonomy from the executive and judiciary, reinforcing **separation of powers.**
2. **Independent Policy Deliberation:** Ensures members speak their minds on sensitive national issues without fear of defamation suits.
3. **Effective Government Scrutiny:** Shields MPs while questioning the government (Eg. PAC summoning officials in the 2018 Rafale deal inquiry).
4. **Maintaining Discipline:** Allows enforcement of order, including suspensions for misconduct.
5. **Dignity of the House:** The power to punish for contempt maintains the sanctity and decorum of the legislative chamber.
6. **Accountability Mechanism:** Eg. in 2018, the Rajya Sabha suspended MP Vijay Mallya for misusing his position and evading financial obligations.
7. **Ensuring Parliamentary Supremacy:** Privileges ensure that Parliament remains the final arbiter of its own internal rules and business.

Issues

1. **Lack of Codification:** Absence of a clear law leads to ambiguity and "rule by convention" from the British era.
2. **Bribery and Corruption:** Recent judgments show that "immunity" was being misused to shield criminal acts like taking bribes. **Eg. Sita Soren Case**
3. **Conflict with Fundamental Rights:** The "Right to Privilege" clashes with the citizen's **Right to Free Speech (Art 19)**. **Eg.** privilege notices to Journalists for reporting on a Speaker's conduct
4. **Vague Definition of "Contempt":** Unlike "Breach of Privilege," "Contempt" is undefined, allowing for arbitrary use against critics.
5. **Violation of Natural Justice:** The House acts as "Prosecutor, Judge, and Executioner" in its own cause during privilege trials.
6. **Political Vendetta:** Majority parties sometimes use privilege motions to silence or "expel" vocal Opposition members.
7. **Opacity of Committee Proceedings:** Privilege Committee meetings are usually "in-camera," leading to a lack of public transparency.

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8. **Archaic Nature:** Many privileges are verbatim copies of the 19th-century UK House of Commons, disconnected from modern India. **Eg.** privileges like **"Secret Sittings"**

Major SC Judgments

1. **Sita Soren v. Union of India (2024):** A landmark 7-judge bench ruled that MPs/MLAs have **no immunity** from prosecution for taking bribes to vote.
2. **K. Anandan Nambiar Case (1951):** Established that an MP has no special status over citizens in **criminal cases** or preventive detention.
3. **Raja Ram Pal v. Hon'ble Speaker (2007):** Upheld the House's power to expel members for conduct that brings the House into "disrepute."
4. **Searchlight Case (MSM Sharma):** Ruled that parliamentary privileges (uncodified) can prevail over a citizen's Right to Freedom of Speech.

Way Forward

1. **Legislative Codification:** Enact a **Parliamentary Privileges Act** to clearly define "Breach" and "Contempt"
2. **Harmonious Construction:** Privileges should be interpreted to exist alongside **Fundamental Rights**, not supersede them
3. **Independent Tribunal:** Adjudication of privilege breaches should be moved to a neutral body to ensure **Natural Justice**.
4. Adopt the UK's **Defamation Act** model where serious harm must be proven before a notice is issued.
5. **Transparency in Adjudication:** Live-stream the **Privilege Committee** hearings (except for national security) to ensure public accountability.
6. **Time-Bound Resolution:** Fix a **60-day limit** for the disposal of privilege motions to prevent long-drawn political harassment.
7. **Training and Sensitization:** Mandatory orientation for first-time MPs in 2026 on the **ethical use** of their immunities.

Codification of Parliamentary privileges:

Arguments in Favour	Arguments Against
Codification would define privileges clearly, removing ambiguity.	Flexibility would be lost; future unforeseen situations may not be covered.
Limits misuse by members under the vague cover of "breach of privilege."	Codification could be bypassed or exploited through technical loopholes.
Establishing clear guidelines ensures responsible use of privileges while allowing scrutiny.	May lead to judicial intervention in parliament
Helps build public trust by showing that Parliament is not above the law.	May undermine the **dignity and sovereign status** traditionally associated with legislatures.
Many democracies (Eg. UK, Australia) have codified or partially codified privileges.	Indian conditions are unique; **borrowed models** may not suit Indian political dynamics.

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Money Bills

Article 110 of the Constitution of India outlines the definition of a Money Bill, stating that a bill is considered a Money Bill if it contains only provisions dealing with specific financial matters. These include:

1. The **imposition, abolition, remission, alteration, or regulation** of any tax.
2. The regulation of the **borrowing** of money or the giving of any guarantee by the GoI.
3. The custody of the **Consolidated Fund or the Contingency Fund** of India, the payment of money into or the withdrawal of money from any such fund.
4. The appropriation of money out of the Consolidated Fund of India.
5. Declaring of any expenditure to be **expenditure charged** on the Consolidated Fund of India
6. The **receipt of money** on account of the Consolidated Fund of India or the public account of India or the custody or issue of such money.
7. Any matter incidental to any of the matters specified above.

Exclusions from money bills as outlined in the Indian Constitution.

1. These include the imposition of fines, pecuniary penalties, fees for licenses or services, and local taxes imposed by local authorities for local purposes.
2. These matters are not considered directly related to the central financial policies of the union government.

Need:

1. **Ensures Executive Speed:** Allows the government to pass essential financial laws without the risk of long-drawn delays in the Rajya Sabha. **Eg. Finance Bill 2026**
2. Reflects the principle that only the **"House of the People"** should have the **final say** on the people's money.
3. **Financial Stability:** Prevents a "fiscal cliff" by ensuring that the **Consolidated Fund of India** is never blocked by a political deadlock.
4. **Exclusive Presidential Oversight:** Requires prior recommendation of the President, ensuring the executive and legislative wings are in sync.
5. **Administrative Efficiency:** Combines multiple fiscal measures into a single bill, reducing the legislative burden on Parliament.
6. **Constitutional Guardrails:** Explicitly excludes "fines" or "fees for services" from being termed Money Bills, preventing executive overreach.

Issues:

1. **Bypassing the Rajya Sabha: Eg.** The **Insolvency and Bankruptcy Code (IBC)** and **PMLA amendments** were passed via this route.
2. **Legislative "Smuggling":** Embedding non-financial provisions (like data privacy or tribunal reforms) into a Finance Bill to fast-track them.
3. **Role of Certifying Authority:** Allegations have surfaced regarding the speaker's potentially biased role due to the speaker's sole discretion in certifying a bill as a money bill.
4. **Fiscal Mismanagement Risk:** Limited scrutiny can lead to poorly considered financial policies.
5. **Conflict with Article 117:** The thin line between a "Money Bill" and a "Financial Bill (Type I)" is frequently exploited to favor the former.

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Way Forward:

1. **Standing Committee Scrutiny:** Every bill intended for "Money Bill" certification should be reviewed by a bipartisan committee before the Speaker's final stamp.
2. **Judicial Comity:** The Speaker should voluntarily refer "hybrid" bills to the Rajya Sabha to maintain the spirit of bicameralism.
3. **Codified Guidelines:** Parliament should enact rules that prevent the "clustering" of unrelated laws within the annual Finance Bill.

Profile of MPs

Analysis of the profile of the elected Members of Parliament of the 18th Lok Sabha:

1. The average age of MPs elected to the 18th Lok Sabha is 56 years; this was 59 years in the 17th Lok Sabha.
2. **11% of MPs are 40 years or younger**. Three MPs elected to the 18th Lok Sabha are 25 years old.
3. **Education profile:** 78% of MPs have completed at least undergraduate education. 5% of MPs in the have a doctoral degree, including three women MPs.
4. **Women representative:** 74 MPs (14%) elected to the are women. 16% of these women MPs are below the age of 40.
5. **Professional Profile:** Agriculture (37%) and social work (48%) are the most common professions among MPs elected to the 18th Lok Sabha.
6. **Criminal cases:**
   a. 251 (46 per cent) MPs in the 18th Lok Sabha have criminal cases registered against them.
   b. Twenty-seven MPs declared they were convicted. Fifteen MPs were charged with crimes against women, of which two were accused of rape.
7. **Legislative experience:**
8. **52% of newly-elected MPs** are first-timers in Lok Sabha
9. **262 MPs** elected to the 18th Lok Sabha have previously served as members of Lok Sabha.

Women Representation in Parliament:

1. The total number of women contesting general elections in the country has increased from 3% in 1957 to 10% in 2024.
2. **Candidacy:** The number of women contesting general elections has grown substantially-from 45 candidates in 1957 to 797 in 2024.
3. **Parliamentary Representation:** Women's representation in the Lok Sabha increased from 5% (22 seats) in 1951 to 13.6% (74 seats) in 2024. In the Rajya Sabha, female representation rose from 7% in 1952 to 13% in 2023.
4. **Local Governance:** women hold 46% of positions in local self-government institutions, totaling approximately 1.45 million female representatives.

Need:

1. **Correcting Underrepresentation: 48.5%** of India's population hold only **14%** of LS seats. India ranks **143** in parliamentary gender parity, lagging behind neighbors like Bangladesh
2. **Enhancing Substantive Policy Focus: Eg.** Studies on **Panchayati Raj** show women leaders invest more in public goods than male counterparts.
3. **Improving Governance and Efficiency:** women lawmakers are less likely to be involved in criminal activities and corruption. **Eg. 27%** of women MPs/MLAs have criminal cases compared to over **40%** of men. (**ADR**)

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4. **Closing the Global Gender Gap: Eg.** India slipped to **131st** in the **2025 Global Gender Gap Report** due to falling political representation.
5. **Achieving "Nari-Shakti" led Development:** Transitioning women from "passive beneficiaries" of schemes to "active makers" of national laws and budgets.
6. **Addressing Gender-Specific Legislation:** Representation ensures that laws on sensitive issues like sexual violence and domestic labor are gender-sensitive.
7. Economic Impact: According to a McKinsey Global Institute report, closing gender gaps in employment, including political leadership, could add $28 trillion to the global GDP by 2025.
8. **Challenging patriarchy:** To change the stereotyped image of 'women as only homemakers' and there will be gradual acceptance of 'women as lawmakers.'
9. **Constitutional Mandate for Equality** - **Article 14** and **Article 15(3)**
10. **Positive Role Modeling and Social Change** - Promotes **female participation in education, workforce, and governance**.

Issues:

1. **Ticket Distribution stage:** Male-dominated party hierarchies denying tickets or fielding them in "losing" seats. **Eg.** In **2024**, only **9.6%** of total candidates were women
2. **Lack of Institutional Support Mechanisms** - Absence of adequate training, leadership development, and capacity-building programs for women politicians.
3. **Delimitation-Linked Implementation Delay:** The 33% reservation is legally tied to a future Census and redrawing of boundaries.
4. **High Financial Barriers:** The "monetization" of elections disproportionately affects women who often lack independent assets or corporate backing.
5. **The "Proxy" Representation (Panchayat-Pati) Syndrome:** In many cases, women are fielded as figureheads while male relatives exercise the actual political power.
6. **Gender-Based Political Violence:** Women face physical threats and character assassination, creating a hostile environment that discourages new entrants.
7. **Disproportionate "Care Burden":** Societal expectations regarding domestic duties and child-rearing limit the time women can dedicate to 24/7 politics.
8. **Lack of Inner-Party Democracy:** The absence of transparent, merit-based candidate selection favors "dynastic" women over grassroots women leaders.

Measures taken to improve Women's representation:

1. **106th Amendment (2023):** Proposes 33% reservation for women in Lok Sabha & State Assemblies, pending implementation after the next census and delimitation.
2. **Political Party Quotas:**
   a. **Trinamool Congress (TMC)** - 40% women candidates
   b. **Biju Janata Dal (BJD) - Odisha:** pioneer in formal 33% voluntary reservation
   c. **In the 2022 UP Assembly elections**, congress fielded 40% women under the **"Ladki Hoon, Lad Sakti Hoon"** campaign.

Way Forward:

1. **Mandatory Internal Party Quotas:** Amend the **Representation of the People Act, 1951** to mandate that political parties give 33% of tickets to women.
2. **Capacity Building:** Scale up programs like the **Sashakt Panchayat-Netri Abhiyan (2025)** to train local women leaders for national roles.

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3. **Establishing Cross-Party Women's Caucuses:** Create formal parliamentary groups where women MPs can unite on gender-specific legislation across ideological lines.
4. Create a **"Gender Equality Fund"** to provide financial assistance to women candidates.
5. Institutionalizing **gender-sensitization training** for all parliamentary staff to recognize and support female leadership.
6. **Inclusive Sub-Quotas (Intersectionality):** Address demands for a "quota within a quota" for **OBC and Minority women** to ensure diverse social representation.
7. **Global Best Practices**
   a. "Zipper" System in Mexico and Bolivia - requires parties to alternate between male and female candidates on their lists
   b. **Rwanda** leads the world with **64%** women in parliament. Their constitution reserves 24 out of 80 seats for women
   c. In **Sweden**, the Social Democratic Party's "Crisis of Representation" in the 1990s led to a voluntary **50% quota**
   d. In **Georgia**, parties receive a **30% financial bonus** if their candidate list includes at least one woman in every trio of candidates.

Constitution (106th Amendment) Act, 2023

The **Constitution (106th Amendment) Act, 2023,**reserves **one-third of all seats** for women in **Lok Sabha, State legislative assemblies**, and the Legislative **Assembly of the National Capital Territory of Delhi,**including those reserved for **SCs and STs.**

Key Provisions:

- **Articles Amended: Article 239AA**: Reserves one-third of the seats for women in the Legislative Assembly of the NCT of Delhi.
- **Articles Inserted:**
  - **Article 330A:** Reserves one-third of the seats for women in the Lok Sabha, including seats reserved for SCs/STs under Article 330.
  - **Article 332A:** Reserves one-third of the seats for women in State Legislative Assemblies, including seats reserved for SCs/STs under Article 332.
  - **Article 334A:** Provisions take effect after delimitation following the first census post-act commencement.
  - **Sunset Clause**: Reservation ceases 15 years after implementation but can be extended by Parliament.
  - **Periodic rotation** of reserved seats after each delimitation, as determined by Parliament.
  - No impact on current legislative representation until dissolution.

Parliamentary Committees:

According to LS speaker Om Birla, Parliamentary Committees are the "backbone of parliamentary democracy.

Parliamentary Committees are regarded as the **"miniature legislatures"** or **"workhorses of Parliament"**, functioning to ensure **detailed, non-partisan, and expert scrutiny** of legislative and financial matters.

Woodrow Wilson-"Congress in session is Congress on public exhibition, while Congress in its committee rooms is Congress at work."

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Classification:

1. **Standing committees:** Permanent committees constituted by the Parliament to deal with specific areas of public policy or administration.
2. **Financial Committees:** The Public Accounts Committee (PAC), Committee on Public Undertaking, Estimates Committee.
3. **Committees to Enquire:** Committee of privileges, Committee of petitions, Ethics committee.
4. **Departmental Standing Committees**.
5. **Committees to Scrutinise and Control.**
6. **Committees Relating to the Day-to-Day Business of the House.**
7. **House-Keeping Committees or Service Committees.**
8. **Ad hoc committees:** Ad hoc committees are temporary committees constituted for a specific purpose and for a limited period of time. Eg. JPC

Significance of Parliamentary Committees:

1. **Workload Management for Parliament (principle of division of labour)**
2. **Checks and Balances:** Eg. **The Public Accounts Committee (PAC)** has played a critical role in examining financial irregularities, such as the 2G spectrum allocation scam.
3. **Facilitating In-Depth Policy Analysis and Improving Legislative Quality** - Committee scrutiny of bills reduces drafting errors and legal loopholes before enactment.
4. **Expert Consultation and Evidence-Based Decision-Making -** Committees can **invite experts, civil society groups, and industry representatives** for consultations.
5. **Cross-Party Consensus Building** Committees work away from the adversarial floor, enabling bipartisan cooperation on sensitive issues.
6. **Ad-hoc Joint Parliamentary Committees** investigate **specific financial scandals and institutional failures**. Eg. JPC on Harshad Mehta stock market scam
7. **Budgetary Oversight:** Departmentally Related Standing Committees (DRSCs) analyze budget allocations and expenditure trends of ministries, ensuring financial prudence.
8. **Continuity in Policy Review:** Unlike parliamentary sessions, which are time-bound, committees function throughout the year, ensuring sustained oversight.
9. **Bridging Knowledge Gaps Among MPs** - Committee discussions and expert briefings **equip MPs with better understanding** of specialized and technical matters.

Challenges:

1. **Declining Bill Referrals: Eg.** Referral rates dropped from **71% (15th LS)** to just **17% (17th LS)**.
2. **Non-Binding Recommendations:** The government is not legally required to accept committee suggestions
3. **Short Tenure of Members:** The one-year term for members prevents them from developing deep subject-matter expertise.
4. **Lack of discussion:** Since they are recommendatory in nature, reports of committees are rarely taken up for discussion in Parliament.
5. Unlike legislative committees in countries like the US, Indian committees **cannot enforce their recommendations or summon ministers**.

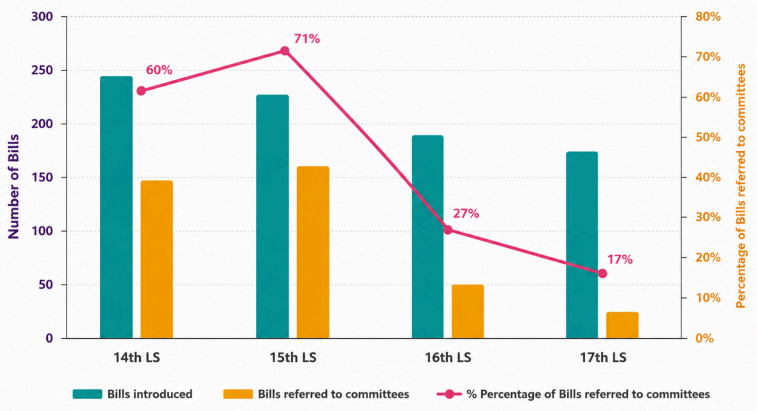


Figure 1: Number of Bills Referred to Committees between the 14th Lok Sabha and the 17th Lok Sabha

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6. **Low attendance:** In 17th LS, average attendance for committee meetings was only **47%.**
7. **Limited support** - currently, technical support available to committees is limited to secretariat that help scheduling meetings and taking notes. (in Canada, library of parliament provide staff to committees on request)
8. **Post mortem analysis: Eg.** The PAC is still auditing **2021-22 pandemic expenditures** in the **2026 session**.
9. **Weak Subpoena Powers:** While they can summon officials, they lack the "contempt" power to punish non-compliance effectively.
10. **Lack of Public Awareness and Transparency:** Committee proceedings are held behind closed doors, limiting public engagement and scrutiny.
11. **Resource Crunch:** Committees have limited budgets to travel for "on-site inspections" or hire private auditors.
12. **Transparency Concerns:** Meetings held behind closed doors, with no published minutes, raise transparency issues.

Way Forward:

1. **Mandatory Referral:** Amend Rules of Procedure to make bill referral to committees the "default" rather than "discretionary." (**UK System**)
2. **Extended Tenures:** Increase the term of committee members from **1 year to 2 or 5 years** for expertise.
3. **Binding Nature (Selective):** Make "unanimous" recommendations binding on the government.
4. **Dedicated Research Staff:** Every DRSC should have a team of **subject-matter experts** and legal researchers similar to U.S. **Congressional Research Service (CRS)**
5. **Transparency:** Live-stream committee hearings (excluding sensitive security matters) to ensure public accountability.
6. **Inter-Session Meetings:** Encourage committees to meet more frequently during the "Inter-Session" period to reduce pendency.
7. **Gender Parity:** Ensure that every committee has at least **33% women members**, following the spirit of the **2026 Delimitation Bill**.
8. **Mandatory Response from Government:** Ministries should be legally required to respond within a fixed timeline (Eg. 3 months) to DRSC recommendations.

Ethics committee

The Ethics Committee serves as the "moral guardian" of the Indian Parliament, ensuring that the conduct of legislators aligns with the dignity of the House.

History and Origin

1. **1996 Presiding Officers' Conference** in New Delhi recommended ethical oversight bodies.
2. **Rajya Sabha:** The first such committee in any Indian legislature, constituted in **1997**.
3. **LS:** An ad hoc committee was formed in **2000**. Became permanent committee in **2015**.

LS committee has the strength of 15 members and RS has 10 members.

Key Powers and Functions

1. **Overseeing Moral Conduct:** Monitors the behavior of members to ensure it meets the ethical standards expected of people's representatives.
2. **Examination of Complaints:** Investigates specific cases of "ethical misconduct" referred by the Presiding Officer or other members.

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3. **Code of Conduct Formulation:** Tasked with preparing and updating the **Code of Conduct** for MPs (though a formal, comprehensive code for Lok Sabha is still evolving).
4. **Register of Interests:** In the Rajya Sabha, the committee maintains a register where members declare their business interests to prevent **Conflicts of Interest**.
5. **Advisory Role:** Provides "advisory opinions" to members on whether a particular action (like accepting a gift) would be ethically sound.
6. **Recommending Penalties:** Can suggest punishments ranging from a warning/censure to suspension or **expulsion** from the House.

Case Studies

- Mahua Moitra Cash-for-Query Case (2023) - Ethics Committee of Lok Sabha conducted an inquiry and recommended her expulsion from the House.
- Subramanian Swamy Case - The Rajya Sabha Ethics Committee censured him and directed members not to make baseless accusations.
- In 2001, RS Ethics Committee proposed a 15-point Code of Conduct, including transparency in financial dealings, refraining from lobbying, and maintaining decorum.
- Investigated **commission seeking** for project approvals under **MPLADS**

Concerns:

1. The term **"Unethical Conduct"** is not legally defined, giving the committee broad discretionary powers.
2. **Overlap with Privileges Committee:** Eg. Serious corruption (like bribery) technically falls under "Breach of Privilege," leading to confusion.
3. **Overlapping Responsibilities:** The Ethics Committee and the Privileges Committee occasionally deal with similar cases.
4. **Short Tenure**: **one-year tenure** is insufficient **for in-depth examination** of the Code of Conduct and long-term policy making.
5. **Advisory Opinion:** Decisions of the Committee on Ethics are **advisory and not binding** on the Speaker.
6. **Political Bias** - Since members are nominated by party leadership, decisions may be influenced by **partisan interests**, undermining fairness.
7. **Limited Transparency** - **Proceedings are confidential**, and reports are not always made public
8. **Lack of Enforcement Mechanism** - There is **no legal penalty** for violating the Code of Conduct; punishment depends on political will rather than institutional authority.
9. **Delayed Proceedings** lead to ethical violations to fade from public attention without resolution
10. No **independent technical or research support** is provided to the committee, limiting its ability to investigate complex matters.

Way Forward:

1. **Clear Definition of 'Unethical Conduct'**
2. The **Code of Conduct for MPs should be updated** to include modern ethical challenges, such as misinformation, misuse of social media, and conflicts of interest.
3. **Law Commission of India (2015 Report on Electoral Reforms):** Suggested a public complaints mechanism for reporting ethical violations.
4. **Global Best Practices for Strengthening the Ethics Committee:**
    a. **United Kingdom: Parliamentary Commissioner for Standards** investigates breaches and reports to the Committee on Standards.

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b. **United States:** The **Office of Congressional Ethics (OCE)** reviews allegations against House members and refers them to the Ethics Committee.
c. **Australia: "Register of Pecuniary Interests"** to prevent corporate lobbying

Delimitation:

1. **Delimitation is an** act of fixing limits or boundaries of territorial constituencies in a country to reflect population changes.
2. **Article 82:** Mandates Parliament to enact a Delimitation Act after every Census.
3. **Article 170:** Provides for the readjustment of seats in State Legislative Assemblies after every Census.
4. **Article 327:** Empowers Parliament to make provisions with respect to all matters relating to elections, including delimitation.

History of Delimitation in India

1. Delimitation Commissions have been established four times, in 1952, 1963, 1973, and 2002.
2. The **42nd Amendment (1976)** froze seat allocation based on the 1971 Census until 2000; the **84th Amendment (2001)** extended this freeze until the first census after **2026**.

Key Proposals of the 131st Amendment Bill (2026)

1. **Expansion of Lok Sabha:** from **543 to 850** seats (815 for States, 35 for UTs).
2. Enables delimitation based on the **2011 Census** data to avoid further delays.
3. Links the implementation of the **33% quota** (Nari Shakti Vandan Adhiniyam) to this fresh delimitation.
4. The **Lok Sabha-to-Rajya Sabha seat ratio** will shift from **2.2:1 to 3.3:1**.

Justification of Delimitation

1. **Upholding "One Person, One Vote": Eg.** Currently, an MP from **Rajasthan** represents 3x more voters than one from **Lakshadweep**.
2. **Reflecting Demographic Realities:** Adjusts boundaries to account for internal migration and urbanization since the 1971 freeze.
3. **Correcting Seat Undervaluation:** Northern states like **UP and Bihar** are currently under-represented relative to their actual 2026 population.
4. **Administrative Efficiency:** Smaller constituencies allow MPs to manage developmental funds and local issues more effectively.
5. **Updating SC/ST Reservations:** Readjusts reserved seats based on the latest demographic shifts of marginalized communities.
6. **Bridging gap between citizens and MPs: Eg.** Reduces the average population per MP from **25 lakh** to a more manageable **15 lakh**.

Major Challenges in Delimitation

1. **The North-South Divide:** Southern states fear being "penalized" for successful population control. **Eg. Tamil Nadu**'s seat share could drop from 7.1% to 6.3%.
2. **"Hindi Heartland"** may gain a "perpetual majority," sidelining regional linguistic identities. **Eg. UP and Bihar** together could control nearly 25% of the 850-seat Lok Sabha.
3. **Language and Cultural Hegemony:** Fears that the "One Nation" narrative will override the diverse cultural interests of smaller states.
4. **Diminishing Rajya Sabha Power:** The new **3.3:1 ratio** makes the Rajya Sabha (the Council of States) numerically irrelevant during deadlocks & joint sittings
5. **Quality of Deliberation:** Doubts whether a massive **850-member House** can conduct meaningful debates without constant disruptions.

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6. **Increased Cost to Exchequer: Eg.** Estimates suggest a **40% increase** in the annual maintenance cost of the Parliament complex.
7. **Gerrymandering Suspicions:** Allegations that the ruling party may draw boundaries to favor their specific voter banks.
8. **Delimitation in the Northeast** faces ethnic tensions over tribal and non-tribal representation

Way Forward

1. **Balance Population Growth and Fair Representation:** Consider **alternative metrics,** such as voter density or development index, to determine seat allocation.
2. Increase RS seats to **400+** to maintain the **2:1 ratio**, preserving its federal veto power.
3. Ensure the **2026 Delimitation Commission** remains strictly non-partisan
4. Use the **Inter-State Council** to build a "consensus formula" that balances population with development indices
5. **Set Population Deviation Limits** - Enforce a uniform **±10% deviation rule** in constituency size (like Germany) to uphold **voter parity**.

Role of opposition

In a parliamentary democracy, the Opposition is as vital as the Government. It is often described as the "Government-in-waiting."

"If there is no opposition, there is no democracy." - **Sir Ivor Jennings**

"The duty of the Opposition is to propose nothing, to oppose everything, and to turn out the Government." - **Lord Randolph Churchill** (Reflecting the traditional adversarial role).

"Once a government is committed to the principle of silencing the voice of opposition, it has only one way to go, and that is down the path of increasingly repressive measures." - **Harry S. Truman**

The post of LoP is a **statutory** one, recognized under the **Salary and Allowances of Leaders of Opposition in Parliament Act, 1977**. To be recognized, a leader must:

1. Belong to the largest opposition party having at least **10% of the total strength** of the House (i.e., **55 seats** in the Lok Sabha).
2. Be officially recognized by the Speaker (Lok Sabha) or Chairman (Rajya Sabha).
3. The post was vacant from 2014 to 2024 because no single opposition party reached the 55-seat mark.

Significance of Opposition in Democracy

1. **Checks and Balances:** Prevents the ruling party from exercising absolute power or passing arbitrary legislation without scrutiny. **Eg.** recent failure of constitution 131 amendment Bill
2. **Ensures Executive Accountability:** Uses parliamentary tools like **Question Hour** and **Zero Hour** to demand answers from ministers.
3. **Alternative Policy Proposals:** Functions as a "Shadow Government," offering viable policy alternatives to the public.
4. **Safeguards Minority Interests:** Represents the voices of those who did not vote for the majority, protecting diverse cultural and regional identities.
5. **Legislative Scrutiny:** Plays a critical role in **Parliamentary Committees**, where they analyze the fine print of complex bills.
6. **Upholds Public Interest:** Highlights administrative failures, corruption, or public grievances that the government might overlook. **Eg.** Exposing Bofors Scam

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7. **Watchdog of Constitutional Values:** Acts as a barrier against laws that might threaten secularism or federalism. **Eg.** opposition to Farm Bills
8. **Vents Popular Discontent:** Provides a formal channel for citizen protests, preventing dissent from turning into violent street movements.
9. **Prepares Future Leadership:** Serves as a training ground for future ministers and prime ministers to understand governance through critique.

Major Challenges Faced by Opposition

1. **Diminishing Parliamentary Time:** Increasing use of "guillotine" motions and frequent adjournments limit the time available for opposition debate.
2. **Marginalization in appointments** - Eg. government majority in appointment committee of CEC
3. **Misuse of Investigative Agencies:** Allegations that the ED, CBI, and IT departments are used selectively to target opposition leaders.
4. **Speaker's Partisan Perception: Eg.** refusal to admit a **removal Motion** against CSE despite signature of over 100 MPs.
5. **Legislative Bypassing:** Increasing use of the **"Money Bill"** tag to bypass the Rajya Sabha, where the opposition is stronger.
6. **Lack of Internal Cohesion:** Ideological differences within umbrella alliances (like INDIA bloc) can lead to contradictory messaging.
7. **Suspension of Members** prevents the opposition from participating in key votes. **Eg.** In **Dec 2023-Jan 2024**, over **140 MPs** were suspended.

Way Forward

1. Formalize **UK-style shadow cabinets** to provide domain expertise and alternative budget
2. **Statutory "Opposition Day":** Dedicate one day a week in Parliament solely for the opposition to set the agenda.
3. Mandate that all bills must be referred to **Standing Committees** for bipartisan review.
4. **Legislative Productivity Targets:** Agreeing on a "Code of Decorum" to minimize disruptions while maximizing the quality of debate.

Suspension of MPs

Recent Context

1. **Winter Session 2023:** An unprecedented **19% of Parliament** (146 MPs) was suspended for demanding a statement on the security breach.
2. In a rare moment of consensus, the Lok Sabha revoked the suspension of **eight opposition MPs** on **March 17, 2026**, after a motion moved by the Parliamentary Affairs Minister.
3. New 2026 protocols now explicitly ban the display of **AI-generated videos/images** and placards within the House precincts.

Justification for Suspension

1. **Maintaining House Decorum: Eg.** Rule **373 (LS)** empowers the Speaker to remove members whose conduct is "grossly disorderly."
2. **Preventing Persistent Obstruction: Eg.** Rule **374 (LS)** and **256 (RS)** allow suspension for "persistently and willfully obstructing" business.
3. **Upholding Speaker's Authority**

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4. **Enforcing Conduct Rules:** Eg. **1989 updated rulebook** prohibits shouting slogans or tearing documents.
5. **Ensuring Legislative Productivity:** Prevents a few members from stalling bills that affect the entire nation's governance.
6. **Safety and Security** of staff and other members from violent or aggressive behavior.
7. **Accountability to Taxpayers: Eg.** cost of a stalled hour is approximately **₹2.5 crore**.
8. Preventing **unparliamentary tactics** like playing tape recorders or displaying AI deepfakes.

Criticisms of Suspension

1. **Silencing the Opposition: Eg.** The **Telecom Bill** and **Criminal Laws (2023)** were passed while 146 MPs were absent.
2. **Erosion of Representation:** Suspending an MP effectively disenfranchises millions of voters whose voices are no longer heard.
3. **Partisan Application:** There are claims that the ruling party's disruptions are ignored while opposition dissent is strictly penalized.
4. **Deletion of Questions:** Suspended MPs lose the right to have their parliamentary questions answered, reducing executive oversight.
5. Suspension should be the **last step,** not the first reaction to protest.
6. International observers often cite mass suspensions as a sign of **"democratic backsliding" in India. Eg.** Reports from **V-Dem and Al Jazeera**
7. **Trust Deficit:** Constant friction and "punitive" actions create a hostile environment, ending the possibility of bipartisan cooperation.

Way Forward

1. **Codifying "Disorderly Conduct":** Clearly define "unruly behavior" in the rulebook to remove the Speaker's subjective "opinion" from the process.
2. **Statutory "Opposition Days":** Dedicate specific days for the Opposition to set the agenda (**UK Model**) to reduce the "need" for disruption.
3. Before suspension, a mandatory meeting of the **Business Advisory Committee** should try to resolve the deadlock.
4. **Graduated Penalty Scale:** Introduce a tiered system (Warning -> Naming -> Day Suspension -> Session Suspension) to prevent "over-punishing."

Issues with opening speeches of governors in state legislatures:

R. Venkataraman described the address by Presidents and Governors at the commencement of the first session of the Houses each year as a "British anachronism" and a "meaningless formality."

Recent Context

1. Governors in **Tamil Nadu, Kerala, and Karnataka** sparked controversy by skipping large sections of the Cabinet-approved speeches that were critical of Union Government policies
2. In **2025**, the Tamil Nadu and Kerala assemblies passed resolutions urging the President to intervene and ensure that Governors do not deviate from the text prepared by the CoM.
3. In the **State of Tamil Nadu v. Governor, SC** reaffirmed that the Governor is a "ceremonial conduit" and cannot act as an adversary to the elected government.

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Constitutional Provisions

1. **Article 176(1):** at the commencement of the first session after each general election and the first session of each year, the Governor **"shall address"** the Legislative Assembly.
2. **Article 175:** Grants the Governor the "right to address" the House at any other time, though this is rarely used and is distinct from the mandatory special address.

Major Issues in Opening Speeches

1. **Selective Omission of Paragraphs: Eg.** the **Kerala Governor** omitted paragraphs criticizing the Union's fiscal federalism policies.
2. **Unilateral Text Alteration: Eg.** The **Karnataka Governor** in 2026 requested changes to 11 paragraphs before agreeing to read the speech.
3. **Gubernatorial Walkouts: Eg. Tamil Nadu Governor** walked out in **February 2024** after the Speaker began the Tamil rendition.
4. **Article 176** doesn't explicitly say "read verbatim," allowing Governors to claim "interpretative space."
5. **Parallel Power Centre:** Using the address as a personal manifesto turns a neutral office into a political actor.
6. **Violation of Westminster Model:** In India's parliamentary system, the Head of State is a ceremonial figure, not an executive.
7. **Erosion of Federalism:** Centrally appointed Governors interfering in state policy addresses is seen as "remote control" by the Union.

Way Forward

1. **Codifying Conventions:** Formalize the parliamentary convention that the speech is a "Government Statement" and not a "Governor's Speech."
2. **Time-Bound Objection Mechanism:** Governors must communicate any "factual" objections in writing at least 48 hours before the session.
3. **Strengthening Article 163:** Amend the Constitution to explicitly mention that "Address to Legislature" is a non-discretionary executive function.
4. **Presiding Officers' Power:** Empower the Speaker to read the skipped portions into the record as the "official deemed address."
5. Establish a formal **"Coordination Committee"** between the CM's office and Raj Bhavan to settle drafts.

Joint Sitting of the Parliament

A **Joint Sitting of Parliament** is an extraordinary constitutional mechanism used to resolve a legislative deadlock between the Lok Sabha (Lower House) and the Rajya Sabha (Upper House).

Constitutional Provisions (Article 108)

1. **Summoning:** The **President of India** summons the joint sitting after a deadlock arises.
2. **Conditions for Deadlock:** A joint sitting can be called if, after a bill is passed by one House and transmitted to the other:
   a. The bill is **rejected** by the other House.
   b. The Houses have **finally disagreed** on the amendments to be made.
   c. More than **six months** elapse from the date of reception without the bill being passed.
3. The **Speaker of Lok Sabha** presides. In their absence, the **Deputy Speaker** of Lok Sabha; if they are also absent, the **Deputy Chairman** of Rajya Sabha.
4. **Voting and Decision:** The bill is passed by a **simple majority** of the total number of members of both Houses present and voting.
5. **Quorum:** One-tenth of the total membership of both Houses.

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6. Joint sitting is also held for **special Address by the President under Article 87**

Need for Joint Sittings

1. **Breaking Legislative Deadlocks**
2. Provides a constitutional **"safety valve" to harmonize the differing perspectives** of the popularly elected Lok Sabha and the federally representative Rajya Sabha.
3. **Governance Continuity:** Prevents a policy paralysis when a government has a mandate in the Lower House but faces a hostile majority in the Upper House.
4. **Historical Significance:** Has been used to pass landmark social and security laws:
   a. **Dowry Prohibition Bill, 1961**
   b. **Banking Service Commission (Repeal) Bill, 1978**
   c. **Prevention of Terrorism Bill (POTA), 2002**

Limitations and Criticisms

1. **Lok Sabha Dominance** due to its larger numerical strength (currently **543** vs. **245**)
2. **Undermining Bicameralism:** reduces the Rajya Sabha to a "secondary" chamber, diluting the federal check-and-balance intended by the framers.
3. **Excluded Bills:** The mechanism **cannot** be used for:
   a. **Money Bills (Article 110)**
   b. **Constitution Amendment Bills (Article 368)**
4. **Risk of Majoritarianism:** A ruling party with a massive majority in the Lok Sabha can use a joint sitting to bypass the diverse regional interests represented in the Rajya Sabha.
5. **Legislative Delay:** Since a joint sitting can only be called after six months of a deadlock, it is ineffective for urgent bills

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Chapter 11

Elections

PYQs

[2026] Is the right to vote a fundamental right? Discuss the position of the Election Commission of India while undertaking the revision of electoral rolls. Can it also examine the question of citizenship of voters? (10)

[2025] Discuss the 'corrupt practices' for the purpose of the Representation of the People Act, 1951. Analyze whether the increase in the assets of the legislators and/ or their associates, disproportionate to their known sources of income, would constitute 'undue influence' and consequently a corrupt practice. (10)

[2024] Examine the need for electoral reforms as suggested by various committees with particular reference to "one nation -one election" principle. (10)

[2022] Discuss the procedures to decide the disputes arising out of the election of a Member of the Parliament or State Legislature under The Representation of the People Act, 1951. What are the grounds on which the election of any returned candidate may be declared void? What remedy is available to the aggrieved party against the decision? Refer to the case laws. (15)

[2022] Discuss the role of the Election Commission of India in the light of the evolution of the Model Code of Conduct.

[2022] While the national political parties in India favour centralisation, the regional parties are in favour of State autonomy." Comment. (15)

[2020] "There is a need for simplification of procedure for disqualification of persons found guilty of corrupt practices under the Representation of peoples Act" Comment (10)

[2019] On what grounds a people's representative can be disqualified under the Representation of People Act, 1951? Also mention the remedies available to such person against his disqualification. (15)

[2018] In the light of recent controversy regarding the use of Electronic Voting Machines (EVM), what are the challenges before the Election Commission of India to ensure the trustworthiness of elections in India? (10)

"The ballot is stronger than the bullet." - **Abraham Lincoln**

"Elections without discipline are a disaster, elections with integrity are democracy's triumph." - **T.N. Seshan (Former CEC)** "India's democracy survives not because it is perfect, but because it renews itself at every election." - **Ramachandra Guha** "Elections in India are less about transferring power and more about reaffirming the idea of India itself." - **Pratap Bhanu Mehta**

Constitutional Provisions (Part XV: Articles 324-329)

1. Article 324: Vests the "superintendence, direction, and control" of elections in the ECI for Parliament, State Legislatures, and the offices of President and Vice-President.
2. Article 325: Mandates one general electoral roll. No person can be excluded on grounds of religion, race, caste, or sex.
3. Article 326: Guarantees Universal Adult Suffrage (voting age 18 - 61st Amendment).
4. Article 327: Empowers Parliament to make laws regarding elections. Eg. RPA 1950, 1951.

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5. Article 328: Empowers State Legislatures to make laws on elections if Parliament hasn't provided for them.
6. Article 329: Bars courts from interfering in electoral matters (Eg. delimitation), except through an election petition.

Important Data

Category	Key Facts
Voter Base	Approximately **98 crore**
Voter Turnout	Increased from **44% (1951) → 65.79% (2024)**
Gender Participation (Voters)	**Women voters** outnumbered men by **0.23% (2024)**
Criminal Cases (MPs)	MPs with criminal charges: **24% (2004) → 46% (2024)**
Women Representation (Candidates & MPs)	**45 women candidates (1957) → 799 (2024)** = **9.5%** of total - **74 elected (2024)** = **13.6%** of MPs
Political Funding (ADR Data)	- **Unknown income sources:** 66% (2015-17) → **71% (2019-21)** - **Electoral Bonds:** 56% of donations (2016-21)
Black Money & Probes	- **41 firms (₹2,471 crore)** to ruling party under probe (CBI, ED, IT) - **30 shell companies** purchased bonds worth **₹143 crore**
Party-wise Electoral Bond Gains	- **BJP:** ₹6,986.5 crore - **TMC:** ₹1,397 crore - **Congress:** ₹615 crore
Simultaneous Elections (Logistics)	- EC needs **30 lakh EVMs** for nationwide simultaneous polls
Simultaneous Elections (Impact)	- **77% chance** same party wins Lok Sabha & Assembly elections (IDFC, 2015)

Provisions of the Representation of the People Act, 1950

Schedules and Key Sections

1. **The First Schedule: Allocation of Seats in the House of the People (Lok Sabha)**
   a. **Section 3:** Governs the **allocation of seats** to each state and the number of seats reserved for SCs and STs based on census data.
   b. **Section 4:** Mandates that all seats in the House of the People shall be filled by **direct election**.
2. **The Second Schedule: Total Number of Seats in Legislative Assemblies**
   a. **Section 7:** Determines the total strength of each **State Legislative Assembly** and the reservation of seats for SCs and STs within those assemblies.
3. **The Third Schedule: Allocation of Seats in the Legislative Councils**
   a. **Section 10:** Governs the allocation of seats for states that have a **Legislative Council (Vidhan Parishad)**.
   b. **Section 11:** Deals with the **delimitation of Council constituencies**.
4. **The Fourth Schedule: List of Local Authorities for Council Elections**
   a. **Section 27:** Identifies the specific **local bodies** (Municipalities, Zilla Parishads, etc.) whose members form the electoral college for electing members to the Legislative Councils.

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Other Key Sections of RPA 1950

1. **Section 13A - 13CC:** Defines the administrative hierarchy: **Chief Electoral Officer (CEO)** at the state level, **District Election Officer (DEO)**, and **Electoral Registration Officers (ERO)**.
2. **Section 16:** Lists **disqualifications** for registration (Eg. non-citizenship, unsound mind, or crime/corrupt practices).
3. **Section 19:** Conditions for registration-must be **18+ years of age** and an **"ordinarily resident"** in the constituency.
4. **Section 20A:** Provisions for **Overseas (NRI) Voters** to be registered in the electoral rolls.
5. **Section 31:** Penalty for making **false declarations** in connection with electoral rolls.

Representation of the People Act, 1951

1. **Section 8: Disqualification on Conviction**
   a. Disqualifies a person if convicted of specific offenses (Eg. promoting enmity, rape, or untouchability).
   b. **Section 8(3):** Any person sentenced to **imprisonment for 2+ years** is disqualified from the date of conviction and for a further **6 years** after release.
2. **Section 8A:** Disqualification on the ground of **Corrupt Practices** as determined by a court.
3. **Section 9** - Disqualification on the ground of **dismissal from government service** for **corruption** or **disloyalty**.
4. **Section 9A:** Disqualification on the ground of holding a subsisting contract with the government for the supply of goods or execution of works.
5. **Section 10:** Disqualification on the ground of being a managing agent, manager, or secretary of a corporation in which the government holds at least 25% share.
6. **Section 10A:** Disqualification for **failure to lodge election expense accounts** with the ECI.
7. **Section 29A:** Mandatory **registration of political parties**; parties must apply within 30 days of formation.
8. **Section 33 & 33A:** Candidates must file an affidavit (Form 26) disclosing criminal antecedents, assets, and educational qualifications.
9. **Section 77:** Every candidate must keep a separate and correct **account of all election expenses** between the date of nomination and the declaration of result.
10. **Section 80-81:** Specifies that an election can only be questioned via an **Election Petition** filed in the High Court within 45 days.
11. **Section 100:** Grounds for declaring an election void (Eg. if a candidate was not qualified or if corrupt practices were committed).
12. Section 116A - **Appeal** to **Supreme Court** against **High Court's decision** within 30 days
13. **Section 123: Corrupt Practices** - Lists practices that can invalidate an election: **Bribery**, **Undue Influence**, **Appeals on grounds of religion/caste**, and **Booth Capturing**.
14. **Section 125** - **Promoting enmity** between groups during elections as punishable offence
15. **Section 125A:** Penalty for filing **false affidavits** or concealing information.
16. **Section 126: Election Silence**-prohibits public meetings/campaigning during the **48 hours** ending with the hour fixed for the conclusion of the poll.
17. **Section 126A:** Restriction on the publication of **Exit Polls** during the specified period.

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Election Commission of India

ECI, established under Article 324 of the Constitution, oversees the electoral processes for Parliament, State Legislatures, and the executive offices of the President and Vice-President.

Powers and Functions of ECI

Administrative Functions

1. **Delimitation:** Determines the territorial areas of electoral constituencies on the basis of the Delimitation Commission Act.
2. **Electoral Rolls:** Prepares and periodically revises electoral rolls; registers all eligible voters.
3. **Election Schedules:** Notifies the dates and schedules of elections (General and By-elections).
4. **Registration of Parties:** Grants recognition to political parties and allots election symbols.

Advisory Functions

1. **Disqualification:** Advises the President and Governor on matters regarding the post-election disqualification of Members of Parliament and MLAs respectively
2. **President's Rule:** Advises the President on whether elections can be held in a state under President's Rule to extend the period of emergency after one year.

Quasi-Judicial Functions

1. **Dispute Settlement:** Acts as a court for settling disputes related to the granting of recognition to political parties and the allotment of symbols.
2. **Inquiry Officers:** Appoints officers to inquire into disputes relating to electoral arrangements.
3. **Expenditure Monitoring:** Disqualifies candidates who fail to lodge their election expenses within the time/manner set by law **(Section 10A, RPA 1951)**.

Supervisory Functions

1. **Model Code of Conduct (MCC):** Ensures strict observance of the MCC by political parties and candidates from the date of election announcement.
2. **Monitoring Expenditure:** Sets limits and monitors campaign spending to ensure a level playing field.
3. **Poll Cancellation:** Cancels polls in cases of booth capturing, rigging, violence, or other irregularities.
4. **Supervision of Machinery:** Directs and controls the entire election staff (including police and civil servants) during the poll period.

Measures taken by ECI to strengthen the electoral process

1. **Electronic Voting Machines (EVMs) & Voter Verifiable Paper Audit Trail (VVPAT)**
2. **Model Code of Conduct (MCC):** to ensure a level playing field, maintaining public order, and preventing practices such as hate speech, vote-buying, and misuse of government resources.
3. **ECINET (2026):** Launched a "one-stop" digital interface integrating 40+ mobile and web applications to provide a seamless experience for voters and officials.
4. **100% Webcasting:** Mandated live webcasting from all polling stations (previously only "sensitive" ones) to monitor critical poll-day activities in real-time.
5. **Special Intensive Revision (SIR) 2025:** Conducted a massive cleanup of electoral rolls across 12 States, removing deceased voters and duplicate entries for over **51 crore** electors.
6. **cVIGIL App:** Empowered citizens to report MCC violations; the ECI now mandates a **100-minute turnaround time** for investigators to respond.
7. **National Voters' Services Portal (NVSP):** the NVSP helps voters to register, modify, and confirm their electoral details online.
8. **Voter Awareness campaigns**: Eg. "Chunav ka Parv, Desh ka Garv", for the 2024 LS election.

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9. **Fast Delivery of EPIC:** Implemented a new SOP (2025-26) ensuring that **Electronic Photo Identity Cards** are delivered within **15 days** of an update.
10. **Delisting of RUPPs:** Delisted over **808 Registered Unrecognised Political Parties** (by early 2026) that failed to meet essential conditions, curbing the misuse of tax exemptions.
11. **Voter-Centric Booths:** Capped voters per booth at **1,200** (down from 1,500) and established "Auxiliary Polling Stations" in high-rise residential complexes.
12. **Accessible Voting:** Provided Braille-enabled EPICs and free transport for **Persons with Disabilities (PwDs)**, alongside the "Vote-from-Home" facility for senior citizens.
13. **Delhi Declaration 2026:** Hosted the IICDEM conference leading to a global commitment to clean electoral rolls and ethical technology use (including sharing India's ECINET platform).

Challenges and Criticisms of the ECI

1. **Executive-Led Appointments:** The 2023 Act replaced the CJI with a Cabinet Minister in the selection committee.
2. **Constitutional limitations**
   a. **Financial Dependence:** Unlike the CAG or SC, the ECI's budget is not **"charged"** on the Consolidated Fund of India.
   b. **Post-Retirement Appointments:** There is no constitutional bar on ECs taking government jobs or governorships after their tenure.
   c. **Lack of security of tenure for ECs:** While the CEC is removed like an SC judge, ECs can be removed on the **CEC's recommendation**.
3. **"Toothless" Model Code (MCC):** The MCC lacks statutory backing, making the ECI dependent on "moral suasion" rather than legal force.
4. **Impartiality concerns:**
   a. Opposition parties frequently allege that the ECI is slower to act against ruling party "Star Campaigners."
   b. **Electoral Roll Controversies: Special Intensive Revision (SIR)** has faced allegations of "selective disenfranchisement" of specific communities. Eg. press conference by LoP
5. **Lack of Deregistration Power:** The ECI cannot deregister a political party for violating constitutional principles or failing to contest polls.
6. **Data Preservation Issues:** The ECI policy to destroy CCTV and webcasting footage after **45 days** limits post-election transparency.
7. The rapid rise of **AI-generated misinformation** outpaces the ECI's current regulatory and technological monitoring capacity.

Major Supreme Court Judgments

1. **Anoop Baranwal v. Union of India (2023):** Directed a collegium (PM, LoP, CJI) for appointments until Parliament enacted a law to ensure neutrality.
2. **S.S. Dhanoa v. Union of India (1991):** Upheld the President's power to abolish the posts of Election Commissioners, highlighting their **vulnerable tenure**.
3. **Mohinder Singh Gill (1978):** Confirmed ECI's **"plenary powers"** under Article 324 to act where the law is silent during elections.
4. **ADR v. Union of India (2002):** Established the **voter's right to know** the assets, liabilities, and educational qualifications of candidates.

Way Forward

1. The **Law Commission (255th Report)** recommended making ECI expenses "charged" on the Consolidated Fund of India for independence.

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2. Both the **Tarkunde (1975)** and **Goswami (1990)** Committees suggested that ECs should have the same removal protection as the CEC.
3. The **ECI (2016 Reform Proposal)** requested the **power to deregister parties.**
4. **2-year mandatory cooling-off** period before retired ECs can accept any government role.
5. **Recalling of MPs (UK Model):** Implementing a **"Recall" mechanism** where voters can remove an MP convicted of minor crimes through a petition.
6. The **Standing Committee on Personnel (2013)** suggested making MCC a part of the RPA 1951 to give it legal "teeth."
7. **Permanent Election Tribunal:** Establishing a **dedicated judicial body** to resolve all election petitions within a mandatory 6-month window.

Model Code of Conduct

The MCC is a set of non-statutory norms agreed upon by political parties to ensure "free and fair" elections by preventing the ruling party from misusing state machinery and curbing unethical campaign practices.

Historical Evolution:

1. **1960 (Kerala):** Originated as a small set of "Do's and Don'ts" for the Kerala Assembly elections.
2. **1962 (National):** Circulated nationwide during the Lok Sabha elections.
3. **1979:** A section on the "Party in Power" was added to curb incumbency advantage.
4. **1991:** The ECI (under T.N. Seshan) consolidated the MCC into its current robust form.
5. **2014:** Guidelines on "Election Manifestos" were added following Supreme Court directions.

Key Features of the MCC

1. **Duration:** Becomes effective the **moment the ECI announces the election schedule** and remains in force until the results are declared.
2. **Penalties:** The MCC itself has **no statutory penal provisions**. However, the ECI can issue warnings, censure candidates, or delay polls. Criminal violations (bribery, hate speech) are prosecuted under the **RPA 1951** and the **BNS 2023 (formerly IPC)**.
3. **Key Provisions:**
   a. **General Conduct:** No caste/communal appeals; no use of places of worship for propaganda.
   b. **Party in Power:** Prohibition on announcing new schemes, using government aircraft/vehicles for campaigning, or issuing ad-funded achievements.
   c. **Campaigning:** Meetings and processions require prior police intimation; 48-hour "Election Silence" before polling ends.

Objectives of the Model Code of Conduct

1. **Regulate Party and Candidate Behavior during rallies, speeches, and processions**
2. **Level Playing Field:** Prevents the ruling party from using government machinery
3. **Maintaining Purity and fairness of elections**
4. **Preventing Communal Disharmony: Eg.** Notices to "Star Campaigners" for divisive speeches.
5. **Curbing Incumbency Advantage: Eg.** ban on using **state-owned helicopters** for campaigning.
6. **Regulating Manifestos:** Prevents the promise of irrational "freebies"
7. **Ensuring Public Order:** Eg. advance permission for meetings
8. **Ethical Campaigning: Eg.** ECI warnings against personal attacks on family of candidates
9. **Prohibiting Corrupt Practices: Eg.** "Dry Days" **48 hours prior** to the close of polling.

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Limitations of the Model Code of Conduct

1. **Lack of Statutory Backing** (**"tiger without teeth"**)
2. **Delayed Action:** The ECI's response to violations by top leaders is often perceived as slow.
3. The ECI **cannot permanently bar** a candidate solely for MCC violations.
4. **Digital Disruption: difficult to enforce on social media and encrypted platforms** (WhatsApp)
5. **Limited Jurisdiction over Media:** MCC guidelines for TV/Print are less stringent than for political parties.
6. **Freebies Paradox:** Distinguishing between "welfare" and "bribes" remains a legal gray area.
7. **Inconsistent Enforcement: Eg.** Disproportionate number of **FIRs filed against independent candidates** compared to "Star Campaigners."

Legalizing the MCC

Arguments In Favour:

1. **Clarity** - clear, unambiguous guidelines can reduce disputes over what constitutes a violation.
2. **Certainty of Punishment:** Would provide clear legal consequences (jail/fines) for violations.
3. **Better Deterrence:** Eg. Criminalizing "Hate Speech" under MCC can act as a stronger barrier.
4. **Reduction in post-election Litigation**
5. **Judicial Oversight:** Decisions would be subject to court review, increasing transparency.
6. **Defined Timelines:** Legal statutes could mandate **24-hour resolution** of MCC complaints.
7. **Empowerment of ECI:** Would grant the ECI the power to **disqualify candidates** directly.
8. **Checks on Social Media:** Statutory status can force tech giants to comply with ECI orders.
9. **Uniformity:** Removes the "discretionary" element of ECI notices.

- **Law Commission of India (255th Report, 2015):** Recommended that **violation of key provisions of the MCC** should be made an **electoral offence under the RPA, 1951**.
- **Subhash Kashyap**, a noted constitutional expert, supports **limited legalisation** of MCC to address major violations while keeping flexibility for minor issues.

Arguments Against:

1. The SC in **Harbans Singh Jalal** case opined that legalising MCC may not be a suitable option
2. **Judicial Delay in** election disputes.
3. **Loss of Flexibility:** The current "negotiated" nature of MCC allows for quick ECI intervention.
4. Most serious MCC violations (bribery, violence) are **already covered** under the RPA/BNS.
5. **Weaponization of Law:** Eg. frivolous FIRs to tie up opponents in court during polls.
6. **ECI Autonomy:** Can lead to **"Judicial Takeover"** of the election process.
7. **End of Consensus:** Parties might refuse to agree to new norms if they are legally binding.
8. **Administrative Burden** on Police and Judiciary
9. **Vagueness:** Terms like "decency" and "morality" are hard to define strictly.
10. **Conflict with Free Speech:** can be challenged as violation of **Article 19(1)(a)**.

Major SC Judgments on MCC

1. **Union of India v. Harbans Singh Jalal (2001):** Confirmed that the MCC comes into force the moment the **ECI issues the press release** announcing the poll dates.
2. **S. Subramaniam Balaji v. Govt. of Tamil Nadu (2013):** Directed the ECI to include guidelines on **Election Manifestos** within the MCC to regulate freebies.

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3. **K.J. Somaiya v. Election Commission of India:** Reaffirmed that while the MCC isn't a law, the ECI's power to enforce it is derived from its "plenary powers" under **Article 324**.

Measures taken by ECI

- **c-VIGIL App:** citizens can report MCC violations. Flying squads to resolve complaints within **100 minutes**.
- **SUVIDHA Module:** A single-window system for political parties to apply for the use of public spaces, maidans, and helipads on a strict "first come, first serve" basis.
- **Voluntary Code of Ethics (2019) for** social media platforms (like Meta, Google, X) to process legal requests from the ECI within 3 hours during the 48-hour silence period.

Way Forward

1. "Paid News" and surrogate digital advertising should be explicitly classified as a **"Corrupt Practice"** under RPA, 1951. (**255th Law Commission Report**)
2. Section 126 of RPA (ban on campaigning 48 hours before polling) should include the **internet, social media, and OTT platforms. (Umesh Sinha Committee)**
3. **Independent Secretariat:** Grant ECI an independent budget and secretariat to reduce reliance on the Law Ministry (Law Commission 255th Report).
4. **Statutory Status for Specific Parts:** Legalize only sections related to **misuse of state machinery** while keeping "Conduct" consensual.
5. Establish **dedicated election benches** in High Courts to resolve MCC-related criminal cases within 30 days.
6. **Mandatory AI Watermarking:** Global best practice (Eg. EU AI Act) should be adopted to trace digital misinformation during polls.
7. **Deregistration Power:** Amend the RPA to allow ECI to deregister parties for chronic and severe MCC violations.

Criminalization of Politics:

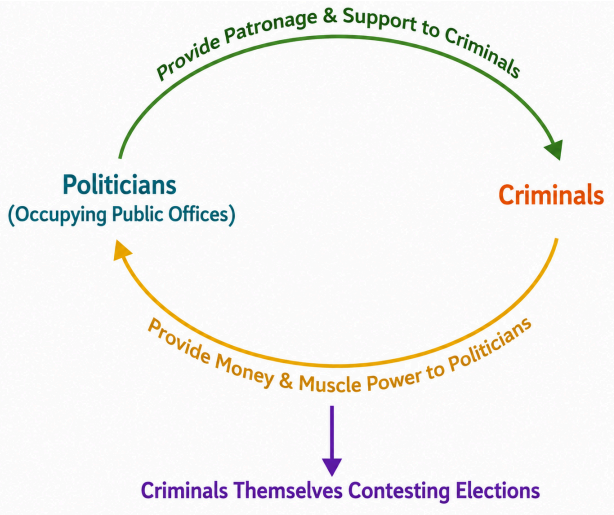
1. **As per ADR, in 18th LS, a record 251 (46%)** of the 543 newly elected members have criminal cases registered against them and **27 of them have been convicted.** (30% in 15th LS).
2. **31% of MPs and 29% of MLAs** have declared serious criminal charges against them.
3. **54% of MPs** from UP have criminal cases registered against them
4. Candidates with criminal records have a **15.5% chance of winning**, compared to just 4.7% for those with clean records. **(ADR)**
5. **90% of candidates** with criminal cases are **"crorepatis"** (millionaires). **(ADR)**

Reasons:

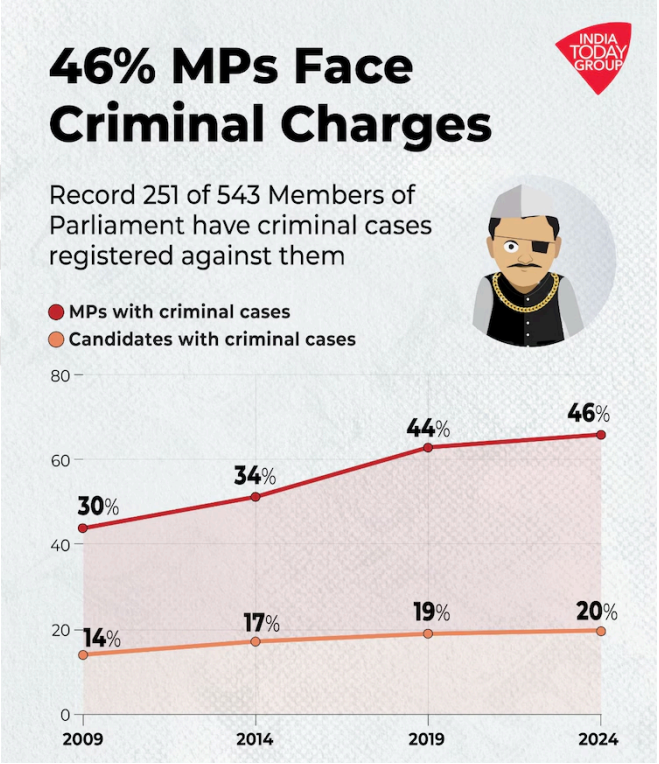
1. **Politician-Criminal Nexus - NN Vohra Committee Report, 1993** stated that the cost of contesting elections made politicians depend on the underworld network.
2. **Inefficient Legal System**: **mere 6% conviction rate** for politicians involved in crimes. Over **5,000 cases** against MPs/MLAs are currently pending in various special courts.
3. **Weak Intra - Party Democracy**: Centralized candidate selection often overlooks local objections, promoting candidates with criminal records due to their **winnability.**

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4. **Voter Apathy and Ignorance**: In disadvantaged areas, immediate benefits from criminal-backed candidates sway voter decisions, neglecting long-term governance issues.
5. High Cost of Elections - Political parties often prefer "winnable candidates" regardless of their criminal history, prioritizing electoral success over ethical considerations.
6. Electoral Advantages for Criminals
   a. **Muscle power** helps candidates **intimidate opponents** and influence voters, especially in weakly governed areas.
   b. Candidates with criminal backgrounds are perceived as **"doers" who can get things done,"** especially where governance is inefficient or corrupt.



   c. **Vote Bank Politics** - Voters often support such individuals due to their **local dominance**, caste/community influence, or ability to deliver quick results.
7. Although the **SC mandated criminal affidavit disclosures (2003), voter behavior has not b9significantly changed**. (ADR report).



Impacts:

1. **Undermines Democratic Institutions - Erodes the sanctity of Parliament and State Assemblies**
2. **Poor Governance and Corruption** - Eg. cash for questions scam
3. **Encourages a Culture of Violence and Intimidation** - Political competition becomes **fear-based** rather than issue-based or ideologically driven.
4. Hampers Legislative Quality - lack the education, vision, or ethical compass leads to a decline in debate quality, policy oversight, and lawmaking standards.
5. **Threat to Rule of Law** - Politicians with criminal backgrounds can manipulate legal systems and law enforcement, fostering a **culture of impunity and lawlessness**
6. **Poor Governance**: fuels widespread corruption, mismanagement and policy paralysis.
7. **Social and Ethical Impacts:**
8. **Erosion of Moral Fabric** of society
9. **Reduced Civic Participation** as the electorate loses faith in the political system.

Steps Taken to Tackle Criminalization

1. **Mandatory Disclosure:** Candidates must file an affidavit (Form 26) declaring all pending criminal cases. (**ADR v. Union of India (2002)**)
2. **Sitting members convicted for 2+ years lose their seat immediately** without a grace period. **Lily Thomas (2013)** judgment

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3. **Publicity of Records:** Parties must publish criminal backgrounds of candidates on their websites and in newspapers.
4. Establishment of **12+ Special Courts** dedicated to to dispose of cases within **one year** of charges being framed.
5. **Voter Awareness:** ECI's **"Know Your Candidate" (KYC) app**
6. **PUCL v. UoI (2013)** introduced NOTA to pressure parties into fielding clean candidates.
7. Strict enforcement of the **48-hour silence period under MCC** to curb corrupt practices
8. **Capping Expenditure:** ECI periodically raises spending limits to encourage legal funding over "black money" usage. **Eg.** Recent hike to **₹95 lakh** for major Lok Sabha constituencies.
9. **Striking Down Sec 8(4):** stay on "sentence" doesn't stop disqualification. Only stay on "conviction" works.
10. **Digital Surveillance:** Integrated **cVIGIL app** reports allow citizens to report violation of MCC

Other SC judgments

- **Rambabu Singh Thakur v. Sunil Arora (2020):** Parties must explain **why they chose** a candidate with criminal antecedents over others.
- **Ashwini Upadhyay v. UoI (2021):** Ordered that criminal cases against legislators cannot be withdrawn by State Governments without **High Court permission**.

Various Recommendations:

1. **Barring at Charge-sheet Stage:** The **Law Commission (244th Report)** recommended barring candidates if "charges are framed" for heinous crimes.
2. **Lifetime Ban:** Implement a permanent ban on convicted persons from contesting, as suggested by the **Election Commission**.
3. **Intra-Party Reforms:** Enact a law making it mandatory for parties to have **internal democracy** and transparent candidate selection.
4. **Partial State Funding of Elections:** Explore the **Indrajit Gupta Committee** report to reduce reliance on "black money" strongmen.
5. **False Affidavit Punishment:** Increase jail time for hiding criminal records from 6 months to **2 years** (triggering disqualification).
6. **Dinesh Goswami Committee -** Strengthen enforcement and provide statutory status to MCC

Special Intensive Revision (SIR)

SIR is a focused, time-bound house-to-house enumeration process where **Booth Level Officers (BLOs)** physically visit households.

Unlike the routine annual "Summary Revision," SIR involves physical **door-to-door verification** of every single voter entry to ensure the integrity of the democratic process.

Objectives

1. **Verify** the physical presence and residency of every registered voter.
2. **Remove** "Ghost Voters" (deceased, duplicate, or permanently shifted).
3. **Register** newly eligible citizens (who turned 18) or previously missed residents.
4. **Incorporate** high-security Electors Photo Identity Cards (EPIC) with 100% coverage.

History of SIR in India

1. The first intensive revisions were conducted between **1952-1956** to create the nascent nation's first reliable voter database.

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2. SIR has been conducted approximately **14 times** in India's history (Eg. 1983, 1995, 2002, 2004, and the current 2025-26 cycle).

Legal Provisions

1. **Article 324:** Grants the ECI the power of "superintendence, direction, and control" over electoral rolls.
2. **Representation of the People Act, 1950 (Section 21):** Authorizes the ECI to carry out a special revision of the electoral roll at any time for reasons recorded in writing.
3. **The Registration of Electors Rules, 1960:** Lays down the specific procedural framework for house-to-house enumeration and verification.

- Phase II resulted in a **10.2% reduction** in total electors (from 51 crore down to 45.8 crore).
- **UP** recorded highest net deletion of **~2.05 crore names** (13.2% of the state's electorate).
- **West Bengal:** Purged **91 lakh voters** since October 2025
- **Bihar:** Approximately **47 lakh voters** (6% of the electorate) were removed.

Need for Special Intensive Revision (SIR)

1. **Purifying the Rolls:** Eliminates "Ghost Voters" who have died or shifted.
2. **Preventing Voter Impersonation:** 100% physical verification ensures that no one can vote on behalf of a deceased person.
3. **Inclusion of Marginalized Groups:** Door-to-door visits reach remote tribes or women who may not go to registration centers.
4. Prepares the base for upcoming reforms like the **Common Electoral Roll** for all three tiers.
5. Ensures only legal citizens are on the roll, a critical mandate under **Section 16 of RPA**.
6. Provides accurate population-to-voter ratios ahead of the post-2026 **delimitation exercise**.
7. Regular "cleansing" of the list builds **public trust** in the **"One Person, One Vote"** principle.
8. Tracks **rural-to-urban migration patterns** to adjust polling booth locations and resources.

Major Challenges in SIR Exercise

1. **Risk of Disenfranchisement:** Rapid, top-down deletions can mistakenly remove legitimate, poor, or homeless citizens.
2. **Administrative Overburden:** Booth Level Officers (BLOs) are overwhelmed by tough targets and tight deadlines. Eg. cases of suicides in WB
3. **Documentation Hurdles:** Requirement of "legacy documents" or birth certificates excludes those without formal records.
4. **Political Misuse:** Allegations that deletions are used by ruling parties to target specific voter blocks.
5. **Verification Subjectivity:** BLOs may exercise personal bias during house visits, leading to arbitrary "shifted" markings.
6. **Delayed Grievance Redressal: Eg.** Only a fraction of the **6 million claims** in WB were resolved before poll-freeze.
7. **Voter Apathy/Fear:** Many residents refuse to provide documents, fearing a **"Stealth NRC"** or citizenship test.
8. **Technological Gaps:** Offline data collection by BLOs often leads to **manual entry errors** during final digital uploading.

Major Supreme Court Judgments

1. **Lal Babu Hussein v. Electoral Registration Officer (1995):** Held that the right to be on the electoral roll is not just a statutory right but a key part of democratic participation.

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2. **Election Commission of India v. Ashok Kumar (2000):** Affirmed that the ECI has plenary powers to ensure error-free rolls, provided it follows natural justice.
3. **Association for Democratic Reforms v. ECI (2026):** The SC emphasized that "conclusive determination" of voter eligibility must not be sacrificed for "procedural timelines."

Way Forward

1. **Automatic Deletion via Death Registry:** Link the **Civil Registration System (CRS)** directly to voter rolls to remove the dead automatically.
2. Provide BLOs with tablets for **Geo-tagged house verification** to prevent "fake" site visits.
3. **Permanent Appellate Tribunals:** Establish year-round judicial tribunals for voter rolls instead of last-minute temporary setups.
4. **Independent Audit:** Allow **Civil Society Organizations** to conduct post-revision sample audits to check for bias.
5. **Flexible Documentation:** Accept a wider range of residency proofs (like electricity bills or community certificates).
6. Use blockchain to track the **audit trail of every deletion**, making officials accountable for arbitrary removals.

Proxy voting in India

Proxy Voting is a facility where a registered voter can delegate their voting power to a representative (proxy) to cast the vote on their behalf.

Currently, proxy voting is strictly limited to "Classified Service Voters" (CSVs). This includes:

1. Armed Forces: Members of the Army, Navy, and Air Force.
2. Paramilitary Forces: Members of the BSF, CRPF, CISF, ITBP, etc.
3. State Armed Police: Personnel serving outside their state.
4. Government Employees: Those posted abroad in Indian Missions.
5. Spouses: The spouse of a service voter (if residing with them) is also eligible for the proxy facility.
6. While the Representation of the People (Amendment) Bill to allow NRIs proxy voting has been discussed, the primary legal mechanism for overseas voters remains in-person voting or the Electronically Transmitted Postal Ballot System (ETPBS).

Legal Provisions

1. Representation of the People Act, 1951: Section 60 was amended in 2003 to allow for the appointment of a proxy by service voters.
2. Conduct of Election Rules, 1961: Rules 27L to 27V lay down the specific procedure for appointing, revoking, and voting via proxy.
3. Form 13F: The legal instrument used to nominate a proxy, which must be signed before a First Class Magistrate or a Notary.

Benefits of Proxy Voting

1. Ensuring Franchise Rights to service voters
2. Avoids the "postal delay"- proxy voting ensures the vote is cast on election day itself day.
3. Administrative Ease: Reduces burden on ECI to set up booths in restricted military areas.
4. Gender Neutrality: Recent amendments (2025-26) replaced "wife" with "spouse", allowing male spouses of female officers equal rights.

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5. Constitutional Validity: Upholds Article 326
6. Reliability: Proxies are usually family members, ensuring the voter's trust is maintained in the choice made.
7. Cost-Effective for Voters: Saves the financial burden of travel to vote.

Major Challenges in Proxy Voting

1. Violation of "Secret Ballot" principle
2. "One Man, One Vote" Risk: A single person acting as a proxy for multiple people.
3. Trust Deficit: Political parties often object to proxy voting, fearing it could be used for "proxy booth capturing."
4. Exclusion of Domestic Migrants: Currently, the facility is for service voters only, leaving 45 crore internal migrants without options.
5. Potential for Fraud: Forged identity documents to impersonation at the polling booth.
6. Administrative Complexity: Maintaining a separate "Proxy Register" at every booth increases the workload of the Booth Level Officer.

Way Forward

1. Move toward Electronic Postal Ballots (ETPBS).
2. Explore blockchain-based remote voting to eliminate the need for a physical proxy.
3. French Model: voter can give "Power of Attorney" to any other registered voter via a simple police-verified form.
4. Use Aadhaar-based biometric checks for proxies at the booth.
5. Extend proxy facilities to senior citizens (80+) and PwDs to improve accessibility.

Hate Speeches

1. **Law Commission (267th Report):** Defines hate speech as an incitement to hatred primarily against a group of persons defined in terms of race, ethnicity, gender, sexual orientation, or religious belief.
2. **UN Framework:** Characterizes it as any communication that attacks or uses pejorative/discriminatory language against a person/group based on "who they are."

- **India Hate Lab Report (January 2026):** Recorded a **13% rise** in hate speech incidents in 2025 (1,318 events) compared to 2024 (1,165 events). (668 in 2023)
- **Odisha and Karnataka** proposed dedicated "Hate Speech and Hate Crimes (Prevention) Acts" to fill gaps in the Bharatiya Nyaya Sanhita (BNS).
- Approximately **98.5% of these incidents targeted Muslims**
- As per **Association for Democratic Reforms (ADR)** and **National Election Watch (NEW)**, 107 MPs and MLAs have hate speech cases registered against them.

Legal Provisions in India

1. **Bharatiya Nyaya Sanhita, 2023: Section 196** (formerly IPC 153A) penalizes promoting enmity between groups; **Section 299** (formerly IPC 295A) punishes acts outraging religious feelings.
2. **Representation of the People Act (RPA), 1951: Sections 123(3A) and 125** classify the promotion of enmity as a "corrupt practice" and an electoral offense.
3. **SC/ST Act, 1989:** Penalizes hate speech targeting Scheduled Castes or Tribes in public view.

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Reasons:

1. Vote Bank Politics - "Us vs. Them" narratives are crafted to consolidate vote banks
2. Used as strategic tools to divert attention from governance failures or corruption.
3. Deep-rooted religious and caste identities create fertile ground for identity-based rhetoric.
4. Social Media Amplification - Hate speech spreads virally, driven by algorithms that favor sensationalism.
5. Weak Legal Enforcement - selective, delayed, or politically influenced enforcement of laws
6. Media Sensationalism - it gets prime-time coverage, providing a platform for provocative figures
7. Growth of religious nationalism and cultural majoritarianism emboldens hate speech. Eg. "defense of culture" narratives.
8. Competitive Populism - near elections parties compete to appear "strong" on identity issues

Impact:

1. Threat to Social Harmony and Communal Peace - Eg. Muslim Migration after Muzaffarnagar (2013) riots
2. **Policy Distortion: Eg.** Legislative focus on **"Land Jihad" laws** over economic or developmental issues.
3. **Economic Boycotts:** Speeches often include calls for the financial exclusion of minority-run businesses.
4. **Psychological Harm: Eg.** Dehumanizing language like **"parasites"** causes deep social alienation among minority youth.
5. Undermines the principles of secularism, equality, and fraternity enshrined in the Constitution.
6. Erodes Rule of Law - Repeated hate speeches with no consequences create a culture of impunity.
7. Destabilizes Governance and Public Order - Hate speech provokes mob violence or vigilante attacks.
8. Misinformation and Radicalization via Social Media, leading to echo chambers and mob mentality.
9. Shrinks Civic Space and Free Expression - Critics of hate speech face online abuse, threats, or violence.
10. Damages India's Global Image as a tolerant, pluralistic democracy.
11. Long-Term Societal Impact - Normalizes prejudice, discrimination, and dehumanization.

Steps Taken:

1. **Suo Motu Action:** The SC (**Shaheen Abdulla v. UoI**) directed police to register FIRs even without a complaint.
2. **C-Vigil App:** ECI's tool for citizens to report "inflammatory speeches" with a **100-minute response** time.
3. **ECINET Social Media Cells:** Specialized units (2025-26) to track and request take-downs of viral hate content.
4. **Nodal Officers:** Appointment of district-level officers to prevent mob violence and hate gatherings (**Tehseen Poonawalla** guidelines).
5. **Temporary Campaign Bans:** ECI (2026) used "silent periods" and **72-hour bans** for repeat hate-speech offenders.
6. **State-level Bills:** Introduction of the **Odisha Hate Speech Bill (2026)** with 7-year jail terms.
7. **Media Ethics Guidelines:** NBA and ECI (2025) issued fresh codes to stop TV channels from hosting divisive debates.

Supreme Court Judgments:

1. **Shaheen Abdulla v. Union of India (2022/2023):** Mandated police to take **Suo Motu action** against hate speech regardless of religion.
2. **Shreya Singhal v. UoI (2015):** Differentiated between "advocacy" and **"incitement,"** holding only the latter as punishable.

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3. **Pravasi Bhalai Sangathan (2014):** Urged the Law Commission to define hate speech to avoid **judicial overreach**.
4. **Tehseen Poonawalla v. UoI (2018):** Issued comprehensive guidelines against **lynching and mob speech**, including nodal officers.

Way Forward:

1. Use the **UN's 6-part test** (Context, Speaker, Intent, Content, Extent, Likelihood) to identify hate speech.
2. **Statutory Status for MCC:** Give the ECI the legal power to **deregister parties** for chronic hate-speech violations.
3. **Fast-Track Courts:** Establish dedicated benches to resolve hate-speech cases within **6 months** to prevent "electoral gain."
4. **Media Literacy:** Integrate "propaganda identification" into the **NCERT curriculum**
5. **Mandatory Sensitivity Training:** For police and magistrates to identify "othering" narratives accurately.

Opinion Polls and Exit Polls

While **Opinion Polls** (conducted before voting) and **Exit Polls** (conducted after voters leave the booth) provide data-driven insights, they have potential to sway the elections..

Legal Provisions

1. **Section 126(1)(b) of RPA, 1951:** Prohibits the display of any "election matter" (including **Opinion Polls**) on TV or similar apparatus during the **48-hour "Silence Period"** before the conclusion of the poll.
2. **Section 126A of RPA, 1951:** Specifically restricts **Exit Polls**. It prohibits the conduct and dissemination of exit poll results from the commencement of the first phase of polling until **half an hour after** the close of polling in the final phase.
3. **Penalty:** Violation of Section 126A is punishable by up to **two years of imprisonment**, a fine, or both.
4. **Article 324:** The Election Commission (ECI) uses its plenary powers to issue guidelines for print media (which is not strictly covered by Sec 126) to ensure they don't publish polls during the prohibited window.

Objectives of Opinion and Exit Polls

1. **Voter Sentiment Mapping**
2. **Early Result Indication**
3. **Demographic Analysis**
4. **Issue Identification**
5. **Campaign Success Assessment**
6. **Democratic Engagement**
7. **Academic/Sociological Research**
8. **Fraud Deterrence (Indicator of anomalies)**

Issues with Opinion and Exit Polls in India

1. **The "Bandwagon Effect":** Polls can influence undecided voters to "join the winner," distorting free choice.
2. **Sampling Errors:** Eg. Many 2024 polls used samples of **<0.1% of the electorate**, leading to significant seat-projection misses.
3. **Media Sensationalism:** Channels often present "raw data" as "final seats" to increase TRPs, causing public confusion.

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4. **Lack of Transparency:** Most agencies do not disclose their **methodology, weighting, or funding sources**.
5. **Stock Market Volatility:** Premature or inaccurate exit polls lead to massive fluctuations in the sensex/nifty.
6. **"Paid Polls" Risk:** Potential for political parties to fund "biased polls" to demoralize opposition cadres.
7. **Complexity of Multi-Phase Elections:** Exit polls for Phase 1 can indirectly influence voters in Phase 7 if leaked.
8. **Voter Fatigue:** Constant polling and "doorstep surveys" lead to voter irritation and dishonest responses.
9. **Inadequate Rural Representation:** "Urban Bias" in sample collection.

Way Forward

1. Mandate agencies to publish **sample size, margin of error, and funding** alongside results.
2. Empower ECI to **audit the methodologies** of polling agencies to ensure scientific rigor.
3. Rules to prevent **"insider trading"** based on advance knowledge of exit poll data.
4. Establish a **Professional Body for Pollsters** (like the AAPOR in the USA) to set ethical codes.
5. **Voter Literacy:** ECI campaigns to educate voters that polls are **predictions, not results**.
6. Encourage **University-led polling** (like CSDS-Lokniti) which is traditionally more transparent.
7. **Digital Watermarking** of "official" poll graphics to prevent the spread of **fake/edited polls**.

Disqualification of candidates

Grounds for Disqualification under RPA, 1951

1. **Conviction for Specific Offenses (Section 8):**
2. **Corrupt Practices (Section 8A)**
3. **Dismissal for Corruption (Section 9)**
4. **Government Contracts (Section 9A)**
5. **Failure to Lodge Election Expenses (Section 10A)**
6. **False Affidavit (Section 125A)**

Grounds for Declaring an Election Void (Section 100) by HC

1. **Lack of Qualification (Sec 100(1)(a)):** On the date of the election, the candidate was not qualified or was disqualified under the Constitution or the RPA.
2. **Corrupt Practices (Sec 100(1)(b)):** Any corrupt practice (as defined in **Section 123**) was committed by the candidate, their election agent, or any other person with their consent. Eg. Bribery, undue influence, or appealing to religion/caste.
3. **Improper Rejection (Sec 100(1)(c)):** Any nomination was improperly rejected by the Returning Officer.
4. **Materially Affected Result (Sec 100(1)(d)):** The result was "materially affected" by:
    a. Improper acceptance of any nomination.
    b. Corrupt practices by an agent (without the candidate's consent).
    c. Improper reception or refusal of any vote.
    d. Non-compliance with the Constitution or the Act/Rules.

Procedure for Disqualification

1. **At the Nomination Stage:**
    a. **Scrutiny (Section 36):** The **Returning Officer (RO)** examines nomination papers. If the candidate is disqualified under the Constitution or RPA, the RO rejects the nomination.
2. **For Sitting Members:**

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a. **Immediate Disqualification:** Per the **Lily Thomas (2013)** judgment, any member convicted for 2+ years stands disqualified **immediately**, without the 3-month grace period previously allowed.
b. **Constitutional Authority:** The final decision rests with the **President** (for MPs) or the **Governor** (for MLAs), who must act as per the **mandatory advice** of the Election Commission (Articles 103 and 192).

3. **Election Petition (Section 80):** A post-election procedure where a voter or candidate challenges the result in the **High Court** within 45 days.
   a. **Who can file?** A candidate or any elector of the constituency can challenge the election.
   b. **Trial Procedure (Section 86-87):**
   c. The High Court must endeavor to conclude the trial within **six months**.
   d. The High Court has the power to dismiss a petition summarily if it does not comply with the provisions of the Act (Eg. failure to join necessary parties).

Examples of Election Petitions:

- **Mamata Banerjee (2021)**, filed an election petition in the Calcutta High Court challenging the results of the Nandigram Assembly election.
- **Allahabad High Court invalidated Indira Gandhi's** election from Rae Bareli due to allegations of corruption.
- Congress leader **C P Joshi** filed an election petition after losing the 2008 Rajasthan Assembly election by a single vote.

Remedial Measures Available

1. **Stay on Conviction (Not just Sentence):**
   a. To stop or reverse an automatic disqualification under Section 8, the candidate must obtain a **stay on the conviction** from an appellate court.
   b. **Eg.** In 2023, the Supreme Court stayed the conviction of Rahul Gandhi in a defamation case, which subsequently restored his Lok Sabha membership.
2. **Election Petition against RO's Decision:** If a nomination is rejected, the candidate cannot immediately go to court due to Article 329(b). They can file an **Election Petition** in HC after the election **(Section 80) within 45 days.** If successful, the election of the winner is declared void, and a by-election may be ordered.
3. **Appeals (Section 116A):** Decisions of the High Court on election petitions can be appealed to the **Supreme Court** within 30 days.
4. **Power of the Election Commission (Section 11):**
   a. The ECI has the power to **remove or reduce the period** of disqualification (except for those disqualified under Section 8A for corrupt practices).
   b. **Eg.** The ECI reduced the disqualification period of a former Sikkim Chief Minister to allow him to contest elections.
5. **Representation to the ECI (Section 10A cases):** If disqualified for failing to file expense accounts, the candidate can apply to the ECI for a "removal of disqualification" by showing "sufficient reason" for the delay or failure.

Challenges Related to Legislative Disqualification:

1. **Low Conviction Rate:** The conviction rate for MPs/MLAs is only **6%.**
2. **Ambiguity** in Grounds for Disqualification

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a. **Multiple Sources of Disqualification**: Articles 102 and 191 of the Constitution, the Representation of the People Act, 1951, and the Tenth Schedule (Anti-Defection Law). This multiplicity often leads to confusion and interpretational disputes.
b. **Vague definition of corrupt practices (Sec. 123)** leads to inconsistent rulings.
c. **Ambiguity in the office of profit** causes arbitrary disqualifications. **Eg. Delhi (2018):** 20 AAP MLAs disqualified, later reinstated.

3. **Legal and Constitutional Loopholes**
   a. **No Interim Measures**: There's no provision to suspend a legislator's functions pending the outcome of disqualification proceedings.
   b. **Conflict of Roles**: The dual role of political and constitutional actors (like the Speaker or Governor) creates conflicts of interest.
4. **Loopholes in anti-defection law**
   a. **Delays in decisions**
   b. **Political bias of the Speaker**
5. **Judicial delays** prolong uncertainty in representation. **Eg. Shiv Sena case pending since 2022**

Recommendations for the Future:

Law Commission of India

1. **244th Report (2014):**
   a. Disqualify candidates **at the stage of framing of charges** (serious offences with ≥5 years punishment).
   b. Exempt cases where charges are filed **within 1 year before elections** to prevent misuse.
   c. Mandate **fast-track courts** to conclude trials of legislators within a year.
   d. Introduce stricter penalties for **false affidavits**, including criminal penalties (≥2 years).
2. **255th Report (2015):**
   a. Shift decision-making on defection from **Speaker to President/Governor**, acting on **Election Commission's advice**.
   b. Suggested **repealing the merger clause** (two-thirds provision).

Election Commission of India

1. Advocates **charge-sheet-based disqualification** for serious criminal offences.
2. Endorses **binding time limits** for decision-making on disqualification matters.

Parliamentary & Other Committees

1. **Dinesh Goswami Committee (1990)**: Delete provisions allowing group defections.
2. **NCRWC (2002)**:
   a. Suggests **independent tribunals** for adjudicating disqualification.
   b. Recommends **constructive vote of no confidence** to maintain stability.
3. **2nd Administrative Reforms Commission (ARC, 2007)**:
   a. Anti-defection law should apply only to votes impacting government survival.
   b. **Define ambiguous terms** like "office of profit" and "voluntarily give up membership."

SC Judgments Related to Disqualification:

- **Lily Thomas v. Union of India (2013):** Struck down Section 8(4) of RPA, making disqualification **immediate** upon a 2+ year conviction.
- **Kihoto Hollohan v. Zachillhu (1992):** Declared the Speaker a "Tribunal" for defection cases, making their decisions subject to **Judicial Review**.

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- **Public Interest Foundation v. Union of India (2018):** Directed Parliament to legislate to bar criminals from contesting; mandated candidates to **publicize criminal antecedents**.
- **Abhiram Singh v. C.D. Commachen (2017):** Held that appealing for votes based on **religion or caste** is a "corrupt practice" (Sec 123).
- **Keisham Meghachandra v. Hon'ble Speaker Manipur (2020):** Ruled that the Speaker must decide disqualification petitions within a **"reasonable time" (3 months)**.
- **Padi Kaushik Reddy v. State of Telangana (2025):** The SC fixed a **4-week timeline** for Speakers to set a hearing schedule for defection.
- **Nabam Rebia v. Deputy Speaker (2016):** Ruled that a Speaker **cannot** decide disqualification petitions if they themselves are facing a removal motion.

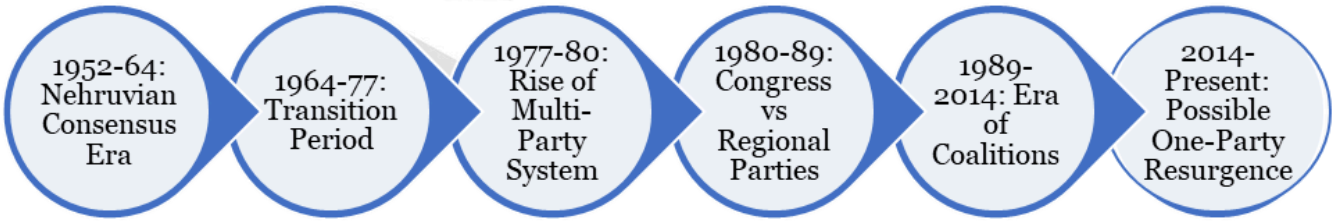
Party System

According to Edmund Burke, "Political parties are a group of people sharing common ideology and coming together for the pursuit of common interest."

"Parties are organized opinions." - **Benjamin Disraeli**

- There are total **6 national and 67 state parties**
- **Registered Unrecognized (RUPPs) - over 2500**
- **Communist Party of India (CPI)**, **Nationalist Congress Party (NCP)**, and **All India Trinamool Congress (AITC)** lost their National status in 2023
- In **August 2025**, the ECI delisted **334 Registered Unrecognized Political Parties** for failing to meet basic compliance, such as contesting elections or providing updated addresses.

Evolution:



Recognition of political parties

Criteria for Recognition as a National Party

1. **Four-State Rule:** The party is recognized as a "State Party" in at least **four states**.
2. **Performance in Lok Sabha & Assembly:** The party wins at least **6% of the total valid votes** in any four or more states in a General Election (Lok Sabha or State Assembly) **AND**, in addition, it wins at least **four seats in the Lok Sabha** from any state or states.
3. **Three-State Lok Sabha Rule:** The party wins at least **2% of the total seats in the Lok Sabha** (11 seats out of 543), and these members are elected from at least **three different states**.

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Criteria for Recognition as a State Party

1. The party secures at least **6% of the valid votes** polled in the State Legislative Assembly election **AND** wins at least **two seats** in that Assembly.
2. The party secures at least **6% of the valid votes** polled in the state during a Lok Sabha General Election **AND** wins at least **one seat** in the Lok Sabha from that state.
3. The party wins at least **3% of the total number of seats** in the Legislative Assembly **OR** at least **three seats** in the Assembly, whichever is more.
4. The party wins at least **one seat in the Lok Sabha** for every **25 seats** (or any fraction thereof) allotted to that state.
5. If a party fails to win any seats but secures at least **8% of the total valid votes** polled in the state (either in Lok Sabha or Assembly elections), it is eligible for State Party status.

Key Benefits of Recognition

1. **Exclusive Symbols:** National parties have a reserved symbol used across India. State parties have a reserved symbol for use within that specific state.
2. **Free Airtime:** free broadcast time on **Akashvani (AIR)** and **Doordarshan** during elections.
3. **Electoral Rolls:** Recognized parties receive **two free copies** of the electoral rolls.
4. **Star Campaigners:** They are allowed up to **40 star campaigners** (unrecognized parties get only 20), whose travel expenses are not added to the candidate's election budget.
5. Eligible for **government land/bungalows** for party headquarters at subsidized rates.

Significance of the Party System in a Democracy

1. Institutionalization of Political Competition (Sartori)
2. Act as a link Between State and Citizens, ensuring participation and pluralism.
3. Simplifies Political Choice (Duverger) - simplify voter decisions by organizing ideologies and candidates under identifiable labels. Eg. BJP's hindutva vs. Congress's secularism
4. Collective accountability - Voters can reward or punish parties in government. Eg. Voters punished UPA in 2014 for corruption issues.
5. Promotes Political Socialization (David Easton) - Eg. Youth wings like NSUI, ABVP train future leaders.
6. Aggregates and Articulates Interests - Almond & Verba (Civic Culture) - Parties convert diverse interests into coherent policies in their manifesto.
7. Provides a legitimate channel for dissent through organized opposition in Parliament.
8. Institutionalized party systems ensure predictable competition and government stability.
9. Representation of Diversity - Parties allow minorities and regions to participate through inclusive, coalition-based politics.
10. Samuel Huntington (Political Order Theory) - Parties channel social conflicts into legitimate political competition, preventing instability.
11. Facilitates Peaceful Transfer of Power - Party competition provides a stable mechanism for leadership change without violence.

Issues with Party System in India:

1. Rise of Personality-Driven and Dynastic Politics - Eg. RJD, DMK.
2. Criminalization of Politics - As per ADR, 46% of sitting Lok Sabha MPs face criminal charges, with 31% involving serious offences like murder, attempt to murder, and rape.
3. Weak Intra-Party Democracy - Most parties lack internal elections, policy debates, or grassroots involvement. Eg. high command culture

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4. Lack of Transparency in Candidate Selection - opaque ticket distribution processes favor wealthy, connected, or loyal candidates over capable ones.
5. Defections - Eg. "Horse trading" during floor tests or Rajya Sabha elections.
6. Regionalization and Fragmentation - Proliferation of regional parties has led to coalition politics and policy paralysis. Eg. UPA-II
7. **Decline of Mass-Based Party Structures**
   a. **Christophe Jaffrelot** highlights the **decline of ideology-driven mass movements** and **rise of electoral machines**.
   b. Many parties are no longer rooted in social movements or worker participation (Eg. decline of CPI(M) cadre model).
8. Frequent suspensions, limited speaking time, and surveillance have weakened the **deliberative function** of **opposition parties.**
9. Yogendra Yadav - identity-based mobilization (caste, religion, region) has overtaken program-based politics.
10. **Erosion of Party Ideologies** due to rise of catch all parties. Eg. cash transfer policies by both BJP and Congress
11. Opportunistic pre-poll or post-poll alliances **without common minimum programs**. Eg. The **Maha Vikas Aghadi (MVA)** alliance in Maharashtra
12. Freebies Culture - distribution state resources in exchange for loyalty, creating systems of patron-client relations. (Atul Kohli) Eg. Ladli behna scheme

Political Parties under RTI

In 2013, CIC declared six national parties as **"public authorities"** under **Section 2(h) of the RTI Act** as they receive indirect government funding (land at concessional rates, tax exemptions, free airtime).

Political parties have consistently refused to comply, arguing they are not "public authorities." They have not appointed Public Information Officers (PIOs) as required.

A PIL filed by **ADR and Ashwini Upadhyay** is currently pending in the **Supreme Court**.

Arguments in favour

1. **Financial Transparency:** Citizens can track the exact source of funding, including small donations currently hidden under the ₹20,000 threshold.
2. **Institutionalizing Parties:** RTI encourages parties to maintain better records, professionalizing their internal administration.
3. **Curbing Corruption: Eg.** Scrutiny of funds could prevent the **"Crony Capitalism"**.
4. **Informed Electorate:** allows voters to judge party's true intent and democratic functioning
5. Public trust increases when **selection criteria for candidates** are made transparent.
6. **Checks on Criminalization:** RTI could reveal the internal deliberations for fielding candidates with criminal backgrounds.
7. **Public Accountability:** Parties enjoy **100% tax exemption** under **Section 13A of the IT Act**. RTI ensures this public subsidy is audited.
8. **Reducing Black Money:** Transparency forces parties to move away from cash-heavy transactions to digital, traceable formats.
9. **Global Alignment:** It brings India in line with advanced democracies like **Germany and the UK**, where party finances are public.

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10. **Foreign Contributions**: need for transparency to prevent external influence on policies.
11. **Legal Safeguards**: Section 8(1) of the RTI Act ensures sensitive information remains protected, balancing transparency with confidentiality for political parties.

Arguments Against

1. **Political Vendetta:** Parties fear that rivals will use "frivolous" RTI queries to stall their functioning
2. **Strategic Secrecy:** Disclosure of "strategy meetings" or alliance talks could compromise a party's competitive edge.
3. **Privacy of Donors:** Fear of harassment by the ruling party can discourage donors.
4. **Conflict with Free Speech:** Parties argue they are voluntary associations protected under **Article 19(1)(c)**.
5. **Administrative Burden:** Most parties lack the infrastructure to handle the volume of RTI applications.
6. Disclosure of internal deliberations on "ticket distribution" could lead to **internal rebellions.**

Way forward

1. Enact a separate **"Political Party Transparency Law"** to bring parties under RTI ambit. Restrict the RTI scope to:
   a. **Financial disclosures** (donations, expenditure, electoral bonds)
   b. **Organizational details** (internal elections, constitution, office-bearers)
   c. **Public resource usage** (land, subsidies, free airtime)
2. **Mandate Annual Transparency Reports** on funding, and decision-making processes
3. **Empower ECI to audit party accounts** through CAG-approved auditors. (**Venkatachaliah Commission**)
4. **Digital Transparency:** Mandate **real-time disclosure** of all donations over ₹2,000 on party websites.
5. **Global Best Practice (Germany):** Parties receive state funding only if they follow strict **transparency and internal democracy** laws.

Intra-party democracy

Intra-party democracy refers to the **practice of democracy within political parties**, ensuring that **decision-making is** carried out in a **transparent, participatory, and accountable** manner by party members.

Presently, there is no statutory backing for internal democratic regulation of political parties in India and the only governing provision is under Section 29A of the Representation of the Peoples' Act, 1951 (dealing with registration of political parties).

Key Features

1. **Regular internal elections** for leadership posts.
2. **Transparent candidate selection** for elections.
3. **Inclusive decision-making** through debates and consultations.
4. **Accountability of leadership** to party members.
5. **Protection of dissent and internal criticism.**

Significance:

1. **Prevents Hero Worship** - As Dr. **B.R. Ambedkar** stated, "In politics, Bhakti or hero worship is a sure road to degradation and eventual dictatorship."
2. **Reducing Criminalization in Politics**
3. **Strengthens Internal Accountability-** Ensures party leaders remain **answerable to members**
4. **Prevents Dynastic Politics and Concentration of Power (High Command Culture)**

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5. **Promotes Transparency and Openness-** Eg. collective protest by group of 23, or the G 23 led to presidential polls in Congress
6. **Improves Candidate Selection- merit-based nominations** instead of nepotism or favoritism.
7. **Enhances Representation-** Provides space for **youth, women, and marginalized groups**.
8. **Encourages Policy Responsiveness** as Party decisions reflect **grassroots opinions**
9. **Prevention of Defections** as leaders as loyal to party

Issues:

1. **Weak Role of Election Commission-** Though parties must submit constitutions under **Section 29A of RPA, 1951**, the **ECI lacks enforcement power** to ensure genuine internal democracy.
2. **Lack of Internal Elections-** Most parties **avoid regular internal elections** or conduct them superficially to show compliance.
3. Local leadership determined by **dominant caste** rather than democratic voting.
4. **Dynastic Politics -** Eg. Congress, Samajwadi Party, DMK, RJD, Shiv Sena etc.
5. **Centralisation of Power** in the hands of a few top leaders; grassroots members have little say.
6. **Absence of Transparency** in Party finances, candidate selection, and policy decisions.
7. **Weak Institutional Structures-** Many parties **lack internal mechanisms** like disciplinary committees, grievance redressal forums, or decision-making councils.
8. **Suppression of Dissent-** Members who question leadership face **expulsion or marginalisation**.
9. **Money and Muscle Power** skews **candidate selection** and internal decisions.
10. **Personality Cult Politics** reduces **collective decision-making** and **accountability**.

Way Forward:

1. **Amend RPA 1951:** Give ECI the statutory power to **deregister parties** that fail to hold genuine internal elections.
2. **Law Commission (170th Report):** Recommended a legal framework to ensure **mandatory internal democracy** and financial transparency.
3. Link state funding of elections to the **practice of internal democracy** by parties. **(Indrajit Gupta Committee)**
4. **The "Primary" System (USA):** Adopt a model where party supporters (not just leaders) vote to select their election candidates.
5. **Independent Audit:** Empower the **CAG or a neutral body** to audit the membership rolls and election records of political parties.
6. **Grievance Redressal:** Establish a **"Party Ombudsman"**—an independent internal body to hear complaints from disgruntled party workers.

Coalition Government

Coalition governments are formed when no single political party secures an absolute majority in the parliament, leading to the need for two or more political parties to come together to form a government.

Types

1. **Minority Coalition Governments: Eg.** V.P. Singh Government (1989-1990), P.V. Narasimha Rao Government (1991-1996)
2. **Majority Coalition Governments: Eg.** United Progressive Alliance (2004-2014), National Democratic Alliance (2014-present)

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Features of Coalition Governments

1. Alliance of Multiple Parties
2. Common Minimum Programme
3. Power Sharing Arrangement
4. Collective Decision-Making
5. Consensus-Based Governance
6. Political Instability
7. Checks and Balances
8. Frequent Renegotiations
9. Enhanced Representation

Difference between western and Indian Coalition politics

Aspect	Western Countries	India
Type of Coalition	Coalition by design	Coalition by political calculations
Power Sharing	Minimum winning coalition	Oversized coalition
Ideological Basis	Ideological convergence	Rainbow coalition with different ideologies
Purpose of Coalition	Formed to run the government effectively	Often negative, aimed at preventing others from gaining power
Internal Consultation	Regular practice of consultation among partners	Core party often neglects consultation with coalition partners

Benefits of Coalition Governments

1. **Promotes power sharing** -Prevents one-party dominance by distributing power among allies.
2. **Encourages consensus-based governance** -Policies require joint approval from partners, ensuring balance. **Eg. MGNREGA.**
3. **Represents diverse interests** -Includes regional and social groups in decision-making. **Eg. DMK and TDP.**
4. **Strengthens federalism** -Gives regional parties a voice in central policies.
5. **Prevents authoritarianism** -Limits concentration of power in one party or leader.
6. **Promotes political moderation** -Partners with differing ideologies adopt moderate policies.
7. **Increases democratic participation** -Involves multiple parties, enhancing representation. Eg. NDA has more than 20 Parties
8. **Promotes issue-based politics - Eg. Common Minimum Programme under UPA-I emphasized social welfare.**
9. **Facilitates inclusive governance** -Minorities and smaller groups get policy representation.
10. **Encourages negotiation and cooperation** -Develops political culture of dialogue and compromise.
11. **Reflects true electoral mandate** -Mirrors the multi-party choices of Indian voters.

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Challenges of Coalition Governments

1. **Policy Paralysis:** Ideological differences can stall decision-making.
2. **Instability:** Coalitions can be fragile and prone to collapse. Eg. Frequent changes in government in 1990s
3. **Compromise on Ideologies:** Eg. BJP and PDP's coalition in Jammu and Kashmir
4. **Corruption and Opportunism:** Eg. scams like 2G scan, Coal Scam during UPA.
5. **Fragmented Governance** - Different coalition partners may control different ministries, leading to lack of coherence and coordination in governance.
6. **Populism and Short-Term Focus** - Coalition partners may push for populist measures to appease their voter bases, focusing on short-term gains rather than long-term planning.

Way Forward

1. **Institutionalize Pre-Poll Alliances** with clear agendas and power-sharing agreements.
2. **Legal Framework for Coalition Ethics** - Formulate a **Coalition Code of Conduct** defining roles, responsibilities, and conflict-resolution mechanisms.
3. **Adopt a Common Minimum Programme (CMP)** - Formalize a **written CMP** to guide coalition policy and reduce ideological clashes.
4. Create **joint coordination bodies** for dispute resolution and regular consultation.
5. **Promote Intra-party and Inter-party Democracy**
6. **Ensure Transparency in Coalition Agreements** - Make **coalition terms public** to enhance accountability and voter trust.
7. **Political Consensus on National Issues** - Build **cross-party consensus** on critical national policies (Eg. national security, economic reforms).

- **Election Commission of India** - Proposed a **"Coalition Conduct Charter"** and stronger enforcement powers for the **ECI** to handle alliance-related violations.
- **Germany** - Coalition partners sign a **formal coalition agreement** detailing **policy priorities, portfolios, and dispute mechanisms**.
- **Netherlands** - Governments formed based on **Coalition Accords**, which are **public documents** ensuring transparency and accountability.

Electoral Funding

Political funding refers to the methods used by political parties and candidates to raise money for their activities and election campaigns.

Key Data Points

1. **ADR 2025-26 report** - Total donations (above Rs 20,000) to National parties rose by 161% to Rs **6,648 crore. (Over 91% of the total went to BJP)**
2. **Corporate houses** account for over **92.18%** of the "declared" donations to national parties.
3. **BSP** declared **zero donations** above Rs 20,000 for 19th year.
4. **Rising Election Costs:** Estimates for the **2024 General Elections** put the total expenditure at over **₹1 lakh crore** (approx. $12 billion)
5. **"Unknown" Sources:** Despite reforms, nearly over **65%** of regional party incomes still come from "unknown sources" (donations below ₹20,000), according to **ADR reports**.

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Key Legal Provisions Regulating Political Funding

A. Representation of the People Act (RPA), 1951

1. **Section 29B:** Entitles political parties to accept voluntary contributions from any person or company (excluding foreign sources and government companies).
2. **Section 29C:** Mandates parties to report all donations exceeding **₹20,000** to the Election Commission (ECI) annually. If they fail to report, they lose tax exemptions.
3. **Section 77:** Requires every candidate to keep a separate and correct account of all expenditure incurred between the date of nomination and the date of declaration of result.

B. Income Tax Act, 1961

1. **Section 13A:** Grants **100% tax exemption** to political parties on their income (from house property, voluntary contributions, capital gains) provided they:
   a. Maintain detailed books of account.
   b. Record the name and address of every person who contributes more than **₹20,000**.
   c. Do not accept cash donations exceeding **₹2,000**.

C. Companies Act, 2013

1. **Section 182:** Regulates corporate funding.
   a. **Pre-2017:** Companies could only donate up to **7.5%** of their average net profits.
   b. **Post-2017:** The 7.5% cap was removed, allowing **unlimited corporate funding**.
2. Any donation must be authorized by a **resolution passed by the Board of Directors.**

D. Foreign Contribution Regulation Act (FCRA), 2010

1. Political parties and candidates are strictly prohibited from accepting foreign contributions.
2. **2016/2018 Retroactive Amendment:** The definition of "foreign source" was changed to **exempt Indian-owned subsidiaries of foreign companies.**

> In Association for Democratic Reforms & Anr. v. Union of India & Ors Case, a 5-judge bench struck down the Electoral Bond Scheme as unconstitutional (). The court ruled that:
>
> - It violated the **Voter's Right to Information** under Article 19(1)(a).
> - The **Anonymity** provided by the bonds allowed for secret corruption and "crony capitalism."
> - Amendments to the **Companies Act** (allowing unlimited funding) and the **RPA** (exempting bond reporting) were also declared void.

Issues:

1. **Involvement of black money:** According to **SBI data on Electoral Bonds (EBs)**-
2. 41 firms which donated ₹2,471 crore to the ruling party at centre under the EBs scheme are facing probe by government agencies
3. At least 30 shell companies purchased electoral bonds worth over ₹143 crore.
4. **Weak Regulation** - The **Election Commission of India (ECI)** has limited power to **audit or penalize parties** for funding violations.
5. **Uncapped Party Expenditure:** While individual candidates have spending limits, political parties can spend unlimited amounts on campaigns.
6. **Institutionalized Quid Pro Quo:** Removing corporate donation caps (7.5% of profits) has led to fears of "policy-for-funding swaps" and crony capitalism
7. **"Unknown" Income Streams:** Parties exploit the ₹20,000 threshold to keep a massive chunk of their income anonymous. Eg. **65% of regional party funds** come from "unknown sources."

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8. **Rise of Shadow Funding:** Funds are increasingly diverted to "IT Cells" and "Third-party" social media campaigners without disclosure.
9. **Inequitable Funding Distribution:** Corporate donations are heavily skewed toward the ruling party. In 2024-25, the **BJP received 83%** of all donations made through Electoral Trusts.
10. **Foreign Influence Risks:** Retroactive FCRA amendments allow foreign-owned Indian subsidiaries to fund parties, risking national sovereignty.
11. **Inadequate Audit Mechanism:** Parties choose their own private auditors, leading to potential "friendly audits" and lack of rigor.

Way Forward:

1. **ECI** has suggested that parties should be made to disclose contributions received in cash for smaller sums in case they exceed 20% of total funds raised.
2. **Lower Disclosure Threshold:** Reduce the anonymous donation limit from ₹20,000 to **₹2,000**.
3. **Real-time Digital Disclosure:** Use the **IEMS portal (2026)** to mandate uploading of every donation over ₹2,000 within 48 hours.
4. **Cap on Party Expenditure:** Amend the RPA, 1951 to impose a statutory limit on total party spending (Law Commission 255th Report).
5. **Partial State Funding (In-Kind):** Provide facilities like fuel, airtime, and paper instead of cash to parties (Indrajit Gupta Committee).
6. **National Election Fund:** Establish a central pool where corporates donate; the ECI then distributes funds based on vote share.
7. **CAG-Approved Audits:** Mandate that all political party accounts be audited by a panel of auditors approved by the CAG.
8. **Global Best Practice (Germany):** Adopt the "Parteienfinanzierung" model where public funds are allocated based on **verified vote shares**.
9. **Re-implement the cap on corporate donations** to prevent "shell company" influence.
10. Bring political parties formally under the **RTI** for all financial and donor-related queries.
11. **Enforce Campaign Expenditure Limits**
    a. Monitor actual spending on **social media ads, surrogate advertising, influencers** etc.
    b. L**ink expenditure data to election affidavits and IT returns**

One Nation One Election

ONOE refers to the proposal to synchronize the timing of all elections in India to occur within a single timeframe or cycle.

History of ONOE

1. Simultaneous elections were the **norm** in India for the first four general election cycles (**1952, 1957, 1962, and 1967**).
2. The cycle was broken due to the premature dissolution of several State Assemblies in 1968 and 1969, followed by the dissolution of the Lok Sabha in 1970 and fresh polls in 1971.
3. The **Law Commission (170th Report, 1999)** and the **Parliamentary Standing Committee (2015)** strongly advocated for returning to simultaneous polls to ensure governance stability.

Key Benefits of One Nation One Election

1. **Reduced Financial Burden** for the exchequer - costs of logistics, polling staff, and security.
2. **Continuity in Governance:** Prevents **"policy paralysis"** caused by the frequent imposition of the Model Code of Conduct (MCC).

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3. **Reduced Administrative Strain:** Teachers and police officers can focus on their primary duties rather than frequent election duty.
4. **Higher Voter Turnout:** Consolidating elections reduces "voter fatigue" and encourages citizens to vote for all tiers at once.
5. **Curbing Black Money:** Limits the opportunities for political parties to raise and spend unaccounted cash in multiple cycles.
6. **Focus on Long-term Policy:** Parties can focus on **nation-building** for five years rather than staying in "perpetual campaign mode."
7. **Social Cohesion:** Reduces frequency of **communal or caste-based mobilization** during election periods.
8. **Supply Chain Stability:** Minimizes disruptions to businesses and production cycles caused by frequent holidays and rallies.
9. **Predictable Investment Climate:** Stability in governance timelines provides **certainty to global investors** regarding policy consistency.
10. **Efficiency for Parties:** Smaller parties save on repetitive campaigning, allowing a **more level playing field** against wealthy national parties.

Major Challenges in One Nation One Election

1. **Constitutional Amendments:** Requires amending **Articles 83, 85, 172, and 174**, which require political consensus.
2. **Impact on Federalism:** Critics argue it undermines state autonomy by making regional polls subservient to the national narrative.
3. **Voter Confusion:** Simultaneous polls might lead to voters mixing up local, state, and national issues.
4. A state might face **frequent mid-term polls as,** if a government falls mid-term, the replacement would only serve the "unexpired term.
5. **Logistical issue:** ECI would need nearly **double the current inventory** of machines to support 1 million+ booths.
6. **Regional Issues Sidelined:** National security or foreign policy can overshadow local issues like water or electricity.
7. **Accountability Deficit:** Voters only get to "punish" or "reward" politicians once in five years rather than more frequently.
8. **Security Deployment:** Providing **high-level security** for all booths across India simultaneously is a massive paramilitary challenge.
9. **Judicial Workload:** A surge in election petitions all at once could **overwhelm the High Courts**.

Key Provisions of the ONOE Bill

1. **Article 82A (Appointed Date):** The President will notify an "Appointed Date" (expected after 2024 polls) to trigger the synchronization.
2. **Article 83 & 172 Amendments:** Stipulates that if the Lok Sabha or Assembly is dissolved prematurely, the new House serves only the **unexpired term**.
3. **Phased Implementation:**
   a. **Phase 1:** Simultaneous elections for Lok Sabha and State Assemblies.
   b. **Phase 2:** Local body (Panchayat/Municipality) elections to be held within **100 days** of the general polls.
4. **Common Electoral Roll:** Amendment to **Article 325** to allow ECI to prepare a single roll for all three tiers of government.

Way Forward

1. **Building Consensus:** Engage with regional parties through the **Joint Parliamentary Committee** to address federalism concerns.
2. Scale up the production of **M3-version EVMs** to meet the massive simultaneous demand.
3. Explore the **German "Constructive Vote of No Confidence"** model to prevent premature dissolutions.
4. **Voter Education: nationwide awareness drive** to help voters distinguish between local and national issues.

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5. **Administrative Audit:** Conduct a dry run in 4–5 states before the **2029 national rollout**.
6. **Judicial Benches:** Set up **special election tribunals** to resolve all disputes from a single cycle within six months.
7. **Indrajit Gupta Recommendations:** Combine ONOE with **partial state funding** to further reduce the influence of black money.

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Chapter 12

Judiciary

Judiciary

Previous Year Questions

2014- Starting from inventing the 'basic structure' doctrine, the judiciary has played a highly pro active role in ensuring that India develops into a thriving democracy. In light of the statement, evaluate the role played by judicial activism in achieving the ideals of democracy

2015- What are the major changes brought in the Arbitration and Conciliation Act, 1996 through the recent Ordinance promulgated by the President? How far will it improve India's dispute resolution mechanism? Discuss(12.5)

2016- What was held in the Coelho case? In this context, can you say that judicial review is of key importance amongst the basic features of the Constitution? (12.5)

2016- What is a quasi-judicial body? Explain with the help of concrete examples. (12.5)

2017- Critically examine the Supreme Court's judgment on 'National Judicial Appointments Commission Act, 2014' with reference to appointment of judges of higher judiciary in India. (10)

2019 - "The Central Administration Tribunal which was established for redressal of grievances and complaints by or against central government employees, nowadays is exercising its powers as an independent judicial authority." Explain.(10)

2018 - How far do you agree with the view that tribunals curtail the jurisdiction of ordinary courts? In view of the above, discuss the constitutional validity and competency of the tribunals in India. (15)

2020 - Judicial Legislation is antithetical to the doctrine of separation of powers as envisaged in the Indian Constitution. In this context justify the filing of large number of public interest petitions praying for issuing guidelines to executive authorities. (15)

2021 - Discuss the desirability of greater representation to women in the higher judiciary to ensure diversity, equity and inclusiveness. (10)

2023 - "Constitutionally guaranteed judicial independence is a prerequisite of democracy". Comment. (10)

2023 - Who are entitled to receive free legal aid? Assess the role of the National Legal Services Authority(NALSA) in rendering free legal aid in India. 10

2024 - Explain the reasons for the growth of public interest litigation in India. As a result of it, has the Indian Supreme Court emerged as the world's most powerful judiciary? (15)

2024 - Explain and distinguish between Lok Adalats And Arbitration Tribunals. Whether they entertain civil as well as criminal cases? (10)

2025 - Discuss the evolution of the collegium system in India. Critically examine the advantages and disadvantages of the system of appointment of the Judges of the Supreme Court of India and that of the USA. (15)

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2025 - Comment on the need of administrative tribunals as compared to the court system. Assess the impact of the recent tribunal reforms through rationalization of tribunals made in 2021. (10)

2025- "Constitutional morality is the fulcrum which acts as an essential check upon the high functionaries and citizens alike..." In view of the above observation of the Supreme Court, explain the concept of constitutional morality and its application to ensure balance between judicial independence and judicial accountability in India.

2026 - What is meant by judicial legislation? In this context, discuss the verdicts of the apex court allowing "passive euthanasia" and a "living will". (15)

Quotes:

"Indian Judiciary is not only guardian of the Constitution but also Active Participants in the Social Revolution." - **J.L. Nehru**

"Judiciary is the only effective means to ensure limitations on the different organs of the state." - **A. K. Ayyar**

"There is no better test of the excellence of government than the working of its judicial system." - **Lord Bryce**

Role of Judiciary

1. **Guardian of the Constitution- Eg. Kesavananda Bharati case (1973).**
2. **Promoting Rule of Law**: **Eg. A.K. Gopalan case** on preventive detention laws.
3. **Guardian of Fundamental Rights** - Eg. invalidating section 66A of IT Act (**Shreya Singhal**).
4. **Maintaining Federalism: Eg. S.R. Bommai Case 1994**
5. **Checks and Balances: Eg. electoral Bond Judgment**
6. **Protecting Separation of Powers: Eg. NJAC Case.**
7. **Setting Legal Precedents**: **Eg. Vishaka guidelines**
8. **Promoting Social Justice - Eg. NALSA v/s UOI- Transgender rights**

- **Total Pendency: 55.8 Million+** cases across all levels (Source: NJDG).
- Pendency in the SC hit a historic high of over **93000 cases** in March 2026. (70k in 2021)
- Over **180,000 cases** have been pending for more than 30 years in district and high courts
- **Lower Court Load: 49 Million** cases are pending in District/Subordinate courts alone (~88% of total).
- **Sanctioned Strength: 24,631** judges for subordinate courts. Approximately **25%** of vacancy.
- **Judge-to-Population: ~21 judges per million** people (Target: 50 per million).

Judicial Appointment

"Judicial appointments are not mere administrative tasks but go to the root of the independence of the judiciary." - **Justice M.N. Venkatachaliah**

Constitutional Provisions:

1. **Article 124:** Supreme Court judges should be appointed by the President after consultation with such judges of the HCs and the SC as the President may deem necessary.
2. **Article 217:** High Court judges should be appointed by the President after consultation with the Chief Justice of the HC concerned, the CJI and the Governor of the state.

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Collegium system and its evolution:

1. **S P Gupta Vs UoI, 1981 (First Judge Case):** The word **"consultation"** in Article 124 (2) and in Article 217 does **not mean "concurrence",** and only involves the exchange of views.
2. **Second Judge Case:** The SC altered the definition of **consultation to mean concurrence**. It gave birth to the Collegium System, which included CJI and the 2 most senior judges of the SC.
3. **Third Judge Case,1998:** SC expanded the Collegium to include the CJI and the 4 most-senior judges of the SC. Must be a **collective opinion.**
4. **NJAC Act, 2014:** SC termed NJAC Act as **unconstitutional** and nullified it, stating that it posed a threat to the independence of the judiciary.
5. **Memorandum of Procedure (MoP)**: A **revised MoP was sought in 2015** to enhance transparency but remains unresolved.

Issues with collegium system:

1. **Judges appointing judges:** It goes against the principle of **separation of powers** and principle of **check and balance**.
2. **Lack of Objective Merit Criteria:** There is no standardized evaluation of judgment quality used for selections.
3. **Regional Imbalance: Eg.** As of **April 2026**, **seven High Courts** remain unrepresented in the Supreme Court.
4. **Lack of Transparency and Accountability:** Deliberations occur behind closed doors without published minutes, criteria, or reasons for selection
5. **Uncle-Judge Syndrome:** Allegations of nepotism and "closed-club" syndrome. **Eg.** nearly **30%** of sitting HC judges have relatives in the legal profession. (**ADR report**)
6. **Vacancy:** The collegium system has struggled to keep up with the **stagnant vacancies in the judiciary.**
7. **Absence of institutional support for the collegium:** It remains an **ad hoc body.** There is no permanent secretariat and support staff dedicated to the task of helping the collegium.
8. **Lack of representation of women:** Only 14% of all HC judges are female. There is currently only 1 women justices out of the sitting 34 in the Supreme Court.
9. **Poor representation of marginalised communities:** out of 537 appointments to High courts between 2018 and 2022->79% (Upper caste), 11% (OBCs), 2.8% (SCs), 1.3% (STs).

Way Forward:

1. **Finalize MoP:** Should have clear guidelines like transparency, eligibility criteria, mechanism for complaints against candidates etc.
2. **All India Judicial Services (Article 312)** to improve the quality of judges in the lower Judiciary.
3. Bring the administrative side of the Collegium under the **Right to Information Act**.
4. **Formulate Search-cum-Evaluation Committee (SEC)** to prepare a panel of eligible candidates.
5. **Second ARC recommendation:** It proposed the setting up of the National Judicial Council (NJC), which will be responsible for the appointment and transfer of the judges of higher judiciary.
6. **Publishing Decision Summaries:** publishing the "reasons" for selection to improve transparency
7. **International best practices:**
8. **UK:** The independent Judicial Appointments Commission (JAC) - includes members of the executive and civil society.
9. **Germany:** Half the members of the Federal Constitutional Court are elected by the executive and half by the legislative.

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Basic Structure Doctrine

"The basic structure doctrine acts as a guardian of constitutional morality, ensuring that the fundamental principles of the Constitution remain inviolable." - Justice H.R. Khanna

1. The **Basic Structure Doctrine**, established in the **Kesavananda Bharati case (1973)**, ensures that **fundamental features of the Constitution cannot be amended**, even under **Article 368**.
2. Key elements include **constitutional supremacy, rule of law, separation of powers, judicial review, federalism, and secularism**.

Evolution

1. **Shankari Prasad (1951):** Upheld **Parliament's power** to amend the Constitution, including **Fundamental Rights**.
2. **Golaknath (1967):** Held that **Fundamental Rights cannot be amended**; amendments are **"laws" under Article 13**.
3. **24th Amendment (1971):** Restored **Parliament's absolute amending power** and made **Presidential assent mandatory**.
4. **Kesavananda Bharati (1973):** Upheld amendment power but introduced the **Basic Structure Doctrine**.
5. **Indira Gandhi v. Raj Narain (1975):** Struck down the **39th Amendment**; reaffirmed **Judicial Review** as part of the Basic Structure.
6. **42nd Amendment (1976):** Tried to make **amendment power unlimited**.
7. **Minerva Mills (1980):** Invalidated parts of the 42nd Amendment; reaffirmed **Judicial Review and Balance between Parts III & IV**.
8. **Waman Rao v. Union of India:** Clarified that the Basic Structure doctrine applies to all amendments made **after April 24, 1973** (the date of the Kesavananda judgment).

Significance of Basic Structure Doctrine and Judicial Activism

1. **Judicial Safeguard Against Arbitrary Amendments**: **Eg. Indira Gandhi vs. Raj Narain, 1975**-SC invalidated the **39th Amendment** protecting the PM's election from judicial review.
2. **Preserves Constitutional Ideals**: Eg. **democracy, secularism, and federalism**.
3. **Maintains Constitutional Supremacy**: Prevents **parliamentary majorities** from altering the Constitution's **core structure** arbitrarily.
4. **Separation of Powers**: Strengthens democracy by maintaining **judicial independence**, ensuring that the **judiciary remains free** from executive and legislative control.
5. **Safeguards Fundamental Rights**: Protects citizens from **legislative overreach** and **authoritarianism.**
6. **Ensures Judicial Independence**: **Eg. Minerva Mills case, 1980**-SC struck down parts of the **42nd Amendment** that curtailed judicial review.
7. **Upholds Rule of Law**: **Eg. Kihoto Hollohan** - anti-defection law subjected to judicial review
8. Ensures the **Constitution evolves with time**, allowing for **progressive interpretations** while maintaining its **core structure**.
9. Prevents **frequent radical changes** that could **disrupt governance**, preserving the **long-term integrity of India's legal and political system**.

Criticism of basic structure doctrine and Judicial activism

1. **Judicial Overreach** - The term is nowhere mentioned in the Constitution. **Jagdeep Dhankhar** argue that the judiciary has "rewritten" the Constitution without legislative mandate.
2. **Undermining Parliamentary Sovereignty:** It restricts the power of elected representatives to amend the Constitution to reflect the changing "will of the people."

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3. **Vagueness and Subjectivity:** There is no exhaustive list of what constitutes "basic structure," leading to unpredictable and inconsistent judicial decisions.
4. **The "Tyranny of the Unelected":** It grants final authority to judges, who are not accountable to the public, over the laws passed by an elected Parliament.
5. **Violation of Separation of Powers:** By acting as a "Super-Legislature," the judiciary enters the domain of law-making, which belongs to the Parliament.
6. Jurist **Fali S. Nariman** once noted that the guardians of the Constitution have become "guardians over the Constitution."
7. **Hindrance to Social Reform:** Strict adherence can block radical economic or social reforms that require significant constitutional shifts.
8. **Constitutional Rigidity:** It makes the Constitution "static" by entrenching certain values permanently, preventing the nation from evolving with time.
9. Taking on executive and legislative roles **diverts the judiciary from its primary function**, leading to **increased pendency of cases** and **delays in justice delivery**.
10. **Lack of Expertise in Policy Matters**: Judges may not have the **technical or administrative expertise** required for complex policy decisions, leading to **impractical rulings.**

Way Forward

1. **Codifying the "Basic List": Eg.** A **"Constitutional Clarity Act"** could define the untouchable cores like Democracy and Secularism.
2. Mandate that only a **Full Bench (all 15+ judges)** of the SC can hear cases involving Basic Structure challenges.
3. **Pre-Legislative Consultation:** Similar to the **French Constitutional Council** that reviews laws before they are enacted to avoid conflict.
4. **Judicial Restraint Guidelines: Eg.** Limiting the doctrine's use to "grave existential threats" rather than ordinary policy disagreements.
5. **Sunset Clause:** Introduce a requirement for the Court to periodically re-evaluate the "necessity" of specific features added to the list.

The **Basic Structure Doctrine** should function as a **north star** in constitutional interpretation, ensuring that it provides **consistent direction** without obstructing necessary constitutional evolution.

Judicial Review

'Judicial Review' means courts' power to review the actions of other branches of government. Especially the court's power to invalidate legislative and executive actions as being unconstitutional.

Constitutional provisions

- **Article 13**- Laws inconsistent with or in derogation of the Fundamental Rights,
- **Article 32, Article 226**- Writ Jurisdiction of Courts.
- **Article 131 to 134**: Original and Appellate jurisdiction of SC
- **Article 136:** Empowers the Supreme Court to confer **special leave** to appeal from "any judgment or order of any court or tribunal." Except for military tribunals and court martials.

Judicial Activism

It refers to the **proactive role of judges** in interpreting and shaping the law, rather than merely applying it as written.

- "Judicial activism is not an aberration but a necessary tool in the hands of judges to achieve justice and fairness." - **Justice P.N. Bhagwati"**

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- The Constitution is not a self-defining instrument. It must be interpreted, and that interpretation is the function of the courts." - **Justice Earl Warren**"

Historical Evolution of Judicial Activism

- Judicial activism emerged in the **UK during the Stuart reign**, where the **unwritten constitution allowed judicial review**, enabling courts to limit parliamentary authority.
- **Early Traces in India (1893)**: **Justice Mehmood of the Allahabad High Court** issued a **dissenting opinion**, laying the foundation for judicial activism in India.
- **1960s Onward**: **activist judges like Justice P.N. Bhagwati and Justice V.R. Krishna Iyer** expanded judicial interpretation to **protect fundamental rights**.

Instruments of Judicial Activism

- PIL - Eg. Hussainara Khatoon (1st PIL) - right to free legal aid and speedy trial
- Article 32 and 226 - Courts have the power to review the constitutionality of legislative acts and executive actions
- Suo Moto Cognizance - Courts initiate proceedings on their own without a formal petition, based on media reports, letters, or social conditions.
- Continuing Mandamus - Eg. Vineet Narain v. Union of India (1997) - monitoring of CBI investigations in the Hawala scam.
- Reading New Rights into the Constitution - Emergence of rights like Right to Privacy, Right to Education, Right to a Healthy Environment.
- Directing Policy Formulation under Article 141 and 142 - Eg. Vishaka guidelines
- **Commissioning Committees and Special Investigations - Eg.** Court-appointed **SIT to investigate black money** cases.

Judicial Overreach

It occurs when a **court exceeds its legal authority or jurisdiction**, making decisions that **intrude into the domain of the legislature or executive**.

- NCERT Textbook Row (2026) - Ordered the removal of a chapter on "Judicial Corruption" from Class 8 textbooks
- Amit Kumar v. Union of India (2026) - Constituted a "National Task Force" to formulate mental health strategies for Higher Educational Institutions (HEIs) to prevent student suicides.
- Shyam Narayan Chouksey v. Union of India (2016) - Made it mandatory for cinema halls to play the National Anthem
- M.C. Mehta v. Union of India (2018) - Arbitrarily invalidated Rule 115(21) of the Central Motor Vehicle Rules to advance the deadline for BS-VI vehicle sales.
- Tamil Nadu Liquor Ban Case (2017) - banned liquor shops within 500 meters of all state and national highways.
- **Firecracker Ban:** Imposing specific timings and types of crackers during Diwali.

Judicial Restraint

Judicial restraint is the practice where the judiciary recognizes its own limitations and shows deference to the other organs of the state (**Legislature and Executive**).

Significance

- **Preserves Separation of Powers: Eg.** In **Almitra H. Patel v. UoI**, SC refused to issue guidelines for cleaning Delhi, stating it was the municipal body's administrative job.
- **Upholds Democratic Legitimacy:** Recognizes that policy-making requires a "popular mandate" which judges, being unelected, do not possess.
- **Maintains Institutional Harmony:** Prevents constant friction

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- **Limits "Judicial Adventurism"**
- **Focuses on Legal rather than Political Questions**
- **Protects the Judiciary from Public Backlash: Eg.** criticism over **NCERT textbook revisions**
- **Respects the "Presumption of Constitutionality":** Operates on the belief that a law is valid until proven otherwise beyond a reasonable doubt.
- **Reduce case pendency**.

Public Interest Litigation

According to the **Supreme Court (Janata Dal v. H.S. Chaudhary, 1993)**, **PIL** refers to **legal action initiated to protect public or community interests**, including matters affecting **legal rights or liabilities**. PIL originated in the **USA in the 1960s** as a means to promote **justice for marginalized groups and broader societal concerns**

1. **No Statutory Definition**: PIL is **not explicitly defined** in the **Constitution or any Indian statute**.

History and Evolution in India

1. **Phase I (Post-Emergency 1970s):**
   a. **Mumbai Kamgar Sabha case (1976)**- SC relaxed the principle of Locus Standi for the first time.
   b. In **Hussainara Khatoon (1979),** the first PIL led to the release of 40,000 undertrials.
   c. SC sought to reclaim its image as the **"People's Court." Justice Krishna Iyer** in ABSK Sangh (1981) and **Justice Bhagwati** in S.P. Gupta (1981) institutionalized the concept.
2. **Phase II (2000s-Present):** Expanded into environmental protection, good governance, and civil liberties. At present, PILs are dealing with issues like **AI ethics** and **digital privacy**.

Reasons behind growth of PILs

1. Relaxation of Locus Standi - Eg. In S.P. Gupta v. Union of India (1981), the SC allowed citizens to challenge public wrongs.
2. Epistolary Jurisdiction - Judiciary simplified legal entry by treating informal communication as a formal legal petition.
3. Broad Reading of Article 21 to include "the right to live with human dignity."
4. Judicial Activism Post-Emergency led by Judges like P.N. Bhagwati and Krishna Iyer
5. Failure of Executive and Legislature - Courts step in to fill "policy vacuum." Eg. Vishaka Guidelines (1997)
6. Role of Media and Civil Society - Investigative journalism and proactive NGOs provided the necessary "factual foundation" for judicial intervention.
7. Constitutional Mandate of Article 39A serves as a moral driver for PIL.

Significance of PIL:

1. **Expanding the reach of Article 32:** enables proactive citizens to initiate legal proceedings in the broader interest of the public. **Eg. M. C. Mehta cases**
2. **Enhancing access to justice** for marginalised communities. Eg. **Naz Foundation case**
3. **Empowered the judiciary** to take suo motu action on matters of public significance.
4. **Catalyst for social and political transformation - Eg. Common Cause v. Union of India (Legalizing passive euthanasia)**
5. **Brings Governance Accountability** -

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a. **Vineet Narain case** - ensured CBI autonomy.
b. **Prakash Singh case** on police reforms
c. **Electoral Bonds Case (2024)**- PIL by ADR, Common Cause and others.

6. PILs have **broadened the role of judiciary** beyond dispute resolution to **policy guidance and public welfare**. Eg. **Vishaka guidelines**
7. **Environmental Protection and Sustainability** - Eg. **MC Mehta v. Union of India -** Ban on diesel vehicles, closure of polluting industries near Taj Mahal.
8. PILs led to innovative judicial principles like:
   a. **Continuing mandamus** (continuous monitoring)
   b. **Epistolary jurisdiction** (accepting letters/postcards as petitions)
   c. **Absolute liability for hazardous industries**.

Issues associated with PIL:

1. **Violation of Adversarial Justice:** Traditional common law systems rely on two opposing parties. PILs turn judges into "investigators."
2. **Misuse of PIL** for personal or political gain rather than for the public good. Due to this misuse, they are being called as **proxy interest litigation or private interest litigation.**
3. **Delays in the resolution** due to over 5.5 Cr pending cases and vacancies in the judiciary.
4. **Potential of Judicial Overreach** - Eg. ban on firecrackers
5. **Slowing down pace of development projects:** SC has observed that several NGOs are filing petitions as proxy litigants to settle corporate Rivalry.
6. **Lack of Proper Verification Mechanisms** - Courts sometimes **accept PILs based on affidavits or media reports** without rigorous verification.
7. **Resource Drain on Public Institutions** - Eg. Mandatory conversion to CNG vehicles in Delhi (MC Mehta case) posed sudden challenges for transporters.
8. **Selective Judicial Intervention:** Accusations that courts pick "high-profile" PILs while ignoring systemic issues of the poorest.
9. **Enforcement Failures** due to executive apathy. **Eg. bonded labor** persists in several industries

Way Forward

1. Codify **2010 SC PIL Guidelines** into law to mandate strict "Bona Fide" checks before admission
2. **Impose heavy fines** on petitioners whose cases are found to be for "publicity or private profit."
3. **Specialist PIL Benches** in every High Court.
4. **Standardizing Suo Motu Cognizance**
5. **Post-Judgment Monitoring:** Create a "Compliance Cell" within courts to ensure implementation.
6. **Pre-Admission Screening** to check if matter has been litigated or if alternative remedies exist
7. **South Africa: Constitutional Court** allows "friends of the court" (Amicus Curiae) to provide expert neutral input.
8. **USA:** Use of **"Class Action Lawsuits"** which provide more procedural structure than the open-ended Indian PIL.

Judicial Accountability

Judicial Accountability is the obligation of judges and the judicial institution to be answerable for their decisions, conduct, and use of resources.

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It balances **Judicial Independence** (the power to decide cases without pressure) with the **Rule of Law** (the principle that no one is above the law). It encompasses two dimensions:

1. **Individual Accountability:** Responsibility of a judge for personal ethical breaches or corruption.
2. **Institutional Accountability:** Transparency of the judiciary as a whole in matters like appointments, transfers, and case management.

SC judgments

1. **K Veeraswami Judgment, 1991** - classified judges as **public servants** under the **Prevention of Corruption Act** but requires **CJI approval** for prosecution (registering FIR)
2. In 1999, SC formally adopted the **"In-House Procedure."** This allows for a committee of judges to investigate complaints of "misbehavior" against a peer.
3. **Subhash Chandra Agarwal (2019)** - the **Office of the Chief Justice of India (CJI) is a "public authority"** under the Right to Information (RTI) Act, 2005.

Judicial Accountability Mechanisms in India

1. **Impeachment** under Articles 124(4) and 215 for "proved misbehavior or incapacity."
2. **Judges (Inquiry) Act, 1968** to regulate the investigation procedure
3. **In-House Procedure:** A self-regulatory mechanism adopted in 1999 where a committee of peers investigates allegations against a sitting judge.
4. **Appellate Process:** appeals, reviews, or curative petitions to higher benches.
5. The **"Restatement of Values of Judicial Life" (1997)** serves as an ethical guide for judges' behavior in public and private.
6. **The Office of the CJI is now a "public authority" under the Right to Information Act.**
7. "Open Court" live-streaming.
8. **E-Courts Transparency:** Platforms like the **National Judicial Data Grid (NJDG)** hold courts accountable for pendency and disposal rates.

Need for Judicial Accountability

1. **Maintaining Public Trust:** accountability prevents the erosion of legitimacy.
2. **Curbing Judicial Corruption:** Eg. justice verma case
3. **Checks and Balances:** prevents judiciary from becoming a "super-legislature"
4. **Ensuring Transparency in Appointments in higher judiciary**
5. **Ensuring Timely Justice:** Judges must be accountable for "judicious use of time"
6. **Rule of Law:** judges must face consequences for misconduct **Eg. Justice Karnan case**
7. **Standardizing Judicial Behavior:** Accountability prevents "judge-centric" justice.
8. **Improving "Ease of Doing Business"** through predictable and efficient judiciary.

Major Issues with Judicial Accountability

1. **Opaque Collegium System:** selection behind closed doors without detailed rationales.
2. **Ineffective Impeachment Process:** no judge has ever been impeached
3. **Use of Contempt Law** as a "shield" against legitimate criticism. **Eg. Prashant Bhushan case**
4. India lacks a specific **"Judicial Standards and Accountability" law** to handle misconduct
5. **Lack of Performance Indicators** to evaluate a judge's efficiency, quality, or attendance.
6. **Secrecy of In-House Findings:** Reports of internal inquiries are rarely made public

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Way Forward

1. **National Judicial Commission (NJC):** Establish a constitutional body with judicial, executive, and **civil society** members for balanced appointments.
2. Follow the **Swedish model** where an independent Parliamentary Ombudsman can investigate complaints against judicial delays.
3. **Mandatory Cooling-off Period:** Enact a mandatory **2-year bar** on judges accepting any executive or political appointment after retirement.
4. **:** Create a statutory **Judicial Conduct Commission (JCC)** (similar to **UK or Kenya**) to handle complaints and recommend penalties.
5. **Make live-streaming mandatory for all court** levels to ensure that "conduct in court" is a matter of public record.
6. Introduce **"Judicial Impact Assessments"** to evaluate the efficiency of court processes and individual disposal rates.
7. Extend the **Whistleblowers Protection Act** to court staff and lawyers reporting judicial misconduct.
8. **Reform of Contempt Law:** Amend the 1971 Act to remove "scandalizing the court" and replace it with a narrow "obstruction of justice" clause.

Judiciary and RTI

Major SC Judgments

- **Subhash Chandra Agarwal case (2019):** A 5-judge Constitution Bench held that the **Office of the Chief Justice of India (CJI) is a "public authority"** under Section 2(h) of the RTI Act. It ruled that judicial independence and transparency go hand-in-hand.
- **Secretary General, SC v. Subhash Chandra Agarwal:** Confirmed that the CJI holds information regarding judges' assets not in a fiduciary capacity, but as a constitutional functionary, making it disclosable.
- **Khanapuram Gandaiah v. Administrative Officer (2010):** Clarified that RTI cannot be used to ask a judge **"why"** a particular judgment was passed, as judicial decisions are protected by judicial immunity.

Present Position

- The Supreme Court and all High Courts are recognized as "Public Authorities." Each has a designated **Central Public Information Officer (CPIO)** and First Appellate Authority (FAA).
- Transparency is now governed by a three-pronged test: **Judicial Independence vs. Privacy vs. Public Interest**. Information is disclosed on a case-to-case basis.
- **A**lmost all High Courts and the Supreme Court have integrated with the **National RTI Online Portal**, allowing citizens to file requests and pay fees digitally.
- **Asset Disclosure:** Judges' asset declarations are maintained by the Registry. While not always "proactively" published on websites, they are accessible via RTI subject to privacy

Procedure of Impeachment (Removal)

- A motion must be signed by **100 MPs (Lok Sabha)** or **50 MPs (Rajya Sabha)** and submitted to the Speaker/Chairman.
- The Speaker/Chairman has the **discretion** to admit or reject the motion.
- **Inquiry Committee:** If admitted, a 3-member committee is formed:
  - A Supreme Court Judge.
  - A Chief Justice of a High Court.

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    - An Eminent Jurist.
- The committee investigates **"Proved Misbehaviour" or "Incapacity."** The judge has the right to a defense.
- If the committee finds the judge guilty, the report is tabled. Both Houses must pass the motion in the **same session**.
- **Special Majority:** Required in each House:
    - **Absolute Majority** (more than 50% of total membership).
    - **Special Majority** (not less than 2/3rd of members present and voting).
- **Presidential Order:** Upon passage, the President issues a formal order of removal.

Major Issues with the Impeachment Process

- **"Resignation Loophole":** Judges resign just before the final vote to retain post-retirement benefits and pension. **Eg. Justice Yashwant Varma** and **Justice Soumitra Sen**.
- The **Speaker/Chairman can block** a motion without providing objective criteria or reasons.
- The process is **"all-or-nothing,"** with no mechanism for reprimanding misconduct below the level of removal. **In-House Procedure** is "toothless" and lacks statutory backing.
- **Highly Political Nature: Eg.** motion against **Justice V. Ramaswami (1993)** failed because the ruling party abstained from voting.
- Requirement to finish the entire process in a **"single session"** leads to procedural lapses.
- **Lack of Transparency:** Eg. confidential inquiry committee proceedings
- The **multi-layered investigation and debate take years,** during which the judge remains on the bench.
- **No Post-Resignation Inquiry:** Once a judge quits, the statutory mandate of the inquiry committee currently terminates automatically.

Way Forward

- **Statutory Continuity:** Amend the 1968 Act to ensure inquiries continue despite resignation to establish formal accountability.
- **Transparent Thresholds:** Mandate the Speaker to provide reasoned, written orders when admitting or rejecting removal motions.
- **Graduated Sanctions:** Introduce a spectrum of disciplinary actions for misconduct that does not warrant full removal.
- **Time-Bound Proceedings:** Establish strict statutory timelines for committees to prevent political stalling and institutionalized sluggishness.
- **Post-Retirement Accountability:** Link the retention of full pension and benefits to the final findings of inquiries.

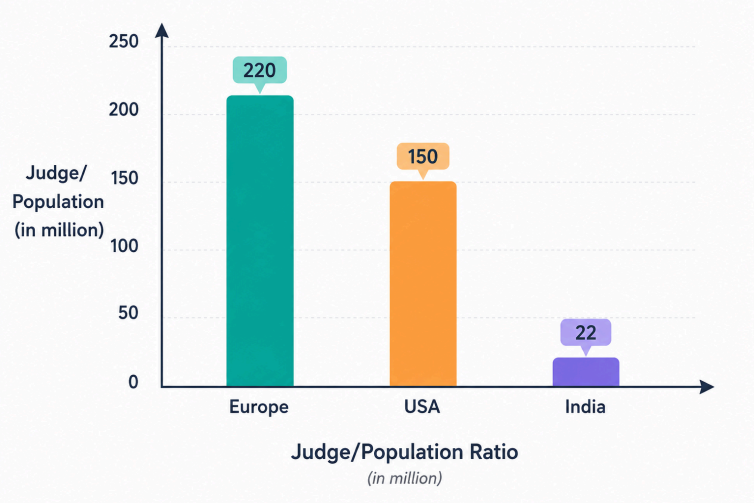
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Judicial Pendency

"The issue of judicial pendency is a ticking bomb. Unless we collectively act to defuse it, it will explode and cause irreparable damage." - **Justice N. V. Ramana**

Reasons:

1. India operates with only **22 judges per million** people, far below the Malimath **Committee** recommendation of 50 judges per million.
2. **High Vacancy Rates:** Nearly **35% of sanctioned posts** in High Courts remain unfilled due to Collegium-Executive delays.
3. **Government litigation** constitutes approximately **50%** of all pending cases with a significant portion involving **inter-departmental disputes** that could be settled outside the courtroom.
4. The **"culture of adjournments"** allows lawyers to stall proceedings for years on minor procedural grounds.



5. **Infrastructural Deficits:** Many lower courts lack basic digital tools, clerical staff, or even enough physical courtrooms to sit. **Eg.** over 25% of courtrooms still lack dedicated video-conferencing setups.
6. **Misuse of Special Leave Petitions (SLPs):** Over **90% of the SC docket** currently consists of SLPs rather than Constitution Bench matters.
7. **Poor Investigative Standards** and forensic delays lead to repeated "re-trials" or long-drawn evidence stages.
8. **Underutilized ADR Mechanisms:** Mediation and Arbitration are still seen as "optional" rather than a mandatory first step in civil suits.

Impact:

1. **Massive Case Backlog:** Over **5 crore cases** are pending across the Indian judiciary, with the majority (over 4.7 crore) in subordinate courts
2. **Erosion of Public Trust**: push people toward **informal systems like Khap Panchayats**
3. **Burden on the Court System**: reducing efficiency and leading to **judge burnout**.
4. **Weakened Rule of Law**: "Justice delayed is justice denied."Eg. Bhopal Gas Tragedy case.
5. **Violation of right to a fair and speedy trial under Article 21**
6. **Prison Overcrowding**: Undertrials constitute **73.5%** of the prison population (3.9 lakh). Prisons operate at 131% capacity
7. **Economic Loss**: **Eg. India ranked 163rd in contract enforcement** in EoDB rankings
8. **Social Disruptions**: Delays in **family law cases** (**divorce, child custody etc.**) cause **mental distress and family instability**.

Steps Taken

1. **e-Courts Phase III:** focusing on "Integrated Digital Courts" and paperless filing.
2. **774 Fast Track Special Courts** are operational for time-bound trials of heinous crimes.

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3. **Justice Clocks** installed in **37 HCs** for real-time public data on case disposal and pendency
4. **ADR**: Mechanisms like **Lok Adalats, Gram Nyayalayas, and Online Dispute Resolution**
5. **Interoperable Criminal Justice System (ICJS)**: Facilitates **seamless data exchange** between **courts, police, jails, and forensic labs**
6. **Tele-Law Programme** to enable access to legal advice for disadvantaged communities via video conferencing, telephone, and mobile apps.
7. **Nyaya Bandhu Pro Bono Framework** to connect advocates with citizens requiring free legal services

Way Forward:

1. **All India Judicial Service (AIJS)**to ensure merit-based, diverse recruitment. (**Law Commission (116th Report))**
2. Deploying AI tools like **SUPACE** to assist judges in research and automated case-file summarization.
3. Prioritize "legacy cases" (older than 10 years) through daily hearings and dedicated "backlog benches." (**Malimath Committee**)
4. **Reforming the Appointment Process:** Adopt the UK system to bring transparency and balance judicial independence and checks and balance
5. **The Inquisitorial Element:** Borrowing features from **Germany/France** where judges take a more proactive role in truth-seeking. (**Malimath Committee**)
6. **Reducing Inter-Departmental Litigation:** use mandatory mediation before filing suits.
7. **Implementing e-Courts Phase III** for creating **Integrated Digital Courts**
8. The **Law Commission** of India in its **245th report** highlighted the need for **doubling the number of judges** to address the backlog effectively.
9. **Mandatory Pre-Litigation Mediation:** Following the **162nd Parliamentary Report (2026)**, make mediation compulsory for all commercial and family disputes.
10. **Establishing Regional SC Benches:** reduces travel costs, eases case backlogs.
11. **Setting Up "Night Courts"** to clear "petty cases" like traffic challans.
12. **Executive Restraint:** Implement a **National Litigation Policy** to ensure the government only appeals in cases with "substantial questions of law."
13. **Increasing Court Working Days:** As recommended by the **Malimath Committee**, increase court working days by 21 days annually.
14. **Enhancing Judicial Measures**:
    a. Increase operational days in higher judiciary.
    b. Enforce strict regulations on adjournments. **(3 Adjournments rule)**
    c. appoint professional court managers for efficiency.
    d. Implement time specifications and annual targets.

All-India Judicial Service (AIJS)

The **All-India Judicial Service (AIJS)** is a proposed centralized recruitment system for the subordinate judiciary (specifically District Judges) in India, modeled after the IAS and IPS.

1. First proposed in the **14th Law Commission Report (1958)**.
2. **42nd Amendment: Article 312** was amended during the Emergency to empower the Parliament to create an AIJS through a resolution by the Rajya Sabha (2/3rd majority).
3. In **All India Judges' Association v. Union of India (1992)**, the SC directed the Centre to establish AIJS.

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Significance:

1. **Uniform Standards of Judicial Recruitment** - more professional and competent judiciary.
2. **Open competition** -bring **objectivity and transparency** in the selection process.
3. **Merit-based selection of fresh talent**
4. **Improving Judge-Population Ratio:** Helps achieve the Law Commission's target of **50 judges per million** (currently only 21).
5. **Curbing Nepotism/Corruption:** Moving away from the **"Uncle Judge" syndrome**
6. **Reducing vacancies**: AIJS would conduct exams at regular intervals.
7. **Reducing the pendency of the cases** (4.9 Cr pending in lower courts)
8. **Uniformity in quality of adjudication**
9. **Social inclusion**: enable representation to marginalised and deprived sections of society.
10. **Inter-State Knowledge Transfer:** Judges allocated to different states can bring best practices from their home regions to their cadre.

Challenges:

1. **Language Barrier:** Judges from one state may struggle to understand local languages used in district court proceedings.
2. **Encroachment on State Powers:** as "Administration of Justice" is state list subject.
3. **Judicial Independence at Risk** - Currently, **HCs control district judge appointments (Article 233)**. AIJS could centralize power in a **National Judicial Service Commission**.
4. AIJS may fail to attract **top law graduates**, who prefer careers in **litigation, corporate law, or law firms** due to better opportunities and career growth.
5. **Limited Career Progression** - Majority of judicial officers reach **only district judge level**, as **HC elevations favor appointments from the Bar**, making AIJS less appealing.
6. **Structural Issues Remain Unaddressed** - Eg. **infrastructure gaps** & systemic inefficiencies like adjournment culture.

Way Forward:

1. **The "Regional Cadre" Model** to minimize language and cultural gaps.
2. **Cooperative federalism** - developing consensus between centre and states through inter-state council
3. **Language Training:** Mandate a **one-year intensive language and local law** course for all AIJS recruits before they take charge.
4. AIJS should **report to the HC Chief Justices** to ensure judicial independence remains intact.
5. **France Model:** The **Ecole Nationale de la Magistrature** is a specialized school that recruits and trains all judges through a rigorous national exam, ensuring high quality.

Alternate Dispute Resolution (ADR)

Alternate Dispute Resolution (ADR) is a mechanism of dispute resolution that is non-adversarial, i.e. working together cooperatively to reach the best resolution for everyone.

- **"Mediation for the Nation" Campaign:** NALSA and the SC settled over **1.48 crore cases** (pre-litigation and pending) in a single year cycle.
- **National Mediation Conference:** The **Mediation Council of India** was officially institutionalized to regulate mediator standards.

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- The **Pre-Institution Mediation and Settlement (PIMS)** was expanded beyond commercial suits to include specific matrimonial and property disputes.
- The Law Minister referenced the **Panch Parmeshwar doctrine** - India's traditional collective consensus in dispute resolution - at a global ADR forum, advocating international cooperation in strengthening ADR.

Types of Alternative Dispute Resolution (ADR) in India

A. Arbitration

1. A dispute resolution method where a neutral third party (arbitrator or arbitral tribunal) delivers a **binding decision** after evaluating the case.
2. Governed by the **Arbitration and Conciliation Act, 1996**.
3. **Key Features**:
   a. Requires a **valid arbitration agreement** before disputes arise.
   b. The arbitrator's decision is **final and enforceable**.

B. Mediation

1. A **voluntary negotiation process** where a neutral mediator facilitates discussions between disputing parties without imposing a decision.
2. **Key Features**:
   a. **Party-driven and voluntary** with no imposed outcomes.
   b. The mediator **assists in communication and compromise**.
3. **Suitable Scenarios**:
   a. When parties face communication barriers or emotional conflicts.
   b. If resolution is a priority over legal precedent.
   c. To **save time, reduce costs, and preserve business or personal relationships**.

C. Conciliation

1. A process where a neutral conciliator, often a legal expert or government officer, **suggests a resolution** to the dispute without issuing a binding verdict.
2. Governed by the **Arbitration and Conciliation Act, 1996**.
3. **Key Features**:
   a. **Conciliators propose solutions** but do not make enforceable decisions.
   b. A settlement is **binding only if both parties accept** the terms.
   c. **Confidentiality ensured** under the non-disclosure clause, restricting evidence use in judicial proceedings.

The Mediation Act, 2023

- Parties may **voluntarily attempt mediation** before filing a civil or commercial suit. (Initially proposed as mandatory, it was made voluntary in the final Act).
- Mediation must be completed within **120 days**, extendable by an additional **60 days** with party consent.
- A **Mediated Settlement Agreement (MSA)** is final, binding, and enforceable in the same manner as a **court decree**.
- **Confidentiality:** Proceedings are strictly confidential. No audio/video recording is allowed, and what is said in mediation cannot be used as evidence in court.

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- **Mediation Council of India:** Establishes a central body to register mediators, grade mediation service providers, and promote the practice.
- **Exclusions:** Certain disputes (Eg. criminal offenses, tax matters, or disputes against minors) are excluded from the ambit of mediation.

Arbitration and Conciliation Act, 1996

- Based on the UNCITRAL Model Law, this Act governs domestic arbitration, international commercial arbitration, and the enforcement of foreign awards.
- **Section 5:** Limits judicial intervention
- **Section 8:** Courts are mandated to refer parties to arbitration if a valid arbitration agreement exists between them.
- **Section 9 & 17:** Provides for interim protection orders by courts (Sec 9) and by the arbitral tribunal itself (Sec 17).
- **Section 34:** Defines narrow grounds for challenging an award (Eg. incapacity of parties, invalid agreement, or violation of public policy).
- **Section 36:** An arbitral award is enforceable as a decree of the court once the time for challenging it under Section 34 has expired.

2015 Amendment

- **Strict Timelines:** Introduced **Section 29A**, mandating that awards be made within **12 months** (extendable by 6 months).
- Introduced **Section 29B** for resolving disputes within **6 months** without oral hearings.

2019 Amendment

- **Arbitration Council of India (ACI):** Provisions for a body to grade arbitral institutions and accredit arbitrators
- Introduced **Section 42A**, making it mandatory for arbitrators and institutions to maintain confidentiality.

2021 Amendment

- Courts can now grant an **unconditional stay** on the enforcement of an award if there is prima facie evidence that either the **arbitration agreement** or the **making of the award** was induced by **fraud or corruption**.
- **Removed 8th Schedule:** Scrapped strict qualification requirements for arbitrators (being advocate or judge), allowing foreign and specialized experts to act as arbitrators in India.

Factors Driving India's Shift Towards Arbitration in Dispute Resolution

1. **Pendency of cases** - over 5.4 Cr pending cases
2. Economic liberation - **Surge in FDI, cross-border transactions and consequent rise in international business disputes.**
3. Government policy push -
   a. **Amendments to Arbitration and Conciliation Act, 1996**
   b. **National Litigation Policy**
   c. **Mediation Act**
4. Indian arbitration awards from **IIAC are gaining global recognition**.

Significance of ADR:

1. **Reduces Pendency & Court Congestion** - Lok Adalats settled over **14.8 crore cases** in 2025
2. **Cost-Effective** - ODR platforms reduce legal costs for small businesses and startups

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3. **Speedy Commercial Justice:** Institutional arbitration (Eg. **DIAC, MCIA**) aims to resolve disputes within a strict **12–18 month** window.
4. **Flexibility in Procedure:** Parties can choose the venue, language, and even the technical expertise of the arbitrator/mediator.
5. **Enhances Access to Justice** to poor and marginalised sections of the society
6. **Reducing Government Litigation: Eg.** The 2026 **National Litigation Policy** mandates mediation for all inter-ministerial property disputes.
7. **Promotes Ease of Doing Business** - **Efficient contract enforcement** through ADR encourages **foreign and domestic investment**, improving India's business climate.
8. **Preserves Relationships** - Unlike adversarial litigation, ADR promotes **collaborative problem-solving**, helping maintain personal and business relationships.
9. India's ADR laws now mirror the **Singapore Convention**, making it an attractive global hub for arbitration.

Challenges associated with ADR:

1. **Low Awareness Levels: 54% of Indians** are still unaware of mediation as a viable option.
2. Though **SC** limited court intervention in international arbitration in **Bharat Aluminium Co. v. Kaiser Aluminium (2012)**, judicial involvement remains a challenge.
3. **Shortage of Trained Professionals:** lack of certified, full-time mediators outside of major metropolitan hubs.
4. **High Cost of Private Arbitration:** Fees for top-tier arbitrators can sometimes exceed the actual value of the dispute.
5. **Cultural Resistance:** A "litigation-first" mindset among lawyers.
6. **Digital Divide in ODR:** Poor internet access in rural districts prevents the effective use of **e-Mediation** tools.
7. **Inadequate Infrastructure:** Many court-annexed mediation centers lack private rooms, basic tech, or dedicated administrative staff.
8. **Delay in Council Formation:** Although the Act was passed in 2023, the **Mediation Council** is yet to become fully functional.
9. **Lack of Diversity: Eg.** Less than **15% of empanelled arbitrators** are women or non-legal industry experts.

Way Forward:

1. Set up a **National Accreditation Board for Arbitrators** under the Ministry of Law and Justice.
2. Amend and update the **Arbitration and Conciliation Act, 1996** to address **enforcement challenges** & clarify procedural rules.
3. Strengthen global partnerships with **Singapore International Arbitration Centre**, **International Court of Arbitration etc.**
4. Encourage **mandatory mediation or conciliation** before litigation, especially for **civil, commercial, and family disputes**.
5. Promote **institutional arbitration** by strengthening **arbitration centers** with standardized rules and procedures.
6. **The Singapore Model:** Adopt "Arb-Med-Arb" protocols where an ongoing arbitration is paused for a "mediation window" to encourage settlement.
7. **Tax Incentives for Mediation:** Provide tax rebates or "Justice Credits" to companies that resolve **80% of their disputes** via ADR.

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8. **Community Mediation Centers:** Establish "Nyaya Samitis" in every Gram Panchayat, revitalizing India's ancient tradition of local reconciliation.

National Legal Services Authority (NALSA)

1. **Article 39A provides for free legal aid to the poor and weaker sections of society and ensures justice for all.**
2. Established under the **Legal Services Authorities Act, 1987**, NALSA aims to **provide free legal aid** to weaker sections of society and **organize Lok Adalats** for speedy dispute resolution.
3. **Organizational Structure** - The **Chief Justice of India serves as the Patron-in-Chief**, while the **second senior-most Supreme Court judge** functions as the **Executive Chairman**.
4. NALSA organizes **Lok Adalats at various levels** to enable amicable settlement of disputes through **conciliation and compromise**.
5. **It** conducts **legal literacy initiatives** to educate people about their rights and the availability of legal aid services.
6. Between **2022-23 and 2024-25, more than 44.22 lakh people** received free legal **aid and advice.**

Lok Adalats

Lok Adalat, meaning 'People's Court,' is an alternative dispute resolution mechanism based on Gandhian principles. It allows for amicable settlement of disputes.

History

1. First Lok Adalat was held in **1982**, at Una, Gujarat, under the guidance of **Justice Bhagwati**.
2. **It** gained legal status through the **Legal Services Authorities Act, 1987**.
3. In **2002**, the Act was amended to establish **Permanent Lok Adalats (PLAs)** for Public Utility Services (like electricity and water)

Key Recent and Accurate Data (2025–2026)

1. From **2022–23 to 2024–25, more than 23.5 crore cases were settled through national, state and permanent Lok Adalats.**
2. Out of the total settlements in 2025, over **80%** were pre-litigation matters.

Key Features and Jurisdiction of Lok Adalat

1. **Awards are final** and hold the same enforceability as a **civil court decree**.
2. **No Requirement for Lawyers** - Parties **can represent themselves**
3. **Affordability - No court fees** are charged
4. **Flexible Procedure - Strict civil procedural laws and evidence rules do not apply**
5. **Scope of Cases** - can resolve disputes in **both pending and pre-litigation matters**, including:
   a. **Matrimonial and family disputes**
   b. **Compoundable criminal cases**
   c. **Land acquisition disputes**
   d. **Labour and workmen's compensation cases**
   e. **Bank recovery cases**
6. **Enjoy Jurisdiction Over Compoundable Criminal Cases**

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Gram Nyayalayas

Gram Nyayalayas or village courts are established under the **Gram Nyayalayas Act, 2008** for speedy and easy access to the justice system in the rural areas of India. There are **476 Gram Nyayalayas** notified by **15 States/UTs** in India. Out of which **258 are operational in 10 States.**

Challenges in India's Legal Aid Delivery

1. **Policy Inconsistency:** Frequent leadership changes at NALSA and SLSAs cause fragmented implementation and lack of long-term planning.
2. **Budgetary Constraints**: India's legal aid spending is only 4.57 paise per capita annually (2022-23). (India Justice Report)
3. **Lack of incentives for Lawyers**: Lawyers refrain from pro bono work due to low fee caps and nominal honorariums (₹1,500–₹7,500).
4. **Lack of Specialization:** Generalist lawyers often lack the specific training required for sensitive cases like POCSO or atrocities.
5. **Societal Stigma:** Distrust of state institutions and social pressure discourage marginalized victims from seeking legal help.
6. **Low Awareness Levels:** Despite over 80% eligibility, only 15 million people have used legal aid since 1995.
7. **Inadequate Outreach:** Legal campaigns are often urban-centric and fail to account for regional dialects or vulnerabilities.
8. **Poor Outcome Tracking:** Evaluation focuses on the number of cases rather than user satisfaction or judicial quality
9. **Challenges Faced by Lok Adalats**:
    a. Limited powers and procedural constraints.
    b. Inability to compel parties to appear, leading to delays.
    c. Insufficient infrastructure, resources, and training.
10. **Under-utilisation of Para-Legal Volunteers (PLVs)**: Lack of comprehensive training, resources, and fair compensation for PLVs.
11. **Shortage of Staff and Unfilled Vacancies** affects operational efficiency.

Way Forward

1. **Scale Capacity-Building:** Enhance judicial academy programs to build subject expertise and sensitivity toward vulnerable, marginalized groups.
2. **Incentivize Performance:** Introduce performance-linked honorariums and clear evaluation metrics to improve the quality of legal representation.
3. **Expand Literacy Partnerships:** Use regional bodies and multimedia platforms to bridge linguistic barriers and deepen legal awareness.
4. **Leverage Digital Media:** Utilize streaming platforms and coordinated broadcasts to reach wider audiences with targeted legal information.
5. **Strengthen Institutional Synergy:** Foster collaboration between the judiciary, executive, and civil society for smoother referral and rehabilitation.
6. **Shift to Outcome-Based Metrics:** Implement user-feedback systems and quality audits to measure actual fairness and litigant satisfaction.
7. Launch **legal literacy campaigns** and promote active use of para-legal volunteers

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8. Establish clear protocols to ensure free, informed and voluntary consent
9. **Regular training** of judges, conciliators and legal services personnel
10. **Expand E-Lok Adalats and link settlements with the National Judicial Data Grid (NJDG)**
11. Establish Permanent Lok Adalats (PLAs) in all districts

Lok Adalats	Arbitration Tribunals
Governed by the **Legal Services Authorities Act, 1987**.	Governed by the **Arbitration and Conciliation Act, 1996**.
Primarily **Conciliatory** and **informal**; focuses on **amicable compromise**.	**Adjudicatory** and **quasi-judicial**; focuses on a **"winner-loser"** legal decision.
Usually includes a **presiding officer** (**sitting/retired judge**), an **advocate**, and a **social worker**.	Comprises **one or more Arbitrators** appointed by the parties (often experts or retired judges).
Can entertain **Civil cases** as well as **Minor Criminal cases** (**compoundable offenses**).	Exclusively handles **Civil and Commercial disputes**; cannot entertain any **criminal cases**.
Decision is based purely on **compromise** or **settlement** between the parties.	Based on **legal principles**, **evidence**, and **terms of a contract** between parties.
No court fee is charged; if a court fee was previously paid, it is **refunded upon settlement**.	Parties must bear the **Arbitrator's fees** and **administrative costs**, which can be expensive.
The award is **final** and **non-appealable** in any court of law.	The arbitral award is **final** but can be **challenged/appealed** in court under specific legal grounds.
Often initiated by the **court (referral)** or through **pre-litigation application**.	Based strictly on a **pre-existing Arbitration Clause** or **agreement between the parties**.

Tribunals

Tribunals are either judicial or **quasi-judicial bodies** established by an **Act of Parliament or a State Legislature under Article 323A or 323B**, as facilitated by the 42nd Amendment Act of 1976.

The Income Tax Appellate Tribunal was established as the first Tribunal in India in 1941.

1. **Composition** - Tribunals consist of **both judicial and technical (expert) members**, making them distinct from traditional courts.
2. **Chandra Kumar Case (1997)** - The Supreme Court ruled that **appeals against tribunal decisions** should be heard by a **division bench of the concerned High Court**.
3. The **Administrative Tribunals Act, 1985** and the **Tribunals Reforms Act, 2021** (and its ongoing 2025-26 revisions) govern their structure and functioning.

Classification

1. **Administrative Tribunals**

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a. Central Administrative Tribunal **(CAT)**
b. State Administrative Tribunals (**SATs)**
c. Joint Administrative Tribunal **(JAT)**

2. **Other Tribunals**
   a. **National Green Tribunal**
   b. **Armed Forces Tribunals**
   c. **Foreigner Tribunals** - determine whether a person is or is not a foreigner under Foreigner's Act 1946.
   d. **National Company Law Tribunal (NCLT)** - established under the Companies Act 2013
   e. **Telecom Disputes Settlement and Appellate Tribunal (TDSAT)**

- SC has directed the Union Government to establish the **National Tribunal Commission (NTC)** to oversee all tribunals.
- In major tribunals like the **NCLT**, nearly **88% of the staff** (382 out of 434) were working on a temporary/contractual basis.
- The **Armed Forces Tribunal (AFT)** recorded over **21,000 pending cases**

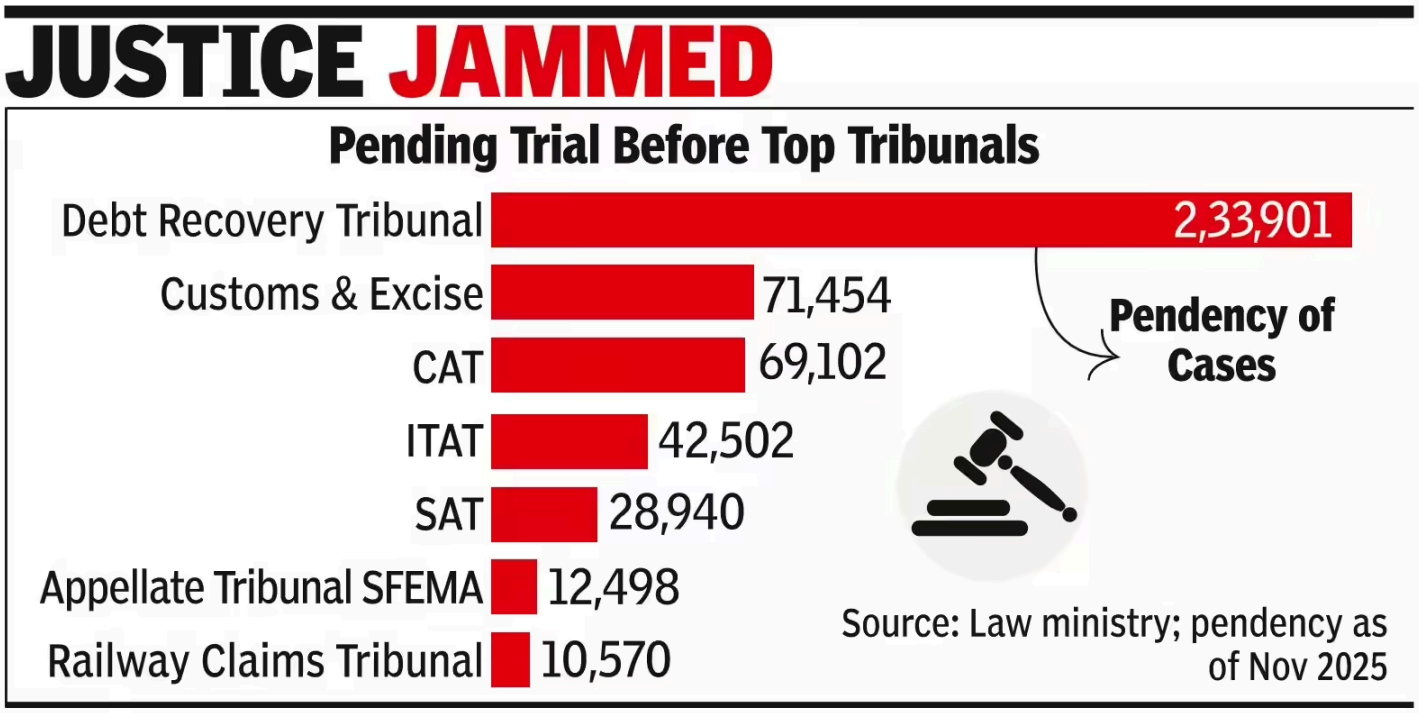
Significance:

1. **Specialized Technical Expertise:** Benches consist of both Judicial and "Technical Members" (experts) to handle complex domain-specific issues.
2. **Reduction of Court Burden: Eg. ITAT (Income Tax Appellate Tribunal)** resolves the majority of tax disputes, preventing the HCs from being overwhelmed.
3. **Speedy Dispute Resolution: Eg.** The **NCLT** is mandated to resolve corporate insolvency cases within a strict **180-270 day** window.
4. **Cost-Effective Justice:** Lower court fees and simplified filing make them accessible for individuals and small businesses.
5. **Accessibility: Eg.** The **NGT** has five zonal benches (Bhopal, Pune, Kolkata, Chennai, and Delhi) to ensure regional coverage.
6. **Flexibility and Informality:** They follow the "Principles of Natural Justice" rather than the rigid **Evidence Act**, ensuring fairness.
7. **Alternative to Writ Jurisdiction:** They act as the "court of first instance" for specialized matters, as per the **L. Chandra Kumar (1997)** ruling.
8. **Sector-Specific Regulation:** They help in the smooth functioning of core sectors like Telecom, Electricity, and Real Estate.
9. **Insolvency & Bankruptcy Success:** Tribunals have revolutionized debt recovery through the **IBC 2016** framework. **Eg.** Recoveries through **NCLT** have surpassed **₹3 lakh crore**.

Issues:

1. **Lack of Independence**: Tribunals are under the **administrative control of the Line Ministry**
2. **High Pendency Rates**:tribunals have **over 5 lakh** cases pending
3. **High Vacancy Rates** due to prolonged delays in appointing members

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4. **Tribunalization of Justice**:Tribunals diminish the authority of regular courts, **violating the principle of separation of powers.**
5. **Judicial Overreach**: Eg. The SC's intervention in the TDSAT ruling on the Adjusted Gross Revenue (AGR)
6. **The "Retired Judges" Syndrome:** Reliance on retired judges (aged 62+) is criticized for lacking "fresh energy" and technical adaptability.
7. **Short Tenure of Members:** A 4-year tenure was seen as too short to gain domain mastery. (SC recently restored a **5-year minimum tenure**)
8. **Overlapping Jurisdiction**:Tribunals often have overlapping jurisdictions, leading to confusion and inefficiency. Eg. COMPAT and NCLT
9. **Infrastructure Deficits:** Many tribunals operate out of rented buildings with no digital infrastructure or library facilities.
10. Over **70% of NCLAT orders** are challenged in the Supreme Court, defeating the "speedy resolution" goal.
11. **Secondary Role**: SC in **Chandrakumar v. Union of India** clarified that tribunals were intended to perform a **substituting, not supplementary role** in adjudicating service-related matters

Tribunals Reforms Act, 2021

- **Abolition of 9 Appellate Tribunals**, transferring their cases directly to the High Courts.
- It set the **term of office** for chairpersons and members at **4 years.**
- It mandated that a person must be at least **50 years** old to be appointed.
- **Search-cum-Selection Committee** headed by the CJI (or a nominee) with a "casting vote" to recommend **two names** per vacancy, giving the executive the final choice.
- Mandated appointments within **three months** of the committee's recommendation.

Major SC Judgments on Tribunals

1. **Tribunal Reforms Act Case (Nov 2025):** The SC struck down several sections of the 2021 Act as **unconstitutional**. It struck down
   a. Minimum age requirement of 50 years

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   b. 4 year tenure (SC mandated minimum 5)
   c. Search cum selection committee to recommend 2 names for each vacancy (SC mandated only 1 name recommendation)
   d. Service conditions equivalent to civil servants (SC mandated equal to HC judge)
2. **Madras Bar Association v. Union of India (2021): Selection** committees must have "judicial dominance" to protect Separation of Powers
3. **L. Chandra Kumar v. Union of India (1997):** Established that tribunals are not substitutes for High Courts & decisions are subject to the writ jurisdiction of High Courts (Article 226/227).

Way Forward:

1. **Impartial Member Selection:** Implementing recommendations from the **272nd Law Commission** of India to reduce government involvement.
2. **Timely Filing of Vacancies**
3. Create the **National Tribunal Commission** as an independent umbrella body for all tribunals.
4. **Financial Autonomy:** Funding should be **charged on the Consolidated Fund of India**
5. **Zonal Benches:** Establish regional benches for all major tribunals to ensure "Access to Justice".
6. **Mandatory Training: 3-month judicial training program** for new technical members
7. Enact a **"Tribunals Procedure Act"** to bring uniformity across all adjudicatory bodies.
8. Adopt the **UK First-tier and Upper Tribunal** model, which has a unified administrative structure and clear career paths for members.
9. Fully digitalize tribunal processes through an **e-Tribunals initiative**

Contempt of Court

Contempt of court refers to any act that **disrespects or challenges the authority, integrity, or dignity of a court**. It includes **defying court orders, witness tampering, withdrawing evidence, or non-compliance with judicial requests**.

Key Facts and Provisions

1. **Article 129** empowers the **Supreme Court** as a **Court of Record** with the authority to **punish for contempt**; **Article 215** grants similar powers to **High Courts**.
2. **Article 19(2):** Includes "Contempt of Court" as a **reasonable restriction**.
3. **Contempt of Courts Act, 1971:** Provides the statutory framework, defining types of contempt, procedures, and punishments.
4. **Contempt of Court (Amendment) Act, 2006:** Introduced **"Truth"** as a valid defense if it is in the public interest and made bona fide.
5. **Civil Contempt - Willful disobedience** of a court's **judgment, decree, order, or direction**, or breach of an **undertaking given to the court**.
6. **Criminal Contempt** - Includes **publications or acts** that:
   a. **Scandalize the court** or lower its authority.
   b. **Interfere with judicial proceedings** or obstruct justice.
   c. **Obstructs** the administration of justice in any other manner.
7. **Punishment - Up to six months of simple imprisonment**, or a **fine up to ₹2,000**, or both.

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Court Cases:

1. **Prashant Bhushan Case(2020):** The SC held that tweets criticizing the CJI "scandalized the court" and undermined the dignity of the institution
2. **Shanmugam @ Lakshminarayanan v. Madras HC (2025):** contempt powers are meant to protect the **administration of justice**, not to shield judges from individual criticism
3. **Justice C.S. Karnan Case (2017):** The first time a sitting High Court judge was sentenced to imprisonment for contempt
4. **M.V. Jayarajan vs. High Court of Kerala (2015)** - the SC held that **using abusive language in public speeches while criticizing a court** amounts to **criminal contempt**.

Need:

1. **Ensuring Compliance:** ensures court orders are not ignored by the executive or powerful private entities. **Eg.** Civil contempt is used to enforce **maintenance payments** in matrimonial disputes.
2. **Deterrence Against Perjury:** Discourages parties from filing false affidavits or fabricated evidence. **Eg. criminal contempt** for submitting forged land records in property suits.
3. **Protecting Witnesses:** Contempt powers are used to punish those who **threaten witnesses** in high-profile criminal trials like the Lakhimpur Kheri case.
4. **Maintaining Courtroom Decorum:** Allows judges to manage disruptive behavior during hearings to ensure an orderly trial process.
5. **Curbing "Media Trials":** Prevents sensationalist reporting from prejudicing the mind of the judge or the public during active trials.
6. **Safeguarding Judicial Independence:** Protects judges from malicious political attacks intended to influence their decision-making process.
7. **Preventing Procedural Obstruction:** Punishes officers who intentionally delay implementation of time-bound judicial directives. **Eg. Contempt petitions against Chief Secretaries**
8. **Upholding Public Confidence**: **Eg.** in **Arundhati Roy case**, the SC found her in contempt for statements that were **perceived to erode public confidence** in the judiciary
9. **Protection of Subordinate Courts** - the **Act empowers High Courts to punish contempt of subordinate courts**, ensuring the **smooth functioning of lower judiciary**

Criticism:

1. **Chilling Effect on Speech:** Fear of contempt leads to **self-censorship** among journalists, activists, and legal academics.
2. **Against Right to dissent** under Article 19 and 21.
3. **Vague Definition:** The term "scandalizing the court" is highly subjective and depends on the judge's individual sensitivity.
4. **Conflict of Interest:** judiciary acts as the **accuser, prosecutor, and the judge** simultaneously violating the fundamental principle of **Natural Justice**
5. **Lack of Accountability:** The judiciary's power to punish for contempt without adequate checks can lead to arbitrary decisions..
6. **Colonial Anachronism:** The concept was abolished in the UK in 2013, yet India continues to use this "monarchical" tool.
7. **Inconsistent Punishment:** The lack of a standardized sentencing policy leads to disparities in penalties for similar offenses.
8. **Obsolete "Majesty" Concept:** In a modern democracy, institutional respect should be **earned through performance**, not enforced by fear.

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9. **Subjective "Truth" Defense:** Even with the **2006 Amendment**, the burden of proving "bona fide intent" remains prohibitively difficult for whistleblowers.

Way Forward:

1. **Abolish "Scandalizing the Court":** Follow the **UK's Crime and Courts Act 2013** and limit criminal contempt to "obstruction of justice" only.
2. **The "Clear and Present Danger" Test:** Adopt the **US standard**, where contempt is only invoked if the speech poses an immediate threat to a fair trial.
3. **Codifying "Fair Criticism":** Explicitly define what constitutes academic, journalistic, or legal critique to provide a "Safe Harbor" for citizens.
4. Ensure that contempt cases are resolved within **6 months**.
5. **Mandatory Mediation** before punitive action **for Civil Contempt**
6. Create an independent committee to assist the **Attorney General** in deciding contempt permissions to ensure non-partisanship.
7. Strengthening the **Judicial Standards and Accountability** framework can reduce the need for "defensive" contempt laws.

Sealed cover jurisprudence

It refers to the practice where the **executive (government) submits sensitive information** to the judiciary in a sealed envelope, accessible only to the judges and not to the opposing party.

Recent News

1. Following the full implementation of the MediaOne guidelines, courts have replaced "Sealed Covers" with **Public Interest Immunity (PII)** claims, where a redacted summary of the evidence must be shared with the petitioner.
2. The Apex Court recently reprimanded the Enforcement Directorate for "routinely" handing over case diaries in sealed covers during bail hearings, calling it a violation of Article 21.

Major Cases

1. **Pegasus Spyware Case (2021):** The SC refused to accept a "limited affidavit" in a sealed cover from the Centre
2. **Rafale Fighter Jet Deal:** accepted pricing details in sealed cover citing the Official Secrets Act.
3. **Bhima Koregaon Case** accepted evidence in sealed covers to deny bail to activists.
4. **BCCI Reforms Case:** The Mudgal Committee submitted names of cricketers suspected of match-fixing in a sealed cover to protect their reputations during the probe.
5. **INX Media Case (2019):** The SC criticized the Delhi High Court for denying bail to P. Chidambaram based solely on documents produced by the ED in a sealed cover.

Justification of Sealed Cover Jurisprudence

1. **Protecting National Security:** Safeguards classified military or intelligence data
2. **Investigation Integrity:** Prevents the "tipping off" of suspects or the destruction of evidence
3. **Privacy of Individuals:** Protects the reputation and dignity of persons
4. **Protecting Identity of Informants**
5. **Diplomatic Sensitivity: Eg.** Terms of **sovereign guarantees** in international defense contracts
6. **Economic Stability: Eg.** Data regarding **distressed assets in major banks**
7. **Protection of Victims** in sensitive cases like POCSO

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8. **Complying with Official Secrets Act & Section 123 of the Evidence Act**

Criticism of Sealed Cover Jurisprudence

1. **Violation of Natural Justice:** Violates the "Right to be Heard" (Audi Alteram Partem)
2. **Lack of Transparency: violates "justice must be seen to be done" principle**
3. There is no codified law for its use, leaving it to the "ad-hoc" discretion of individual judges.
4. **Erosion of Judicial Reasoning**
5. The **2025 Media Freedom Index** cited sealed covers as a major threat to independent journalism in India.
6. **Interference with Fair Trial:** withholding of evidence from the accused.
7. **Undermining Accountability** of executive. Eg. pegasus case
8. **Democratic Decay**

Way Forward

1. **Appointment of Amicus Curiae:** appoint an independent lawyer to "see" the sealed cover and argue on behalf of the absent party.
2. **Redacted Disclosures:** Mandate the state to provide "Redacted Summaries" that remove sensitive names but keep the "gist" of the allegations clear.
3. Amend the **Supreme Court Rules, 2013** to define strict, narrow categories where sealed covers are permissible.
4. **The Proportionality Test:** Apply the **Puttaswamy (2017) test** to ensure that "secrecy" is the least restrictive measure possible to achieve the goal.
5. **In-Camera Hearings**

Judicial Recusal in India

In **Delhi Liquor Policy Case** a recusal plea was raised against **Justice Swarna Kanta Sharma** citing perceived ideological bias.

Judicial Recusal is the act of a judge voluntarily abstaining from participating in a legal proceeding because of a conflict of interest or a reasonable apprehension that they cannot remain impartial.

It flows from two foundational maxims of law:

1. **Nemo judex in causa sua** - "No one shall be a judge in their own cause"
2. **Justice must not only be done but must also be seen to be done**

Provisions and Procedures in India

1. **No Codified Law:** Unlike the US (28 U.S. Code § 455), India has **no statutory law** governing recusal. It is governed by judicial conventions and precedents.
2. **Restatement of Values of Judicial Life** - forbids a judge from deciding a case where they hold a **pecuniary interest**, unless the concerned parties have no objections. It is **non-binding**.
3. **Constitutional Oath:** Derived from the **Third Schedule**, where a judge swears to perform duties "without fear or favour, affection or ill-will."
4. **Two Types:**
   a. **Automatic (Sua Sponte):** The judge withdraws voluntarily upon identifying a conflict.
   b. **Requested:** A litigant files a plea for recusal. **Final decision** rests with the judge.
5. **Reassignment:** Once a judge recuses, the case is sent to the **Chief Justice (Master of Roster)** for assignment to a different bench.

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6. The **Doctrine of Necessity** is an exception. It says that a judge may still hear a matter despite a potential conflict if there is no alternative forum or judge available

Grounds for Recusal

1. **Personal or prior professional association** with a party
2. **Earlier involvement** as lawyer or judge in the same matter
3. **Financial interest** in the case outcome
4. **Engagement in ex parte (private) communications** related to the case

Justification of Recusal

1. **Preservation of Public Confidence** in impartiality of Judiciary
2. **Preventing Prejudgment - Prior Advocacy Conflict** - Eg. Justice U.U. Lalit recused from the Ram Janmabhoomi dispute as he had previously appeared as an advocate in a related matter
3. **Protection Institutional Integrity in Politically Sensitive Cases - Eg.** CJI Sanjiv Khanna and CJI Surya Kant both recused from petitions challenging the CEC appointment law
4. **Upholding Due Process:** Article 21's "Right to a Fair Trial" implicitly requires an impartial adjudicator for every citizen.
5. Upholds **judge's oath to act** "without fear or favour, affection or ill-will" under **Schedule III**
6. Aligns India with international norms like **Bangalore Principles of Judicial Conduct** (2002).
7. A judge who has **pre-judged a legal or factual issue** must not decide the same matter again.

Limitations and Challenges in Recusal

1. **No Codified Law** - based on the conscience of judges, leading to opacity.
2. **Bench Hunting/Forum Shopping:** Litigants can request recusal of "tough" judges to get a more favorable bench assigned.
3. **Master of Roster Paradox** - A recused CJI cannot adjudicate the case but retains roster control to decide who hears it
4. **Lack of Transparency:** Most judges recuse without providing written reasons
5. Sudden recusal after a few hearings forces a "de-novo" (fresh) hearing, **wasting judicial time.**
6. **Subjectivity of "Conscience":** Since it's a personal decision, two judges may treat the same conflict differently, causing inconsistency.
7. **Strategic use of recusal petitions by litigants** to stall execution of orders or final hearings.
8. **Absence of Review Mechanism:** There is no legal way to challenge a judge's refusal to recuse except via a review petition later.

Major SC Judgments

1. **Manak Lal v. Dr. Prem Chand (1957):** Established the "Real Likelihood of Bias" test.
2. **Ranjit Thakur v. Union of India (1987):** Held that the test is the "Reasonableness of apprehension" in the mind of the party. (not actual bias)
3. **Supreme Court Advocates-on-Record Association (2015):** Clarified that pecuniary interest makes recusal automatic.
4. **Indore Development Authority Case (2019):** Ruled that a judge is not disqualified from a larger bench just for passing an earlier smaller-bench order.

Way Forward

1. **Mandatory Disclosure:** Judges should provide a written reason for recusal to ensure transparency
2. **Codify Recusal Standards Under Article 145 or by Statute**

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3. **Pre-Hearing Disclosure:** Conflicts should be disclosed at the "admission stage" to prevent delays during final hearings.
4. Adopting the **UK's** "Fair-minded and Informed Observer" test (Porter v. Magill) for a more objective standard.
5. **Review by a Larger Bench:** In sensitive cases, a recusal request could be decided by a 3-judge bench instead of the concerned judge alone.
6. **Penalty for** using recusal as a tool for "bench hunting."

Post-retirement appointments of judges

1. In 2024, hours after resigning as a judge of the Calcutta HC, joined a political party and contested 2024 LS elections.
2. Justice B.R. Gavai publicly pledged to **refuse any post-retirement appointment** from the government, arguing it is essential to maintain public confidence.

- Since 1950, over 40 CJIs have accepted post-retirement positions in various capacities.
- **Vidhi Centre for Legal Policy** found that nearly **72% of retired SC judges** take up official assignments (Tribunals, Commissions, or Governorships) within 2 years of retirement.
- Over **40 Central Acts** specifically require a retired SC or HC judge to head bodies like the NHRC, NGT, and NCDRC.

Constitutional Provisions:

1. **Article 124(7)**: Former Supreme Court judges cannot practice law in any Indian court or authority.
2. **Article 220**: Retired High Court judges are prohibited from acting in any court except the Supreme Court and other High Courts.

Benefits of Post-Retirement Appointments

1. **Utilization of Expertise -** as per Former CJI D.Y. Chandrachud, the "vast experience" of judges is a valuable national resource that shouldn't be entirely discarded.
2. **Statutory Compliance: Eg. Protection of Human Rights Act** requires a former CJI or SC judge to lead the NHRC.
3. **Judicial Continuity in Tribunals:** Judges are better equipped than bureaucrats to handle "judicial functions" like cross-examination and evidence.
4. Retired judges act as neutral and "trusted" members for heading sensitive inquiry commissions. **Eg. Justice J.S. Verma Committee** after the **Nirbhaya case.**
5. **Institutional Memory:** Long-serving judges help maintain consistency in how specialized laws (like the IBC) are interpreted across the country.
6. **Standardizing Quasi-Judicial Work:** Judges bring a "standardized template" for writing judgments to administrative bodies that might otherwise be arbitrary.
7. **Filling Vacancy Gaps:** They serve as a ready pool of "ad-hoc" members for temporary commissions, saving the time required for fresh recruitments. **Eg. Delimitation Commissions**

Criticism:

1. **Erosion of Judicial Independence:** The "hope" for a future job may subconsciously influence a judge's rulings in favor of the government.
2. **Public Perception Crisis: Eg. nomination of a former CJI to the Rajya Sabha** (2020)

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3. **Violation of Separation of Powers:** Moving from the bench to a political or executive role (like Governor) blurs the line between branches.
4. **Conflict of Interest:** Judges might delay or fast-track certain government cases to stay in the "good books" of the appointing authority.
5. Tribunals have become **"retirement homes" for judges, r**ather than specialized bodies
6. **Inconsistent Selection Process: Eg. 2026 search-cum-selection committees** for tribunals have been criticized for lacking "objective merit scores."
7. Some retired judges take on **too many assignments** (Arbitration + Commission + Head of Body), leading to new backlogs in those bodies
8. **Moral Hazard:** It encourages a culture of "executive-minded" judges who prioritize state interests over civil liberties to secure a "soft landing."

Way Forward:

1. **Mandatory 2-year Cooling-off Period** before accepting a government appointment.
2. **Increase Retirement Age** to **70 years** (uniform for HC and SC)
3. Provide retired judges a **pension equal to their last drawn salary** to ensure financial independence
4. Create a **"Judicial Services Commission"** (including the Opposition Leader and CJI) to make all tribunal appointments.
5. Adopt the **UK model** where a "Judicial Appointments Commission" handles even post-retirement roles with strict transparency.
6. Use **Article 128** (SC) and **224A** (HC) to bring retired judges back into the active judiciary to clear backlogs instead of tribunals.
7. **Transparent Conflict Registry:** Every retired judge accepting a post must file a "public declaration" of all government cases they heard in their last 3 years.

Lower Judiciary

Constitutional and Legal Provisions

1. **Articles 233-237:** Part VI of the Constitution governs the Subordinate Courts.
2. **Article 233:** Appointment of **District Judges** is by the Governor in consultation with the HC
3. **Article 235:** administrative and disciplinary control over the lower judiciary is vested in **HC**.
4. **Article 312:** Provides the power to create an **All India Judicial Service (AIJS)** via a resolution in the Rajya Sabha.

Issues with the Lower Judiciary

1. **Massive Case Load:** Total pendency of **49 million**, over **1.8 lakh cases** have been pending for over 30 years.
2. **Acute Human Resource Gap:** Nearly **one-fourth** of judicial posts are vacant due to slow recruitment by State PSCs.
3. **Infrastructure Deficit:** Many courtrooms lack basic digital infrastructure, secure evidence rooms, or separate facilities for women.
4. **Case Clearance Rate(CCR)**: CCR for Subordinate courts is 89%. Due to CCR below 100%, cases are accumulating which resulted in pendency.
5. **Administrative Overburden:** Judges spend significant time on clerical tasks like summons tracking instead of actual adjudication.
6. **Archaic Procedural Laws: Eg. "Three Adjournments Rule"** is rarely enforced in lower courts.

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7. **Inadequate Investigation:** Poor quality of police charge-sheets leads to prolonged trials and high acquittal rates in lower courts. **Eg.** missing witnesses and forensic delays.
8. **Digital Divide:** rural litigants and lawyers struggle with **connectivity and literacy**.
9. **Low Judge-to-Population Ratio:** With only **21 judges per million**, the daily cause list for judges often exceeds 100 cases.
10. **Financial Constraints: Eg.** Total judicial spending remains below **0.1% of India's GDP**.

Way Forward to Strengthen the Lower Judiciary

1. Create the **All India Judicial Service** under Article 312 to attract high-quality merit-based talent.
2. Simplify judicial workflows using the **"Process Re-engineering"** guidelines from the April 2026 conference. **Eg.** Automating **summons delivery via NSTEP**.
3. **Scale e-Courts Phase III** to achieve 100% paperless courts by 2027.
4. **Adopt "Court Managers":** Appoint professional managers for every court complex to handle administration, freeing judges for legal work.
5. Enforce the **Mediation Act, 2023** to divert 20-30% of civil/commercial cases before filing.
6. Introduce **double-shifts or evening courts** for petty offenses to clear high-volume, low-complexity cases.
7. Empower **Under Trial Review Committees** to meet monthly and recommend the release of eligible prisoners.
8. **Standardize Infrastructure:**
9. Ensure every taluka court has **e-Sewa Kendras** to provide digital help to common citizens.
10. **Economic survey (2018-19)** recommended creating the **Indian Courts and Tribunal Services(ICTS)**, which would provide critical administrative support to Indian judges.
11. **Regular "Pendency Audits":** Conduct quarterly **Impact Audits** of long-pending cases (10+ years) at the District Judge level

Digitization of Judiciary

In **Swapnil Tripathy vs. Supreme Court (2018)** case, the Supreme Court affirmed that live telecast of court proceedings falls under the Right to access justice as per **Article 21** of the Constitution.

1. The Supreme Court e-Committee and Department of Justice held a National Conference on **"Judicial Process Re-engineering,"** focusing on AI integration.
2. Several High Courts (Eg. Delhi and Karnataka) launched AI-driven applications in early 2026 to automate **surety verification**, significantly accelerating bail releases.

Benefits:

1. **Transparency: Eg. automated SMS/Email updates** regarding t hearing dates
2. **Reduction in Pendency: Eg. Virtual Courts** reduced the burden of 10 crore petty cases.
3. **Speedy Justice Delivery: Eg. FASTER system** to send bail orders to jail authorities.
4. **Improved Access:** e-Sewa Kendras allow online case filing and check status locally..
5. **Lower Cost of Litigation:** Reduces travel costs for lawyers, witnesses, and undertrials.
6. **Paperless Ecology:** Transitioning to "Digital Courts 2.1" removes the need for physical case files.
7. **Accuracy in Records:** Real-time AI transcription (TERES) ensures record accuracy.
8. **Integration of Justice System:** ICJS allows a judge to see a person's entire criminal history across different states instantly.

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9. **Evidence Integrity:** Electronic evidence stored in Virtual Evidence Rooms is secure and protected by cryptographic hashes.

Steps Taken:

1. **E-Courts Mission Mode Project**: objective of strengthening the use of ICT in the judicial system.
   a. **Phase III** aims at **digital and paperless courts** by digitizing legacy and current case records. Over **660.36 crore pages** digitized.
   b. **30 Virtual Courts** have been established to enable online adjudication of traffic challans.
   c. **Video Conferencing** facilities expanded across 3,240 court complexes and 1,272 jails. (over 3.93 crore hearings conducted)
   d. **Live streaming of court proceedings is operational in 11 High Courts.**
   e. **E-filing and e-payments systems** - over 1.03 crore cases filed online
   f. **National Judicial Data Grid (NJDG)** provides public access to case data, statistics of courts across the country
   g. The **S3WaaS platform** hosts 730 District Court websites, ensuring secure and accessible web infrastructure.
   h. The **e-Courts Services mobile app** (3.5 crore downloads) provides the lawyers and litigants relevant information about case status, cause lists etc.
   i. 48 **e-Sewa Kendras** are functional across all High Courts and 2283 e-Sewa Kendras across District Courts.
   j. **Digital Courts 2.1** is a customized application for paperless Courts with facility of translation and transcription using Artificial Intelligence (AI).
2. **Inter-operable Criminal Justice System (ICJS):** Enabling seamless data transfer among stakeholders like courts, police, and jails.
3. **Fast and Secure Transmission of Electronic Records (FASTER)**: Software for swift and secure transmission of Court Orders electronically.
4. **SUVAS (Supreme Court Vidhik Anuvaad Software):** Translating English judgments into regional languages.
5. **NSTEP:** A mobile app and web portal for the **electronic service of summons**, using GPS and photo-capture for verification.

Challenges:

1. **Digital Divide: Eg.** Frequent **connectivity drops** during virtual hearings
2. Inadequate Digital Infrastructure - lack of high-speed internet, uninterrupted power & secure data centers
3. **Cybersecurity Risks: Eg.** Recent **phishing attempts** targeting court registries.
4. **Privacy Concerns** in live streaming and open case data.
5. **Resistance to Change** among a segment of the legal fraternity, especially senior lawyers.
6. **Algorithmic Bias:** Using AI for case analysis or "predictive justice" can reinforce existing social or legal biases.
7. **Interoperability Issues:** Different High Courts use different software versions, making a "Unified National Portal" difficult.

Way Forward

1. Launch a **"Digital Literacy Mission"** for bar associations and court staff to ensure 100% adoption of e-Filing.
2. Create a **Uniform Digital Code** for all High Courts to ensure software interoperability.

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3. Integrate **solar-powered infrastructure** in every taluka court to sustain digital operations.
4. **Develop a user-friendly e-court system** with multilingual information and awareness.
5. Increase investment in **high-speed internet, cloud computing, and bandwidth capacity**..
6. Implement **robust encryption, multi-layered authentication, and secure cloud storage** to protect sensitive judicial data.
7. **Leveraging AI & Machine Learning** to improve judicial efficiency and reduce pendency.

Women Representation in Judiciary

"Women belong in all places where decisions are being made. It shouldn't be that women are the exception."
- **Justice Ruth Bader Ginsburg**

Key Data

- O**nly 1 woman judge** (Justice B.V. Nagarathna) out of the 34 sanctioned positions in SC.
- Across all 25 High Courts, women constitute approximately **14.27%** of the total judge
- Representation in the District and Subordinate courts is approximately **38%** nationally.
- Women make up only about **15% of the 1.7 million advocates** in India

Reasons for Low Representation

1. **Historical Factors:** Historically, the legal profession and judiciary were predominantly male-dominated fields. The first female judge in India's Supreme Court was appointed in 1989.
2. **Opaque Collegium System:** absence of formal, gender-diversity criteria. **Eg.** No woman was directly elevated from the Bar to the SC until **Justice Indu Malhotra** in 2018.
3. **Absence of Quotas in Higher Judiciary**
4. **Article 233** requires 7 years of practice as an advocate for District Judge eligibility, with most states requiring a minimum age of 35. This disproportionately affects women due to family responsibilities.
5. **The "Leaking Pipeline":** Many women leave litigation mid-career due to a lack of institutional support for work-life balance.
6. The **"Old Boys' Club" atmosphere in Bar Associations** often excludes women from critical informal networking.
7. **Barriers to Entry:** Women encounter entry barriers in law due to education access, and recruitment biases. Only 15.3% of lawyers enrolled in India are women.
8. **Frequent transfers** conflict with women's roles as primary family caregivers.
9. Limited access to **influential networks and mentors** hinders advancement in the legal profession
10. **Inadequate infrastructure**, from toilets to maternity leave, leads to high attrition among women

Need for women representation:

1. **Expanded Jurisprudence:** Women judges bring unique "lived experiences" that push the boundaries of law in social justice.
2. **Diverse Perspectives:** Gender-diverse judicial panels in India lead to more balanced judgments. **Eg.** in Sabarimala Judgment, **Justice Indu Malhotra dissented**.
3. **Gender Sensitivity:** Female judges in India are more likely to **address gender-specific issues** and apply **gender-sensitive interpretations** of the law.

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4. **Humanizing Justice:** They often incorporate an "ethics of care" alongside traditional rationality, making justice more empathetic. **Eg.** Rulings on **workplace harassment and maternity benefits**
5. **Role Model:** Justice Fathima Beevi's appointment as the first female Supreme Court judge in 1989 inspired many women to pursue legal careers.
6. As per the first female federal court Justice of the USA, **Sandra Day O'Connor,** arguing that it **enriches judicial decision-making and enhances the legitimacy** of the judiciary.
7. **Empowering Litigants:** Women survivors of violence feel more comfortable testifying and seeking justice in female-led courtrooms.
8. **Institutional Reform:** Women judges prioritize infrastructure reforms like crèches and clean toilets that benefit all court staff.

Way Forward

1. Amend the **Memorandum of Procedure (MoP)** to include gender diversity as a mandatory parameter for judicial elevation.
2. **33% reservation** for women in the lower judiciary across all states to build a strong pipeline.
3. Conduct mandatory **"Gender-Sensitivity Audits"** of all court complexes.
4. Establish a **"National Judicial Mentorship Program"** to support women lawyers through the Senior Advocate designation process.
5. **"Family-Sensitive Transfer Rules"** to prevent mid-career resignations of women judicial officers.
6. Mandate the establishment of **fully-funded crèches** in every District Court and HC complex.
7. **Sensitization Training:** annual **unconscious-bias training** for all judges and bar members.
8. **Bar Councils** should actively recruit and support women from **marginalized and rural backgrounds** to ensure intersectional diversity.

A Private Member's Bill on **Judicial Diversity** was introduced in the Rajya Sabha by MP **P. Wilson**

Key Data Points on Judicial Diversity

- SC, ST, OBC together account for **less than 20%**.
- Only **3%** of High Court judges belong to SC/ST communities. **Women - 14% in HC**
- Religious minorities account for less than **5%** of appointments in the last six years.

Key Provisions of the Bill

- Amends **Articles 124 and 217** - **"due representation" for SC, ST, OBC, women, and minorities** in **proportion to the population**
- **Bifurcation of the Supreme Court:** Separates the SC into a **Constitution Bench** (exclusively in Delhi for matters of national importance) and regional benches for routine appeals.
- Proposes the establishment of permanent **Regional Appellate Benches** in **New Delhi, Kolkata, Mumbai, and Chennai** to handle regular appellate matters.
- **Strict Appointment Timeline of maximum of 90 days** to prevent "pocket vetoes."
- **Criteria for Selection:** require the Collegium to explicitly document and prioritize **social and demographic diversity** as a selection criterion.

Master of the Roster Debate

Why in news?

1. **SC Overriding HC Chief Justice's Roster Powers (2025)-** SC directed Allahabad HC judge not be given criminal roster, provoking HC Bar's constitutional objection.

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2. **Constitutional paradox**- CJI Surya Kant recused from CEC appointment case yet directed bench composition.
3. **Recently,** Nepal abolished MoR after the Chief Justice misused it.

What is Master of the Roster?

It is an administrative power that designates the Chief Justice (of SC or HCs) as the sole authority to:

1. **Form Benches:** Decide which judges will sit together (Eg. a 2-judge vs. 3-judge bench).
2. **Assign Cases:** Determine which specific case will be heard by which bench.
3. **Special Benches:** Constitute larger "Constitution Benches" for matters of grave public importance.

Significance Of Master Of The Roster

1. **Ensures Efficient Judicial Administration-** MoR enables systematic case allocation..
2. **Enables Subject-Matter Expertise-Based Allocation** - improves constitutional adjudication quality and consistency.
3. **Prevents Bench Shopping by Litigants** & protects judicial neutrality.
4. **Enables Urgent Suo Motu Action on National Issues** - Eg. CJI Ramana used MoR to constitute a special bench examining oxygen shortages during COVID-19 crisis (2021).
5. Institutionalises CJI's **Constitutional Role as Administrative Head (Article 124)**

Major Criticisms

1. **Concentration of Power in CJI:** Can lead to "Administrative Autocracy" within the judiciary.
2. **Perception of Bias: Eg. 2018 Press Conference** by four senior-most judges highlighted concerns over the "selective" assignment of cases.
3. **Lack of Transparency:** no written reason given for allocation of cases
4. **Potential conflict of interest: Eg.** The **sexual harassment case (2019)** involving a former CJI, where he initially presided over the bench.
5. **Undermining "First Among Equals":** Absolute roster power makes the CJI a "Superior" rather than just a "Senior" peer.
6. Advanced democracies like the **UK** have **automated or committee-based allocation systems**

Way Forward

1. Transition to a **"Roster Committee"** consisting of the CJI and the next two senior-most judges
2. Use **AI and Algorithms** for random allocation of routine cases to eliminate human bias.
3. **Public Roster Policy:** Publish a clear, objective criteria for how "Sensitive Matters" are allocated
4. **Transparency in "Master" Role:** Whenever a departure from the "Normal Roster" occurs, the reason should be recorded in the file.

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Chapter 13

Local Government

PYQs

[2026] "Women as a class neither belong to a minority group nor are they regarded as forming a backward class." In the light of this statement, discuss the evolution of women's reservation from local bodies to Parliament. (10)

[2024] Analyse the role of local bodies in providing good governance at local level and bring out the pros and cons of merging the rural local bodies with the urban local bodies. (10)

[2023] "The states in India seem reluctant to empower urban local bodies both functionally as well as financially." Comment. 10

[2022] To what extent, in your opinion, has the decentralisation of power in India changed the governance landscape at the grassroots? (10)

[2020] The strength of local institutions in India has shifted from their formative phase of 'Functions, Functionaries and Funds' to the contemporary stage of 'Functionality'. Highlight the critical challenges faced by local institutions in terms of their functionality in recent times. (15)

[2019] "The reservation of seats for women in the institutions of local self- government has had a limited impact on the patriarchal character of the Indian Political Process." Comment. (15)

[2018] Assess the importance of the Panchayat system in India as a part of local government. Apart from government grants, what sources can the Panchayats look out for financing developmental projects? (15)

Panchayati Raj

"The success of democracy in India depends on the success of democracy at the grassroots through Panchayati Raj." - **Rajiv Gandhi**

"Panchayati Raj embodies the spirit of participatory democracy, enabling citizens to have a direct say in their governance."

They are inspired by **Gandhiji's concept** of **"Oceanic Circles of Power"** and **"Swaraj"**

To realise the vision of **"Gram Uday se Bharat Uday"**, India needs **second-generation Panchayati Raj reforms** focused on **subsidiarity, fiscal autonomy, and participatory democracy**.

Subsidiarity principle - decision-making authority is best placed

- Where responsibility for outcomes will occur
- In the closest appropriate proximity to where the actions will be taken

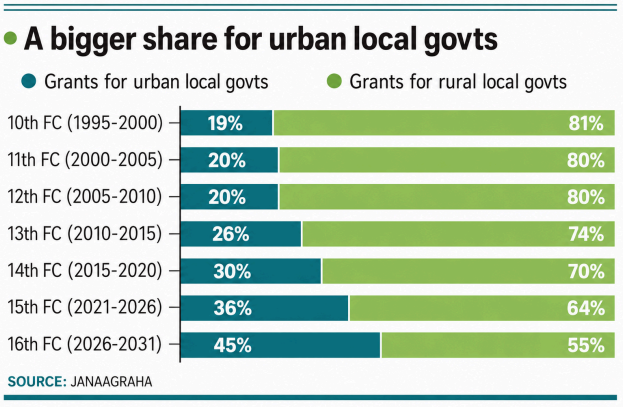
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Data on PRIs

Category	Data
Total PRIs	Approximately **2.64 lakh Gram Panchayats**, **6,792 Block Panchayats**, and **670 Zila Panchayats** across India.
Total Representatives	Over **31.8 lakh elected representatives** serve in the three-tier system
Women Representation	Over **46%** of all elected representatives (Over **14.5 lakh**) **21 States** have legally mandated **50% reservation** for women in PRIs.
Funding	**Union Budget** allocations for Rural Development **(2.73 lakh crore) increased by 211% from 2016-17 to 2026-27**
16th Finance Commission	Recommended a record grant of **₹4,35,236 crore** for **Rural Local Bodies (RLBs)** for **2026-2031**, an **84% increase** over the previous cycle.
Own Source Revenue	OSR contributes less than **5%** of total revenue for most Panchayats.
Tied vs. Untied Grants	**60%** of Finance Commission grants are **Tied**
Direct Transfer	Nearly **92% of Gram Panchayats** now receive funds directly into bank accounts through the **eGramSwaraj-PFMS interface**.
Infrastructure	Over **80% of Gram Panchayats** have dedicated office buildings.
Development Plans	**96.3% of Gram Panchayats (2.54 lakh)** uploaded their **GPDP** on the **eGramSwaraj portal** for **2025-26**.
Connectivity	Under **BharatNet**, approximately **2.15 lakh Gram Panchayats** provided with **high-speed broadband service**.
Staff Shortfall	1 **Panchayat Secretary** manages **1.5 to 2 Gram Panchayats** on average.
Capacity Building	Under **Rashtriya Gram Swaraj Abhiyan (RGSA)**, over **11.8 lakh representatives and functionaries** were trained in **2025-26**.
Extent of Devolution	According to the **2025 Devolution Index**, actual transfer of **29 subjects** under the **11th Schedule** stands at roughly **44%**.

Important Case Studies

1. **Mudradi (Karnataka):** Ranked 1st in the 2025 Panchayat Satat Vikas Puraskar for "Poverty Free" status; achieved 100% social security saturation.
2. **Madamakki (Karnataka):** achieved **100% Functional Household Tap Connections (FHTC)** and integrated greywater management.

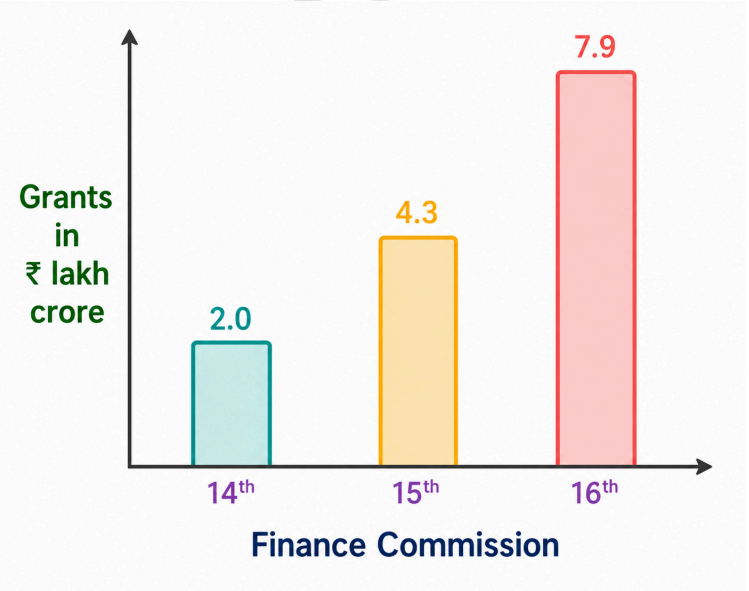


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3. **Hiware Bazar (Maharashtra):** The gold standard for water harvesting. Transformed from a drought-prone village into one with the highest per-capita income in rural India.
4. **Punsari (Gujarat):** India's first "Smart Village"; provides WiFi, CCTV, and AC schools, all funded through the panchayat's own resource optimization.

Women Leaders in Panchayats

1. **Yogeshwari Chaudhary (Dawwa, Maharashtra):** planting **1.16 lakh trees** and implementing solar mini-grids for 400 households.
2. **Prabala Kerketta (Dighia, Jharkhand):** A former nurse (32 years old) who used her medical background to rescue child brides and ensure 160+ widows received pensions.
3. **Sunita Bhalavi (Barcha Buzurg, MP):** achieving 100% digital literacy for women.
4. **Chhavi Rajawat (Soda, Rajasthan):** India's first MBA Sarpanch; modernized Soda with solar power, computerized land records, and a private-sector-led water project.



5. **Bhakti Sharma (Barkhedi, MP):** "Nutri-Garden" project to fight malnutrition and was named one of the top 100 influential women in India.
6. **Sushma Bhadu (Dhani Mihan, Haryana):** Successfully fought the "Ghoonghat" (veil) tradition
7. **Meena Behen (Vyara, Gujarat):** Led a strictly "all-women" panchayat that achieved 100% sanitation and built a milk cooperative that doubled local incomes.

Patna High Court (2024) struck down parts of the **Bihar Municipal (Amendment) Act, 2021**, that transferred the powers of appointment of Grade C and D employees of municipalities from the Empowered Standing Committee of the municipality to the State government-controlled Directorate of Municipal Administration.

The court held that such **recentralisation of power** was **"incompatible with the idea, intent, and design"** of the constitutional amendment, reaffirming **urban local autonomy**.

Significance of Local Bodies

Rajni Kothari - Described local bodies as "schools of democracy" where political awareness and participation are cultivated at the grassroots level.

1. **Normative Foundation:** It rests on two core values - **efficiency** in public service delivery and **deepening of democracy** through proximity to citizens.
2. **Democratic Decentralization** - Eg. Kerala's People's Plan Campaign grants local bodies control over **40% of the state's plan budget**.
3. **Principle of Subsidiarity**: decisions closer to the people. Eg. selection of beneficiaries under PM-Awas Yojana
4. **Inclusivity and social justice**: representation to Scheduled Castes, and Scheduled Tribes.
5. **Implementation of Schemes**, ensuring that benefits reach the grassroots. Eg. MGNREGA.
6. **Gender Empowerment:** Over **14.5 lakh Elected Women Representatives**, with 21 states providing 50% reservation.

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7. **Efficient Service Delivery:** Local bodies manage essential life-services like water, sanitation, and primary health more responsively than distant bureaucracies.
8. **Localized Planning** through Gram Panchayat Development Plans (GPDP)
9. **Crisis Management:** Local bodies acted as the "first responders".
10. **Resource Mobilization:** They act as agencies for collecting property taxes and user charges

Major Issues faced by PRIs

"PRIs exist as over-structured but underpowered organisations." They act merely as **administrative vehicles** of state governments, rather than as **autonomous institutions of self-governance**. (**2nd ARC**)

Funds

1. **Dependence on higher tiers:** Around **95% of Panchayat funds** come from **Central/State transfers**.
2. **Irregular flow of grants: Delays in fund release** under Finance Commissions and CSS schemes.
3. Although **direct transfers to panchayats** rose from **₹1.45 lakh crore (13th FC)** to **₹4.35 lakh crore (16th FC)**, **60%** are **tied grants**
4. **Limited own-source revenue:** Poor **tax collection efficiency** (>1% own tax).
5. **Weak financial management:** corruption, audit delays. (No decentralisation of power, rather **decentralisation of corruption - Mani Shankar Iyer Committee**)
6. Rising **Finance Commission allocations** has reduced motivation for OSR mobilisation
7. **Barriers to Local Taxation: fear of losing popularity** discourages local taxation.

Functions

1. **Incomplete devolution:** Less than 10 **States** have transferred all **29 subjects under 11th Schedule**. (overall Panchayat Devolution Index is only 44%)
2. **Centralised Welfare via Cash Transfers (DBT)**, bypassing panchayats. Eg. Schemes like **PM-KISAN** exclude them from beneficiary selection
3. **Role Ambiguity:** Lack of clear "Activity Mapping" leads to overlaps between the three tiers (Gram, Block, and Zila).
4. **Lack of planning autonomy:** District Planning Committees largely **dysfunctional or symbolic**.
5. **Conditionalities under CSS leaves** little scope for **local prioritisation**.

Functionaries

1. **Shortage of staff:** Average **0.67 Panchayat Secretaries per Gram Panchayat**, as low as **0.33 in Uttar Pradesh**.
2. **Dual control:** Local staff often answer to **line departments**, not Panchayats.
3. **Absence of dedicated cadre** for Panchayats in majority of states
4. Representatives lack **technical training** to use digital portals like **eGramSwaraj** or **AuditOnline**.
5. **The "Sarpanch-Pati" Culture:** male relatives exercising real power.
6. **Inadequate Infrastructure:** Approximately **20% of Panchayats** still lack dedicated office buildings (Panchayat Bhawans) or stable internet.

Functionality

1. **Weak Gram Sabhas:** Low participation, elite domination, and token meetings.
2. **Poor digital and administrative capacity:** Limited use of **e-Gram Swaraj and GIS-based planning**.
3. **Accountability issues:** Weak **social audit mechanisms** and poor grievance redressal.
4. **Urbanisation Shift in Policy Focus** as the rural population fell from **75% (1990)** to **about 60%**.
5. **Lack of real-time data** on village assets makes evidence-based planning difficult.

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Government Initiatives

1. Revamped Rashtriya Gram Swaraj Abhiyan (RGSA) - Capacity building and training of over 31 lakh elected representatives and PRI functionaries.
   a. Training on 9 thematic areas such as "Healthy Village," "Water Sufficient Village," and "Women Friendly Village."
   b. **Infrastructure:** Funding for the construction of **Gram Panchayat Bhawans** and co-location of **Common Service Centres (CSCs)**.
   c. In 2025-26, a specialized module for **Women Elected Representatives (WER)** was launched to reduce "Sarpanch-Pati" culture.
2. SVAMITVA Scheme
   a. Survey of Villages and Mapping with Improvised Technology in Village Areas.
   b. Drone surveys have been completed in **3.29 lakh villages** out of the 3.44 lakh target.
   c. Over **2.65 crore Property Cards** have been distributed
   d. States like MP and Karnataka have mandated **co-ownership of women** in these cards
3. e-Panchayat Mission Mode Project (MMP)
   a. **e-GramSwaraj Portal:** A unified platform for planning, accounting, and monitoring. In FY 2025-26, **2.54 lakh Gram Panchayats** uploaded their Development Plans.
   b. **AuditOnline:** Mandates online auditing of Panchayat accounts.
   c. **SabhaSaar:** An **AI-enabled platform** that provides real-time voice-to-text summarization of Gram Sabha meetings.
4. Panchayat Advancement Index - ranking system to measure the performance of PRIs across the 9 LSDG themes. It serves as the primary criteria for the National Panchayat Awards.
5. People's Plan Campaign (Sabki Yojana, Sabka Vikas) - preparation of evidence-based, holistic and inclusive Development Plans at the grassroots level
6. Meri Panchayat App for citizens to track PRI's budget, ongoing works, and expenditure
7. Finance Commission Grants (15th & 16th FC)
8. Accountability and Monitoring - Social Audit under MGNREGA and RGSA
9. **"Panchayat NIRNAY" portal** to make the GS meetings more participatory, transparent and vibrant. Deals with scheduling meetings, notifying citizens and recording panchayat decisions

Way Forward

1. Launch a new decentralisation drive (Panchayati Raj 2.0) to revive local governance momentum.
2. Second Administrative Reforms Commission (ARC) - 6th Report on Local Governance (2007)
   a. **Activity Mapping**: Clearly define and notify the functions of each tier of PRIs based on the principle of subsidiarity.
   b. **Strengthen District Planning Committees (DPCs)**: Make them functional with genuine planning power and integration across rural-urban lines.
   c. **Capacity Building**: Establish State Institutes of Rural Development (SIRDs) as nodal agencies for PRI training.
   d. **Performance Audits**: Institute independent performance audits of PRIs regularly.
   e. **Social Audit**: Institutionalize social audits in all developmental schemes implemented through PRIs.
   f. **Smaller, unviable** Panchayats should be merged for better administrative efficiency.
3. Mani Shankar Aiyar Committee (2013)
   a. No project should be implemented without prior informed consent of Gram Sabha
   b. Called for the abolition or integration of state-run parastatals (like Water Boards)
   c. Establish **National Commission for Panchayati Raj**.

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d. Create **Panchayat Ombudsman** for grievance redressal.
e. Set up a **separate cadre of Panchayat bureaucracy** with a **code of conduct**.
f. Adopt **activity mapping** for clear delineation of **3Fs - Funds, Functions, Functionaries**.

4. Sumit Bose Committee (2017)
   a. Every Gram Panchayat must have a full-time Secretary and a Technical Assistant (engineer) for infrastructure oversight.
   b. Scale Rashtriya Gram Swaraj Abhiyan to include "Specialized Management Training" at institutes like IIMs.
5. Punchhi Commission on Centre-State Relations (2010)
   a. **Strengthen State Finance Commissions** with mandatory action on their recommendations
   b. Create a **model legislation** to provide uniform devolution framework across states
6. **B.K. Chaturvedi Committee** - **Flexible Funding Norms** that allow PRIs to prioritize local needs
7. **Prof. T.M. Thomas Isaac** (former Kerala Finance Minister) - Recommends **building local cadre** of professionals to assist PRIs in technical and planning aspects.
8. **Nyaya Panchayats** for a cluster of villages to resolve petty disputes.**(L.M. Singhvi Committee)**
9. **State level practices**
   a. **Kerala People's Plan:** devolve **40% of the state budget** directly to local bodies.
   b. **Karnataka (Panchatantra 2.0):** GIS-based asset management system where every public asset (borewell, streetlight) is **digitally tagged** and monitored.

District Planning Committees

1. The **Union Budget 2026-27** proposed mapping **"City Economic Regions" (CERs)**, where DPCs will play a nodal role in coordinating between ULBs and surrounding rural Panchayats.
2. The Ministry of Panchayati Raj issued guidelines for DPCs to incorporate **"District Climate Resilience Plans"** into the annual draft development plans.

Constitutional Provisions

1. **Article 243ZD:** Inserted by the **74th Constitutional Amendment Act, 1992**.
2. **Composition:** The State Legislature determines the composition.
   a. At least **four-fifths (80%)** of the members must be elected by and from amongst the elected members of the district's Panchayats and Municipalities.
   b. The ratio of members from rural and urban areas must be in proportion to the population ratio of the district.

Key Functions

1. **Consolidation of Plans:** Merging individual Gram Panchayat Development Plans (GPDP) and Urban Local Body (ULB) plans into one cohesive document.
2. **Draft Development Plan:** Preparing a comprehensive blueprint for the entire district's social and economic development.
3. Helps in **prioritizing and recommending allocation of financial resources** for different sectors based on local needs.
4. **Spatial Planning:** Addressing the physical layout of the district, including zoning and land-use patterns across rural-urban borders.
5. **Resource Mapping:** Assessing available financial and natural resources (water, minerals, forests) for optimal allocation.
6. **Infrastructure Integration:** Planning common infrastructure like district highways, solid waste plants, and water pipelines that serve both towns and villages.

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7. **Submission to State:** The Chairperson forwards the finalized plan to the State Government for inclusion in the State Plan.
8. Promoting **bottom-up planning** by reflecting the priorities and aspirations of local people.
9. Acts as a **coordination mechanism between** Panchayati Raj Institutions and Municipalities.
10. Ensures that the district plan aligns with **state-level policies and objectives**

Major Issues in Functioning

1. **Lack of uniformity** - States have discretion in operationalizing DPCs, leading to **variation in structure, powers, and roles** across states.
2. **Bureaucratic Hegemony:** Dominated by the District Collector or state-appointed officials.
3. **Non-binding Nature of Recommendations**
4. DPCs have **no independent budget or "taxing power"** to execute them.
5. **Lack of Technical Staff:** lack of town planners, or economists to create "scientific" plans.
6. **Parastatal** bodies (like Water Boards) execute projects without consulting the DPC.
7. **Rural-Urban Disconnect:** limited "integrated" planning for peri-urban areas (Rurban clusters).
8. **Irregular Meetings**
9. **Sidelining the Gram Sabha** during the "consolidation" phase at the district level.
10. **MPs and MLAs dominate discussions**, suppressing voices of ward councillor

Way Forward:

1. **Independent Secretariat:** Every DPC must have a permanent office with professional town planners and economists (Sumit Bose Committee).
2. **Financial Devolution:** A dedicated "District Planning Fund" should be created, with a share of the State GST being directly credited to DPCs.
3. **Mandatory Social Audit:** The draft plans must be placed in the public domain for 30 days for citizen feedback before finalization.
4. **Regular Meetings**, mandatory quorum, and proper documentation.

PESA Act

PESA Act, 1996 is a landmark legislation that aims to extend the 73rd Amendment to the **Fifth Schedule Areas** of India. It is called a "Constitution within the Constitution" for tribal people.

Key Objectives

1. **Self-Rule** through traditional Gram Sabhas for people living in Scheduled Areas.
2. To **recognize and safeguard** the traditions, customs, and cultural identity of tribals.
3. **Resource Control:** ownership of minor forest produce and control over local resources.
4. **Prevent Exploitation:** protect from land alienation, moneylending, and intoxicant abuse.
5. **Participatory Democracy:** make the Gram Sabha the nucleus of all developmental activities.
6. To recognize traditional **community-based dispute resolution mechanisms.**
7. **Bottom-up Planning:** To ensure that every development project is approved by GS.

> **Adi Karmayogi Abhiyan** - national movement to build a decentralized tribal leadership and governance ecosystem.

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Objectives

- Train 20 Lakh tribal changemakers across 1 Lakh villages in 550 tribal-dominated districts
- Promote last-mile convergence & effective service delivery
- Facilitate Village Vision 2030 Planning & Development Action Plan

Key Provisions of PESA Act

1. Every village shall have a **Gram Sabha** consisting of persons whose names are included in the electoral rolls.
2. Every Panchayat must obtain a **"Certificate of Utilization"** from the Gram Sabha for funds used for development plans.
3. **Reservation of Seats:**
   a. Reservation for STs shall not be less than **50%** of the total number of seats.
   b. **All Chairpersons** at all levels of Panchayats must be from the Scheduled Tribes.
4. **Land & Water Control:**
   a. **Gram Sabha** must be consulted before **land acquisition** for development projects and before resettling affected persons.
   b. **Gram Sabhas** are empowered to **prevent land alienation** and restore unlawfully alienated tribal land.
5. The recommendation of the Gram Sabha is mandatory for granting prospective licenses or mining leases for **minor minerals** in Scheduled Areas.
6. Power to regulate or restrict the sale and consumption of any **intoxicant**, ownership of **minor forest produce**, and control over **money-lending** to STs.

Major Issues with PESA Act

1. PESA applies only to **Scheduled Areas under the Fifth Schedule**, leaving out **tribal populations in non-scheduled areas**, limiting its scope and impact.
2. **Rule Notification Lags: Eg. Jharkhand** notified rules only in **2026**, while Odisha's rules remain in draft form.
3. **"Consultation" vs. "Consent": Lack of "prior informed consent." Eg.** In the **Hasdeo Arand** case, Gram Sabha resolutions against mining were bypassed by the administration.
4. **Conflict with Central Acts:** Laws like the Mines and Minerals Act and Land Acquisition Act often override PESA's protective provisions.
5. **Bureaucratic Resistance: Eg.** Forest officials in several states continue to harass tribal gatherers despite PESA's **ownership clause** for MFP.
6. **Local elites or non-tribal middlemen** often manipulate Gram Sabha meetings to secure fraudulent resolutions for industrial projects.
7. **Overlapping Jurisdiction:** Confusion between the **Forest Rights Act (FRA) 2006** and PESA creates legal stalemates over the definition of "community forest."
8. **Limited Technical Capacity:** Gram Sabhas lack the staff or expertise to manage complex mining lease recommendations or large budgets.
9. **Official Panchayat structures sometimes conflict with traditional tribal headmen** (Eg. Manjhi-Pargana system), causing internal friction.
10. **Absence of Judicial Recourse:** There is no dedicated fast-track tribunal to address PESA violations, forcing tribes into long, expensive litigations.

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Way Forward

1. **Xaxa Committee (2014):**
   a. Legal harmonization between PESA and all state subject laws.
   b. Empowering Gram Sabhas to **cancel** illegal land transfers directly.
2. The Center should release a unified **Central Model Rule** template to prevent states from diluting the Act's intent.
3. Every Gram Sabha should have its own building and **independent Secretariats**.
4. Amending state laws to align with PESA requirements. Eg. Mining, Forest, Excise laws
5. **Codify Niyamgiri principles of free, prior, and informed** consent through statutory amendment or binding executive guidelines.
6. **Institutionalize Social Audits and use the PESA-GPDP** portal to track the ground-level impact of Gram Sabha decisions

Case Studies

1. **Mendha-Lekha (Maharashtra):** The first village in India to win the right to **sell Tendu leaves** (MFP), becoming a million-rupee economy managed by the Gram Sabha.
2. **Niyamgiri (Odisha):** In the famous **Vedanta Case**, 12 Gram Sabhas unanimously voted against bauxite mining, leading the SC to uphold tribal religious rights.
3. **Dhar (Madhya Pradesh):** Implemented a **"Panchayat-plus" model** where Gram Sabhas successfully **regulated local markets** to stop the exploitation of tribal artisans.

Women Reservation

Constitutional and Legal Provisions

1. **Article 243-D (3):** Mandates **one-third (33%)** reservation.
2. **Article 243-D (4):** Mandates **one-third (33%)** reservation for **Chairpersons**.
3. Within the seats reserved for SC and ST, one-third must be reserved for women.
4. **21 states** have legally increased **reservation** to **50%**

> Globally, only 18 out of 146 countries have achieved over 40% representation of women in local governance.

Benefits of Women Reservation

1. **Social Infrastructure:** Women leaders invest more in "soft" infrastructure like drinking water and sanitation.
2. **Community Mobilization** against social evils like child marriage.
3. **Economic Empowerment by** integration of SHGs with PRIs. **Eg. Kudumbashree model in Kerala**.
4. Public presence of women in authority **challenges deep-seated patriarchal norms and aspirational barriers.**
5. **Accountability in Welfare:** Women-led PRIs show higher transparency in implementation of welfare schemes..
6. **Environmental Stewardship:** Women are key stakeholders in forest and water conservation, leading to better resource management.
7. **Inclusive Gram Sabhas:** encourages more rural women to attend and speak in GSs
8. **Political Pipeline:** PRIs acts as a training ground for women to **enter state and national politics**
9. **Role Models:** Eg. Increased female school enrollment and aspirations due to visible female leaders.

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Limitations and Challenges

1. **Sarpanch-Pati Culture:** reduces the elected woman to a "proxy" leader.
2. **Rotational reservation** prevents women from contesting the same seat twice, breaking governance continuity.
3. **Low Digital Literacy:** Rapid digitalization of PRI accounting poses a hurdle for semi-literate women representatives.
4. **Inadequate Training:** Generic training modules often fail to address the specific administrative needs of first-time women leaders.
5. **Double Burden:** Balancing intense administrative duties with traditional household chores limits the time available for governance.
6. **Financial Dependence:** Lack of independent funds (OSR) makes women leaders dependent on state-appointed male officials (Secretaries).
7. **Caste-Gender Intersections:** Dalit and Tribal women face "double discrimination" from both upper-caste men and patriarchal structures.
8. **Bureaucratic Apathy:** State-level officials often treat women leaders with less respect than their male counterparts.
9. **Information Gap:** Limited access to mainstream news and legal updates keeps many EWRs unaware of new schemes.

Way Forward

1. Creating a dedicated **cadre of Panchayat Secretaries** to assist women leaders with technical tasks.
2. **Abolish Rotation:** Move toward a system where seats are reserved for **two consecutive terms** (10 years) to allow women to build political capital.
3. **Incentivize Performance:** The 16th Finance Commission should provide **extra grants** to Panchayats that show high scores on the "Gender Governance Index."
4. Enact a **"Protection of Local Representatives Act"** to penalize those who harass or obstruct women leaders in their official duties.
5. Recommendations by panel constituted by the **Ministry of Panchayati Raj**
   a. 'exemplary penalties' for proven cases of **"pradhan pati"**
   b. **Gender-exclusive quotas** in panchayat and ward committees (Kerala's model)
   c. **'Anti-Pradhan Pati' awards**
   d. **Virtual reality (VR) simulation training** to enhance governance skills

Aspirational Block Program

1. The ABP is modeled on the highly successful **Aspirational Districts Programme (ADP)** launched in 2018.
2. It was launched by PM in **2023**, during the 2nd National Conference of Chief Secretaries
3. Initially covering 500 blocks, the program was expanded in **2025 to 513 blocks** across 329 districts in 27 States and 4 Union Territories.
4. It represents a shift from district-level monitoring to more granular, **block-level governance**.

Key Features of the Program

1. **The 3Cs Strategy:** Operates on the pillars of **Convergence** (of schemes), **Collaboration** (between Central/State/Local officials), and **Competition** (Delta rankings).
2. **Selection Criteria:** Blocks were selected based on a composite index using data from **Mission Antyodaya** and the **Socio-Economic Caste Census (SECC)**.

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3. **Thematic Areas & Weightage:**
   a. **Health & Nutrition (30%)**
   b. **Education (30%)**
   c. **Agriculture & Allied Services (20%)**
   d. **Basic Infrastructure (15%)**
   e. **Social Development (5%)**
4. Progress is tracked via **40 Key Performance Indicators** on a real-time digital dashboard.

Key Achievements

1. **Sampoornata Abhiyan Success:** In **2024**, NITI Aayog launched a 3-month campaign to achieve 100% saturation in 6 specific KPIs in all aspirational blocks.
2. **Sampoornata Abhiyan 2.0** was launched in **January 2026** (ending April 14, 2026) to sustain the gains and saturate indicators like bovine vaccination and girl-child toilets.
3. Over **4,500 Block Development Officers (BDOs)** have been trained as "Leaders of Change" to improve grassroots administrative efficiency.
4. Uses **Central Ministry databases** for real-time tracking.
5. Over **90% of blocks** now have 100% Functional Household Tap Connections (FHTC) under the Jal Jeevan Mission convergence.
6. **Financial Inclusion: PMJJBY and PMSBY** enrollment moving closer to 100% saturation among eligible beneficiaries in target blocks.
7. **Health Coverage:** Substantial improvement in **TB notification and treatment** success rates.

Major Challenges

1. **Financial Resource Gaps:** The program relies on **convergence** of existing funds.
2. **Human Resource Shortfall:** high **vacancy rates** for doctors, teachers, and technical staff in remote areas.
3. **Data Discrepancies:** the quality of data at the "last mile" (village-to-block entry) remains prone to manual errors or over-reporting.
4. Many blocks are in **LWE-affected** (Left-Wing Extremism) or high-altitude regions, making physical infrastructure delivery slow and costly.
5. **One-Size-Fits-All Metrics:** Some KPIs (like bovine vaccination) may not be as relevant for urbanized aspirational blocks compared to rural ones.

Way Forward

1. Move from general KPIs to **SWOT-based** (Strengths, Weaknesses, Opportunities, Threats) strategies unique to each block's geography.
2. Provide **additional allowances or career incentives** for officers serving in aspirational blocks.
3. Introduce a **"Block Innovation Fund"** to allow BDOs to solve hyper-local problems.
4. Increase the role of **SHGs and NGOs** in social audits to ensure the benefits of saturation reach the poorest households.
5. Launch public-facing apps like **"Mera Block"** to allow citizens to track progress and report service delivery gaps in real-time.

Urban Local Bodies

Urban local bodies (ULBs) in India are governed by **Part IX-A** of the Constitution, introduced by the **74th Amendment Act, 1992**, which aims to strengthen urban governance through decentralization.

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Data

Category	Data / Details
Total ULBs	Over **4,900 ULBs** in India, including **269 Municipal Corporations** (up from **205 in 2021**).
Total Representatives	Over **75,000 elected ward councillors/corporators** across India.
Women Representation	Women currently hold over **42%** of all elected urban seats nationally. At least **18 States** have increased reservation for women to **50%**
Devolution of Functions	**O**ut of **18 subjects** mentioned in 12th schedule, Brihanmumbai Municipal Corporation **(BMC) has power related with only 9 subjects** and Municipal Corporation of Delhi (**MCD) has power related with 4** subjects only. **Praja's Urban Governance Index (2024)** highlights that **only Kerala** gives Mayors the power to write the "Annual Confidential Report" (ACR) of Commissioners.
World Bank	India needs to invest **$840 billion** over the next 15 years-or an average of **$55 billion per annum**-into urban infrastructure.
16th Finance Commission Allocation	Recommended nearly **₹8 trillion** for local bodies over **5 years**, with about **41%** earmarked for **cities**.
Property Tax Dependence	**Property Tax** is the primary source of **Own Source Revenue**, but collection efficiency is only **35-40%** across **Tier-2 and Tier-3 cities**. **Property tax revenue** as a share of GDP in India is 0.15%, while in OECD countries it is around 1%.
Own Source Revenue (OSR)	OSR accounts for less than **30%** of total municipal expenditure on average. (USA-63%, Brazil-45%) **For municipal corporations - 50%**
Municipal Bonds	Only about **12-15 major corporations** (like **Indore, Pune, and Ahmedabad**) have successfully tapped into the **bond market**.
Municipal Revenue to GDP	Municipal revenue has hovered between **0.7% and 1.1% of GDP**, compared to **Brazil (~7%)** and **South Africa (~6%)**.
Solid Waste Management	**98% of urban wards** have achieved **100% door-to-door solid waste collection**, though **scientific processing** remains at approximately **76%**.
Urban Housing (PMAY-U)	Over **122 lakh houses** sanctioned, with nearly **96 lakh completed and delivered**. **Economic Survey 2026** estimates India requires **144 million new homes by 2070**.
Metro / RRTS Network	**1,036 km operational** across **24 cities**.

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Category	Data / Details
Urban Water Loss	Nearly **40% of urban water** in major cities is **non-revenue water** (lost due to leaks or theft).
Staff Vacancy	Vacancy rates for **urban planners and engineers** exceed **40%** in several states. India has only **1 town planner per 100,000 people**, compared to **28 in the UK** and **45 in the US**.

Case Studies

1. **Indore Municipal Corp (MP):** 7-time winner of Swachh Survekshan; successfully issued India's first **Green Municipal Bond** for a 60MW solar plant.
2. **Ahmedabad (AMC):** A pioneer in **Land Monetization**; appropriated 4.5 sq km for affordable housing using the "Town Planning Scheme" model.
3. **Surat (SMC):** Achieved **100% sewage water recycling**
4. **Ambikapur (Chhattisgarh):** "Garbage Clinics" - 100% waste segregation through women's SHG model.
5. **Bengaluru has implemented strict municipal bylaws** requiring large **residential complexes to treat and reuse 100% of their greywater**

Performance Analysis

Positive Role of Urban Local Bodies

1. ULBs prepare **master plans**, regulate **land use**, and guide **sustainable urban growth** through infrastructure and policy planning.
2. Promote **grassroots democracy** through **ward committees, public consultations**,
3. **Provision of Basic Services:**
   a. Cities like **Indore** and **Surat** have set benchmarks in solid waste management with 100% door-to-door collection and waste segregation.
   b. **Puri** became the first Indian city to provide 24x7 "drink-from-tap" water to all households.
   c. **Surat** improved urban mobility with BRTS and smart road infrastructure, reflected in its high Ease of Living scores.
4. **Social Inclusion and Empowerment: Reservation for women, SCs, and STs** (74th Amendment)
5. **Economic Development:** Manages local economic activities, marketplaces, and property taxes, contributing to the economic vitality and growth of urban areas.
6. **Disaster and Crisis Management:** Eg. **BMC** led COVID-19 management and Mumbai flood response.
7. **Improved Urban Livability in Tier-2 Cities - Eg. Shimla**, **Bhubaneswar**, and **Kakinada** ranked among top cities in the Ease of Living Index 2020 (population < 1 million).

Limitations of Urban Local Bodies

1. Funding Challenges
   a. **"Fiscal infantilism" - Own revenue** of Indian ULBs is less than **1% of GDP**, compared to 6-7% in Brazil and South Africa.
   b. **Property Tax Inefficiency:** Collection efficiency remains low at **35-40%**
   c. **Post-GST revenue loss:** Subsumption of **Octroi, sales tax, and entertainment tax** reduced ULB income. Eg. **BMC lost ₹7,000 crore (~35%)** of revenue post-GST.
   d. **Weak SFC implementation** reduces fiscal predictability.
   e. Most Tier-II cities lack the **credit rating** required to access private capital markets effectively.

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f. **User Charge Gap:** Minimal charges for water and waste result in poor **Operation & Maintenance (O&M)** cost recovery.

2. Functional Challenges
   a. **Parastatal bodies** control key functions like **water, and transport leading to "responsibility without power" syndrome** for ULBs. Eg. Delhi Jal Board
   b. Schemes like **JNNURM (2005)** and **Smart Cities Mission (2015)** implemented via SPVs. SPVs, led by bureaucrats, indicate **"procedural distrust"** of local democracy.
   c. **Incomplete devolution:** Most States haven't transferred all **18 functions under the 12th Schedule**.
   d. **Inactive District Planning Committees (DPCs):** Non-functional in **9 States**.
   e. **Urban planning remains reactive and fragmented** rather than long-term and integrated with transit.
   f. **65% of Indian cities** still operate without updated **Master Plans. (NITI Aayog)**
3. Functionary Challenges
   a. **Election delays:** Eg. **BBMP (Bengaluru)** vacant since 2020.
   b. **Proxy representation: "Corporator Pati" syndrome** weakens women's empowerment.
   c. State-appointed **Municipal Commissioners** overshadow elected mayors.
   d. **Staff shortage: 42% of posts vacant (2022)**, leading to poor service delivery.
   e. Absence of a dedicated **Municipal Administrative Service** in many states.
4. Functionality Challenges
   a. **Neo-liberal urban policy bias:** Focus on "competitive cities" and **investment-driven growth** has sidelined democratic decentralisation. (**RBI**)
   b. **Weak Citizen Participation Structures** - Ward committees and area sabhas are non-functional or absent in most states. Only 5 out of 35 states have legally mandated participatory bodies.
   c. **Rapid urbanisation** strains water, housing, and sanitation systems. Eg. **Bengaluru floods (2022)** and **Mumbai water shortages** show planning failures.
   d. **17% of urban households** live in slums; **11 million homes vacant** (ORF, 2023).
   e. **Ceremonial Mayors:** In most Indian cities, the Mayor has **no executive power**, which instead rests with the state-appointed Commissioner.
   f. **Audit Lags:** Delayed and **non-transparent audits** lead to poor financial credibility and loss of performance grants.
   g. **Legal Constraints:** ULBs lack the freedom to set their own **tax rates** or borrow without stringent state approvals.

Greater Bengaluru Governance Bill (2024):

- Creates **Greater Bengaluru Authority (GBA)** headed by the **Chief Minister** and **Chief Commissioner (bureaucrat)**.
- Empowers GBA to **alter ULB boundaries** and override elected councils.
- This effectively **removes even the symbolic layer of decentralisation**.

Government Schemes

16th Finance Commission (2026–2031)

1. ₹3.56 lakh crore has been allocated specifically for Urban Local Bodies (ULBs).
2. ₹58,000 crore is tied to performance, requiring ULBs to show a 5% annual growth in their Own Source Revenue (OSR) and 100% digital auditing of accounts.

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3. Urbanization Premium: A new ₹10,000 crore fund to reward states with rapid but well-planned urban transitions.

Urban Challenge Fund (UCF)

1. ₹1,00,000 crore Central Assistance aimed at catalyzing a total investment of ₹4 lakh crore over five years.
2. The Centre provides 25% of project costs only if the ULB raises 50% from the market (bonds/loans) and the remaining 25% from State/Local funds.
3. Small ULBs (population <1 lakh) are supported with a 70% central guarantee for loans up to ₹7 crore, helping them build credit history.

City Economic Regions (CER) – Budget 2026-27

1. It links a core city with its satellite towns and industrial hubs into a single labor market (Eg. Pune-Pimpri-Chinchwad belt).
2. ₹5,000 crore per region for 14 identified CERs to develop common regional infrastructure like rapid transit and high-speed logistics.

AMRUT 2.0 (Atal Mission for Rejuvenation and Urban Transformation)

1. Aims for 100% water tap coverage in all 4,800+ ULBs and 100% sewerage coverage in 500 major cities.
2. Pey Jal Survekshan: "water survey" to rank cities based on water quality, recycling, and conservation efforts.
3. Mandatory rejuvenation of at least one water body in every city.

Swachh Bharat Mission-Urban (SBM-U) 2.0

1. Focus on the "Garbage Free City" (GFC) star rating and circular economy.
2. A dedicated drive to remediate all 2,400+ legacy dumpsites in India by 2027.
3. Mandatory setting up of Material Recovery Facilities (MRF) and Waste-to-Energy plants in all cities with a population over 5 lakh.
4. Ensuring that no untreated sewage is discharged into open drains or water bodies.

Urban Infrastructure Development Fund (UIDF)

1. Managed by the National Housing Bank, this fund focuses on Tier-2 and Tier-3 cities.
2. It provides low-interest loans to ULBs for basic infrastructure like water supply, sanitation, and storm-water drainage.

Smart Cities Mission (Post-2025 Transition)

1. The official Smart Cities Mission concluded on March 31, 2025, but its legacy continues through the Integrated Command and Control Centres (ICCCs).
2. All 100 Smart Cities have operational ICCCs which now act as "City Brains" for traffic, emergency response, and healthcare monitoring.
3. The India Urban Data Exchange (IUDX) and Smart Cities Open Data Portal are now being scaled to 500 additional cities.

Way Forward

1. Move toward a **"Mayor in council" system** with executive powers and a fixed 5-year tenure (similar to London or New York).
2. **Financial Autonomy:** Implement the FC recommendation of **5% annual OSR growth** and leverage the ₹1 lakh crore **Urban Challenge Fund** for market borrowing.
3. **Institutionalizing "Value Capture Financing" (VCF)** to monetize public infrastructure investments. Eg. **Betterment Levies or higher FSI charges on lands** adjacent to Metro line
4. Create a **Dedicated Urban Planning Cadre** (as suggested by the **HPEC on Urban Infrastructure**) to professionalize municipal administration.

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5. **Integrated Planning (CER):** Utilize the **City Economic Region** framework to coordinate growth across rural-urban boundaries, preventing unplanned peri-urban sprawl.
6. Complete **GIS-based property mapping** for 100% of cities by 2030 to double OSR and ensure equitable service delivery.
7. **Sustainability: Adopting "Sponge City" Frameworks**
8. Strengthening **"Metropolitan Planning Committees" (MPCs)** with binding powers to regulate growth of Urban Sprawls
9. Enacting **"Right to Services Act" for Municipalities** with clear timelines and grievance redressal mechanisms for services like birth certificates, water connections etc.

Kerala's People's Plan Model allocates 40% of the State's plan budget directly to local bodies.

Municipal Bonds

Municipal Bonds are debt instruments issued by Urban Local Bodies or municipal corporations to raise funds from the open market for specific infrastructure projects.

Recent News

- **Budget 2026-27: ₹100 crore incentive** for any single municipal bond issuance exceeding **₹1,000 crore**. This aims to encourage large-scale "City Economic Region" projects.
- **RBI Repo Guideline (Oct 2025):** allowed municipal bonds to be used as **collateral for repo transactions**.
- **Urban Challenge Fund (UCF):** requires cities to raise at least **50% of project costs** via municipal bonds or private loans.

Key Data Points

- **Market Size:** Total outstanding municipal debt reached **₹13,500 crore** by March 2025, with FY26 issuances projected to hit **₹2,000 crore**.
- **Credit Quality:** Nearly **32 major Indian cities** now hold "Investment Grade" ratings.
- The U.S. muni market is **14% of its GDP**, while India's remains at 0.06% **of GDP** in 2026.

Success Case Studies

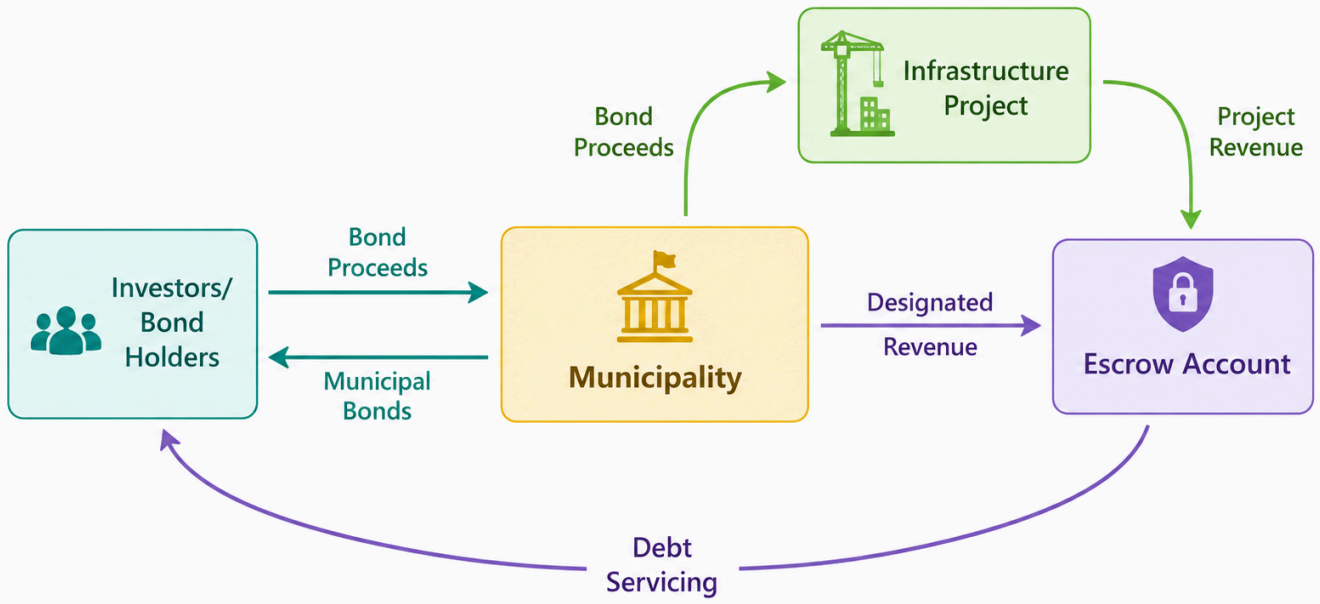
1. **Indore:** Raised **₹244 crore** (oversubscribed 6x) to fund a 60MW solar power plant.
2. **Pimpri-Chinchwad:** Leveraged its **AA+ rating** to raise funds for smart-city digital infrastructure and fiber-grid networks.

Need for Municipal Bonds in India

1. **Non-inflationary capital** - Urban India requires **$840 billion** in infrastructure investment by 2036. NITI Aayog notes that grants cover less than **30%** of needed urban capex in 2026.

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Chart III.2: Bond Financing for an ULB



Source: Adapted from Pradhan (2003).

2. **Deepening Bond Markets:** Diversifies the Indian debt market, which is currently dominated by Government Securities (G-Secs) and corporate bonds.
3. **Reducing Grant Dependency &** fiscal burden on Central and State budgets.
4. **Enhances Credit Discipline &** credit ratings: Eg. maintaining audited accounts
5. **Attracting Private Capital:** They provide a safe, fixed-income avenue for retail investors and pension funds to participate in nation-building.
6. **Transparency and Accountability:** Bond covenants require regular public disclosure of financial health, reducing corruption and delays.
7. **Support for Smart Cities:** High-tech "Command Centers" and digital grids require large upfront capital that bonds can provide.
8. **Climate Financing:** "Green Bonds" allow cities to fund EV charging hubs and renewable energy without diverting social sector funds.
9. Help achieve **AMRUT and SBM-U 2.0** targets in Tier-2 and Tier-3 cities.

Major Challenges

1. **Poor Financial Health: Eg.** Only **15% ULBs** have "Investment Grade" rating required by SEBI.
2. **Weak Revenue Base** due to inefficient property tax collection and low user charges..
3. **Low Secondary Liquidity:** Once issued, municipal bonds are rarely traded, making it difficult for investors to exit early.
4. **Opaque Accounting Standards:** Lack of standardized, digitized, and timely audited financial statements deters high-value institutional investors.
5. **Administrative Inefficiency:** Most ULBs lack a dedicated "Finance Cell" or experts capable of managing complex bond documentation.
6. **Populist measures like "waiving user charges"** jeopardize the dedicated revenue streams promised to bondholders.
7. **High Transaction Costs** of credit rating, underwriting, and legal compliance makes small issuances (<₹50cr) economically unviable.

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8. **Strict State Controls:** ULBs need multiple state-level clearances to borrow, leading to **delays**.
9. **Absence of Default Framework:** There is no clear legal mechanism or "Insolvency Code" for municipal defaults in India.

Steps Taken by Government

1. **AMRUT:** Centre provides an incentive of **₹13 crore for every ₹100 crore** raised via bonds.
2. **Credit Repayment Guarantee Fund (CRGSS)**
3. **SEBI** has simplified the **"Listing of Municipal Debt Securities"** norms and introduced a "Municipal Bond Information Repository."
4. **GST Compensation Integration:** Allowing states to use a portion of GST compensation as a **"Sinking Fund"** to guarantee bond repayments.

Way Forward

1. **Municipal Recovery Fund** to act as a backstop in case of temporary repayment delays (Global Practice: **USA's Bond Insurance**).
2. Scale up **Pooled Finance Development Fund (PFDF)** model where several small ULBs "pool" their requirements to issue a single, large-value bond.
3. Complete 100% **GIS-based property tax mapping** to double municipal revenue (recommendation of **HPEC on Urban Infrastructure**).
4. Create a specialized **"Municipal Administrative Service"** to provide professional financial managers to ULBs.
5. Grant **"Tax-Free" status** to bonds used for water and sanitation projects to attract retail investors.

Direct Election of Mayor

The **74th Constitutional Amendment Act (1992)** provides for **urban local bodies** but **does not prescribe the mode of election** of mayors. Hence, the **method of mayoral election** is decided by **State legislatures** under Article **243R** of the Constitution.

1. **Active Direct Election:** Haryana, Uttar Pradesh, Bihar, Chhattisgarh, Jharkhand, Madhya Pradesh, Odisha, Telangana, and Uttarakhand.
2. **Fluctuating Systems:** States like **Rajasthan** and **Tamil Nadu** have frequently switched between direct and indirect systems depending on the political party in power.

Benefits of Direct Election of Mayor

1. **Fixed Tenure and Stability**
2. **Direct Accountability to Citizens**
3. **City-Wide Vision:** Directly elected mayors represent the entire city, not just a single ward, reducing "parochial" ward-level politics.
4. **Stronger Mandate for Reform:** Popular support provides the political capital needed to implement tough reforms like increased property taxes.
5. **Checks on Bureaucracy**
6. **Reduced Horse-Trading:** Eliminates the "resort politics" seen during indirect elections
7. **Faster Decision Making**
8. **Professionalization of Politics:** Attracts high-profile candidates who can run a city like a CEO.
9. **Enhanced City Branding:** helps in attracting global investments and sister-city partnerships.
10. **Improved Crisis Management:** a single point of command during disasters ensures

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Major Issues/Challenges

1. **Executive-Legislative Deadlock**
2. **Ceremonial Nature of Post:** In many states, even directly elected mayors lack actual "executive powers," which remain with the Commissioner.
3. **Conflict with State Government in funds**
4. **Tussle with MPs and MLAs:** Directly elected can be seen as political rivals to local legislators, leading to administrative friction.
5. **Risk of Autocratic Behavior** without strong "Mayor-in-Council" checks.
6. **Increased Election Costs**
7. **Populist Bias**

Way Forward

1. **Strong Mayor-in-Council Model - Eg. Kolkata**
2. **2nd ARC Recommendation:** Mayor should be **Executive Head** of the city with a fixed tenure.
3. **Global Best Practice (London/New York):** "Executive Mayor" system where the Mayor proposes the budget and the Council performs the audit/veto function.
4. **Dedicated Municipal Cadre**, independent of state-level transfers.
5. Introduce a **"Right to Recall"** to ensure the Mayor remains responsive throughout the term.
6. Direct a fixed percentage of **State GST (S-GST)** to the Mayor's office to ensure financial autonomy from the state.
7. Form a **"City Coordination Committee"** chaired by the Mayor, including local MPs/MLAs, to prevent jurisdictional friction.

Delays in elections of local bodies

After nearly four years of delay, elections for the **Brihanmumbai Municipal Corporation (BMC)** and other major cities were finally held in **January 2026.**

- The average delay in municipal elections across major Indian states stands at **22 to 24 months** after the expiry of the previous council's term.
- Over **30% of urban residents** in India are currently governed by state-appointed administrators

Constitutional Provisions

1. **Article 243-E (Panchayats) & 243-U (Municipalities):** Mandate a fixed term of **five years**. Elections must be completed **before** the expiry of this term.
2. **Six-Month Rule:** In case of dissolution, elections **must** be held within **six months** from the date of such dissolution.
3. **Article 243-K & 243-ZA:** Empower the **State Election Commission** with the "superintendence, direction, and control" of conduct of all local body elections.

Reasons Behind Delays

1. **OBC Reservation Litigation:** States struggle to fulfill the SC-mandated **"Triple Test"** (Commission, Empirical Data, 50% Ceiling) for backward class quotas.
2. **Delimitation Exercises:** State governments use the redrawing of ward boundaries as a tactical tool to postpone polls.

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3. **Census 2021 Postponement:** States like **Rajasthan** cited "incomplete population data" as a primary reason for the April 2026 poll delay.
4. States prefer **"Administrators"** over elected heads for easier control over local funds
5. **State Election Commissions lack independent funding and personnel**.
6. **Legal Challenges to Rotation:** Court cases regarding the rotation of "Reserved Seats" (Women/SC/ST) frequently stop the election notification process.

Way Forward

1. **Strict Adherence to "Kishan Singh Tomar" Case:** Enforcement of the SC ruling that administrative excuses like delimitation are **not valid** for delaying polls.
2. **Permanent OBC Commission** to avoid last-minute "Triple Test" hurdles before every election.
3. **Financial Independence of SECs**
4. Explore the possibility of **"One Nation, One Election"** extending down to the local level.
5. The **Finance Commission** should strictly bar any "Untied Grants" to states where local body elections are overdue by more than six months.

Reasons behind reluctance of states in empowering local bodies in India

- **Preservation of Political Patronage:** States fear that empowering local bodies will create a parallel center of power.
- **Rivalry with Emerging Leadership:** State-level politicians (MLAs/MPs) view strong local leaders as potential political competitors for their own legislative seats.
- States use **"grant dependency"** as a tool to keep local bodies politically aligned; independent local revenue would break this leverage.
- **Bureaucratic Comfort with Centralization:** The state bureaucracy (IAS/PCS) prefers reporting to a single State Minister rather than being accountable to a decentralized "Mayor-in-Council."
- **Unitary Bias in Governance Philosophy:** Many state leaders still view "extreme localism" as a threat to state-level administrative unity and unified policy implementation.

Fear of Fractionalization: States argue that local bodies are "caste-ridden" or "inefficient," using these social complexities as a pretext to deny them real power.

6th schedule areas

Recent news

1. The **Kargil Democratic Alliance (KDA)** and **Leh Apex Body (LAB)** recently rejected a Union proposal for a "Territorial Council," reiterating their demand for full **Sixth Schedule status** and Statehood for Ladakh to protect its fragile ecology and 97% tribal population.
2. Several ADCs in Meghalaya and Mizoram passed formal resolutions opposing the **Uniform Civil Code**, arguing it infringes upon the **"Customary Laws"** protected under Sixth Schedule
3. There is a renewed push for the passage of the **125th Constitutional Amendment Bill**, which seeks to increase the financial autonomy of ADCs and introduce Village-level councils.

Key Data Points

1. **States Covered:** 4 States **(Assam, Meghalaya, Tripura, Mizoram).**
2. **10** Autonomous District Councils (3 each in Assam, Meghalaya, and Mizoram; 1 in Tripura).
3. **Council Composition:** Maximum **30 members** (26 elected and 4 nominated by Governor).

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4. **Term: 5 years** (Nominated members hold office at the pleasure of the Governor).
5. Central and State laws do not automatically apply to these areas; they require a notification by the **Governor** (for Assam) or the **President** (for others) with specific modifications.

Constitutional Provisions

1. **Article 244(2):** Specifically provides that the provisions of the Sixth Schedule shall apply to the administration of the tribal areas in the four North-Eastern states.
2. **Article 275(1):** Mandates special **Grants-in-aid** from the Consolidated Fund of India to these areas for development and administration.
3. **Governor's Role:** The Governor has the power to create, reorganize, or change the names/boundaries of autonomous districts.

Benefits of the Sixth Schedule

1. **Cultural Preservation:** Protects the unique "civilizational" identity of North-Eastern tribes
2. **Prevents the alienation of tribal land** by prohibiting its transfer to non-tribals.
3. **Recognizes traditional dispute resolution** systems for tribal disputes.
4. **Legislative Self-Rule:** Empowers councils to make laws on subjects like shifting cultivation, watercourses, and local social customs.
5. **Fiscal Empowerment:** collect land revenue and taxes on professions, vehicles, and trades.
6. **Resource Management:** Allows tribal communities to manage community forests (excluding reserved forests) and local water resources.
7. **Protection from Exploitation:** Regulates money-lending and trading by non-tribals to prevent debt traps and economic marginalization.
8. **Political Representation:** Ensures that minority tribal groups within a state have a dedicated platform for political expression.
9. **Countering Insurgency: Eg.** The creation of the **Bodoland Territorial Region (BTR)** ended decades of militancy through constitutional accommodation.
10. **Customary Law Recognition:** Safeguards the traditional social fabric by making Governor's assent mandatory for laws affecting tribal customs.

Major Issues in Sixth Schedule Areas

1. **Overlapping jurisdictions** lead to frequent power struggles between the state legislature and the councils.
2. **No mandatory reservation for women**. Women's representation in most ADCs **below 5%**
3. **Absence of Anti-Defection Law**, leading to instability and "horse-trading."
4. **Financial Dependency:** Despite taxing powers, most councils remain heavily dependent on discretionary state grants, limiting actual autonomy.
5. **Bureaucratic Hegemony: Eg.** In **Assam**, the "Principal Secretary" to the council is an IAS officer reporting to the state.
6. **Incomplete Power Transfer: Eg.** Departments like **PWD and Irrigation** in Tripura's ADC often remain under state control in practice.
7. Power is often concentrated among a **few "Tribal Elites."**
8. **Corruption cases** in the **Chakma Council (2025)** highlighted the misappropriation of funds by high-ranking members.
9. **Non-tribal residents** lack basic voting rights and land ownership, causing social friction.
10. There is **no strict constitutional time limit** for holding fresh elections if a council is dissolved.

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Way Forward

1. **125th Amendment Bill:** Fast-track this bill to introduce **Village Councils** (similar to Gram Sabhas) and make the Anti-Defection law applicable to ADCs.
2. Mandate the **Central Finance Commission** to directly allocate funds to ADCs, bypassing state discretion (as per the **B.K. Chaturvedi Committee**).
3. Amend the Schedule to provide at least **33% reservation for women**.
4. **Activity Mapping:** Clearly delineate functions between the State, District, and Village levels

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Chapter 14

Constitutional And Statutory Bodies

PYQs

[2026] [2024] "The duty of the Comptroller and Auditor General is not merely to ensure the legality of expenditure but also its propriety." Comment.(10)

[2025] The National Commission for Protection of Child Rights has to address the challenges faced by children in the digital era. Examine the existing policies and suggest measures the Commission can initiate to tackle the issue. (15)

[2024] "The duty of the Comptroller and Auditor General is not merely to ensure the legality of expenditure but also its propriety." Comment. (10)

[2023] Discuss the role of the Competition Commission of India in containing the abuse of dominant position by the Multi-National Corporations in India. Refer to the recent decisions. (10)

[2022] Discuss the role of the National Commission for Backward Classes in the wake of its transformation from a statutory body to a constitutional body. (10)

[2021] Though the Human Rights Commissions have contributed immensely to the protection of human rights in India, yet they have failed to assert themselves against the mighty and powerful. Analyzing their structural and practical limitations, suggest remedial measures. (15)

[2020] Which steps are required for constitutionalization of a commission? Do you think imparting constitutionality to the National Commission for Women would ensure greater gender justice and empowerment in India? Give reasons. (15)

[2020] "Recent amendments to the Right to Information Act will have a profound impact on the autonomy and independence of the Information Commission". Discuss (10)

[2018] Multiplicity of various commissions for the vulnerable sections of the society leads to problems of overlapping jurisdiction and duplication of functions. Is it better to merge all commissions into an umbrella Human Rights Commission? Argue your case. (15)

[2018] Whether the National Commission for Scheduled Castes (NCSC) can enforce the implementation of constitutional reservation for the Scheduled Castes in the religious minority institutions? Examine. (10)

[2018] "The Comptroller and Auditor General (CAG) has a very vital role to play." Explain how this is reflected in the method and terms of his appointment as well as the range of powers he can exercise. (10)

[2018] How is the Finance Commission of India constituted? What do you know about the terms of reference of the recently constituted Finance Commission? Discuss. (15)

[2016] Exercise of CAG's powers in relation to the accounts of the Union and the States is derived from Article 149 of the Indian Constitution. Discuss whether audit of the Government's policy implementation could amount to overstepping its own (CAG) jurisdiction. [12.5 Marks]

[2013] 'A national Lokpal, however strong it may be, cannot resolve the problems of immorality in public affairs.' Discuss. (10)

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GST Council

1. **GST Council** is a constitutional body established to make recommendations to the Union and State Governments on issues related to GST. It is the centerpiece of India's fiscal federalism.
2. **Decision-Making Process:** The Council operates on a **consensus-based approach**. In the event of a vote, the following weightage applies:
   a. **Central Government:** One-third of the total votes cast.
   b. **State Governments:** Two-thirds of the total votes cast.
   c. **Majority Requirement:** A proposal is only carried if it receives a majority of at least **three-fourths** of the weighted votes of members present and voting.

Composition of the GST Council

Members

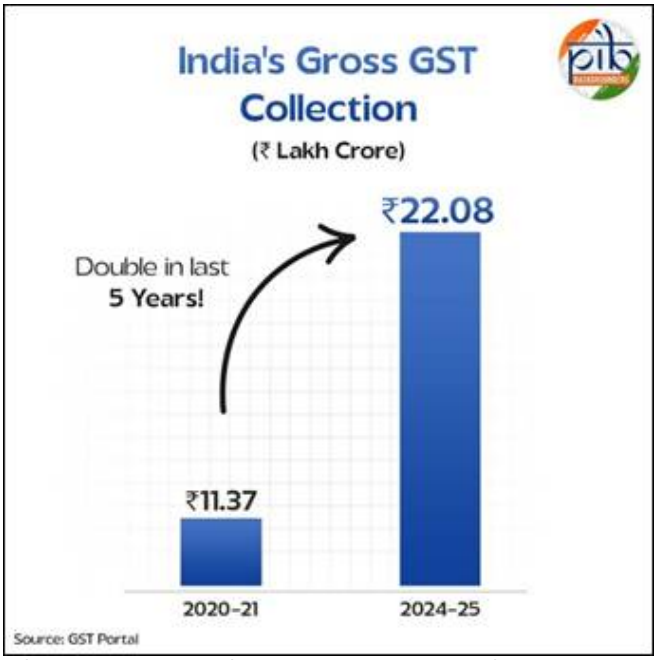
1. **Chairperson:** The Union Finance Minister.
2. **Vice-Chairperson:** The Union Minister of State in charge of Revenue or Finance.
3. **State Representatives:** The Minister in charge of Finance or Taxation (or any other Minister nominated by each State Government).
4. **Emergency Provisions:** Any person nominated by the Governor in States under a proclamation of emergency (Article 356).

Key Powers and Functions

1. **Tax Scope:** Identifying goods and services to be **subjected to or exempted from GST.**
2. **Legislation:** Drafting Model GST Laws and determining principles of levy and the "Place of Supply."
3. **Rates:** Establishing GST rate structures, including floor rates with bands.
4. **Special Measures:** Recommending special rates to raise additional resources during natural disasters or calamities.
5. **Exemptions and Thresholds:** Setting turnover threshold limits for registration and exemptions.
6. **Dispute Resolution:** Recommending the creation of bodies like the **GST Appellate Tribunal (GSTAT)** to resolve legal conflicts.

Major Achievements

1. **GST 2.0 Reforms:** Simplified the tax regime into a primary two-rate system of 5% and 18%.
2. **Digital Transformation: e-Way Bill**, **e-Invoicing** and the **QRMP scheme** for small businesses.



Issues

1. **Union Veto:** Since a 75% majority is required for any decision, **the Union holds a *de facto* veto.**
2. **Democratic Deficit:** State legislatures have lost fiscal autonomy, as an executive body now determines more than 40% of their own-tax revenue.
3. **High complexity and compliance burden** due to **multiple tax slabs**.
4. Nearly **half the economy remains outside GST.** Eg. petroleum, real estate, electricity duties
5. **Fiscal Cliff:** The expiry of revenue compensation has left several states facing revenue shortfall.

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6. **Committee Opacity:** Substantive policies are settled in officer-level committees that lack codified rules, transparency, or fair regional representation.
7. **Broken Tech Backbone:** Suspension of automated invoice matching has enabled massive fraud and turned IGST settlements into an opaque "black box."

Way Forward

1. **Recalibrated Voting:** Reduce Union weight to 20% or adopt a "one member, one vote" model to ensure genuine federal partnership.
2. **Rotational Leadership:** Implement a five-year rotational chairpersonship between the Union Finance Minister and State Ministers to democratize the agenda.
3. **Rate Flexibility:** Allow States to vary SGST rates within a narrow "band" above floor rates to restore local fiscal agency.
4. **Independent Secretariat:** Establish an autonomous Secretariat with balanced Union-State staffing to provide neutral data and professional, unbiased research.
5. **Legislative Oversight:** Form a Joint Standing Committee of Parliament and State Legislatures to provide democratic supervision over executive tax decisions.

Comptroller and Auditor General of India (CAG)

'The CAG is the conscience keeper of the government, ensuring that taxpayers' money is spent wisely and for the benefit of the public.'

Constitutional and Legal Provisions

1. **Articles 148-151:** Outline the appointment, oath, duties, and the process of laying audit reports before Parliament
2. **Tenure:** Six years or up to 65 years of age. Removed like a Supreme Court judge.
3. **DPC Act, 1971:** detail the CAG's specific duties, powers, and service conditions
4. **Independence:** Salary charged on the Consolidated Fund of India. Ineligible for further government office after retirement

Powers and Functions

1. **Audit of Expenditure:** Audits all expenditure from the Consolidated, Contingency, and Public Accounts of India and States. (Article 149).
2. **Receipts and Stock:** Examines all receipts and stores of the Union and State departments to check for leakages.
3. **Performance Audit:** Evaluates the "3 E's" - Economy, Efficiency, and Effectiveness of government programs and social schemes.
4. **Propriety Audit:** Goes beyond legality to comment on the "wisdom" and "faithfulness" of government spending.
5. **Certifying Net Proceeds:** Acting as a final authority, the CAG certifies the net proceeds of any tax or duty (Article 279).
6. Acts as the **"friend, philosopher, and guide" to the Public Accounts Committee (PAC)** during report scrutiny.
7. Advises the President on the form/format in which accounts of the Union and States are kept (Article 150).

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Significance of Office of CAG

Significance of the Office of CAG

1. **Guardian of the Public Purse**
2. **Upholding Financial Accountability** by scrutinizing how public funds are utilized.
3. **Bulwark of Democracy:** protect the integrity of India's democratic structure.
4. **Promoting Transparency:** By publishing detailed audit reports & exposing systemic leakages and administrative failures. Eg. Coal and Fodder scams
5. Beyond mere legal compliance, the CAG conducts **Performance Audits** to evaluate the "3 E's": **Economy, Efficiency, and Effectiveness** of government schemes and programs.
6. **Advisor to the PAC:** "friend, philosopher, and guide" to the **Public Accounts Committee**
7. **Strengthening Local Governance:** assesses local government performance in service delivery through through **Annual Technical Inspection Reports (ATIR)**
8. **Safeguarding Separation of Powers:** ensure that executive's financial activities align with legislative intent

Major Challenges and Limitations

1. **Ex-Post Facto Audit:** CAG audits after the money is spent; it cannot stop a "wasteful" transaction in real-time.
2. **No Comptroller Power:** Unlike the UK, the Indian CAG has no control over the actual withdrawal of funds.
3. **Secret Service Limit:** Executive agencies can withhold specific details of secret service expenditure, providing only a certificate.
4. **Information Delays:** Departments often delay providing files; the CAG lacks punitive powers to penalize such non-cooperation.
5. **Executive-Led Selection:** potential concerns about institutional neutrality.
6. **Audit of PPPs:** Legal ambiguity persists regarding the CAG's power to audit private partners in Public-Private Partnership projects.
7. **Falling Report Numbers:** RTI data shows a 75% drop in central audit reports between 2015 and 2025.
8. **Limited Local Reach:** Auditing lakhs of Panchayats and Urban Bodies is a massive administrative burden with limited staff.
9. **NGO/Society Ambit:** Many government-funded NGOs and societies remain outside the CAG's mandatory audit jurisdiction.
10. **Delayed Tabling:** Reports submitted to the President/Governor are often not tabled in the legislature for months.

Case Studies

- **Direct Tax Deductions (2026):** Identified ₹74,766 crore in probable tax effects from 1,847 audit observations involving Banks and NBFCs.
- **Ayushman Bharat (2024):** Exposed 7.5 lakh beneficiaries linked to a single mobile number.
- **2G Spectrum:** exposed presumptive losses of ₹1.76 lakh crore
- **Scholarship Audits (2025):** 20% of beneficiaries lacked caste/income verification.
- **Indian Railways:** Flagged ₹4,087 crore as unrecovered from 269 private siding owners

Way Forward

1. Adopt a **committee-based appointment (PM, CJI, LoP)** to ensure the CAG's independence.

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2. Amend the DPC Act to **bring all PPPs and large NGOs** under mandatory CAG scrutiny. **(Vinod Rai)**
3. Grant the CAG **power to impose fines** on officials who delay or refuse to provide files.
4. Mandate that all audit reports must be tabled in the legislature **within 30 days of submission**
5. **Real-time Auditing:** Integrate the CAG's "AMPS" system with the government's PFMS for continuous, real-time financial monitoring
6. **Citizen Participation:** Launch a portal for citizens to "flag" wasteful local expenditure for CAG's performance audits.
7. **Expanding Scope:** Explicitly include the audit of "Sustainable Development Goals" (SDGs) and "Blue Economy" in the annual plan.

CAG and audits of local bodies

- **Article 243J & 243Z:** These articles empower State Legislatures to make provisions for the maintenance of accounts and auditing of Panchayats and Municipalities respectively.
- Under **CAG (DPC) Act, 1971**, CAG exercises control and supervision over proper maintenance of accounts and auditing for all three levels of PRIs/ULBs.
- CAG provides "Technical Guidance and Supervision" to the **Director of Local Fund Audit (DLFA)** of various states.

Powers and Functions in Local Audit

- **Standardizing Formats:** The CAG prescribes the budget and accounting formats (Eg. **Model Accounting System for Panchayats**) to ensure uniformity across India.
- **Certification of Grants:** The CAG certifies the utilization of grants released under Central Finance Commissions.
- **Performance Audits:** Eg. 2025-26 reports on **"Solid Waste Management"** in cities like Hyderabad and Raipur.

Major Challenges and Limitations

- **Arrears in Accounting:** Many local bodies have not finalized their accounts for 3-5 years, making audit impossible.
- **Manpower Crisis:** The CAG has only one Auditor for every ~2,500 local bodies
- **Non-Tabling of Reports** in State Assemblies.

Way Forward

- The CAG should audit the **500 largest ULBs** to enable them to issue **Municipal Bonds**.
- Mandate the **integration of Gram Sabha-led social audits with the CAG's statutory audit.**
- **Linking Funds to Audit** (16th Finance Commission's recommendation).
- Deploy AI-based anomaly detection on the **e-GramSwaraj** portal to flag suspicious village-level spending automatically.

Feature	CAG of India	CAG of United Kingdom
Origin of Power	**Constitutional** - Directly derived from **Article 148 of the Constitution**.	**Statutory** - Derived from **Acts of Parliament** (**National Audit Act, 1983**).
Comptroller Role	**Audit-only** - Does not control the withdrawal of money; expenditure happens first.	**Active Control** - No money can be drawn from the **Exchequer** without approval.

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Feature	CAG of India	CAG of United Kingdom
Nature of Audit	**Ex-post Facto** - A "post-mortem" audit conducted after the money is spent.	**Concurrent / Prior** - Functions as a gatekeeper before and during expenditure.
Membership	**Non-Member** - Not a member of Parliament (**Article 148**).	**MP Status** - Officer of the **House of Commons** (historically an MP).
Accounting	**Separated** - Relieved of accounting functions in **1976** (Union level).	**Integrated** - Closely oversees both the accounting and auditing phases.
Tenure	**6 Years / 65 Years** - Shorter tenure; limits institutional continuity.	**10 Years** - Longer fixed tenure provides greater stability and expertise.

Recent initiatives

- **Artificial Intelligence Strategy Framework:** using AI for **anomaly detection**, **risk assessment**, and **predictive insights** to enhance audit precision.
- **CAG-LLM (Large Language Model):** to help auditors access decades of institutional knowledge and analyze large datasets.
- **CAG-Connect Portal:** A unified digital interface providing **auditee entities** (government departments and PSUs) a platform to directly respond to audit queries, observations, and inspection reports.
- **One IAAD, One Audit:** A structural initiative aimed at standardizing audit methodologies across all field offices of the Indian Audit and Accounts Department (IAAD).
- Implementation of an **accounting framework for the "Blue Economy,"** focusing on the sustainable valuation of coastal and marine resources.
- The CAG of India currently holds prestigious external auditor roles for several global organizations:
- **WHO:** Reappointed for a second four-year term (**2024-2027**).
- **ILO:** Selected as External Auditor for the term **2024-2027**.
- **IAEA:** Serving as External Auditor for the term **2022-2027**.
- **OPCW (Organization for the Prohibition of Chemical Weapons)**

Union Public Service Commission (UPSC)

The Union Public Service Commission (UPSC) is India's premier central recruiting agency, established under **Articles 315 to 323** of the Constitution.

- **The Puja Khedkar Scandal:** A trainee IAS officer was accused of faking her identity and misusing disability/OBC quotas. This led to her dismissal and a criminal FIR by UPSC.
- **Lateral Entry Withdrawal (2024):** UPSC cancelled an advertisement for 45 specialized posts (Joint Secretary/Director) following government directives

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Key Powers and Functions

1. Conducting Examinations for Civil Services, Engineering, Medical, and Defense services.
2. Advises the President on all matters relating to methods of recruitment to civil services.
3. Consulted on the suitability of officers for promotion and transfer from one service to another
4. Mandatorily consulted before taking disciplinary action (like dismissal) against a serving civil servant.
5. Framing Recruitment Rules: Assists in drafting and amending rules for recruitment to various central posts.
6. Lateral Entry Selection: Handles the selection process for private-sector experts into senior bureaucracy when tasked by the government.
7. Joint Recruitment: Can assist two or more states in framing recruitment schemes if requested by State Governors.
8. Submits an annual performance report to the President, which is then laid before Parliament.

Major Issues Faced

1. **Quota Misuse:** Eg. Puja Khedkar case
2. Increasing **CSAT Difficulty Skew** favoring engineers over humanities students.
3. **Identity Fraud:** Candidates appearing multiple times by faking names or birth dates.
4. **Verification Gaps:** Reliance on state-issued certificates that UPSC lacks the machinery to verify.
5. **Lateral Entry Friction:** Lack of reservation in specialized posts causing political and social backlash.
6. **Lengthy Cycle:** The 12-month-long recruitment process causes significant "human capital drain."

Way Forward

1. **2nd ARC:** Introduce specialization in recruitment, particularly for **technical and specialized services** such as **Indian Engineering Services (IES)** and **Indian Economic Services (IES).**
2. **Baswan Committee (2016):**
   a. Gradually reduce the upper age limit for appearing in the Civil Services Examination from 32 years to 27 years.
   b. Reform the Mains examination by reducing the number of optional subjects, to focus more on general studies and governance-related topics.
3. **Hota Committee (2004):** reducing the time lag between the preliminary examination, mains, and interview stages to ensure quicker recruitment of officers.

Finance Commission of India

The Finance Commission of India is a Quasi-Judicial constitutional body that defines the financial relations between the Union and the States.

The focus has shifted towards "Compliance-driven Federalism" under the 16th Finance Commission (FC).

Constitutional Provisions

1. Article 280: Mandates the President to constitute a Finance Commission every five years (or earlier).
2. Article 281: Requires the President to lay the Commission's recommendations and the "Action Taken Report" before Parliament.
3. Article 243-I & 243-Y: Mandate State Finance Commissions to review the financial position of Panchayats and Municipalities.

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Key Powers and Functions

1. Vertical Devolution: Recommends the percentage of central taxes to be shared with States
2. Horizontal Devolution: Designates the formula (population, income distance, etc.) to distribute the 41% share among different States.
3. Grants-in-Aid: Determines the principles and amounts for grants to States under Article 275.
4. Suggests measures to augment the State Consolidated Fund to assist Panchayats and Municipalities.
5. Fiscal Consolidation: Reviews the debt levels of the Union and States and recommends a "Fiscal Roadmap."
6. Disaster Management: Recommends the funding patterns and allocations for Disaster Risk Management Funds (SDRF/NDRF).
7. Advisory Role: Provides recommendations on any other matter referred to it by the President in the interest of "Sound Finance."

Key Achievements

1. Successfully maintained the 41% vertical share for States, ensuring financial predictability despite global economic shifts.
2. Digital Transparency: Mandatory CAG-certified disclosure of "Net Tax Proceeds" was accepted to ensure States receive their fair share.
3. Allocated ₹2.04 lakh crore for state disaster funds, enhancing climate resilience.
4. Urbanization Premium: Introduced a first-of-its-kind grant to support the transition of rural clusters into organized urban local bodies.
5. Brought "Off-budget borrowings" into the main fiscal deficit calculations for both Union and States.

Major Limitations

1. **North-South Equity Gap:** Southern states feel "penalized" for successful population control under the 2011 Census-based devolution formulas.
2. Advisory Nature: Recommendations are not legally binding
3. Cess and Surcharges are excluded from the divisible pool, reducing the States' effective tax share. (35% against recommended 41%)
4. Central Dominance: The Centre unilaterally appoints the Chairman and members and sets the "Terms of Reference" (ToR).
5. The 16th FC had to rely on 2011 Census data due to the delayed 2021 Census.
6. Weak State Finance Commissions (SFCs) prevents the Central Commission from accurately funding local bodies.
7. One-Size-Fits-All Roadmap: Imposing a strict 3% GSDP deficit cap may hinder capital expenditure in debt-stressed States.
8. Exclusion of CSS: Centrally Sponsored Schemes (CSS) remain outside the FC's scope
9. Temporary Nature: Being an ad hoc body every five years prevents continuous monitoring of fiscal developments.

Way Forward

1. Permanent Status: Convert the Finance Commission into a permanent body to ensure year-round monitoring of federal finances.
2. Amend the Constitution to include Cess and Surcharges in the divisible pool beyond a certain percentage.
3. Independent Selection: Create a bipartisan committee (including States) to select the FC Chairman and members.

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4. Empowering SFCs: Link Central grants to the mandatory and timely submission of State Finance Commission reports.
5. Customized Fiscal Limits: Adopt state-specific debt-pathways instead of a uniform 3% cap for all.
6. Harmonization with GST Council: Establish a formal coordination mechanism between the FC and the GST Council to avoid policy overlap.

NITI Aayog

NITI Aayog, established on **January 1, 2015**, is the policy **think tank** of the Indian government, replacing the **Planning Commission**.

It is supported by the attached and autonomous bodies of Development Monitoring and Evaluation Organisation (DMEO), Atal Innovation Mission (AIM) and National Institute of Labour Economics Research and Development (NILERD).

Difference Between NITI Aayog & Planning Commission

Feature	NITI Aayog	Planning Commission
Status	Advisory Think Tank	Extra-constitutional, centralized body
Constitution	Established by Executive Resolution (2015)	Established by Executive Order (1950)
Approach to Planning	Bottom-Up Approach, participatory planning involving states	Top-Down Approach, central control with minimal state inputs
Federal Structure Role	Promotes Cooperative Federalism; states are equal partners	States participated as spectators in annual plans
Policy Powers	No mandate to impose policies	Imposed policies on states with tied funds
Fund Allocation Powers	No fund allocation power; Finance Ministry holds that responsibility	Had powers to allocate funds to ministries & states
Planning	No fixed plans; issues policy recommendations and long-term visions like Strategy@75	Fixed Five-Year Plans, centralized development targets

Functions:

1. **Formulating Strategic and Long-Term Policies:** Eg. **Strategy for New India @75**
2. **Cooperative & Competitive Federalism:** Eg. **Aspirational Districts Programme (ADP)**
3. **Think Tank & Knowledge Hub:** Acting as a funnel for global best practices and technical advice to Central/State governments.
4. **Monitoring and Evaluation:** Assessing the implementation of schemes via the **Development Monitoring and Evaluation Office (DMEO)**.

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5. **Innovation Promotion:** Creating an entrepreneurial ecosystem through flagship programs like the **Atal Innovation Mission (AIM)**.
6. **Facilitating Capacity Building and Knowledge Sharing:** Eg.. **SATH** initiative
7. **Sustainable Development Goals (SDGs) Implementation:** Eg. Publishes **SDG India Index** annually to rank states
8. **International Cooperation:** Collaboration with **World Bank, OECD, Bill & Melinda Gates Foundation** for best practices in health, education.

Achievements of NITI Aayog

1. **Enhanced cooperative federalism**: Act as a linking bridge between central and state governments. Eg. NITI Aayog's 'Team India Hub'
2. **Aspirational Districts Programme (ADP)** to transform 112 most under-developed districts across the country..
3. **Strengthened competitive federalism:** Eg. Fiscal Health Index, Composite Water Management Index, State Energy and Climate Index etc.
4. **Governance and policy advice:** assisting over **25 States** in establishing **State Institutions for Transformation (SITs).** Eg. MITRA in Maharashtra, TIFT in Tripura
5. **Promoting innovation, entrepreneurship and digital transformation** through initiatives like Atal Innovation Mission, Knowledge and Innovation Hub etc.
6. **Sustainable Developments Goals (SDGs) monitoring:** plays a crucial role in synchronizing nation's developmental programs in line with the targets. Eg. SDG India Index.
7. **Sampoornata Abhiyan 2.0:** to achieve 100% saturation of critical KPIs (like bovine vaccination and maternal health) in **112 Aspirational Districts** and **513 Aspirational Blocks**
8. **Aspirational Blocks Programme (ABP):** Expanded the success of districts to the block level, monitoring **40 indicators** across 513 blocks to improve last-mile delivery

Criticism:

1. **Lack of Statutory Status:** Unlike the Planning Commission, which had statutory standing, NITI Aayog operates merely as an executive body.
2. **Lack of Financial Power:** Unlike the Planning Commission, NITI cannot allocate funds, making it a "toothless" advisory body
3. **Implementation Gap:** It formulates policies, but the actual execution remains with Ministries/States
4. **Advisory Nature:** Recommendations are non-binding
5. **Limited Staffing:** Heavy reliance on young professionals and consultants rather than permanent specialized cadres
6. **Political Friction:** Opposition-ruled states sometimes boycott Governing Council meetings, stalling the "Cooperative Federalism" goal
7. **Overlap of Roles:** Functions often overlap with the Finance Commission or Inter-State Council, causing administrative redundancy.

Way Forward

1. Consider giving NITI Aayog a statutory basis to increase its institutional weight.
2. Limited Funding Role: Allow NITI to recommend "Innovation Grants" directly to States for successful pilot projects.
3. Develop a permanent "National Policy Cadre" to reduce over-dependence on short-term consultants.
4. Shift from "Ranking States" to "Hand-holding States" through dedicated SITs in every state.

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5. Empower Regional Councils to meet more frequently to resolve specific inter-state disputes (Eg. river water).
6. Strengthening DMEO: Give the evaluation office the power to "audit" the socio-economic impact of major Union schemes.

National Commission For SC, ST, BC's

The National Commission for Scheduled Castes (NCSC), Scheduled Tribes (NCST), and Backward Classes (NCBC) are constitutional/statutory bodies established to safeguard the rights and socio-economic development of marginalized communities.

Evolution:

Special Officer for SCs and STs

1. Originally, **Article 338 of the Indian Constitution** provided for the appointment of a **Special Officer for Scheduled Castes (SCs) and Scheduled Tribes (STs).**
2. The Special Officer was designated as the **Commissioner for SCs and STs.**
3. Primary task was to investigate all matters relating to the constitutional safeguards for the SCs and STs and to report to the President on their workings.

65th Constitutional Amendment Act of 1990

1. It amended **Article 338 of the Indian Constitution** and provided for the establishment of a high-level multi-member **National Commission for SCs and STs.**
2. This constitutional body replaced the **Commissioner for SCs and STs.**

89th Constitutional Amendment Act of 2003

1. **Amended Article 338 and inserted a new Article 338-A** in the Constitution. It added
   a. National Commission for Scheduled Castes (NCSC) - **Article 338.**
   b. National Commission for Scheduled Tribes (NCST) - **Article 338-A.**

NCBC: Statutory body (became constitutional via 102nd Amendment Act, 2018, Article 338B).

Powers and Functions:

1. Investigative Power: To monitor all matters relating to safeguards provided for SCs, STs, and BCs under the Constitution or any other law.
2. Quasi-Judicial Authority: While investigating any matter, the Commissions have the powers of a Civil Court:
   a. Summoning and enforcing attendance of any person.
   b. Discovery and production of any document.
   c. Receiving evidence on affidavits.
3. Advisory Role: Participating in and advising on the socio-economic development planning of these classes.
4. Mandatory Consultation: The Union and State governments must consult these Commissions on all major policy matters affecting these communities.
5. **Presents annual and special reports to the President** of India on the working of constitutional safeguards for SCs.
6. **Monitors the implementation of safeguards** provided under the Constitution and other laws. Eg. **Atrocities Act, 1989,**

Challenges:

1. Commissions' recommendations are **advisory, not binding.**

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2. **Lack of Enforcement:** While they have civil court powers to investigate, they have no power to punish or enforce a verdict.
3. over a **dozen annual reports** (some dating back 7 years) are currently pending in Parliament without being tabled or discussed.
4. **Underrepresentation in Decision-Making:** Fewer SC/ST/BC officers in senior bureaucratic and judiciary positions **(NCSC 2022 Report).**
5. **Political Appointments:** Chairpersons are often retired politicians or loyalists, leading to "political patronage" rather than expert-led social justice.
6. **Staffing & Budget Crunch** hinders the ability to conduct independent investigations.
7. Despite these bodies, NCRB data shows a **steady increase in crimes against SCs and STs.**
8. **Coordination Overlaps:** Functional overlaps between NCSC, NCST, NCBC causing ambiguity.
9. **Limited Suo Motu Action:** Commissions often wait for formal complaints rather than proactively investigating systemic violations.
10. **Digital Divide:** Rural tribal and Dalit populations often cannot access the online grievance portals of these commissions.
11. **Overlap of Jurisdiction:** Post-105th Amendment, confusion often exists between the NCBC and State Backward Class Commissions regarding "Central List" vs. "State List" grievances.
12. **Intra-group Inequality:** Commissions have struggled to address "elite capture" where a few dominant sub-castes corner most reservation benefits.

- The SC judgment allowing states to **sub-classify SCs/STs** for more equitable reservation has placed a new advisory burden on the NCSC to monitor intra-caste disparities.
- The **105th Constitutional Amendment Act, 2021**, restored the power of State governments and Union Territories to identify and notify their own lists of Socially and Educationally Backward Classes (SEBCs) or Other Backward Classes (OBCs).

Major Achievements and Case Studies

National Commission for Scheduled Castes (NCSC)

- **Mirchpur Atrocity Case (Haryana, 2010) -** Immediate visit and fact-finding; monitored trial process. Helped expedite compensation, shifted trial to Delhi for impartiality.
- **AIIMS Discrimination Allegations (2019) - NCSC** Issued notice to AIIMS administration; asked for redress mechanisms.
- **Amendments to the SC/ST (Prevention of Atrocities) Act, 1989** - NCSC consolidated recommendations to the Ministry of Home Affairs
- **Forest Rights Act Implementation (Chhattisgarh Pilot, 2015**) - **NCST** Partnered with state authorities to **streamline FRA processes** in Bastar region
- **NCBC**'s report led to a harmonized Central OBC list, clarifying eligibility and ensuring consistent reservations for lakhs of candidates in UPSC and SSC exams.
- **Vedanta Project (NCST):** The Commission was largely ineffective in preventing the initial land alienation of the **Dongria Kondh** tribe in Odisha until the Supreme Court intervened.
- **Hathras Case (NCSC):** Critics argued the NCSC's response was "reactionary" rather than "preventative" in handling the 2020 tragedy and its aftermath.
- **Maratha Reservation (NCBC):** The NCBC's lack of a clear definition of "backwardness" led to legal contradictions during the Maratha quota debates (2021-24).

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Way Forward

1. **Time-bound Inclusion/Exclusion Process:** Clear timelines for OBC list revisions (as NCBC suggested in 2019).
2. Amend the Constitution to **make recommendations binding** in cases of human rights violations or land alienation.
3. **Transparency in Appointments:** Establish a **Search Committee** (including the CJI and Leader of Opposition) to appoint members based on expertise.
4. **Financial Autonomy:** Grant the Commissions a **separate budget** directly from the Consolidated Fund of India to reduce dependency on ministries.
5. **Real-time Reporting:** Implement a "Digital Dashboard" for real-time tracking of complaints and the status of annual reports.
6. **Social Audit:** Mandate an annual social audit of the Commissions' performance by independent NGOs or academic institutions.
7. **Power of Contempt:** Grant the Commissions limited powers of contempt for authorities who ignore summons or refuse to provide documents.

Special Office for Linguistic Minorities:

Article 350B inserted by the **7th Amendment Act (1956)** following the States Reorganisation Commission's recommendations provides for **Special Officer for Linguistic Minorities**

Powers and Functions

1. **Investigative Authority** (Article 350B(2))**:** Investigates all matters relating to safeguards provided for linguistic minorities under the Constitution.
2. **Submits annual and special reports** to the President regarding the status of linguistic safeguards
3. **Liaison with States:** Maintains constant contact with state nodal officers to monitor the implementation of the "10-Point Programme."
4. **Grievance Redressal:** Receives and examines representations from individuals or associations regarding non-implementation of linguistic rights.
5. **Field Evaluations:** Conducts field visits to minority-concentrated areas to assess actual conditions of language preservation
6. **Questionnaire Monitoring:** Distributes annual questionnaires to States/UTs to collect data on linguistic education and administration.
7. **Awareness Generation:** Conducts seminars and meetings to inform minority communities about their constitutional rights
8. **Advisory Role:** Recommends remedial actions to the Union and State governments to resolve persisting linguistic conflicts.

Major Challenges and Limitations

1. **Lack of Enforcement:** Recommendations are purely advisory; the CLM cannot compel any state to implement changes
2. **No Civil Court Powers:** Unlike the NCSC/NCST, the CLM cannot summon witnesses or demand documents legally
3. **Delayed Tabling:** Reports are often tabled in Parliament with a 5-8 year delay, rendering findings obsolete
4. **Structural Weakness:** only 3 regional offices across the country

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5. **Administrative Dependence:** Operates under the Ministry of Minority Affairs, lacking the autonomy of other constitutional bodies.
6. **Indefinite Tenure:** The Constitution is silent on the officer's tenure, qualifications, or removal process
7. **State Non-Cooperation:** Many states fail to return the CLM's monitoring questionnaires, leading to data gaps
8. **Defining "Minority":** Lack of a clear constitutional definition for "Linguistic Minority" leads to frequent legal disputes

Major Case Studies

Successes

- **Belagavi Language Dispute:** The CLM successfully brokered administrative guidelines for Marathi speakers in Karnataka's border districts
- **Odia in Andhra:** Persistent CLM interventions ensured the printing of textbooks in Odia for schools in Srikakulam

Limitations

- **Bengali in Assam:** The CLM remained largely sidelined during the intense linguistic tensions surrounding the NRC process
- **Santhali Script Issue:** Failed to ensure a uniform script policy (Ol Chiki) across three neighboring eastern states

Way Forward

1. **Quasi-Judicial Status:** Grant the CLM "Civil Court" powers to summon officials for failing to provide data.
2. **Mandatory Tabling:** Amend rules to ensure reports are discussed in Parliament within 6 months of submission.
3. **Regional Expansion:** Establish offices in every State Capital to bridge the gap between Delhi and remote linguistic groups.
4. **Digital Grievance Cell:** Launch a mobile app for real-time reporting of linguistic discrimination at the village level.
5. **Inter-State Council Role:** Use the Inter-State Council to resolve cross-border linguistic disputes identified by the CLM.

National Human Rights Commission:

NHRC is a statutory body, established under the **Protection of Human Rights act 1993**. It is established in conformity with **Paris Principles 1991** and aims to protect and promote human rights, including rights related to life, liberty, equality, and dignity.

Functions of NHRC:

1. Civil Court Authority: Possesses powers to summon witnesses, discover documents, and receive evidence on affidavits.
2. Suo Motu Inquiries: Can independently initiate investigations into rights violations based on media reports or personal knowledge. Eg. registered 128 suo motu cases in 2025
3. Prison Inspections: Authorized to visit any jail or detention center to evaluate inmate conditions and recommend reforms.

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4. Court Intervention: Can intervene in any judicial proceeding involving human rights allegations with the court's prior permission.
5. Reviews constitutional and legal safeguards for human rights and suggests measures for their effective implementation. Eg. suggested amendments to the Manual Scavenging Act
6. Research Promotion: Encourages and undertakes research in the field of human rights to influence national policy.
7. Promotes human rights literacy through publications, media, and seminars to empower the vulnerable.
8. NGO Partnerships: Collaborates with and supports non-governmental organizations working in the field of human rights protection.
9. Recommends compensation or initiation of proceedings against guilty public servants to the government. Eg. In 2025-26, it recommended ₹7.3 crore for victims of custodial violence.
10. Reviews **international treaties and instruments** and makes recommendations for their effective domestic implementation. Eg. pushed for ratification of **UN Convention Against Torture**

Challenges related to NHRC:

1. **Recommendatory Role:** Its findings are not legally binding.
2. **One-Year Limitation:** cannot investigate any incident that occurred more than one year before the date of the complaint.
3. It has **limited jurisdiction over armed forces** and can only seek report from the Centre. **Eg. In** cases involving **AFSPA areas**, it cannot summon military personnel or conduct investigations.
4. The Commission **cannot punish violators of human rights or award compensation** directly. Rely on **government departments** to initiate prosecution against the erring officials.
5. **Staffing Vacancies:** High vacancy levels in key administrative and investigative posts hinder the Commission's ability to handle its massive caseload. **Eg. over 44,000 cases** pending.
6. **Financial Dependency** on the Ministry of Home Affairs for its budget.
7. The NHRC lacks a **dedicated, independent investigative agency** and relies on the state police
8. **Delayed Tabled Reports: Eg.** Reports for the year **2019 and 2020** were only discussed in the legislature in late 2024.
9. The **appointment committee is dominated by the ruling political executive**. **Eg. GANHRI** deferred NHRC's "A" status citing lack of diversity and political influence in appointments

Major achievements:

1. NHRC's investigation on **custodial deaths** led to states like Tamil Nadu and Maharashtra implementing stricter SOPs for police stations.
2. **Intervention in Child Labour:** Its proactive role facilitated the rescue of around 40,000 child labourers and rehabilitation efforts in coordination with the state government.
3. **Prison Reforms Advocacy:** In 2015, NHRC released a detailed report highlighting issues like overcrowding, poor hygiene, lack of legal aid, and trial delays in Indian prisons.
4. **Addressing Manual Scavenging:** NHRC issued notices to the Government of Maharashtra in 2017 resulting in compensation to victims' families.
5. **Migrant Worker Protection (2026):** The NHRC intervened in March 2026 to successfully repatriate four Indian workers held in conditions resembling forced labor in Thailand.
6. **Safety Interventions (2026):** The Commission took suo motu cognizance of a hazardous oleum gas leak in Palghar, Maharashtra, monitoring the case for environmental violations and industrial negligence.
7. **Relief for Medical Negligence:** In a notable case, the NHRC held the state government liable for botched eye surgeries, ensuring compensation of ₹1 lakh each for six victims.

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Way Forward for NHRC

1. Amend the Protection of Human Rights Act to make **NHRC recommendations binding** on the government, subject to a High Court appeal.
2. **Establish a permanent, autonomous investigative cadre** consisting of experts and independent forensic scientists to eliminate police bias.
3. **Remove of the One-Year Bar** for investigating grave human rights crimes like torture or forced disappearances.
4. Grant the Commission the **authority to initiate contempt proceedings** against public servants who refuse to comply with its summons or directives.
5. Allow the NHRC to independently **investigate non-combat, human rights-related complaints against the armed forces** in disturbed areas.
6. **Financial Autonomy:** Create a non-votable budget for the NHRC, drawn directly from the Consolidated Fund of India, to ensure absolute financial independence.
7. **Enhanced Digital Presence:** Scale up the **HRCNet** and mobile applications to allow real-time reporting of atrocities in local languages across rural India.
8. **Global Best Practice:**
    a. **UN Paris Principles** call for **pluralism and independence** in national human rights institutions (NHRIs).
    b. **UK Equality and Human Rights Commission (EHRC)** has powers to initiate legal proceedings and enforce compliance.
    c. **UN Guiding Principles on Business and Human Rights** promote state oversight over corporate practices; several countries like **Norway** have adopted this.

National Commission for Women

The **National Commission for Women (NCW)** is the apex statutory body in India established to protect and promote the interests of women.

Organisational Structure

1. **Chairperson:** A person committed to the cause of women, nominated by the **Central Government**.
2. **Five Members:** Experts in law, management, administration, or social welfare; at least one must be from **SC and ST** communities.
3. **Member Secretary:** An expert in management or an officer from the **Civil Services/All-India Services** nominated by the Centre.
4. The Chairperson and every member hold office for a period not exceeding **three years**.

Major Powers and Functions

1. **Review** constitutional and legal safeguards for women and recommend remedial legislative measures to the government. **Eg.** Proposed amendments to the **Dowry Prohibition Act**
2. **Receiving and processing complaints** related to deprivation of women's rights and non-implementation of protective laws.
3. **Suo Motu Cognizance:** Can take independent notice of issues involving women's rights violations based on media reports or other sources.
4. **Civil Court Powers:** Authorized to **summon witnesses**, require document discovery, and receive evidence on affidavits during inquiries
5. **Jail Inspections:** Inspects jails, remand homes, or other places of custody for women to ensure humane treatment and reforms.

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6. **Research and Studies:** Commissions studies into the socio-economic conditions of women to identify and remove factors inhibiting their advancement.
7. **Advises the Union and State governments on the planning process** for the socio-economic development of women.
8. **Report Submission:** Mandated to submit annual and special reports to the government regarding the status of women's rights.
9. **Mahila Jan Sunwai:** A pilot project to facilitate speedy disposal of complaints via in-person and online hearings.

Significance of National Commission for Women

1. **Watchdog of Rights:** Monitors safeguards. Eg. **POSH Act implementation** in corporate offices
2. **Legal Catalyst:** Influenced the **Triple Talaq** campaign and subsequent legislation in 2019.
3. **Grassroots Advocacy:** "She is a Changemaker" initiative
4. **International Interface:** Represents India at **UN Women** forums to align domestic policies with global gender standards.
5. **Safety Audits:** Eg. **Shimla Consultation 2026** for safer university environments.
6. **Economic Empowerment:** Eg. **Digital Shakti 4.0** reaching 6 lakh women.

Major Challenges and Limitations

1. **Recommendatory Nature:** Its findings are not legally binding
2. **No Punitive Power:** can only recommend prosecution to the police or government.
3. **Financial Dependence** on the **Ministry of Women and Child Development**, limits functional autonomy.
4. **Staffing Vacancies:** Shortage of permanent investigative staff leads to a heavy reliance on **deputation** from other government departments.
5. **Political Interference:** The Chairperson and members are government nominees, leading to frequent allegations of **partisan functioning** or selective activism.
6. **Limited Awareness:** Women in remote rural areas remain unaware of its existence; only **15% of complaints** in 2025 were from rural belts.
7. **No Constitutional Status:** Being a statutory body, it lacks the prestige and protected independence of constitutional bodies like the CAG.
8. **Underreporting:** Socio-cultural stigmas continue to prevent women from utilizing NCW's portal for **domestic violence** reporting.
9. **Resource Constraints:** Inadequate budget for conducting large-scale **national-level research** projects or independent forensic investigations.

Major Case Studies

- **Ramshree's Case:** NCW successfully intervened in the Supreme Court to stay and later commute the **death sentence** of a woman.
- It played a key role in strengthening **Domestic Violence Act 2005** and the **Dowry Prohibition Act 1961.**
- It has **prepared Gender Profiles** to assess the status of women and their empowerment in all the states
- **Manipur Incident (2023):** Faced heavy criticism for **delayed response** to complaints regarding violence against women during ethnic clashes.
- **Mangalore Pub Attack:** member's **victim-blaming remarks** during the inquiry was criticised.
- **Section 497 Debate:** Its initial stance on **Adultery laws** was criticized for being non-aligned with modern principles of gender-neutral culpability.

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Way Forward

1. **Constitutional Status** to ensure absolute independence from executive influence.
2. Amend the 1990 Act to make its recommendations **binding**, subject to a "Reasoned Memorandum" for rejection.
3. Empower the Commission to initiate **contempt proceedings** against officials who ignore its summons or directives.
4. Include the **CJI and Leader of Opposition** in the selection committee to ensure neutral appointments.
5. Adopt the UK's **"Equality and Human Rights Commission"** model with powers to issue legally enforceable compliance notices.
6. Appoint **District Vigilance Officers** to provide a direct link for rural women to report atrocities.
7. **Social Audits:** Mandate annual **Third-Party Social Audits** of the commission's performance to ensure accountability to civil society.

National commission for Minorities

The **National Commission for Minorities (NCM)** is a statutory body established to safeguard the interests of religious minorities in India.

Origin

1. Originally set up in **1978** via a Ministry of Home Affairs resolution as a non-statutory body.
2. Became a statutory body under the **National Commission for Minorities Act, 1992**.
3. Jurisdiction initially included linguistic minorities, but shifted solely to **religious minorities** in 1988 after the creation of the Special Officer for Linguistic Minorities.

Organisational Structure

1. **Composition:** Consists of a **Chairperson**, a **Vice-Chairperson**, and **five Members**—all nominated by the Central Government.
2. Mandated that at least **five members** (including the Chairperson) must belong to the six notified minority communities.
3. The Chairperson and every member hold office for a term of **three years** from the date they assume office.

Major Powers and Functions

1. **Evaluation of Progress:** Evaluates the progress of development of various minority communities under the Union and State governments.
2. Monitors the working of safeguards provided in the **Constitution** and other laws enacted by Parliament/States.
3. **Complaint Redressal: Eg.** Acted on **1,500+ complaints** in 2024-25 involving police atrocities, service matters, and religious property encroachments.
4. **Suo Motu Action:** Empowered to take notice of incidents affecting minority rights based on media reports or verified private petitions.
5. **Civil Court Powers:** Holds powers of a **civil court** to summon witnesses, receive evidence on affidavit, and requisition public records—(Section 9).
6. **Policy Recommendation: Eg.** Recommended the **Classical Language status** for Pali and Prakrit.
7. **Conducting Studies:** Commissions studies, research, and analysis on issues relating to the socio-economic and educational development of minorities.

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8. **Special Reports:** Prepares and submits periodic or special reports to the Central Government on any matter pertaining to minorities. **Eg. Special Report on Hate Speech (2025)**

Significance of the NCM

1. **Safeguarding Secularism:** Acts as a constitutional buffer
2. **Quasi-Judicial Relief:** Provides a platform for grievance redressal
3. Ensures compliance with the **UN Declaration on Minority Rights (1992)** regarding cultural and religious identity.
4. **Empowering Weaker Sections:** Monitors scholarships
5. **Communal Harmony:** Facilitates inter-faith dialogue. Eg. **Unity Conferences 2025**

Major Challenges and Limitations

1. **Advisory Nature:** Recommendations are **non-binding**
2. **No Constitutional Status:** Lacks the autonomy and prestige of the NC-SC or NC-ST
3. Persistent **vacancies in key posts** (Chairperson/Members) often leave the commission non-functional for several months.
4. Lacks its own permanent **investigative cadre**, forcing it to rely on state police for field inquiry reports.
5. Annual reports are **tabled with significant delays** in Parliament, reducing legislative oversight relevance.
6. **"Toothless Tiger" Perception:** Former chairpersons have termed it a **"showpiece"** due to its inability to enforce penalty orders or compensation.
7. **Overlapping Jurisdiction:** Jurisdictional overlaps with the **NHRC** often lead to procedural confusion and "bouncing" of victims between institutions.

Way Forward

1. **Constitutional Status**
2. **Binding Directives**
3. Adopt the UK's **Equality and Human Rights Commission** model with powers to conduct binding sector-wide inquiries.
4. Include the **CJI and Leader of Opposition** in the selection committee to ensure political neutrality.
5. Introduce a **central directive** requiring every state to establish a functional State Minority Commission within 6 months.

Central Information Commission

The **Central Information Commission (CIC)** is the apex statutory body established to ensure the effective implementation of the Right to Information (RTI) Act, 2005.

Composition: Consists of a **Chief Information Commissioner** and up to **ten Information Commissioners**, appointed by the President.

Major Powers and Functions

1. The CIC holds the **powers of a civil court** to summon persons and require document discovery.
2. **Adjudication of Appeals:** It serves as the final appellate body for second appeals against decisions of Central Public Information Officers.
3. **Imposition of Penalties:** The Commission can fine officials ₹250 per day (up to ₹25,000) for unjustified denial of information.

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4. **Suo Motu Inquiries:** It can initiate an inquiry into any matter where there are reasonable grounds for a transparency breach.
5. **Recommendatory Power:** Can recommend disciplinary action against public officials for persistent non-compliance with the provisions of the Act.
6. **Access to All Records:** During an inquiry, no record of a public authority can be withheld from the Commission's scrutiny.
7. **Directive for Compliance:** Empowered to direct public authorities to take necessary steps to align with the RTI Act's spirit.
8. **Awarding Compensation:** The CIC has the power to award compensation to the complainant for any loss or detriment suffered.

Major Challenges and Limitations

1. While its orders are theoretically final, departments often seek **"writs"** in High Courts to stay CIC directives.
2. **Executive dominance in appointments** (PM, HM, LoP) - In **Anjali Bhardwaj v. Union of India (2019)**, the **SC** directed **greater transparency in appointments** to ensure **public scrutiny**.
3. Unlike courts, the CIC **cannot punish for "contempt,"** making it difficult to enforce compliance with its orders.
4. **Vacancies and Backlog** leads to bench vacancies and a massive pile-up of pending appeals. (over 22000)
5. **Lack of Time-Limit:** While the Act mandates 30 days for PIOs, it sets no time limit for CIC to dispose of appeals.
6. **Record Management:** Inefficient physical record management in government offices leads to the "unavailability" of files during CIC hearings.
7. **Autonomy concerns:** Amendments giving the Center power to set salaries and tenure have raised concerns about the Commission's independence.
8. **Digital Divide:** Remote rural applicants struggle to access the CIC's online appeal portal, limiting its reach to urban elites.
9. **Exemption Overuse:** Public authorities frequently cite "National Security" or "Privacy" (Section 8) to bypass CIC's disclosure orders.
10. **Inadequate Staffing: Eg.** The **Registry of CIC** currently operates at 60% of its sanctioned technical strength.

Way Forward

1. Amend the RTI rules to mandate a **90-day time limit** for the CIC to dispose of second appeals.
2. **Enhanced Diversity:** Actively recruit Commissioners from diverse backgrounds including **law, journalism, science, and social service** as per the Act.
3. Adopt the **UK model** where "Public Interest" override is strictly applied against almost all secrecy-based exemptions.
4. Grant the Commission the power to initiate **contempt proceedings** against officials who repeatedly defy its orders.
5. **Independent Selection Panel:** Include a judge of the Supreme Court in the selection committee to enhance the Commission's perceived neutrality.
6. Implement a mechanism where penalties are **automatically deducted** from the salaries of erring Public Information Officers.
7. **Third-Party Audits:** Make the transparency audit of Section 4 disclosures a mandatory annual feature with a publicly accessible "Grading System."

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Central Vigilance Commission

The **Central Vigilance Commission (CVC)** is India's apex integrity institution, mandated to fight corruption and ensure transparency in the Central Government.

Origin

1. Established in **1964** via a Government of India Executive Resolution based on **Santhanam Committee recommendations.**
2. Granted statutory status through the **Central Vigilance Commission Act, 2003**, following the Supreme Court's **Vineet Narain** judgment.

Composition:

1. Central Vigilance Commissioner (Chairperson)
2. Two Vigilance Commissioners
3. Appointed by the President on recommendation of a committee comprising: Prime Minister (Chairperson), Home Minister, Leader of Opposition in Lok Sabha.

Recent News

1. **Vigilance Awareness 2025** campaign focused on **"Culture of Integrity for Nation's Prosperity,"** promoting preventive vigilance mechanisms
2. Enhanced the **Whistleblower (PIDPI)** portal to ensure 100% anonymity for complainants.

Major Powers and Functions

1. **Exercises superintendence** over the functioning of the **CBI** specifically for cases under the Prevention of Corruption Act.
2. **Inquiry Powers:** Can inquire or cause an inquiry into any transaction where a public servant is suspected of corruption.
3. **Advises the Central Government** on vigilance matters and reviews the progress of investigations conducted by various agencies.
4. Possesses the powers of a **civil court** while conducting inquiries, including summoning witnesses and inspecting documents.
5. **Whistleblower Protection:** Acts as the designated agency to receive and act on complaints under the **PIDPI Resolution** (Whistleblower protection).
6. Oversees the functioning of **Chief Vigilance Officers (CVOs)** across all Central Ministries, PSUs, and autonomous bodies.
7. Monitors the progress of **requests for "sanction of prosecution"** pending with various government departments.
8. Conducts **technical audits** of infrastructure projects through its **Chief Technical Examiner's Organization (CTEO)** wing.
9. Submits a comprehensive annual report to the **President**, which is subsequently laid before both Houses of Parliament.

Major Challenges and Limitations

1. **Advisory Limitation:** the government can reject them by simply providing written reasons.
2. **Lacks its own independent investigative agency** and must rely on the **CBI** or departmental CVOs.
3. **Limited Jurisdiction:** It cannot investigate corruption cases involving **State Government officials**, private sector employees, or political leaders.
4. **Staffing Constraints:** Operates with a sanctioned strength of roughly **300 staff**, which is insufficient.

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5. **CVOs are often employees of the same department** they monitor, leading to inherent **conflicts of interest**.
6. **No Prosecution Power:** Unlike the Lokpal, the CVC cannot initiate its own criminal prosecution in a court of law.
7. The selection committee is dominated by the executive, raising concerns about the potential for **partisan appointments**.
8. **Sanction Hurdles:** Despite monitoring, the "prior sanction" requirement for senior officials often acts as a **legal shield** for corrupt bureaucrats.

Way Forward

1. **Independent Investigation Wing:** Grant the CVC its own cadre of investigators, similar to the **ICAC of Hong Kong**.
2. Amend the CVC Act to make its recommendations **legally binding** in cases of proven financial fraud.
3. **Prosecutorial Powers:** Allow the CVC to maintain a panel of **special prosecutors** to directly take cases to court.
4. Adopt **Singapore's CPIB model**, where the anti-corruption agency has the power of arrest without warrant.
5. **Digital "Vigilance-by-Design":** Integrate CVC's oversight into the **Government e-Marketplace (GeM)** for automated flagging of suspicious bidding patterns.
6. **Expanding Scope:** Bring **private-public partnership (PPP)** projects under CVC's mandatory technical audit to protect public resources.
7. **Vigilance Literacy:** Launch a **National Integrity Index** to rank departments, fostering healthy competition in transparency and ethical governance.

Central Bureau of Investigation

The **Central Bureau of Investigation (CBI)** is India's premier federal investigating agency.

Origin

1. **Special Police Establishment (1941):** Initially formed to investigate wartime corruption in the War and Supply Department during WWII.
2. **DSPE Act (1946):** Legal authority was derived from the **Delhi Special Police Establishment Act**, making it a police agency.
3. **MHA Resolution (1963):** The CBI was formally established via a Government resolution, though it is not a statutory body.

Major Powers and Functions

1. **Anti-Corruption Probe:** Investigates bribery and misconduct by Central Government employees and PSU staff. **Eg.** Investigation of the **₹11,400 crore PNB fraud**.
2. **Economic Offenses:** Handles major financial scams, bank frauds, cyber-crimes, and large-scale smuggling of narcotics or cultural property. **Eg. Satyam Computers Scam** (2009).
3. **Special Crimes:** Investigates sensational cases like terrorism, high-profile kidnappings, and murders referred by states or the judiciary. **Eg. Aarushi Talwar murder case**
4. **Interpol Interface:** Acts as the "National Central Bureau" for India, facilitating communication between Indian police and international law enforcement.
5. **State Referrals:** Can investigate crimes within a State if the State Government requests or the Supreme/High Court orders. **Eg. RG Kar Medical College case**.

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6. **Technical Support:** Maintains the **Central Forensic Science Laboratory (CFSL)** to provide advanced scientific evidence support for complex criminal trials.
7. **Crime Statistics:** Serves as the central repository for specialized crime data and disseminates criminal information to state bureaus.

Challenges faced by CBI:

1. **General Consent Hurdle - Over 10 states** have withdrawn "General Consent."
2. **Political Interference:** The Supreme Court criticized the CBI for being a **"caged parrot"** speaking in its master's voice.
3. **Lack of Statutory Status: Eg.** The **Gauhati High Court (2013)** briefly declared the CBI's formation unconstitutional, though the order was later stayed.
4. Roughly **1,700 posts** (23% of sanctioned strength) are vacant, leading to excessive workloads and investigation delays.
5. **Over-reliance on IPS officers on deputation** who may lack specialized forensic or financial investigation expertise.
6. **Prior Sanction Shield:** Section 17A of the PCA mandates prior approval before even starting an inquiry against senior officials.
7. Administrative and financial control lies with the **DoPT**, limiting the Director's ability to modernize the agency independently.
8. Struggle to keep pace with **Dark Web** and cryptocurrency-based money laundering due to inadequate high-tech lab funding.

- **Bhopal Gas Tragedy:** Criticized for failure to extradite Warren Anderson and "diluting" charges, which led to widespread public outcry.
- **Aarushi Talwar Case:** Labeled a "forensic failure" by legal experts as two different CBI teams reached contradictory conclusions.
- **Bofors Scandal:** Decades of investigation failed to secure a single conviction

Consent of State for CBI

Types of consent of states

- **General:** CBI is not required to seek fresh permission every time it enters that state in connection with investigation or for every case.
- State government can grant or deny consent. (**Section 6 of DSPE Act**)
- **Specific:** CBI would have to apply to the state government in every case.

Major SC Judgments

1. **Vineet Narain (1998):** Directed a **fixed 2-year tenure** for the Director and mandated a high-powered selection committee for autonomy.
2. **Subramanian Swamy (2014):** Struck down **Section 6A**, ruling that prior permission is not required to probe senior officials in corruption cases.
3. **Manohar Lal Sharma (2014):** Famously termed the agency a **"caged parrot"** and barred it from sharing probe reports with the executive.
4. **Legislative Council U.P. v. Sushil Kumar (2025):** Ruled that constitutional courts must order CBI probes **"sparingly and cautiously"** in exceptional situations only.

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Way Forward:

1. Replace the DSPE Act with a dedicated **CBI Act** to grant it a clear statutory identity.
2. **FBI Model (USA):** Adopt a model where the agency has **automatic jurisdiction** over federal crimes without needing state-by-state consent.
3. **Administrative Autonomy:** Grant the Director the power to recruit **specialized lateral entries** (accountants, cyber-experts) directly rather than relying on IPS.
4. **Social Audit:** Implement periodic **Third-Party Audits** of the agency's performance to balance RTI exemptions with public accountability.
5. Transition to a **70% permanent cadre** to ensure institutional memory and specialized domain expertise in financial forensics.

Lokpal And Lokayukta

The **Lokpal** (Union level) and **Lokayukta** (State level) are **statutory anti-corruption ombudsman** bodies, designed to inquire into allegations of corruption against public functionaries and ensure "clean governance."

Origin

1. Based on the **Ombudsman** model of Sweden; terms coined by **Dr. L.M. Singhvi** in 1963.
2. The **First Administrative Reforms Commission (1966)** first officially recommended their establishment to address citizen grievances.
3. After eight failed attempts since 1968, **Anna Hazare** movement forced the 2013 enactment.

Major Powers and Functions

1. **Jurisdiction over PM:** Can investigate the **Prime Minister**, excluding matters of national security, public order, and foreign relations.
2. Covers all Central Government employees from **Group A to Group D** and MPs for bribery/misconduct.
3. **Civil Court Powers:** Possesses the power to **summon witnesses**, examine documents, and receive evidence on affidavits like a civil court.
4. Has powers of direction and **superintendence over the CBI** for cases referred to it by Lokpal.
5. Maintains an independent **Inquiry Wing** to conduct preliminary examinations into allegations against public servants before formal investigation.
6. Features a dedicated **Prosecution Wing** to initiate proceedings in Special Courts for corruption offenses after investigation.
7. Empowered to **confiscate assets** and benefits obtained through corrupt practices, even while legal proceedings are ongoing.
8. Authorized to issue directions to prevent the **destruction of records** during the course of a preliminary inquiry.

Major Challenges and Limitations

1. **Delay in Appointment:** Lokpal was operationalized only in 2019, despite the Act being passed in 2013. Several states still lack a functional Lokayukta.
2. **Lack of Suo Motu Power:** Lokpal cannot initiate investigations on its own; it requires a **formal citizen complaint** to act.
3. It cannot inquire into any complaint filed after **seven years** from the date of alleged offense.
4. Being purely statutory, it lacks the **constitutional protection** of bodies like the CAG or Election Commission.

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5. **Investigation Dependency:** Primarily relies on the **CBI or CVC** for field investigations, as it lacks its own pan-India investigative cadre.
6. The **higher judiciary** (SC/HC Judges) is completely excluded from Lokpal's ambit, creating an accountability gap.
7. **Anonymity Restriction:** Complaints must be in a **prescribed format**; anonymous complaints are not entertained, deterring many whistleblowers from reporting.
8. **State-Level Lags:** Several states have either not appointed **Lokayuktas** or have significantly diluted their powers via state amendments.

- **Karnataka Lokayukta** exposed a **₹16,000 crore illegal mining scam**, leading to the resignation of the then Chief Minister.
- **Dismissal on Technicalities:** In 2025-26, nearly **40% of complaints** were dismissed for not being in the "prescribed format".

Major SC Judgments

1. **Common Cause v. Union of India (2017):** Ruled that the lack of an official **Leader of Opposition (LoP)** shouldn't stall Lokpal appointments.
2. The SC stayed a Lokpal order that categorized **HC Judges as public servants**, reaffirming their immunity.
3. **CBI v. Lokpal (2026):** Clarified that Lokpal's **superintendence over CBI** is limited to the specific case referred, not administrative control.

Way Forward

1. **Suo Motu Powers:** Grant Lokpal the power to initiate **self-directed inquiries** based on credible media reports or audits.
2. Adopt the **Swedish model** where the Ombudsman has direct access to **all state secret files**.
3. **Constitutional Status** to ensure total independence.
4. Establish a permanent, **internal investigative wing** to end dependency on the CBI for field evidence.
5. Integrate the **Whistleblowers Protection Act** with Lokpal to provide concrete legal and physical security to informers.
6. Create **Regional Benches** of Lokpal to make the anti-corruption mechanism accessible to rural and remote citizens

Competition Commission of India

The **Competition Commission of India** is a statutory body within the Ministry of Corporate Affairs and is responsible for enforcing the **Competition Act, 2002**, to promote a fair and competitive business environment.

Origin

1. Officially formed on **October 14, 2003**, following the recommendations of the **Raghavan Committee (2000).**
2. Replaced the archaic **MRTP Act, 1969**, moving from "curbing monopolies" to "promoting competition".
3. Became fully functional in **May 2009**.

Organisational Structure

1. Consists of a **Chairperson** and not less than two and not more than **six Members**.

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2. The Central Government appoints members based on the recommendation of a **Search-cum-Selection Committee**.
3. Members must have **15 years of experience** in international trade, economics, law, or public affairs.
4. Includes the **Director General (DG)** wing, which acts as the independent investigative arm for the Commission.

Major Powers and Functions

1. **Anti-Competitive Agreements:** Prohibiting horizontal (cartels) and vertical agreements that cause an **Appreciable Adverse Effect on Competition (AAEC)**.
2. **Preventing Abuse of Dominance: Eg.** Penalized **Google** for leveraging its Android dominance to force-install its search apps on smartphones.
3. **Combination Regulation:** Reviews mergers and acquisitions exceeding specific thresholds to prevent monopolistic market consolidation. **Eg. Air India-Vistara merger**
4. **Suo Motu Power:** Can initiate inquiries independently based on market reports without waiting for a formal complaint.
5. **Civil Court Power:** Possesses powers of a civil court to summon witnesses and compel the production of documents.
6. **Extra-Territorial Reach:** Can inquire into conduct outside India if it has a direct effect on the Indian market. **Eg.** Investigated **global shipping lines** for price-fixing in 2024.
7. **Interim Orders:** Authorized to issue "cease and desist" orders to halt anti-competitive behavior while an investigation is pending.
8. Mandated to create **public awareness and provide training to stakeholders** on competition-related economic issues.
9. Consults with **other regulators (like TRAI or RBI)** to ensure harmony between sectoral laws and competition law.
10. Can impose fines up to **10% of global turnover** for anti-competitive conduct or gun-jumping.

Significance of Competition Commission of India

1. **Consumer Welfare:** Ensures lower prices and better quality
2. **Promoting Innovation:** Prevents incumbents from blocking new entrants
3. **Curbing Cartels** and ensuring fair competition.
4. **Regulating Big Tech &** ensuring a level playing field in the digital economy
5. **Ease of Doing Business:** Transparent merger reviews through the **"Green Channel"** for fast-track automated approvals.
6. **Resource Efficiency:** Prevents hoarding and artificial scarcities
7. **Inclusive Growth:** Supports MSMEs against predatory pricing by large e-commerce entities
8. Aligns Indian markets with **OECD standards**, attracting foreign direct investment into a fair environment.

Major Challenges and Limitations

1. **High Pendency:** Frequent stays by **High Courts and NCLAT** cause investigations to drag for several years. **Eg. Tyre cartel case** took nearly a decade.
2. **Overlapping Jurisdiction:** Frequent jurisdictional conflicts with sectoral regulators like **TRAI (Telecom)** or **SEBI (Finance)** over market conduct.
3. **Resource Constraints:** An annual budget of ~₹750 crore is small compared to the **trillion-dollar companies** it regulates.

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4. **Lack of Benches:** The central office in Delhi limits access for small businesses from Southern or North-Eastern India.
5. **Data Access Issues:** Lacks the power of "dawn raids" on private cloud servers located outside Indian jurisdiction.
6. **Bureaucratic Staffing:** Heavy reliance on deputation from other departments rather than having a specialized **economic-legal permanent cadre**.
7. **Advisory Nature:** Opinions given to the Government under "Competition Advocacy" are **non-binding** and often ignored in policy-making.
8. **Narrow Definitions:** The current "Relevant Market" definition often fails to capture multi-sided platforms like **Social Media/Search**.

Major Case Studies

Successes

- **Cement Cartel (2016):** Imposed **₹6,300 crore fine** on 11 firms for controlling supply.
- Forced Google to allow **third-party app stores** and alternative search engines on Android devices in India.

Limitations

- **E-commerce Probe:** Investigations into **Amazon/Flipkart** have faced repeated "stay orders" from High Courts, stalling the final verdict.
- **Coal India Case:** Faced significant legal hurdles in applying competition law to a **State Monopoly**

Way Forward

1. **Digital Markets Act (EU Model):** Introduce "Ex-ante" regulations for "Gatekeeper" firms to prevent harm before it occurs.
2. Establish **regional benches** in Mumbai, Bengaluru, and Kolkata to improve accessibility and disposal speed.
3. **Global Cooperation:** Strengthen the **International Competition Network (ICN)** ties for simultaneous raids on multi-national cartels.
4. **Permanent Cadre:** Create a "Competition Service" to recruit **Econometricians and Tech-experts** directly rather than via deputation.
5. **Whistleblower Rewards:** Implement a **bounty system** for employees who report corporate cartels, similar to US/EU practices.
6. Fix a mandatory **180-day limit** for NCLAT to decide on appeals against CCI orders.

National Green Tribunal

It is a specialized judicial body established to adjudicate environmental disputes. It makes India the third country in the world, after Australia and NZ, to have a dedicated environmental tribunal.

Origin

1. Established under the **National Green Tribunal Act, 2010**, replacing the NEAA.
2. Fulfills India's 1992 **Rio Earth Summit pledge** to provide judicial remedies for victims of environmental damage.

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Organisational Structure

1. **Composition:** Consists of a **Chairperson**, Judicial Members, and Expert Members; sanctioned strength is **10-20 full-time members** each.
2. **Chairperson:** Appointed by the Central Government in consultation with the **CJI**; must be a retired SC or HC Judge.
3. Judicial members are retired HC judges; Expert members must have **15 years of professional experience** in environmental science.
4. Headquartered in **New Delhi** (Principal Bench) with regional benches in **Bhopal, Pune, Kolkata, and Chennai**.

Powers and Functions

1. It deals with **civil cases under the seven environmental laws:**
   a. The Water (Prevention and Control of Pollution) Act, 1974,
   b. The Water (Prevention and Control of Pollution) Cess Act, 1977,
   c. The Forest (Conservation) Act, 1980,
   d. The Air (Prevention and Control of Pollution) Act, 1981,
   e. The Environment (Protection) Act, 1986,
   f. The Public Liability Insurance Act, 1991 and
   g. The Biological Diversity Act, 2002.
2. **Original Jurisdiction:** Can hear all civil cases where a **"substantial question relating to environment"** arises
3. **Appellate Authority:** Power to hear appeals against orders from **Pollution Control Boards** and Environment Clearance (EC) authorities
4. **Grant of Compensation:** Power to award relief and compensation to victims of **pollution or environmental accidents**
5. **Restitution Power:** Can order the **restoration of the environment** and property to their original state at the polluter's cost.
6. **Civil Court Equivalence:** Empowered with powers under **CPC, 1908**, for summoning, discovery, and executing its orders as a decree.
7. **Suo Motu Cognizance:** Following the **SC 2021 ruling**, NGT can act on its own motion without formal complaints.
8. **Ad-Interim Injunctions:** Power to grant **ex-parte interim orders** and stay activities to prevent immediate environmental damage
9. **Review Power:** Can **review its own decisions** if there is a clerical error or new discovery

Significance of NGT

1. **Specialized Expertise:** Combines judicial and technical experts
2. **Expeditious Disposal:** Mandated 6-month timeline
3. **Polluter Accountability**
4. **Strategic Oversight:** Balances development with ecology. Eg. **Great Nicobar project** monitoring through a High-Powered Committee.
5. **Reducing Judicial Burden:** Diverts technical cases from HC/SC

Major Challenges and Limitations

1. **Wildlife Protection Gap:** Its jurisdiction does **not include** the Wildlife (Protection) Act, 1972, leaving many poaching issues outside.

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2. **Forest Rights Exclusion:** Cannot hear cases related to the **Scheduled Tribes/Forest Rights Act, 2006**, limiting tribal environmental justice.
3. **Vacancy Backlogs:** Persistent delay in appointing members often leaves regional benches **non-functional for months**.
4. **Appellate Hurdles:** NGT orders can be challenged in the **Supreme Court**, often leading to long litigation stays.
5. Benches are located only in **five major cities**, making it inaccessible for rural environmental activists.
6. Critics argue that expert members are often **retired IFS officers**, leading to a pro-government stance.
7. **Infrastructure Deficit:** Lack of advanced **technical labs** forces the tribunal to rely on data from Pollution Control Boards.

Major Case Studies

- **Almitra Patel Case:** Led to a national ban on **open burning of garbage**, streamlining solid waste management rules
- In 2015, it banned **10-year-old diesel vehicles** in Delhi
- **Srinagar Dam Disaster:** Successfully enforced the **Polluter Pays principle**, forcing a hydro-power company to compensate disaster victims.
- **Yamuna Floodplain (Art of Living):** Despite finding environmental damage, the **₹5 crore fine** was criticized as being too lenient.
- **Sterlite Copper Case:** NGT order to reopen the plant was **quashed by the SC**, showing its vulnerability to higher judiciary.
- In the **Save Mon Federation Vs Union of India case (2013)**, the NGT suspended a ₹6,400-crore hydro project, to save the habitat of a bird.

Way Forward

1. **Expanding Scope:** Amend the NGT Act to include the **Wildlife Protection Act** and Forest Rights Act
2. Establish **District-level circuit benches** to bring environmental justice to grassroots activists in eco-sensitive zones.
3. Adopt the **New South Wales L&E Court** model, where judges have specialized environmental law degrees.
4. Create a permanent **Environmental Investigation Agency** under NGT to conduct independent audits and dawn raids.

Issues Due to Multiplicity of Commissions

- **Overlapping Jurisdictions:** lead to procedural chaos.
- **Forum Shopping: Eg.** Bounced petitions between **NCM** and **NHRC**.
- **Financial Wastage:** Operating separate secretariats, chairpersons, and staff
- **"Toothless Tiger" Syndrome**
- **Staffing & Vacancy Crisis: Eg.** over **40% of member posts** in NCM and NCST vacant.
- **Information Silos:** Commissions rarely share their **Complaint Management Systems**, leading to duplication of data and evidence.
- **Dilution of Accountability**
- **Executive Patronage:** Multiplicity provides more posts for **retired bureaucrats**, turning independent bodies into "parking lots" for favorites.
- **Inconsistent Legal Standards**

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Way Forward

- **Umbrella Commission: National Human Rights & Social Justice Commission** with sectoral divisions.
- **Unified Complaint Portal:** Implement a **"One-Nation One-Grievance"** digital bridge
- **Independent Selection Panel**
- **Binding Recommendations**
- **Fixed Appointment Calendar**
- Charge the salaries and administrative expenses directly on the **Consolidated Fund**
- **Independent Investigative Cadre**
- **Mandatory "Action Taken Report" (ATR)** in Parliament within 6 months of annual report.

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Chapter 15

Comparison Of Constitutions

PYQs

[2026] Examine how the separation of powers is practised in India compared to the rigid presidential model of the United States of America. In this context, compare the actual authority of the Indian Prime Minister with that of the President of the USA. (15)

[2025] Compare and contrast the President's power to pardon in India and in the USA. Are there any limits to it in both countries? What are 'preemptive pardons'? (10)

[2024] Discuss India as a secular state and compare it with the secular principles of the US constitution. (15)

[2023] Compare and contrast the British and Indian approaches to Parliamentary sovereignty. 10

[2022] Critically examine the procedures through which the Presidents of India and France are elected. (15)

[2021] Analyze the distinguishing features of the notion of Equality in the Constitutions of the USA and India. (15)

[2020] The judicial systems in India and UK seem to be converging as well as diverging in recent times. Highlight the key points of convergence and divergence between the two nations in terms of their judicial practices. (10)

[2019] What can France learn from the Indian Constitution's approach to secularism? (10)

[2018] Indian and USA are two large democracies. Examine the basic tenets on which the two political systems are based. (15)

India- USA

Similarities

1. The Constitution is **written and supreme**, forming the highest law of the land.
2. The system follows a **federal structure** dividing powers between the Union and States.
3. The **Constitution holds supremacy** over all other laws and institutions.
4. An **independent judiciary** safeguards constitutional provisions.
5. The courts exercise **judicial review** to strike down unconstitutional laws.
6. **Judicial precedents** guide legal interpretation and decision-making.
7. **Fundamental rights** guarantee individual liberty and equality.
8. **Separation of powers** - A **written distribution of powers** defines the authority of different government levels.
9. A **bicameral legislature** functions through two representative chambers.
10. The government is a **republic** with an elected head of state for a fixed term. The concept of **popular sovereignty** ensures ultimate authority lies with the people.
11. The principle of **rule of law and due process** governs all actions of the State.

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12. A **preamble** expresses ideals of sovereignty, liberty, equality, and justice.
13. An **impeachment process** exists for removing the President from office.

Judiciary

Similarities

1. **Judicial Review:**
   a. **India:** Kesavananda Bharati (1973) - "Basic Structure" of the Constitution.
   b. **US: Marbury v. Madison (1803)** - Supreme Court can invalidate acts of Congress.
2. **Independence of Judiciary:**
   a. **India:** Salary and allowances of judges are charged to the **Consolidated Fund**.
   b. **US: Article III** - judges' salaries cannot be diminished during their time in office.
3. **Guardian of Rights:**
   a. **India:** Article 32 allows citizens to move the SC directly for FR violations
   b. **US:** The **"Bill of Rights"** - basis for the Court to protect FR.
4. **Adversarial Model:** Eg. In high-profile criminal trials in both nations, the burden of proof lies with the prosecution to prove guilt "beyond a reasonable doubt."
5. **Interpretive Supremacy:**
   a. **India: Article 141** states that the law declared by the Supreme Court is binding on all courts within India.
   b. **US:** The **"Supremacy Clause" (Article VI)** ensures that federal judicial decisions override conflicting state laws.
6. **Writ Jurisdiction:** Eg. Both courts frequently issue **Habeas Corpus** to secure the release of persons illegally detained by the state.
7. **Common Law Roots:** Over 80% of legal terminology and foundational principles in India (Eg. Tort, Equity) mirror those used in the US federal courts.

India	USA
Integrated Judicial System	**Dual Court System**
Retirement at 65 for SC judges	**Life Tenure**
Procedure Established by Law U/A 21	**Due Process of Law** - Explicitly provided under **5th and 14th Amendments**
Under **Article 143**, the President can seek the Supreme Court's opinion.	The Supreme Court does not provide **advisory opinions**, deciding only actual **cases and controversies**.
Collegium System - Judges appoint judges; executive role is largely formal.	**Political Appointment - President nominates, Senate confirms** through public hearings.
Liberal Locus Standi - Any person can file for others' rights.	**Strict Standing Rule** - Plaintiff must show **concrete and particularized injury** to approach the court.

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India	USA
Single Constitution - States do not have separate constitutions (except earlier J&K); all courts interpret one national Constitution.	**Separate State Constitutions** - Each of the **50 states** has its own Constitution; State Supreme Courts are final authority on state laws.
Basic Structure Doctrine - Judiciary can strike down amendments violating the **Basic Structure**. Eg. **NJAC case**.	**No Judicial Review of Valid Amendments** - Once validly ratified, an amendment becomes part of the supreme law and cannot be struck down.

Executive

Similarities

1. Both governments continue to derive authority from the Constitution. Eg. **Article II (US)** and **Articles 52-78 (India)**.
2. **President as Commander-in-Chief: Article II, Sec 2 (US)** and **Article 53 (India)**.
3. **Pardoning Powers:** Both executives hold the judicial power to grant pardons, reprieves, or remissions of punishment.
4. **Veto Powers:** Both have the power to withhold assent to bills passed by the legislature.
5. **Impeachment Process:** The Indian President can be impeached for "Violation of the Constitution," while the US President faces it for "Treason, Bribery, or High Crimes".

Indian Executive (Parliamentary)	US Executive (Presidential)
Dual Head - **President** is the **Head of State (titular)**; **Prime Minister** is the **Head of Government (real executive)**.	**Single Head** - The **President** is both **Head of State and Head of Government**.
Part of Legislature - The **PM and Council of Ministers** must be members of **Parliament**.	**Strict Separation** - The **President and Cabinet** cannot be members of **Congress**.
Collective Responsibility - The **Cabinet is collectively responsible to the Lok Sabha**.	**Individual Responsibility** - The **President is not responsible to the legislature** for executive actions.
Indirect Election - The **President** is elected by an **Electoral College of MPs and MLAs**.	**Popular + Electoral College** - The President is elected through **popular vote leading to Electoral College selection**.
5 Years; No Term Limit - Can be re-elected any number of times.	**4 Years; Two-Term Limit** - Restricted by the **22nd Amendment**.
Parliamentary Cabinet - Ministers are **peers/colleagues of the PM** within the legislature.	**"Kitchen Cabinet" Style** - Members are often **experts/advisors**, responsible only to the President.
Suspensive Veto - If Parliament passes the returned bill again, the **President must sign**.	**Qualified Veto** - Requires **2/3 majority in both Houses of Congress** to override.

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Indian Executive (Parliamentary)	US Executive (Presidential)
President Can declare **National, State, and Financial Emergencies** under **Articles 352, 356, 360**.	Relies on **inherent powers + Congressional authorization** during emergencies.

Legislature

Similarities

1. **Bicameralism:** India has the **LS** and **RS**; the US has the House **of Representatives** and **Senate**.
2. **Representative Democracy:** direct elections for their lower houses based on adult suffrage.
3. **Privileges:** Legislators enjoy freedom of speech within the house to ensure robust debate. Eg. **Article 105** in India and the **Speech or Debate Clause** (Article I) in the US Constitution.
4. **Role of the Vice President:** serves as the presiding officer of the Upper House.
5. **Legislative Autonomy:** Indian courts cannot inquire into proceedings of Parliament under **Article 122**, similar to the US "Political Question" doctrine.
6. **Committees System:** Both utilize **Standing Committees** and **Select Committees** to handle the heavy volume of legislative work.
7. **Joint Sittings/Conferences:** India uses **Joint Sittings (Article 108)**, while the US uses **Conference Committees** to align differing versions of a bill.
8. **Impeachment Powers:** Both legislatures hold the power to remove the Head of State and high judicial officials.

Indian Parliament	US Congress
President is an integral part of Parliament	The **President is not a part of Congress**.
Fused System - The **Executive (Cabinet)** must be members of **Parliament**.	**Separated System** - No member of the **Executive** can be a member of **Congress**.
Rajya Sabha has limited powers over **Money Bills** and in **joint sittings**.	The **Senate** is often considered one of the most powerful upper houses globally.
Population-based Representation in RS	**Equal Representation** - Each state gets exactly **2 Senators**
The **President can dissolve the Lok Sabha** on the advice of the **Prime Minister**.	The **President cannot dissolve** either house of **Congress**.
Lok Sabha - 5 years; **Rajya Sabha** - Permanent body with **6-year terms**.	**House of Representatives** - 2 years; **Senate** - 6 years.
Only **Parliament** can initiate a constitutional amendment.	Amendments can be initiated by **Congress or the States**.
Residuary powers - Vested in the **Union Parliament**.	Vested in the **States** under the **10th Amendment**.

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Aspect	Indian Secularism	U.S. Secularism
Model Type	**Positive secularism** - Equal respect to all religions	**Neutral secularism** - Strict separation of Church and State
Constitutional Mention	Explicitly mentioned in the **Preamble** (added by 42nd Amendment, 1976)	Not in Preamble, but derived from the **First Amendment**
State-Religion Relationship	State can **intervene in religion** to ensure equality and reform (Eg. temple entry, untouchability)	State maintains **complete non-interference** with religion
Religious Freedom	Article 25-28 guarantee **freedom of religion** with reasonable restrictions	First Amendment guarantees **absolute religious freedom** and bars state religion
State Funding/Support	State can fund or regulate religious institutions for social reform	**No government aid** to religious institutions allowed
Religious Symbols in Public Institutions	Permissible in some contexts (Eg. festivals, public holidays)	Generally **not allowed** in public/government institutions

Federalism

Similarities

1. **Dual Polity Structure:** India has 28 states and 8 Union Territories, while the US has 50 states.
2. **Written and Supreme Constitution:** reflected in **Article VI** of the US Constitution (Supremacy Clause) and the **"Basic Structure"** doctrine in India.
3. **Independent Judiciary** that acts as the final arbiter of constitutional disputes between the center and states.
4. **Bicameralism:** India's **Rajya Sabha** and the US **Senate** both serve as "Houses of States".
5. **Division of Powers:** India uses the **Seventh Schedule**, while the US uses the **Enumerated Powers** (Article I, Section 8).
6. **Constitutional Amendment Procedure:** In India, federal amendments require ratification by **50% of state legislatures** (Article 368); in the US, they require **three-fourths of states**.

Indian Federation	US Federation
Holding Together Federation - India was a unified state divided into administrative units by the Centre.	**Coming Together Federation** - Based on an agreement among the **13 original colonies**.
Under **Article 3**, Parliament can change the name or boundaries of a state without its consent.	Federal government cannot alter a state's territory without state approval.
Single Citizenship - Citizen of India only.	**Dual Citizenship** - Citizen of both the US and a specific state.

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Indian Federation	US Federation
Vested in the **Centre**. (**Entry 97**)	Reserved for the **States or the People**.
Single Constitution for all states.	Each state has its own separate Constitution.
Representation in Upper House - Population-based Representation.	**Equal Representation of States**.
Under **Articles 352 & 356**, Centre can assume control over states.	US President cannot dismiss a state government or legislature.
Integrated Judiciary & Services.	**Dual Judiciary & Separate Services**.

India	USA
President can be impeached only for **"Violation of the Constitution"** under **Article 61**, which is not clearly defined.	President can be removed for **"Treason, Bribery, or other high Crimes and Misdemeanors"**, allowing wider criminal and ethical grounds.
Charges can be initiated by **either House of Parliament** (**Lok Sabha or Rajya Sabha**).	Impeachment can be initiated only by the **House of Representatives** (Lower House).
Motion must be signed by at least **1/4th (25%) of total membership** of the initiating House.	Requires only a **simple majority** in the House of Representatives to impeach.
The **other House of Parliament** investigates the charges and acts as a quasi-judicial body.	The **Senate** acts as the sole court for impeachment trial.
Regular presiding officer (**Speaker/Chairman**) manages proceedings; no judicial involvement.	The **Chief Justice of the Supreme Court** presides over the Senate trial.
Requires **2/3rd majority of total membership of each House**, making removal very difficult.	Requires **2/3rd majority of members present in the Senate**, which may be comparatively lower.
President has a constitutional right to **appear and be represented** during investigation.	President is usually represented by **legal counsel**, rarely appears personally.
Removed President simply **vacates office**.	Senate may also vote to **permanently disqualify** the person from holding future federal office.
No Indian President has ever been impeached.	**Three Presidents impeached** by house (Johnson, Clinton, Trump twice), but none convicted by Senate.

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India- UK

Similarities

1. The system operates under a **parliamentary form of government** with a collective responsibility of the executive to the legislature.
2. The **Cabinet system** functions as the real center of political and administrative power.
3. The **Prime Minister** is the head of government and leads the Council of Ministers.
4. The **President in India and the Monarch in the UK** serve as nominal heads of state.
5. The **Parliament** is the supreme law-making body consisting of two houses.
6. The **Council of Ministers** is collectively responsible to the **Lower House** (Lok Sabha/House of Commons).
7. The **Rule of Law** governs all citizens and authorities, ensuring equality before law.
8. The **parliamentary privileges** of members are recognized and protected.
9. The **bicameral legislature** structure includes an upper and lower chamber.
10. The **parliamentary procedure and traditions** in India are modeled on Westminster practices.
11. The **Cabinet Secretariat** and **civil service neutrality** are features inherited from the British model.

Indian Constitution	UK Constitution
Written, codified, detailed and the lengthiest in the world	Unwritten, uncodified, based on conventions, common law, and statutes
Single citizenship for all Indian citizens (Part II of the Constitution)	Dual citizenship (also known as dual nationality) is allowed in the UK.
Federal character	**Unitary** character
President is elected and constitutional head of the state	Monarch (King/Queen) is hereditary and ceremonial
Parliamentary sovereignty - Subject to Constitutional limitations and judicial review	Parliament can make or unmake any law
It is not necessary for the Speaker to resign from his party.	**Once a Speaker, always a Speaker** is the convention in the United Kingdom.
Shadow Cabinet - Not present	Formed by the opposition party to mirror the Cabinet's structure.
Clearly defined and enforceable Fundamental Rights under Part III	No codified Fundamental Rights; rights based on common law and judicial precedents
Amendment Process - Rigid and flexible (Article 368): some require special majority and/or state ratification	Parliament can amend constitution via ordinary law
Independent Judiciary with the Supreme Court as the highest court, with power of judicial review.	Independent judiciary, but the UK follows the principle of **Parliamentary sovereignty,** and the

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Indian Constitution	UK Constitution
	courts do not have the power to invalidate acts of Parliament.

Indian judiciary	United Kingdom (UK)
Single Integrated Judiciary with one legal system across India.	UK SC interprets separate systems of **England & Wales, Scotland, and Northern Ireland**.
The **Supreme Court** can strike down laws violating the Constitution.	Courts cannot invalidate an **Act of Parliament**, only declare it "incompatible" with human rights.
Includes **Basic Structure Doctrine**, allowing review of even constitutional amendments.	No equivalent power due to the **unwritten constitution** and parliamentary sovereignty.
Collegium System - Judges appoint judges. Executive role is limited	**Judicial Appointments Commission (JAC)** includes **non-legal lay members**.
Supreme Court judges retire at **65 years**.	Supreme Court judges can serve up to **75 years** (post-2022 appointments).
Under **Article 143** President can seek SC's opinion.	No formal advisory role to the Monarch.
Liberal PIL System - relaxed **locus standi** allows any citizen to file for public interest.	Requires claimant to show **sufficient interest** in the matter.
Rights are **entrenched** under **Part III** of the Constitution.	Rights are mainly **statutory** under the **Human Rights Act, 1998**.

Parliamentary Privileges

India	United Kingdom (UK)
Constitutional - Derived from **Article 105**.	**Common Law & Custom** - Based on **Lex Parliamenti (Law and Custom of Parliament)**.
Courts can review existence of privilege and its compatibility with **Fundamental Rights**. Eg. **Searchlight Case**, **Keshav Singh Case**	Courts generally avoid interfering in parliamentary privileges.
Criminal Immunity - Earlier broader, now **narrowing**. Eg. Sita Soren Case	**No immunity** for criminal acts.
Expulsion of Members - Exists but **subject to judicial review**.	**Inherent power** of House of Commons, rarely challenged.

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India	United Kingdom (UK)
Speaker has Broad Discretion - Can refer matters to **Privileges Committee**.	**Procedural Role** - Determines **prima facie case**.

India- France

Similarities

1. Both are **written constitutions** serving as the supreme law of the land.
2. Both declare the State as a **sovereign, democratic, and secular republic**.
3. Both emphasize the principles of **liberty, equality, and fraternity** in the Preamble.
4. Both establish a **Republican form of government** with an elected head of state.
5. Both provide for a **bicameral legislature** at the national level.
6. Both allow **emergency provisions** empowering the executive during crises.
7. Both stress **constitutional supremacy over all organs of the State**

Executive

Similarities

1. **Dual Executive Structure:** a Head of State (President) and a Head of Government (PM).
2. In both systems, the **Prime Minister** is the primary official responsible for the legislative agenda and government policy.
3. Both the Indian and French **Presidents hold the supreme command of the armed forces.**
4. **Pardoning Powers**
5. The Indian President issues **Ordinances** (Article 123) during recess, while the French President can issue **Decrees** in the Council of Ministers.

India	France
Indirect Election - President is elected by an **Electoral College of MPs and MLAs**.	**Direct Election** - President is elected directly by the people through a **two-round popular vote system**.
Titular Head - President is a constitutional figurehead	President has **reserved powers** in defence and foreign policy.
PM must belong to the majority party/coalition in Lok Sabha.	If opposition wins legislature, President must appoint a rival PM (**Cohabitation**).
No Term Limit - President can be re-elected indefinitely.	**Two-Term Limit** - President can serve only **two 5-year terms**.
President dissolves Lok Sabha only on **PM's advice**.	President can dissolve the **National Assembly at will** (once a year).

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India	France
PM presides over Cabinet meetings.	**President presides** over the **Council of Ministers (Conseil des Ministres)**.
Emergency powers are exercised on **written Cabinet advice**.	President has **wide personal discretion** during emergencies.
PM is responsible only to the **Lok Sabha**.	PM is responsible to both the **President and Parliament**.

Indian Secularism	French Model (Laïcité)
Positive secularism - equal respect for all religions	**Negative secularism** - strict separation of religion and State
State maintains a **principled distance**, engaging when necessary	State maintains **complete separation** and avoids any involvement
Public Expression Permitted (Eg. wearing religious symbols)	**Prohibited** in public institutions (Eg. veil ban in schools)
State may **intervene to reform** religion (Eg. social justice laws)	State **non-interventionist**, acts only to protect public order
Promotes **religious harmony and equality** among communities	Ensures **religion-free public sphere** and neutrality of the Republic
Recognizes religion as a **social and cultural reality**	Treats religion as a **private and individual affair**
Protects minority rights (Articles 29-30)	**No special recognition** for religious minorities

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